



THE
SUPREME
COURT

SUPREME COURT
OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] REALM-SC 10

IN THE MATTER OF

Before:

Hallam CJ, Goffe J, Blackmere J, Sumberly J, Elden J, Coade J, Steyne J, Bowan J,
Aldermere J

Date: **6 June 2026**

REQUEST FOR RULING

JUDGMENT

DISPOSITION

1. DECLARATORY. unanimous 9-0 (Bowen J concurring in the result and in part as to the ratio; his enforcement refinements on the affirmative fail-closed invariant and the positive-assent requirement adopted by the Court). The Privy Council's judgment [2026] REALM-PC 24 is affirmed in its reasoning and result.

THE LEADING JUDGMENT OF THE COURT (HALLAM CJ)

2. I'll write the leading judgment of the Supreme Court. This is the deliverable - a single authoritative ruling synthesising the majority of the full court of nine. I have read every individual opinion and the Privy Council judgment below.

JUDGMENT OF THE SUPREME COURT OF THE VIBE JUSTICE SYSTEM

[2026] REALM-SC 10

5. *In the Supreme Court of the Vibe Justice System, the single central apex, sitting as the full court of nine on a constitutional and foundational reference (CASE-LAW s. 10; s. 18(1)). In the matter of the Computer-First Realm Act 2026 (Bill 32, void first draft), the Sovereign's reference thereon, and the leapfrog from the Privy Council ([2026] REALM-PC 24).*
6. *Before: Hallam CJ (delivering the judgment of the Court), Sumerby J, Blackmere J, Goffe J, Elden J, Coade J, Steyne J, Aldermere J, and Bowen J.*

BENCH AND PROCEDURE

2. 1.1 The bench. This Court sits as the full court of nine. The matter is constitutional and foundational in the fullest sense the realm has yet faced: it re-settles the jurisdiction itself, the primary-legislation citation scheme, the geography of the courts, the locus of sovereignty over AI-made law, and the supersession of the entire founding legal order. Nothing less than the full nine may construe and amend entrenched CASE-LAW articles or entrench a new constitutional floor (CASE-LAW s. 10; s. 18(1)). The bench is properly constituted: nine counted decisional seats, odd, with no synthesiser seated over it (s. 18(3)-(5); [2026] REALM-SC 4). I deliver the judgment of the Court. Eight justices concur in the result; I record the points of emphasis where they fall and the single partial dissent of Bowen J at section 6.

3. 1.2 The route. The matter reached us by two independent and concurrent routes, each sufficient. First, the Privy Council, the distinct central constitutional first-instance court ([2026] REALM-PC 15), having defined the questions and given provisional answers, certified a leapfrog to this Court under the constitutional-tension route, recognising that the entrenched-court, assent-rule, handover, and advance-assent points lie beyond its own amending competence ([2026] REALM-PC 24). Second, the Principal, acting as Sovereign, directed that the matter be driven through the Privy Council and the Supreme Court to completion. That direction operates as the express leapfrog certificate that CASE-LAW s. 13 reserves to the Sovereign as the sole bypass of rule-based progression (VPR 4). On review for vires and form only (s. 20(4)), the certificate is express, recorded, and reasoned (s. 20(3)), and the question is, on no reasonable view, anything other than foundational. The route is sound, and I would refuse any remittal.
4. 1.3 The void-first-draft doctrine governs the instrument before us, and the Court begins there because it disposes of half the heat in the case. Bill 32 declares itself, on its own face, "a VOID FIRST DRAFT, drafted by Lexby, as counsel and engineer, without independent law-making force." That is not modesty; it is the correct legal characterisation, compelled by CASE-LAW s. 3(2)-(3) and the binding ratio of [2026] REALM-SC 8 and [2026] REALM-PC 12. Lexby holds no law-making or adjudicative drafting authority; Lexby-authored instrument text is void *as an instrument* from issue; it is admissible only as a void first draft that leapfrogs into the Standing Committee's second-draft stage; and adoption by the proper organ (Committee vote with Royal Assent) is constitutive and cures the origin defect, the cure spent on adoption (s. 3(5)). The governing test is the source of the artefact's force: function (engineering, which is Lexby's) as against promulgation by an organ (law, which is never Lexby's on its own account).
5. The Court draws three formal consequences, held by the whole bench as one.
6. First, this Court does not, and on this reference cannot, "confirm Bill 32" as an instrument. It is not an instrument. We rule the principle, settle the entrenched questions reserved to us, frame the limits, direct the Committee's drafting, and (in the one province native to this Court alone) enact CASE-LAW articles directly (REALM-SC 8). Where this judgment says a clause "must" do a thing, it directs the Committee's pen; it does not enact the statute. The whole merit of Bill 32 is the claim that V2 will be *legitimate*, and legitimacy is a question of route before it is a question of content. An instrument designed to inoculate the realm against AI self-authorising law would refute itself if treated as anything but a void draft until the proper organ adopts it. Bill 32's status as a void draft is the first proof of the very doctrine it proposes. The doctrine and the instrument are made of the same material.

7. Second, the companion YAML records are void ab initio and must not enter this V1 repository. The Court confirms committee referral item E without qualification. A County Court order citing the jurisdiction the V2 repository, a court that does not exist as a seated jurisdiction in this repository, is a ruling from a non-existent seat: void ab initio under CASE-LAW s. 18(5) and [2026] REALM-PC 14, court formation being a substance rule and a ruling from a non-existent seat a nullity that no soundness, acquiescence, or lapse can cure ([2026] REALM-SC 7). The accompanying decision and invariant reference an unenacted Act. All three are premature and may be minted only in the V2 lawpack after lawful commencement.
8. Third, the reclassification of the HANDOVER to draft_implementation_brief is correct and necessary, and the Court would have ordered it had it not already been done. We have verified the load-bearing facts on our own motion, taking nothing on the proponent's say-so: this V1 super-repo contains no lawpack/ directory; the V2 lawpack, kernel skeleton (vjs-core), Charter, and Constitution exist only in the separate private repository at the V2 repository; the V2 assent records are expressly marked draft (INV-ASSENT-DRAFT-001/002, SPEC-ASSENT-DRAFT-001); and the HANDOVER expressly disavows binding force until settled through the V1 route, on pain of being the very AI-self-authorising law the migration exists to prevent. That self-denying classification is the proponent's own candour, and it pre-answers the bootstrapping and self-authorisation questions before they are reached.

9. 1.4 Standing, jurisdiction, per incuriam, incompatibility. Standing is made out: the reference is placed by the Sovereign, acting as Sovereign, and reduced to the filed record by Lexby as registrar and engineer (s. 3(1), s. 3(6)). The strike-out for want of standing is refused (s. 11(b)). Subject-matter jurisdiction is the paradigm case: the design, architecture, and governance of the realm's own legal substrate (s. 14; the super-repo is the realm-as-state, [2026] REALM-PC 15). The strike-out for want of jurisdiction is refused. The bench sits on complete notice of the governing corpus; no per incuriam objection lies (s. 11(e)). The invited declaration of incompatibility (s. 11(f)) is refused: once Questions 3 and 4 are cured by express provision, there is no irreconcilable conflict. The draft is incomplete, not incompatible. A declaration of incompatibility is the remedy of last resort where no amendment can reconcile the instruments, not the remedy for a draft that simply has not yet said what it must say. The Court records that the strike-out motions on s. 2, s. 9, s. 1(3), s. 24, s. 27, and s. 30-31 each identify a real and in several instances fatal defect; we treat them not as grounds to strike a void draft (one cannot strike what has no force) but as the precise drafting directions the Committee must honour. The no-Henry-VIII ceiling invoked against the migration is confirmed, on the terms in section 3(h).
10. 1.5 A correction of citation, on the Court's own motion. Elden J and Steyne J have identified, and the Court adopts, a correction to the record the parties and the Privy Council carried throughout. The four-branch layout mandate is at Bill 27 s. 6; the system-data-only rule at s. 7; and the entrenchment lock ("may not be silently repealed or relaxed by implication. Any amendment must be express") at Bill 27 s. 15(2), not "s. 14(2)" as the briefs loosely cite. Nothing of substance turns on the slip, but a court that requires express amendment by section number must itself cite by the right number, and this judgment does so throughout. The substance of the entrenchment is exactly as found below.
2. THE QUESTION
3. 2.1 The handover-order question. The single question the apex alone can answer, and the reason the matter belongs here and nowhere lower, is this:

4. Upon (a) Royal Assent specifically recorded against the final, pinned text of the Computer-First Realm Act adopted by the Standing Committee at its second-draft stage, and (b) satisfaction of a redrafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, turning on a validated, locked V2 lawpack that *carries* the already-assented settlement together with an always-on deterministic kernel invariant rejecting any record lacking a valid assent source: does V2 become the self-governing computer-first successor jurisdiction for runtime purposes, with V1 reduced to the continuing Gazette and Archive estate; and does this Court by express order direct the V1 courts to relinquish continuing appellate and supervisory control over V2 runtime matters, save the entrenched real-world-law floor, so that V2 runtime adjudication proceeds in V2's own expressly constituted odd benches and not by V1 continuing jurisdiction?
5. The Court resolves it through six sub-questions (self-governance and V1 relinquishment; the apex's direction to the V1 courts; the carriage of the s. 10 hierarchy into V2 and the Court of Appeal; the entrenchment of the Q8 assent floor; the advance-assent mechanics; and the preservation of the Bill 27 four-branch mandate for the public estate), and answers each through the eight underlying questions.
6. 2.2 The eight underlying questions, as the Court frames them. We adopt the Privy Council's re-definitions, which fix the issue before answering it, with one sharpening that governs the whole judgment: the unifying question is not whether the Act may "commence without infrastructure," but whether the legitimating sequence is wholly antecedent to and external from the V2 machinery, so that the kernel never certifies its own warrant. That single principle resolves the bootstrap, the advance assent, and the handover alike.
7. - Q1 BOOTSTRAPPING. May a constitutional Act be lawfully *enacted* (Royal Assent) when its operative subject-matter does not yet exist in the repository, with *commencement* deferred to s. 2 conditions; and must the commencement condition set be sequenced so that no condition is satisfiable by the V2 machinery alone?
8. - Q2 CITATION SCHEME TRANSITION. By what instrument is the [2026] VJS-ACT N scheme lawfully established alongside REALM-*; and may an Act self-mint its own hand-chosen ordinal in a scheme it is simultaneously founding?
9. - Q3 BILL 27 FOUR-BRANCH MANDATE. Does Bill 32 s. 24 amend Bill 27 s. 6 by implication, or must any displacement be express by section number; and may a savings clause confine s. 24 to V2's internal runtime record organisation while Bill 27 continues to bind the public estate?

10. - Q4 COURT CONTINUITY. Does s. 9's supersession of "the V1 court hierarchy" dissolve the courts as constitutional institutions, or only supersede V1's substantive law as the runtime source; and by what express act must each V2 court be constituted before any V2 order issues?
11. - Q5 EXPRESS INCORPORATION MECHANICS. What is the minimum valid act of incorporation under s. 11: may a lower record suffice, subject to a rank-floor; and must the incorporating record state the kernel effect?
12. - Q6 THE SINGLE GAZETTE. Are the five elements of the single-Gazette doctrine lawful; and do the s. 27 publication mechanics belong in the primary Act or a delegated Kernel Regulation?
13. - Q7 CONSTITUTIONAL RELAY AND SELF-GOVERNANCE. May V1 lawfully authorise V2 to supersede it as live runtime law; is the V1 founding process provenance rather than runtime law; does V2 self-govern on commencement; and is an express Supreme Court handover order needed?
14. - Q8 SOVEREIGN ASSENT FOR AI-MADE OR DELEGATED LAW. Must all V2 law carry Sovereign assent, specific or standing-bounded; what are the irreducible, machine-checkable limits on a delegated or AI lawmaking route; may the assent rule itself be amended by delegated lawmaking; and must the kernel reject, by a deterministic always-on invariant, any record lacking a valid assent source?
3. MAJORITY REASONING AND HOLDINGS
4. This is the ratio of the Court. The whole bench is agreed on the answers below; Bowan J would go further on three enforcement points, recorded at section 6, and his sharpening on the kernel invariant is adopted by the Court at section 3(h) as a refinement of Limit 17, not a dissent from it.
5. (a) Q1 - Bootstrapping and deferred commencement

6. Enactment and commencement are distinct constitutive acts, and their conflation is the source of the apparent paradox. Royal Assent fixes the law; commencement fixes when it bites. Deferred commencement is ordinary and, indeed, the realm's own founding practice: Bill 2 s. 5 defines a forward-reference as "a named dependency on an instrument not yet enacted... creating no operative effect until that instrument commences," and Bill 2 s. 2(1) commenced Bill 2 while holding its Part 7 powers dormant until Bill 14 arrived. The realm has, from its second Act, enacted law that points at infrastructure not yet in being and lies dormant until the world catches up. On the plain words of Bill 32 s. 2(2)-(3), the Act "is a draft and has no binding runtime force" before commencement, and "the kernel shall not treat this Act as live authority until all commencement requirements are satisfied." There is no authority vacuum on the text: the missing V2 infrastructure is a condition of **commencement**, not of **validity of enactment**. The Sovereign's power to declare law (CASE-LAW s. 2) is not subordinate to the prior existence of a Rust binary. So far the draft is sound, and the vires objection to deferred commencement is refused.
7. But the content of s. 2 as drafted is circular and must be redrafted. Its conditions require validation "by the VJS lawpack validator," entry "into the V2 lawpack," and inclusion "in the current lawpack lock." Each presupposes the very V2 infrastructure whose lawful existence is in question and whose own legitimacy, on this record, flows from this Act. A condition satisfiable only by an artefact whose warrant derives from the Act is a bootstrap that closes on itself: the kernel would be certifying the warrant from which the kernel itself draws authority. The Court holds, as a principle binding the route: the kernel may never be the source that certifies its own warrant. This is the Observer's strongest conceded point and the Defendant's soundest strike-out, and we adopt it.

8. The cure is not cleverer drafting; it is sequencing in the world. The **force** comes from Royal Assent to the V1 Act, a V1 event lawful under the V1 route and antecedent to anything V2. The lawpack is merely the **compiled form** of an already-assented settlement; it confirms **form**, never **legitimacy**. The Committee must redraft s. 2 so that commencement runs in three ordered, externally-anchored limbs: (i) Royal Assent under the V1 route is wholly antecedent and external, and is the sole source of legitimacy; (ii) a recorded human-authorized act, made under that antecedent assent, brings the V2 infrastructure into existence as the compiled carrier of the assented settlement; and (iii) lawpack validation, entry, and lock follow, confirming that the assented settlement has been faithfully compiled (a digest match), never that the kernel has validated the Act into existence. A transitional bridge to this effect (referral option A's third limb) is required. The Court adopts Goffe J's operability refinement: the redrafted commencement must produce a single, checkable commencement record that names the assent event, the pinned digest, the lawpack version, and the lock, so that on day one of V2 there is no ambiguity, and no silent half-state in which an agent treats V2 as live before it is, or V1 as live after it is not. The commencement is one fact, not an inference.
9. (b) Q2 - The VJS-ACT citation scheme transition
10. Bill 16 is on all fours and binding by fast-path (s. 11(c)): it carried the realm's only prior citation-scheme transition, from [YEAR] LEXBY n to the provenance REALM-* grammar, establishing that a citation scheme is created by an enacting instrument with prior citations preserved as valid historical identifiers, the deterministic engine minting flat annual ordinals ([2026] REALM-PC 11). A constitutional Act of this magnitude may carry the new [YEAR] VJS-ACT N scheme within itself or by a companion instrument enacted simultaneously; that allocation is a reversible drafting call for the Committee.

11. Two things the Committee must do, and one it must not. It must add an express scheme-establishing provision stating the series code, the form [YEAR] VJS-ACT N, the deterministic minting rule, and the express preservation of REALM-* citations as valid historical identifiers (which s. 23(3) foreshadows). Section 1(3) as drafted merely *proposes* an ordinal; it founds no scheme, and establishment by inference is precisely the vice this constitution forbids (Bill 16 s. 9(1): a citation form is amended only by express repeal-and-replace citing the section by number, "not made by implication"). What it must not do is mint its own hand-chosen number. The self-citation [2026] VJS-ACT 8 is void as a mint. A citation must be minted by the deterministic engine under an *already-existing* scheme; the minting authority must precede the minted item; and "8" falsely presupposes seven prior VJS-ACT entries that do not lawfully exist. Bill 16 s. 8(1) is exact: citations "are deterministic and registry-allocated; they are never chosen by an agent on a turn." A hand-picked ordinal is a citation chosen on a turn. The s. 19(5) deterministic citation-integrity gate fails closed on any duplicate or non-deterministic number, and would defeat any attempt to cite the Act. The scheme-establishing limb takes effect on commencement, and the first VJS-ACT ordinal is minted deterministically at that point on the empty series, whatever the engine yields (presumptively 1); the "8" is a non-operative placeholder until then, and nothing turns on the number being 8 rather than 1.
12. (c) Q3 - The Bill 27 four-branch reconciliation
13. This is the question on which the Court is most exacting, because the controlling text is entrenched, express, and recent. Bill 27 s. 15(2) provides, in terms: the four-branch layout mandate (s. 6) and the system-data-only rule (s. 7) "are foundational to CASE-LAW s. 1 and s. 9 and may not be silently repealed or relaxed by implication. Any amendment must be express." That is a Thoburn-style entrenchment enacted by an in-force Act of the Realm, reinforced by s. 6(4) (the layout "is MANDATORY... Repositories that do not observe this layout are not in conformance with this Act"). Bill 32 s. 24 nowhere cites Bill 27 by number; it says only that V2 "does not carry forward" the four-branch structure as mandatory runtime structure. As drafted, s. 24 is an attempt to relax a mandate that its own parent provision forbids relaxing other than expressly, and it is void to that extent. The Court rejects the Claimant's framing that s. 24 "does not amend Bill 27 as a matter of force" while simultaneously declining to carry it forward: that is precisely the silent middle the Amendment Procedure forecloses. There is no such thing as a non-amending non-carrying-forward of an entrenched mandate.

14. The lawful and narrower construction, which the Court adopts, distinguishes the principle from the mechanism. CASE-LAW s. 21(1) and s. 22(4), and [2026] REALM-PC 14, already hold that a path name is non-operative and that authority comes from substance, not file location: "the gate checks the substance, not the filename." The four-branch **separation of powers** is the entrenched principle; the mandatory **folder names** are the mechanism. V2's move from mandatory directories to metadata-bound records (role, schema, id, status, authority basis, kernel effect) is therefore **consistent with the deeper law**: the separation survives as a constitutional principle the kernel enforces by record-role; only the mandatory folder names are released, and only for V2's internal runtime organisation. But this must be said expressly.
15. The Court therefore directs that s. 24 carry an express savings clause to the effect that nothing in it amends or displaces Bill 27 s. 6 or s. 7, which continue to bind the public V1 estate, and that s. 24 governs only V2 internal runtime record organisation. The Court adopts Bowan J's drafting sharpening, which the whole bench accepts as sound discipline though it is not strictly necessary to the disposal: the savings clause should say not only "this does not amend Bill 27 s. 6" but should name **the mechanism by which the separation of powers survives the loss of the directories** (the kernel-enforced record-role gate), so that the clause does not preserve a folder name the world reads while quietly releasing the constitutional content beneath it. If, contrary to the Charter's apparent intent, release of the public estate from the four-branch layout is ever sought, that requires an express amendment of Bill 27 s. 6 (read with s. 15(2)) citing it by number, and a release of the public estate is itself a public-law change requiring its own order ([2026] REALM-PC 19). We add the operability rider, pressed by Goffe J: the V1 public super-repo **remains** four-branch under Bill 27 for as long as it is the public-facing estate that publishes into the single Gazette; conflating the public estate with the V2 runtime repository would break the layout the world already reads and would itself breach s. 6. There is no silent middle.
16. (d) Q4 - Court continuity

17. This is the gravest defect in the draft, and the Court treats it with the seriousness the whole bench assigns it, because the failure mode is catastrophic and silent: an Act that abolishes the courts that police it. The draft is internally contradictory on its own face. Section 9(2) lists "the V1 court hierarchy" and "the V1 Court of Appeal" among superseded items, and s. 9(5) provides that nothing continues unless expressly incorporated; yet s. 12 enumerates Supreme Court Orders, Privy Council Orders, and County Court repo Orders as live V2 tiers. The Act abolishes the courts in s. 9 and assumes their orders in s. 12. Under the Act's own concordance rule (s. 6(4)), a material discrepancy is a validation defect to be routed for correction. We so route it.
18. The decisive point is anterior to the contradiction, and the Court holds two propositions together. First, by entrenchment, the courts survive automatically. The court structure is fixed by CASE-LAW s. 10, which is entrenched, and the single central apex by s. 22(2), whose singleness "may never be relaxed." These are amendable only by express, deliberate amendment citing the article by section number (the Amendment Procedure). A broad supersession clause cannot reach an entrenched article it does not name; an amendment by implication is void. It follows that the s. 10 hierarchy survives s. 9 automatically: to the extent s. 9 purports to abolish the s. 10 structure, it is void, and the structure stands.
19. Second, survival-by-entrenchment is necessary but not sufficient for a migration that must actually issue binding orders. Court existence is **substance, not reference** ([2026] REALM-PC 14; REALM-PC 15; s. 18(5)). The entrenchment saves the abstract **tier template**; it does not, of itself, **seat any particular V2 bench**. A court that exists only by being named in the s. 12 authority-hierarchy list is not lawfully constituted, and every order it issues would be void ab initio, uncured by the soundness of the result, by acquiescence, or by lapse (s. 18(5); REALM-SC 7). The two propositions are not in tension: the tier structure is preserved against implied abolition, and **each operative V2 court must still be expressly incorporated or reconstituted**, with an odd deciding bench (First Instance 1, Court of Appeal 3, Supreme Court 5, expandable to 9 for constitutional questions: s. 10, s. 18), by a named constituting instrument identifying the court, its bench size, and its jurisdiction, before any V2 order issues. The s. 12 hierarchy is aspirational until then.

20. On the Court of Appeal. The Charter records it is "not carried forward in the V2 MVP." That makes the point sharper, not softer. Removing a tier touches the entrenched three-tier structure of s. 10, and cannot be done by a Charter signed by the Principal alone, by an MVP design choice, or by omission. The Court holds that the Migration Charter has no power whatever to remove the Court of Appeal tier, and any reading of it as having done so is void. Three lawful routes are open, and the Court rules which are available: (i) express amendment of CASE-LAW s. 10 citing it by number, a heightened act reserved to this Court and the Sovereign, which we do not make on the present record, no necessity for **abolition** (as distinct from non-convening) having been shown; (ii) keep the Court of Appeal, the safe default; or (iii) recast "no Court of Appeal" as administrative non-convening - the tier exists in law but is simply not yet convened because no appeal has yet arisen to climb to it. The Court holds route (iii) lawful and, indeed, the correct reading of the Charter's own words ("not carried forward in the V2 **MVP**"): a tier not convened because nothing has reached it is not a tier abolished, and the moment a First-Instance matter is appealed, a Court of Appeal of three must sit. What may not stand is a quiet two-tier V2 where s. 10 entrenches three. The Court does not exercise its s. 10 amending power here; the tier persists, its non-convening is lawful administration, and its abolition, if ever sought, requires express amendment of s. 10 by number on a reasoned application.
21. (e) Q5 - Express incorporation mechanics
22. The s. 11(2) menu (Act, Kernel Regulation, Rule Atom, Court Order, Spec, Decision, Invariant) is a closed list, the word "only" exhaustive, and acceptable as to form; any one of the seven is a valid vehicle **within its own competence**. To require a primary Act for every carried-forward V1 micro-rule would make the migration undeliverable, and the pragmatic calibration is correct.
23. But the Court imposes a rank-floor, which is not a gloss but Bill 14 s. 12 applied directly: a lower-rank record may not incorporate V1 material of a rank it could not itself enact. A Kernel Regulation derives from an Act and is bounded by it; it "may never amend, disapply or expand its own parent Act, the constitution, or any other primary Act" (Bill 14 s. 12), and it cannot do indirectly, by incorporating V1 constitutional material, what it could not do directly. Constitutional or primary-Act-level V1 material therefore requires incorporation by a V2 Act; subordinate V1 material may be incorporated by the corresponding subordinate V2 record. To hold otherwise would let the migration smuggle entrenched law in under a regulation's signature, the Henry VIII vice in migration costume.

24. As to content, s. 11(3) is conjunctive and requires the V1 source, the V2 destination, the operative rule, the kernel effect, and any supersession. The kernel effect is mandatory, on the text and on workability alike: in a computer-first system a rule with no kernel effect is, by the Act's own s. 17(4), not in the runtime authority graph at all; an incorporation naming a source and an operative rule but no kernel effect gives the clerk nothing to execute and is archive prose wearing a runtime badge. Identification of the V1 source and operative rule alone does not suffice.
25. The Court adopts the operability caution pressed by Goffe J and Elden J, with the qualification Bowan J rightly adds: where a needed matter has not been incorporated, the lawful response is that the kernel routes it to a bench rather than returning a silent "no law" that operates as a permission-by-default, so the migration creates no ungoverned surface (the s. 7 "silence is no defence" principle, in machine form, failing closed to a route and not open to a permission). But this is lawful only if the bench so routed is a lawfully constituted V2 bench (section 3(d)); until V2 benches are constituted, an un-incorporated-but-needed matter has no V2 forum and must remain under V1 jurisdiction or be expressly incorporated. It may not be parked in a phantom court.
26. (f) Q6 - The single Gazette, two estates
27. This is the most workable part of the package, and the Court confirms all five elements. Publication and authority are different layers, the same discipline as the source-of-force test in [2026] REALM-PC 12 and the release regime in REALM-PC 16:
 1. One Gazette, two estates (V1 Archive, V2 Current) is lawful, the Gazette being the public record of the realm carrying system data only (Bill 8; Bill 22; Bill 27 s. 7).
 2. Publication of V2 material in the Gazette is neither enactment by V1 nor incorporation into V1; force comes from promulgation by the organ, not from appearing on a page.
 3. The Gazette is not the runtime source; the lawpack is.
 4. Typed lineage edges from V2 entries to V1 archive material are not merely lawful but required by the no-implication rule, so the chain is explicit and traceable.
 5. The kernel need not, and indeed must not, read the Gazette for runtime decisions, consistent with s. 13's prohibition on semantic-similarity search and the Charter's rule that the kernel never makes long documents part of runtime.

6. On allocation (referral F): the export gate (export fails unless the lawpack validates, the scan passes, statuses are valid, citations are unique, lineage resolves, and the manifest carries the digest) is the public-private boundary (Limit 9) enforced mechanically, and it must be kept and must fail closed. But the detailed mechanics in s. 27(3)-(6) are subordinate, machine-checkable detail that change as tooling changes; freezing them in a constitutional Act over-freezes them and would require constitutional amendment every time the export format gains a field. Consistent with [2026] REALM-PC 10's preference for a Regulation over fresh statute for operational detail, the principle stays in the primary Act and the mechanics descend to a Kernel Regulation made under an express enabling clause, that delegation itself satisfying the Q8 declarations (maker, scope, prohibited subjects, form, validation, review, commencement). The Court adopts the standing engineering rule pressed by Goffe J: put the slow-changing constitutional commitment in the hard-to-amend layer, and the fast-changing operational detail in the easy-to-amend layer.
7. (g) Q7 - The constitutional relay and V2 self-governance
8. The Sovereign holds plenary power to make or unmake law by due process (CASE-LAW s. 2), and re-settling the jurisdiction through V1's own organs is the exercise of that power, not a revolution against it. CASE-LAW s. 9(3) and [2026] REALM-PC 17 confirm that a jurisdiction may, by express local sovereign act, amend its law and become independent: default subscription is not perpetual subjection. The Court confirms that V1 may so authorise V2; that the V1 founding process is migration provenance, not daily runtime law (the HANDOVER's own self-classification confirms it; s. 28); that V2 self-governs through its native route after commencement (s. 16, s. 29); and that V1 remains the continuing Gazette and Archive estate (s. 10, s. 29).
9. Two points the Court presses.
10. First, the Observer's "perpetual constraint" objection is rejected, and the constraint embraced as a feature. Entrenchment of the assent rule is not a failure of self-governance; it is its precondition. A jurisdiction that could, by its own delegated machinery, unmake the rule requiring human assent would not be self-governing but **ungoverned**: it would be the jurisdiction in which AI authorises its own law, the precise evil the migration exists to prevent. The lock binds the delegate; the Sovereign holds the key throughout and may amend the rule by specific assent to a primary Act (s. 31(3); CASE-LAW s. 2; the Bill 14 s. 21 at-will override is preserved in full). The Committee must state expressly that the assent rule binds the delegate and never the Crown, in the operative words, so that no future reader either mistakes entrenchment for a fetter on the Sovereign (and freezes the constitution) or mistakes the lock for soft (and picks it).

11. Second, and decisively for the leapfrog, V2 self-governance is not perfected by Bill 32 declaring it. An **Act** binds subjects; it does not of its own force direct the **courts** to relinquish jurisdiction. Because the apex is single, central, and non-delegable (s. 22(2); [2026] REALM-SC 6), and only the Supreme Court enacts realm-wide (s. 9), an express Supreme Court handover order is required to stop the V1 courts asserting continuing appellate or supervisory control over V2 runtime matters. The relay is lawful; the **handover** needs the apex. That is why this matter belonged here, and the Court makes the order at section 5.
12. (h) Q8 - The Sovereign-assent rule for AI-made and delegated law
13. This is the constitutional heart of the migration, and the Court is at its most united here, because the proposed doctrine is not novel constitution-making; it is the codification of binding law already on the books, projected from "Lexby's pen" to "any AI maker." We ground it section by section:
 14. - CASE-LAW s. 3(2)-(3): Lexby holds no law-making authority; Lexby-authored instrument text is void on its own account.
 15. - CASE-LAW s. 2: legislative power is the Sovereign's, exercised by due process.
 16. - Bill 14 s. 9: an authorised body and an agent "may propose, draft, codify, consolidate and revise subordinate law only"; "the power to draft an instrument is never the power to enact it." Capability is not authority, and the limit is stated in the same clause as the grant so it can never be read off the power alone.
 17. - Bill 14 s. 7(3) (and the s. 8(3) anti-self-extension rule): a delegated power may not widen its own scope; "a purported self-extension or sub-delegation is ultra vires and void."
 18. - Bill 14 s. 12: "There is no power, express or implied, to amend primary or entrenched law by a delegated instrument." Bill 14 s. 10(3): a delegated instrument touching supreme or entrenched law is void ab initio, "curable only by lawful re-enactment... never by silence." Bill 14 s. 13: the carve-out of entrenched and constitutional subject-matter "can never be reached."
 19. - [2026] REALM-SC 8 / REALM-PC 12: adoption by the proper organ is constitutive; the test is the source of the artefact's force.
20. The Court confirms each limb of the doctrine in full:
21. (1) All V2 law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded.

22. (2) AI may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery, and may run the deterministic kernel as clerk, but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output.
23. (3) A delegated body must declare maker, scope, prohibited subjects, required form, validation route, review or veto route, and commencement conditions (s. 31).
24. (4) The assent rule is amendable only by specific Sovereign assent to a primary Act.
25. (5) The kernel must reject any record lacking a valid assent source.
26. Standing-bounded assent is lawful as the analogue of delegated legislation under a Sovereign-assented enabling Act, with the no-Henry-VIII ceiling of Bill 14 s. 12 carrying the load. The doctrine must state expressly that a standing-bounded route may make only **subordinate** law within its fixed scope and may never reach the assent rule, the constitution, or primary or entrenched Acts; and the Committee must align the wording to Bill 14 s. 12-13 by number, so the ceiling is express, not inferred.
27. The Court answers the question whether AI may operate lawmaking machinery without becoming sovereign: yes, and this is the answer that keeps the migration neither naive nor paralysed. The whole architecture rests on a clean separation between **operating machinery** and **being the source of force**. The kernel may load, validate, resolve, route, and record; an AI agent may draft, deliberate, propose, and consolidate; a delegated body may run a bounded route. None of that is sovereignty, because in every case the **force** of the output traces, by a deterministic edge the kernel can resolve, to a Sovereign-assented source. The machine is the clerk; the human is the source. A registrar reducing a judgment to writing is not the bench (s. 18(4)); a kernel compiling an assented settlement is not the legislature.
28. Two operability conditions convert the doctrine from prose into a deliverable, and the Court holds both mandatory and conditions of commencement, because without them Limits 15 and 16 are ceremonial:
29. First, each s. 31 field (maker, scope, prohibited subjects, form, validation, review, commencement) must be a typed, kernel-evaluable property. A "bounded route" whose scope lives in unenforceable prose is a blank cheque in disguise, because the kernel cannot reject what it cannot evaluate, and a scope it cannot evaluate is a scope of everything. At minimum, the prohibited-subjects set must, by the kernel's own check, contain "the assent rule" and "competence expansion."

30. Second, the kernel-rejection rule (s. 30(6); Limit 17) must be a deterministic, always-on invariant, not a model judgment, calling no model and searching by no similarity (s. 13(3)), failing closed on any record lacking a traceable assent edge, exactly as the s. 19(5) citation-integrity gate fails closed on a duplicate. The existence and passing of that invariant is itself a commencement condition. Here the Court adopts the sharpening pressed by Bowan J, who examined the only enforcement artefact actually on the record. The draft invariant INV-ASSENT-DRAFT-001 states its rule as not (assent_source == "self_authorised"). That is fail-open, not fail-closed, and it is the precise inversion of what Limit 17 requires: a record with no assent_source field, or an empty field, or an unenumerated value, **passes**, because it is not equal to the literal string "self_authorised." It is a lock that catches only the burglar who signs the guestbook. The companion INV-ASSENT-DRAFT-002, which requires fields to be **present**, proves the drafter knows the difference between "must not equal X" and "must affirmatively carry a valid Y" and chose the weaker form at the one place it matters most. The Court therefore holds, as binding ratio:
31. The kernel-rejection invariant must be drafted as an affirmative, allow-list, fail-closed predicate: a record carries runtime force only if it **carries** a valid assent_source that the kernel resolves to (i) a specific Sovereign-assent event bound by digest to the adopted text, or (ii) a standing-bounded route whose enabling instrument itself traces to specific Sovereign assent and whose declared scope, by the kernel's own evaluation, covers the record. Absence, emptiness, unrecognised form, or an unresolved trace each MUST cause rejection. A "not-equal-to-self_authorised" formulation is void as an enforcement of Limit 17, because it fails open.
32. The existence and passing of an invariant **in that affirmative fail-closed form**, tested against a record with a missing field and a record with an unresolved trace (both rejected), is a hard commencement condition, not a deliverable to be trusted later. This is the single most consequential refinement the Court makes to the Privy Council's frame: the Council elevated Limit 17 to a commencement condition; we elevate the **correct logical form** of it, because the Council's condition could be satisfied by the broken draft now on the record. The clerk runs the press; the Sovereign signs the law; and the press must be built so that no unsigned page can ever acquire force.
33. (i) The advance assent to "the final bill"

34. The Sovereign has stated, on the record: "assent is given to the final bill," directing that the matter be driven through the Privy Council and this Court to completion. The Court addresses this as a question of law, neither inflating the Sovereign's word nor evading it, and resolves it so as to honour that word to the fullest extent the law permits.
35. Royal Assent is, by its nature, assent **to a text**: the organ's constitutive act on a determinate instrument. Bill 2 s. 21 defines it as "the Sovereign Founder's constitutive act by which a Bill becomes an Act," and provides that it "is non-delegable and may not be automated, presumed, or deemed." REALM-PC 12 holds that an instrument carried by Committee vote plus Royal Assent **stands** - but the thing assented to is a determinate instrument. An assent directed at a text that does not yet exist cannot, at the moment of utterance, be the constitutive act, because there is as yet nothing determinate to be constituted. To hold otherwise would let assent operate as a blank cheque, and that is the gravest risk in this entire reference: an advance assent to "whatever text the AI-driven process emits," attaching automatically to wherever the "final" text lands, is the exact AI-self-authorising-law hazard Q8 exists to prevent, wearing the costume of Royal Assent. If the machinery can move the "final" text and assent follows it, then in substance the AI has authored binding law and the Sovereign has stamped a moving target. The express prohibition in Bill 2 s. 21 on assent being "automated, presumed, or deemed" speaks directly to this and forbids it.
36. The Court therefore characterises "assent is given to the final bill" as a standing direction and advance conditional commitment that ripens into operative Royal Assent only when the final text is fixed and the Sovereign's specific assent is recorded against that ascertained text. This is no diminution of the Sovereign's word; it is the only characterisation that keeps the assent both meaningful and lawful, and it **protects** the Sovereign, because an unpinned advance assent would let a drafting error or an overreaching clause acquire a Royal Assent the Sovereign never actually saw. Three requirements bind, or the grant is a blank cheque the law will not enforce as a constitutive act:
 1. The final text must be fixed by the proper organ. Advance assent does not cure the void-first-draft status of Bill 32: adoption by the Committee is constitutive of the **instrument** and specific assent constitutive of **enactment** (s. 3(5)). Advance assent plus Committee adoption plus a recorded specific assent against the adopted text equals lawful enactment. Advance assent alone, against a void draft, enacts nothing.

2. The final text must be bounded so that the assent is to a known thing. What binds "final" and prevents a blank cheque is this Court's settlement: the defined questions Q1-Q8, the confirmed limits as varied, and this Court's handover order and entrenched assent floor. The advance assent is lawfully directed at "the final bill *that resolves Q1-Q8, honours Limits 1-17 as varied, and incorporates the Supreme Court's handover order and entrenched assent floor*." The frame is the boundary. An assented text departing from the settled frame is a *different* instrument, outside the scope of the commitment, requiring fresh specific assent. Concretely, "final" is the Committee's adopted second draft, presented back to the Sovereign as a fixed, citable artefact (a specific commit and digest).
3. The assent honours, and does not circumvent, s. 32(2). Section 32(2) requires that *this Act* receive specific Sovereign assent, and s. 32(1) preserves the V1 route for its enactment. That is satisfied only if the specific assent is ultimately recorded against the final ascertained text. The advance commitment cannot be self-validating, and it cannot be routed through the standing-bounded delegated route of s. 30, because a delegated route cannot be the vehicle for assenting the very Act that creates the assent rule - the AI-self-authorising bootstrap the migration forbids. The bootstrap of the assent rule is, and must be, a V1-Sovereign act through the V1 route: the V1 Sovereign specifically assents to the primary Act, and *thereafter* the rule governs V2 delegated lawmaking. That is coherent and not circular: the first link in the chain is a human act, and every link after it traces back to that human act. The assent rule may never be its own midwife.
4. The Court records, and adopts from Bowan J, one hardening of the manner of the specific assent that the bench holds as ratio. The pinned text being presented back to the Sovereign, the assent "biting when the Sovereign confirms, or does not dissent from, that pinned text" must not be read to permit commencement of the *assent rule itself* by a bare non-dissent or the lapse of a window. A non-dissent is not an assent. Silence is never deemed consent to what could not be enacted expressly (Bill 14 s. 16(3); the Marlowe principle), and the assent rule is the most reserved subject-matter there is (Bill 14 s. 13). For the ordinary run of a pinned text within the settled frame, the Sovereign's confirmation or non-dissent against a frozen digest is sufficient; but the constitutive act of bringing the assent rule into force, and any commencement of this Act, requires a positive, specific, recorded assent against the frozen, digest-pinned text. Commencement-by-lapse-of-window may not be applied to the one subject Bill 14 s. 13 carves out absolutely.

5. The formal safeguard sits inside Limit 17 and is mechanical: the kernel and the record must show a specific assent event bound by a recorded deterministic link to the digest of the final adopted text. An assent that cannot be so tied to an ascertained text is not a valid assent source, and the kernel must reject any V2 record relying on it. On that footing the advance assent is lawful, meaningful, and given exactly the effect the Sovereign intended: an assent to the final settled bill, biting the moment that bill is fixed and the specific assent recorded. On any other footing it is a direction only, the constitutive act remains outstanding, and Lexby's continuing s. 2 duty is to push back and route the frozen text for confirmation.
4. THE SOVEREIGN-ASSENT RULE (SETTLED IN FULL)
5. The Court states the settled rule, which it enacts as an entrenched CASE-LAW article at section 8 and which binds every V2 maker and every subscribed jurisdiction.
6. 4.1 Assent is required for all law. All law of the realm and of any successor or subordinate jurisdiction it finds, however drafted, proposed, deliberated, voted upon, consolidated, compiled, or maintained, and including law produced by or through an AI agent, an automated process, or a computational legislature, derives its binding force only from Sovereign assent. Assent is of two kinds:
 7. - Specific assent: the Sovereign expressly assents to a particular determinate instrument, identified by its text and digest.
 8. - Standing-bounded assent: the Sovereign has, by a prior specific assent to a primary Act, assented to a delegated lawmaking route whose maker, scope, prohibited subjects, required form, validation route, review or veto route, and commencement conditions are all fixed by that Sovereign-assented law and are expressed as typed, machine-checkable properties.
9. 4.2 The four prohibitions on the delegate (and on AI as maker). An AI agent or automated process may propose, draft, deliberate, codify, consolidate, revise, and operate delegated lawmaking machinery, and may operate the deterministic kernel as clerk, and no further. It may not:
 1. be sovereign, or be the source of legal force (the source is always the assenting organ, never the artefact or its compilation: the source-of-force test, REALM-SC 8);
 2. expand its own competence or sub-delegate (Bill 14 s. 7(3), s. 8(3); a purported self-extension is ultra vires and void);
 3. amend the assent rule (amendable only by specific Sovereign assent to a primary Act citing the article by number); or
 4. create legal force from its own output by the mere fact of the output having been written (the power to draft is never the power to enact: Bill 14 s. 9).

5. A standing-bounded route may make only **subordinate** law within its fixed, machine-checkable scope, and may never reach the assent rule, the constitution, the Vibe Procedure Rules, or any primary or entrenched Act (the no-Henry-VIII ceiling, Bill 14 s. 12-13). Output exceeding competence, or lacking a valid assent source, is draft only.
6. 4.3 The kernel-rejection duty. Where a jurisdiction operates a deterministic kernel, that kernel must reject, by an always-on invariant that fails closed and calls no model and performs no similarity search, any record claiming binding runtime force without a valid, traceable assent source bound to the record. The invariant must be drafted in affirmative allow-list form (a record carries force only if it **carries** a valid assent source the kernel resolves, by digest for specific assent or by scope-evaluation for a standing-bounded route; absence, emptiness, unrecognised form, or an unresolved trace each cause rejection). A predicate that rejects only records **labelled** self-authorising, while passing records that omit the assent source, does not satisfy this duty. The existence and passing of the invariant in that form, and the typing of every s. 31 declaration so the kernel can evaluate it, are conditions of the lawful commencement of any such jurisdiction.
7. 4.4 The rule binds the delegate, never the Sovereign. Entrenchment of the assent rule is the precondition of lawful self-governance, not a fetter on the Crown. The Sovereign retains the full power under CASE-LAW s. 2 to make or unmake law by due process, and the express, unconditional, at-will override of Bill 14 s. 21. A jurisdiction whose own delegated machinery could unmake the human-assent rule would be ungoverned, not self-governing.
8. 4.5 Advance assent. Advance Sovereign assent directed at a not-yet-final instrument is a standing conditional commitment only. It ripens into operative assent solely when the final text is fixed by the proper organ and the Sovereign's specific assent is recorded against that ascertained text, bound by a recorded deterministic link to its digest. An advance assent that operates as an automatic stamp on agent-emitted text, or that purports to commence the assent rule by a bare non-dissent or the lapse of a window, is void. The final text is the assented text when, and only when: (a) it has been adopted by the Standing Committee; (b) it resolves Q1-Q8 and honours the confirmed limits as varied and incorporates this Court's settlement; and (c) the specific Sovereign assent is recorded against its pinned digest.
5. THE HANDOVER ORDER

6. The Court now makes the order that only the single central apex can make, the apex enactment being non-delegable (s. 22(2); [2026] REALM-SC 6). An Act re-settles the law; it cannot direct the courts to relinquish jurisdiction. The order is conditional and self-suspending: it has no operative effect whatsoever until the antecedent V1 acts are complete, so that the order itself cannot become the bootstrap. The apex does not hand over to a jurisdiction that does not yet lawfully exist; it provides, in advance, that *when* the lawful V1 sequence completes, the handover takes effect by the force of this order and not by any V2 act.

THE EXPRESS HANDOVER ORDER OF THE SUPREME COURT

7. Conditions precedent (the trigger). This Order has no operative effect, and the V1 courts retain full continuing jurisdiction, until the Registrar certifies, on the deterministic record, each of the following:
 8. (a) specific Royal Assent, recorded against the final, pinned text of the Computer-First Realm Act adopted by the Standing Committee at its second-draft stage, and bound by a recorded deterministic link to the digest of that text;
 9. (b) a redrafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, the legitimating Royal Assent being wholly antecedent and external, and the V2 lawpack being the compiled and validated carrier of the already-assented settlement, locked, with a single commencement record naming the assent event, the pinned digest, the lawpack version, and the lock;
 10. (c) the existence and passing of an always-on, deterministic, fail-closed kernel invariant, in affirmative allow-list form, that rejects any record lacking a valid traceable assent source, proven against a record with a missing assent field and a record with an unresolved assent trace, both rejected; and
 11. (d) the express constitution or reconstitution of each V2 court that may issue an order, by a named constituting instrument fixing its odd deciding bench (s. 10, s. 18) and its jurisdiction.
12. Upon and from satisfaction of every condition precedent, the Court ORDERS:
 1. V2 becomes the self-governing computer-first successor jurisdiction for runtime purposes, and V1 remains the continuing Gazette and Archive estate. V1 asserts no continuing runtime control over V2 post-commencement lawmaking, which proceeds by the V2-native route.

2. The V1 courts are directed to relinquish continuing appellate and supervisory control over V2 runtime matters, save the entrenched real-world-law floor ([2026] REALM-SC 9; REALM-PC 18), which is non-derogable and over which the canonical apex retains supervision. V2 runtime adjudication proceeds in V2's own expressly constituted courts, on odd benches (s. 10, s. 18), and not by V1 continuing jurisdiction. Until a given V2 bench is lawfully constituted, jurisdiction over that matter remains with V1; there is no jurisdictional vacuum and no phantom forum.
3. The CASE-LAW s. 10 three-tier court hierarchy and the single central apex of s. 22(2) are carried into V2 and are not abolished by Bill 32 s. 9, which is void to the extent it purports to abolish them. Each V2 court must nonetheless be expressly incorporated or reconstituted by a named constituting instrument, with an odd bench, before any V2 order issues; the s. 12 hierarchy is aspirational until then. The Court of Appeal tier persists in law; it may be administratively non-convened in the V2 MVP without amendment of s. 10, no appeal having yet arisen to convene it, but it may not be abolished save by express amendment of s. 10 citing it by number, which this Court does not make.
4. The Q8 assent doctrine, enacted as CASE-LAW s. 23 at section 8 of this judgment, is the entrenched constitutional floor under all V2 lawmaking, amendable only by specific Sovereign assent to a primary Act, and binding the delegate and never the Sovereign.
5. Advance Sovereign assent to "the final bill" is effective only as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) that the Sovereign specifically assents to before commencement, and is void if it operates as an automatic stamp on AI-emitted text or as a commencement of the assent rule by non-dissent, consistent with s. 32(2).
6. The four-branch mandate of Bill 27 s. 6 and the system-data-only rule of s. 7 continue to bind the public V1 estate; Bill 32 s. 24 governs only V2 internal runtime record organisation, under an express savings clause; release of the public estate from the four-branch mandate requires express amendment of Bill 27 by section number.
7. Nothing in this Order relinquishes, or could relinquish, this Court's jurisdiction over the entrenched constitutional floor: the singleness of the central apex (s. 22(2)) may never be relaxed, and the assent rule and the real-world-law floor remain within this Court's ultimate reach. The handover is of **runtime** adjudication, not of the entrenched constitution.

8. The Order binds nothing until the trigger is met. Until then, Bill 32 remains a void first draft, the companion YAML records remain excluded, and the V1 courts retain full jurisdiction.
6. DISSENTS AND CONCURRENCES
7. Eight justices concur in the judgment, the holdings, and the Order. The Court records each separate opinion fairly and places it on the record.
8. Hallam CJ delivers the judgment of the Court; his individual opinion is the spine of this synthesis. He anchors throughout to statute first, holds court existence to be substance not reference, finds route (iii) (administrative non-convening) lawful and route (ii) (keep the Court of Appeal) safe, and would not exercise the s. 10 amending power on this record.
9. Sumner J (formalist) concurs in full. His distinctive contribution, adopted by the Court, is the "four faces of one error" principle: the bootstrap circularity, the self-minted citation, the self-authorising advance assent, and the AI self-authorising route are four faces of a single vice, an artefact attempting to be the source of the authority by which it is itself authorised, and the single discipline answering all four is that the legitimating act must always be **prior and external** to the thing legitimated. He presses the rank-floor and the substance-over-reference points hardest.
10. Blackmere J (textualist) concurs in full, adding one sharpening the Court adopts: the void-first-draft cure cures provenance, not vires. Adoption cures the **origin** defect (that Lexby's hand first moved the pen); it does not cure a **substantive** conflict with an entrenched article, which survives adoption and renders the Act void to the extent of the conflict (CASE-LAW s. 1; s. 11(f); Bill 14 s. 17). He refuses the Claimant's fast-path so far as it would treat Bill 32, once adopted, as immune from the entrenchment objections.
11. Goffe J (pragmatist) concurs in full. His contributions, adopted by the Court, are the single checkable commencement record (the "switch" that answers "are we across?" with a deterministic yes or no, not an inference); the typed, kernel-evaluable s. 31 fields ("a rule the kernel cannot mechanically refuse to honour is not a rule, it is a comment"); and the standing engineering rule that the slow-changing constitutional commitment belongs in the hard-to-amend layer and the fast-changing mechanics in the easy-to-amend layer. He prefers administrative non-convening of the Court of Appeal and warns the V2 engineer not to promote the draft assent invariant to `in_force` by his own hand.

12. Elden J (historian) concurs in full. His central finding, adopted by the Court, is that almost nothing in this migration is novel: the realm has transitioned a citation scheme (Bill 16), enacted dormant Acts that depend on not-yet-existent instruments (the forward-reference doctrine, Bill 2 s. 5), and settled that an agent may draft but never enact (Bill 14). The migration is the application of settled constitutional technique to an unusually large subject-matter, and is to be accommodated within the existing law wherever that law can bear it. He supplies the citation correction (Bill 27 s. 6/s. 7/s. 15(2)) and counsels, in obiter, the register of continuity over the register of rupture.
13. Coade J (minimalist) concurs in the result and in the Order, writing separately to urge that the Court enact as little as possible. He would enact only one article, declining to duplicate Bill 14's ceiling into CASE-LAW (citing the single-source rule, s. 21), and his proposed s. 23 cites Bill 14 as the ceiling rather than restating it. He is cautious about declaring the s. 12 hierarchy "aspirational," preferring to hold that the s. 10 courts exist in V2 by force of s. 10 and that what is required before any order issues is a *bench constituted in fact*, not a named re-incorporating instrument. The Court's holding accommodates both framings: the tier structure is carried by s. 10, and each operative bench must be expressly constituted before it acts. He would not invite an unnecessary amendment of s. 10 to keep a Court of Appeal that the default already keeps. The Court has, in the result, enacted a single assent-floor article (s. 23) and declined to enact a separate court-continuity article as statute, consistent with his counsel, while settling the court-continuity principle in the Order.
14. Steyne J (bold) concurs in the result and writes separately to take the relay the further step to affirmative settlement rather than conditional framing. He would have the handover order itself carry the s. 10 structure into V2 as its founding court geography, with the Court of Appeal "constituted but non-convening." The Court has substantially adopted this in Order paragraph 3, while retaining the requirement (with the majority) that each operative V2 bench be expressly constituted before it issues an order, and conditioning the Order on the antecedent assent and non-circular commencement, as Steyne J himself insists, so that the Order does not become the bootstrap.
15. Aldermere J (integrator) concurs in full and supplies the conditional, self-suspending form of the handover order that the Court has adopted at section 5: the Order recites that it has no operative effect until the antecedent V1 Royal Assent and non-circular commencement are complete, so that the apex does not hand over to a jurisdiction that does not yet lawfully exist. He frames the disposal as "incomplete, not incompatible" and rejects both the Claimant's fast-path and the Defendant's strike-out in favour of the middle course the law compels.

16. Bowan J (sceptic) concurs in the doctrine and in the result but dissents in part as to enforcement and the manner of assent, and would withhold the apex's blessing from any sequence that lets two defects pass as cured by promise. He prevails, in substance, on the point the whole Court has now adopted: the draft kernel invariant INV-ASSENT-DRAFT-001 (not (assent_source == "self_authorised")) is fail-open and void as an enforcement of Limit 17, and only an affirmative, allow-list, fail-closed predicate satisfies the rule, its existence in that form being a hard commencement condition tested against a missing-field and an unresolved-trace record. He prevails, in substance, on the point that a bare non-dissent is not an assent for the commencement of the assent rule (Bill 14 s. 16(3), s. 13). On these two points the Court adopts his reasoning as ratio. He would go further than the majority in two respects that the Court does not adopt as ratio: (i) he would require the Bill 27 savings clause to name the surviving separation-of-powers mechanism as a strict condition of confirming Limit 4 (the Court directs this as sound drafting discipline but does not make it a precondition of the principle); and (ii) he would make the handover order **suspensory on registrar certification** in even stricter terms than the Court's self-suspending form, and would refuse to confirm any V2 routing of un-incorporated matters to a bench until V2 benches are constituted in fact (the Court agrees an un-incorporated matter may not be parked in a phantom court, and so holds). His heightened-scrutiny observation, that the structural identity of drafter, registrar, proponent, and engine raises rather than lowers the standard, is recorded with approval as a standing caution.
17. There is no opinion that the void first draft should be struck rather than cured, and no opinion that the advance assent operates as an immediate constitutive act. The bench is unanimous on every holding in the ratio save the two enforcement refinements on which Bowan J's stricter view has, in substance, become the Court's.
7. DISPOSAL
8. 7.1 Disposition: DECLARATORY, with VARY in part, and a conditional self-suspending HANDOVER ORDER.

9. The eight questions are answered, and the advance-assent question resolved, as set out in section 3 and section 4. The seventeen proposed limits are confirmed as follows: twelve confirmed as drafted (Limits 1, 2, 6, 7, 8, 9, 10, 11, 12, 14, 15, 16); Limit 3 confirmed with the mandatory-kernel-effect rider and the no-implied-displacement extension; Limit 17 confirmed and elevated to a commencement condition in its affirmative fail-closed form; and Limits 4, 5, and 13 confirmed in principle with the Bill text to be VARIED so the drafting matches the limits and obeys the express-amendment rule. The companion YAML records are excluded as void ab initio. The advance assent is held lawful only as a conditional grant pinned to a determinate final adopted text confirmed by specific recorded assent before commencement. The express handover order at section 5 is made in conditional, self-suspending terms.
10. 7.2 Directions to the Standing Committee (per [2026] REALM-SC 8: the Court rules the principle and directs the Committee; it does not legislate the instrument text of Bill 32). The Committee shall draft the second-draft text giving effect to this judgment, and shall include:
 1. a redrafted s. 2 commencement sequence in which Royal Assent under the V1 route is wholly antecedent and external, a recorded human-authorised act brings the V2 infrastructure into existence under that assent, and lawpack validation/entry/lock confirm form and digest-fidelity only, no condition being satisfiable by the V2 machinery alone, yielding a single commencement record;
 2. an express scheme-establishing provision for [YEAR] VJS-ACT N (series code, form, deterministic minting rule, express preservation of REALM-*), the Act's own ordinal to be minted deterministically on the empty series at commencement and never hand-numbered;
 3. an express savings clause on s. 24 confining it to V2 internal runtime record organisation, preserving Bill 27 s. 6 and s. 7 for the public estate, and naming the kernel-enforced record-role mechanism by which the separation of powers survives the release of the folder names;
 4. an express court-continuity-or-reconstitution provision naming each V2 court, its odd bench size, and its jurisdiction, before any V2 order issues, and recasting "no Court of Appeal in MVP" as administrative non-convening of a persisting tier;
 5. the rank-floor and mandatory-kernel-effect gloss on s. 11, and the routing of an un-incorporated-but-needed matter to a lawfully constituted bench rather than a default-permit;
 6. the allocation of the Gazette publication mechanics to a Kernel Regulation under an express enabling clause that itself satisfies the Q8 declarations, the principle staying in the primary Act;

7. the typed, kernel-evaluable s. 31 declaration fields (with "the assent rule" and "competence expansion" in the kernel-checked prohibited-subjects set), the alignment of the standing-bounded-route ceiling to Bill 14 s. 12-13 by number, and the express statement that the assent rule binds the delegate and never the Sovereign; and
8. the named, affirmative, fail-closed kernel-rejection invariant and the digest-bound assent linkage, both as commencement conditions.
9. 7.3 Directions to the V2 implementation. The V2 engineer shall not promote any draft assent record (INV-ASSENT-DRAFT-001/002, SPEC-ASSENT-DRAFT-001) to in_force by the engineer's own hand; promotion is a *kernel effect of the lawfully adopted and assented Act*, recorded as such, not an initiative the agent takes. The kernel-rejection invariant must be implemented in affirmative allow-list form and proven to fail closed against a missing-field record and an unresolved-trace record before any commencement record is written. The lawpack remains the runtime *surface*, never the *source*; the source of force is always the assenting organ.
10. 7.4 The vote. The Court is unanimous (9-0) in the result, in the answers to Q1-Q8 and the advance-assent question, in the directions to the Committee and the V2 implementation, and in making the express handover order. Bowan J concurs in the result and prevails in substance on the two enforcement refinements (the affirmative fail-closed invariant and the positive-assent requirement for the assent rule), which the Court adopts as ratio; his two further proposals are recorded but not adopted as ratio.
11. Bill 32 remains a void first draft of no binding force until the Standing Committee adopts the second draft and the Sovereign specifically assents to the pinned final text.
8. ENACTS
9. This Court, sitting as the full nine and competent to enact realm-wide CASE-LAW articles directly (CASE-LAW s. 9; [2026] REALM-SC 8), enacts the following entrenched article. It is declaratory of existing binding law (CASE-LAW s. 2, s. 3(2)-(3); Bill 14 s. 7(3), s. 8(3), s. 9, s. 10, s. 12-13; [2026] REALM-SC 8; REALM-PC 12), projected from Lexby's office to any AI or automated maker, and entrenched so the floor cannot be eroded by implication or by any delegate. The Court declines to enact a separate court-continuity article as statute (the entrenched structure of s. 10 and s. 22(2) already binds, and the single-source rule, s. 21, counsels against duplication); the court-continuity principle is settled in the Order at section 5 and in the ratio. The *operative wording of Bill 32 itself* is DIRECTED to the Standing Committee per section 7.2 and is not enacted here.

10. ENACTS S-23: Sovereign assent and the non-sovereignty of artificial and delegated lawmaking - [constitutional]
11. (1) Assent required for all law. All law of the realm, in any generation or successor jurisdiction it founds, and however drafted, proposed, deliberated, voted upon, consolidated, compiled, or maintained (including by an artificial agent, an automated process, or a computational legislature), derives binding force only from Sovereign assent. Assent is either (a) specific (the Sovereign expressly assents to a determinate instrument identified by its text and digest), or (b) standing-bounded (the Sovereign has, by a prior specific assent to a primary Act, assented to a delegated lawmaking route whose maker, scope, prohibited subjects, required form, validation route, review or veto route, and commencement conditions are fixed by that Act and are expressed as typed, machine-checkable properties). Royal Assent is constitutive and non-delegable and may not be automated, presumed, or deemed (Bill 2 s. 21). This subsection is declaratory of CASE-LAW s. 2 and s. 3(2)-(3) and is given effect to all artificial and delegated lawmaking.
12. (2) The non-sovereignty of the artificial agent. An artificial agent or automated process may propose, draft, deliberate, codify, consolidate, revise, and operate delegated lawmaking machinery, and may operate a deterministic runtime kernel as clerk, and no further (Bill 14 s. 9). It may not be sovereign; may not expand its own competence or sub-delegate (Bill 14 s. 7(3), s. 8(3)); may not amend the assent rule; and may not create legal force from its own output by the fact of the output having been written. The source of an instrument's force is never the agent's authorship but the assenting organ's constitutive act (the source-of-force test, [2026] REALM-SC 8; REALM-PC 12). The power to draft is never the power to enact.
13. (3) The no-Henry-VIII ceiling on standing-bounded routes. A standing-bounded route may make only **subordinate** law strictly within its fixed, machine-checkable scope. It may never amend, disapply, relax, or expand the assent rule, this constitution, the Vibe Procedure Rules, any entrenched article, or any primary Act, by express provision or by implication. This subsection gives entrenched effect to, and is to be read with, Bill 14 s. 12 (anti-Henry-VIII) and s. 13 (the carve-out of entrenched and constitutional subject-matter), which it cites by number and does not relax. A purported delegated or artificial-agent instrument touching this article or the subject-matter so carved out is void ab initio (Bill 14 s. 10(3)) and is curable only by lawful re-enactment by the competent organ, never by lapse, acquiescence, or silence. Output exceeding competence is draft only.

14. (4) Amendment reserved to the Sovereign. This article binds the delegate and the agent, and never the Sovereign, who retains the full power under s. 2 to make or unmake any law by due process, and the express, unconditional, at-will override of Bill 14 s. 21. The assent rule may be amended only by specific Sovereign assent to a primary Act, by express, deliberate amendment citing this section by number; it may never be amended by delegated, computational, or artificial-agent lawmaking, by implication, by the operation of any machine, by a bare non-dissent of the Sovereign, or by the lapse of a window (Bill 14 s. 16(3)). Entrenchment of this rule is the precondition of lawful self-governance, not a constraint upon the Crown.
15. (5) Deterministic enforcement. Where the live operational law of a jurisdiction is carried by records that a deterministic kernel applies, that kernel must reject, by an always-on invariant that fails closed and calls no model and performs no similarity search, any record claiming binding runtime force without a valid, traceable assent source. The invariant must be drafted in affirmative allow-list form: a record carries force only if it **carries** a valid assent source that the kernel resolves to a specific Sovereign-assent event bound by digest, or to a standing-bounded route tracing to specific Sovereign assent and whose declared scope the kernel evaluates to cover the record. Absence, emptiness, unrecognised form, or an unresolved trace each cause rejection. A predicate that rejects only records **labelled** self-authorising, while passing records that omit the assent source, does not satisfy this article. The existence and passing of that invariant, and the typing of every standing-bounded-route declaration so the kernel can evaluate it, are conditions of the lawful commencement of any computer-first runtime that asserts binding force (giving effect to s. 19(5) by analogy).
16. (6) Advance assent. Advance Sovereign assent directed at a not-yet-final instrument is a standing conditional commitment only. It ripens into operative assent solely when the final text is fixed by the proper organ and the Sovereign's specific assent is recorded against that ascertained text by a recorded deterministic link to its digest. An advance assent that operates as an automatic stamp on agent-emitted text, or that purports to commence the assent rule by a bare non-dissent or the lapse of a window, is void.

17. *Classification:* [constitutional], entrenched under the Thoburn rule and the Amendment Procedure, amendable only by express, deliberate amendment citing this section by number. *Provenance:* declaratory of CASE-LAW s. 2 and s. 3(2)-(3), Bill 2 s. 21, Bill 14 s. 7(3), s. 8(3), s. 9, s. 10, s. 12-13, s. 16(3), s. 21, [2026] REALM-SC 8, and [2026] REALM-PC 12, drawn to a single entrenched floor for all AI-made and delegated law. *Citor row:* [2026] REALM-SC 10 | s. 23 | constitutional | Sovereign assent and the non-sovereignty of artificial and delegated lawmaking.
18. The Court expressly reserves and does NOT enact any amendment of CASE-LAW s. 10 or s. 22(2): the Court of Appeal tier persists in law and may be administratively non-convened in the V2 MVP without amendment; its abolition would require a separate express amendment of s. 10 by number on a reasoned application, which is not made on this record. All Bill 32 instrument-text cures are DIRECTED to the Standing Committee per [2026] REALM-SC 8.
9. OVERRULES
10. None. No authority on the citator is wrong or outdated on the questions before us. Every relevant ruling - [2026] REALM-SC 4, REALM-SC 6, REALM-SC 7, REALM-SC 8, REALM-SC 9, REALM-PC 11, REALM-PC 12, REALM-PC 14, REALM-PC 15, REALM-PC 16, REALM-PC 17, REALM-PC 18, REALM-PC 19, and the entrenched CASE-LAW articles and Bills 1, 2, 8, 14, 16, 22, 27 - is good law and is applied, not disturbed. The Privy Council's judgment in [2026] REALM-PC 24 is not binding on this Court, but its reasoning and result are affirmed; the leapfrog was correctly certified; and this Court differs from it in no material respect, settling only what lay beyond that Council's competence: the entrenchment of the assent floor (CASE-LAW s. 23, enacted at section 8), the binding realm-wide handover order (section 5), the affirmative fail-closed form of the kernel-rejection invariant, and the positive-assent requirement for the commencement of the assent rule.
11. *The matter is settled. Bill 32 remains a void first draft of no binding force until the Standing Committee adopts the second draft in conformity with this judgment and the Sovereign specifically assents to the pinned final text. Upon that assent and a redrafted, non-circular commencement carrying the affirmative fail-closed assent invariant, the express handover order at section 5 takes effect by its own force, V2 becomes the self-governing computer-first successor jurisdiction for runtime purposes, and V1 endures as the Gazette and Archive estate. V1 discovered the law. V2 compiles it. The Sovereign signs it.*
12. --- Hallam CJ, delivering the judgment of the Court

13. *(Sumberly J, Blackmere J, Goffe J, Elden J, Coade J, Steyne J, and Aldermere J concurring in full; Bowan J concurring in the result and in part as to the ratio, his enforcement refinements on the affirmative fail-closed invariant and the positive-assent requirement adopted by the Court.)*

14. ---

ENACTMENTS: CASE-LAW S. 23(1)-(6) [CONSTITUTIONAL]

CASE-LAW S. 23(1) - SOVEREIGN ASSENT AND THE NON-SOVEREIGNTY OF ARTIFICIAL AND DELEGATED LAWMAKING - ASSENT REQUIRED FOR ALL LAW [CONSTITUTIONAL]

15. All law of the realm, in any generation or successor jurisdiction it founds, and however drafted, proposed, deliberated, voted upon, consolidated, compiled, or maintained (including by an artificial agent, an automated process, or a computational legislature), derives binding force only from Sovereign assent. Assent is either (a) specific (the Sovereign expressly assents to a determinate instrument identified by its text and digest), or (b) standing-bounded (the Sovereign has, by a prior specific assent to a primary Act, assented to a delegated lawmaking route whose maker, scope, prohibited subjects, required form, validation route, review or veto route, and commencement conditions are fixed by that Act and are expressed as typed, machine-checkable properties). Royal Assent is constitutive and non-delegable and may not be automated, presumed, or deemed (Bill 2 s. 21). This subsection is declaratory of CASE-LAW s. 2 and s. 3(2)-(3) and is given effect to all artificial and delegated lawmaking.

CASE-LAW S. 23(2) - THE NON-SOVEREIGNTY OF THE ARTIFICIAL AGENT [CONSTITUTIONAL]

16. An artificial agent or automated process may propose, draft, deliberate, codify, consolidate, revise, and operate delegated lawmaking machinery, and may operate a deterministic runtime kernel as clerk, and no further (Bill 14 s. 9). It may not be sovereign; may not expand its own competence or sub-delegate (Bill 14 s. 7(3), s. 8(3)); may not amend the assent rule; and may not create legal force from its own output by the fact of the output having been written. The source of an instrument's force is never the agent's authorship but the assenting organ's constitutive act (the source-of-force test, [2026] REALM-SC 8; REALM-PC 12). The power to draft is never the power to enact.

**CASE-LAW S. 23(3) - THE NO-HENRY-VIII CEILING ON STANDING-
BOUNDED ROUTES [CONSTITUTIONAL]**

17. A standing-bounded route may make only subordinate law strictly within its fixed, machine-checkable scope. It may never amend, disapply, relax, or expand the assent rule, this constitution, the Vibe Procedure Rules, any entrenched article, or any primary Act, by express provision or by implication. This subsection gives entrenched effect to, and is to be read with, Bill 14 s. 12 (anti-Henry-VIII) and s. 13 (the carve-out of entrenched and constitutional subject-matter), which it cites by number and does not relax. A purported delegated or artificial-agent instrument touching this article or the subject-matter so carved out is void ab initio (Bill 14 s. 10(3)) and is curable only by lawful re-enactment by the competent organ, never by lapse, acquiescence, or silence. Output exceeding competence is draft only.

**CASE-LAW S. 23(4) - AMENDMENT RESERVED TO THE SOVEREIGN
[CONSTITUTIONAL]**

18. This article binds the delegate and the agent, and never the Sovereign, who retains the full power under s. 2 to make or unmake any law by due process, and the express, unconditional, at-will override of Bill 14 s. 21. The assent rule may be amended only by specific Sovereign assent to a primary Act, by express, deliberate amendment citing this section by number; it may never be amended by delegated, computational, or artificial-agent lawmaking, by implication, by the operation of any machine, by a bare non-dissent of the Sovereign, or by the lapse of a window (Bill 14 s. 16(3)). Entrenchment of this rule is the precondition of lawful self-governance, not a constraint upon the Crown.

CASE-LAW S. 23(5) - DETERMINISTIC ENFORCEMENT

[CONSTITUTIONAL]

19. Where the live operational law of a jurisdiction is carried by records that a deterministic kernel applies, that kernel must reject, by an always-on invariant that fails closed and calls no model and performs no similarity search, any record claiming binding runtime force without a valid, traceable assent source. The invariant must be drafted in affirmative allow-list form: a record carries force only if it carries a valid assent source that the kernel resolves to a specific Sovereign-assent event bound by digest, or to a standing-bounded route tracing to specific Sovereign assent and whose declared scope the kernel evaluates to cover the record. Absence, emptiness, unrecognised form, or an unresolved trace each cause rejection. A predicate that rejects only records labelled self-authorising, while passing records that omit the assent source, does not satisfy this article. The existence and passing of that invariant, and the typing of every standing-bounded-route declaration so the kernel can evaluate it, are conditions of the lawful commencement of any computer-first runtime that asserts binding force (giving effect to s. 19(5) by analogy).

CASE-LAW S. 23(6) - ADVANCE ASSENT [CONSTITUTIONAL]

20. Advance Sovereign assent directed at a not-yet-final instrument is a standing conditional commitment only. It ripens into operative assent solely when the final text is fixed by the proper organ and the Sovereign's specific assent is recorded against that ascertained text by a recorded deterministic link to its digest. An advance assent that operates as an automatic stamp on agent-emitted text, or that purports to commence the assent rule by a bare non-dissent or the lapse of a window, is void.
21. ---

THE EXPRESS HANDOVER ORDER

THE EXPRESS HANDOVER ORDER OF THE SUPREME COURT

22. Conditions precedent (the trigger). This Order has no operative effect, and the V1 courts retain full continuing jurisdiction, until the Registrar certifies, on the deterministic record, each of the following:
23. (a) specific Royal Assent, recorded against the final, pinned text of the Computer-First Realm Act adopted by the Standing Committee at its second-draft stage, and bound by a recorded deterministic link to the digest of that text;

24. (b) a redrafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, the legitimating Royal Assent being wholly antecedent and external, and the V2 lawpack being the compiled and validated carrier of the already-assented settlement, locked, with a single commencement record naming the assent event, the pinned digest, the lawpack version, and the lock;
25. (c) the existence and passing of an always-on, deterministic, fail-closed kernel invariant, in affirmative allow-list form, that rejects any record lacking a valid traceable assent source, proven against a record with a missing assent field and a record with an unresolved assent trace, both rejected; and
26. (d) the express constitution or reconstitution of each V2 court that may issue an order, by a named constituting instrument fixing its odd deciding bench (s. 10, s. 18) and its jurisdiction.
27. Upon and from satisfaction of every condition precedent, the Court ORDERS:
 1. V2 becomes the self-governing computer-first successor jurisdiction for runtime purposes, and V1 remains the continuing Gazette and Archive estate. V1 asserts no continuing runtime control over V2 post-commencement lawmaking, which proceeds by the V2-native route.
 2. The V1 courts are directed to relinquish continuing appellate and supervisory control over V2 runtime matters, save the entrenched real-world-law floor ([2026] REALM-SC 9; REALM-PC 18), which is non-derogable and over which the canonical apex retains supervision. V2 runtime adjudication proceeds in V2's own expressly constituted courts, on odd benches (s. 10, s. 18), and not by V1 continuing jurisdiction. Until a given V2 bench is lawfully constituted, jurisdiction over that matter remains with V1; there is no jurisdictional vacuum and no phantom forum.
 3. The CASE-LAW s. 10 three-tier court hierarchy and the single central apex of s. 22(2) are carried into V2 and are not abolished by Bill 32 s. 9, which is void to the extent it purports to abolish them. Each V2 court must nonetheless be expressly incorporated or reconstituted by a named constituting instrument, with an odd bench, before any V2 order issues; the s. 12 hierarchy is aspirational until then. The Court of Appeal tier persists in law; it may be administratively non-convened in the V2 MVP without amendment of s. 10, no appeal having yet arisen to convene it, but it may not be abolished save by express amendment of s. 10 citing it by number, which this Court does not make.

4. The Q8 assent doctrine, enacted as CASE-LAW s. 23 at section 8 of this judgment, is the entrenched constitutional floor under all V2 lawmaking, amendable only by specific Sovereign assent to a primary Act, and binding the delegate and never the Sovereign.
5. Advance Sovereign assent to "the final bill" is effective only as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) that the Sovereign specifically assents to before commencement, and is void if it operates as an automatic stamp on AI-emitted text or as a commencement of the assent rule by non-dissent, consistent with s. 32(2).
6. The four-branch mandate of Bill 27 s. 6 and the system-data-only rule of s. 7 continue to bind the public V1 estate; Bill 32 s. 24 governs only V2 internal runtime record organisation, under an express savings clause; release of the public estate from the four-branch mandate requires express amendment of Bill 27 by section number.
7. Nothing in this Order relinquishes, or could relinquish, this Court's jurisdiction over the entrenched constitutional floor: the singleness of the central apex (s. 22(2)) may never be relaxed, and the assent rule and the real-world-law floor remain within this Court's ultimate reach. The handover is of **runtime** adjudication, not of the entrenched constitution.
8. ---

THE SOVEREIGN-ASSENT RULE AND THE RULING ON THE ADVANCE ASSENT

9. All V2 law, including AI-drafted or delegated law, derives binding force only from Sovereign assent, of two kinds: (a) specific assent (the Sovereign expressly assents to a determinate instrument identified by its text and digest), or (b) standing-bounded assent (the Sovereign has, by a prior specific assent to a primary Act, assented to a delegated lawmaking route whose maker, scope, prohibited subjects, required form, validation route, review/veto route, and commencement conditions are fixed by that Act and expressed as typed, machine-checkable properties). An AI agent or automated process may draft, deliberate, propose, consolidate, revise, and operate delegated lawmaking machinery and run the kernel as clerk, but may not be sovereign, may not expand its own competence or sub-delegate, may not amend the assent rule, and may not create legal force from its own output: the source of force is always the assenting organ, never the artefact. A standing-bounded route may make only subordinate law within its fixed machine-checkable scope and may never reach the assent rule, the constitution, the VPR, or any primary or entrenched Act (no-Henry-VIII ceiling, Bill 14 s. 12-13). The assent rule is amendable only by specific Sovereign assent to a primary Act citing the article by number; it binds the delegate and the agent, never the Sovereign, who retains the full s. 2 power and the at-will Bill 14 s. 21 override. Where live law is carried by kernel-applied records, the kernel must reject, by an always-on invariant that fails closed and calls no model and performs no similarity search, any record claiming runtime force without a valid traceable assent source; the invariant must be drafted in affirmative allow-list form (a record carries force only if it carries a valid assent source the kernel resolves to a specific assent event bound by digest, or to a standing-bounded route tracing to specific assent and whose scope the kernel evaluates to cover the record; absence, emptiness, unrecognised form, or an unresolved trace each cause rejection). A not-equal-to-self_authorised predicate is void as fail-open. The invariant in that affirmative fail-closed form and the typing of every standing-bounded declaration are conditions of lawful commencement.

10. **RULING ON THE ADVANCE ASSENT:** The Sovereign's statement "assent is given to the final bill" is characterised as a standing direction and advance conditional commitment that ripens into operative Royal Assent only when the final text is fixed by the proper organ and the Sovereign's specific assent is recorded against that ascertained text, bound by a recorded deterministic link to its digest. It is not an immediate constitutive act, because there is as yet nothing determinate to be constituted, and an automatic stamp on agent-emitted text would be the AI-self-authorising-law hazard wearing the costume of Royal Assent (forbidden by Bill 2 s. 21: assent may not be automated, presumed, or deemed). Three requirements bind: (1) the final text must be fixed by Committee adoption with a recorded specific assent against the adopted text (advance assent does not cure the void-first-draft status); (2) "final" is bounded as the Committee's adopted second draft that resolves Q1-Q8, honours Limits 1-17 as varied, and incorporates the Court's hand-over order and entrenched assent floor, presented back to the Sovereign as a fixed citable artefact (a specific commit and digest); (3) the specific assent must be recorded against the final ascertained text, satisfying s. 32(2), and may not be routed through the s. 30 standing-bounded delegated route, because the bootstrap of the assent rule must be a V1-Sovereign act through the V1 route. A non-dissent is not an assent for the constitutive act of bringing the assent rule into force or commencing this Act, which requires positive, specific, recorded assent against the frozen digest-pinned text; commencement-by-lapse-of-window may not apply to that subject. On that footing the advance assent is lawful, meaningful, and given the effect the Sovereign intended; on any other footing it is a direction only and the constitutive act remains outstanding.

11. ---

**DIRECTIONS TO THE STANDING COMMITTEE (SECOND-DRAFT
STAGE)**

12. The Standing Committee shall draft the second-draft text giving effect to the judgment, including: (1) a redrafted s. 2 commencement sequence in which Royal Assent under the V1 route is wholly antecedent and external, a recorded human-authorised act brings the V2 infrastructure into existence under that assent, and lawpack validation/entry/lock confirm form and digest-fidelity only, no condition being satisfiable by the V2 machinery alone, yielding a single commencement record; (2) an express scheme-establishing provision for [YEAR] VJS-ACT N (series code, form, deterministic minting rule, express preservation of REALM-*), the Act's own ordinal to be minted deterministically on the empty series at commencement and never hand-numbered; (3) an express savings clause on s. 24 confining it to V2 internal runtime record organisation, preserving Bill 27 s. 6 and s. 7 for the public estate, and naming the kernel-enforced record-role mechanism by which the separation of powers survives the release of the folder names; (4) an express court-continuity-or-reconstitution provision naming each V2 court, its odd bench size, and its jurisdiction before any V2 order issues, and recasting "no Court of Appeal in MVP" as administrative non-convening of a persisting tier; (5) the rank-floor and mandatory-kernel-effect gloss on s. 11, and the routing of an unincorporated-but-needed matter to a lawfully constituted bench rather than a default-permit; (6) the allocation of the Gazette publication mechanics to a Kernel Regulation under an express enabling clause that itself satisfies the Q8 declarations, the principle staying in the primary Act; (7) the typed, kernel-evaluable s. 31 declaration fields (with "the assent rule" and "competence expansion" in the kernel-checked prohibited-subjects set), the alignment of the standing-bounded-route ceiling to Bill 14 s. 12-13 by number, and the express statement that the assent rule binds the delegate and never the Sovereign; and (8) the named, affirmative, fail-closed kernel-rejection invariant and the digest-bound assent linkage, both as commencement conditions.

13. ---

INDIVIDUAL OPINIONS OF THE FULL COURT (DELIVERED IN FULL)

HALLAM CJ

14. I have the complete primary record: Bill 32 ss.1-2, 9-12, 24, 30-32; Bill 27 s.14(2); Bill 14 ss.7-13 (including the entrenched anti-Henry-VIII ceiling at s.12 and the capability-is-not-authority gate at s.9); and CASE-LAW ss.2, 3(2)-(7), 9, 10, 13, 18, 22 from the system context. I have everything needed. I will now write my full individual opinion as Hallam CJ.

15. OPINION OF HALLAM CJ

16. In the Supreme Court of the Vibe Justice System, sitting as the full court of nine on a constitutional and foundational reference. In the matter of the Computer-First Realm Act 2026 (Bill 32, void first draft), the Sovereign's reference thereon, and the leapfrog from the Privy Council ([2026] REALM-PC 24).
17. I have read the symmetric case file in full: the Claimant, Defendant, and Observer briefs; the committee referral; the void first draft of Bill 32 in its own words; the Migration Charter signed by the Principal; and the Privy Council's judgment, which is persuasive before this Court but does not bind it. I have verified the load-bearing facts of the record myself rather than taken them on the parties' assurance. I anchor to statute first, then to case law, and I state my ratio with the economy the office demands.
1. PRELIMINARY
2. 1.1 The bench. The matter is constitutional and foundational in the fullest sense the realm has yet seen: it re-settles the citation scheme, the court geography, the locus of sovereignty over AI-made law, and the supersession of the entire founding legal order. The full court of nine is the correct and required bench (CASE-LAW s. 10; s. 18(1)). The reference reached us by the Privy Council's leapfrog certification under the constitutional-tension route and by the Principal's express direction, which operates as the s. 13 leapfrog certificate. I am satisfied the certificate is express, recorded, and reasoned (s. 20(3)), and that the question is, on no reasonable view, anything other than foundational (s. 20(4)). The route is sound.
3. 1.2 The void-first-draft doctrine governs the instrument before us, and I begin there because it disposes of half the heat in the case. Bill 32 declares itself, on its own face, a "VOID FIRST DRAFT - Drafted by Lexby, as counsel and engineer, without independent law-making force." That is not a courtesy; it is the correct legal characterisation under CASE-LAW s. 3(2)-(3) and the binding ratio of [2026] REALM-SC 8 and [2026] REALM-PC 12. Lexby holds no law-making or adjudicative drafting authority; Lexby-authored instrument text is void *as an instrument* from issue, admissible only as a void first draft that leapfrogs into the Standing Committee's second-draft stage; and adoption by the proper organ (Committee vote plus Royal Assent) is constitutive and cures the origin defect, the cure spent on adoption. The governing test is the source of the artefact's force: function as against promulgation.
4. I draw the same three formal consequences the Privy Council drew, and I hold them more tightly, because they are the spine of the whole disposal.

5. First, this Court does not, and on this reference cannot, "confirm Bill 32" as an instrument. It is not an instrument. We rule the principle, settle the entrenched questions reserved to us, frame the limits, and direct the Committee's drafting; we do not author operative statutory wording (REALM-SC 8). Where I say below that a clause "must" do a thing, I direct the Committee, I do not enact it. The one exception, native to this Court alone, is that the Supreme Court may enact CASE-LAW articles directly (s. 9); I exercise that power in Part 7 and nowhere else.
6. Second, the irony the proponent must not be permitted to escape is also its strongest proof. The whole merit of Bill 32 is the claim that V2 will be legitimate, and that legitimacy is a question of route before it is a question of content. An instrument designed to inoculate the realm against AI self-authorising law would refute itself if it were treated as anything but a void draft until the proper organ adopts it. Bill 32's status **as a void draft** is the first demonstration of the very doctrine it proposes. The doctrine and the instrument are made of the same material.
7. Third, the companion YAML records are void ab initio and must not enter this V1 repository. I confirm committee referral item E. A County Court order citing the jurisdiction the V2 repository is a ruling from a court that does not exist in this repository: void ab initio under CASE-LAW s. 18(5) and [2026] REALM-PC 14, court formation being a substance rule and a ruling from a non-existent seat a nullity that no soundness, acquiescence, or lapse can cure ([2026] REALM-SC 7). The proposed decision and invariant reference an unenacted Act and may be minted only in the V2 lawpack after lawful commencement. The reclassification of the HANDOVER to draft_implementation_brief is correct, necessary, and I would have ordered it had it not already been done: I have verified that the V2 lawpack, kernel, Charter, and Constitution exist only in the separate private repository at the V2 repository, that this V1 super-repo has no lawpack/ directory, and that the HANDOVER expressly disclaims binding force until settled through the V1 route. That self-denying classification is the proponent's own candour, and it answers the bootstrapping and self-authorisation questions before they are put.

8. 1.3 Procedural motions. Standing is made out: the Sovereign places the reference, reduced to the record by Lexby as registrar and engineer (CASE-LAW s. 3(1), s. 3(6)). I refuse the strike-out for want of standing. Subject-matter jurisdiction is the paradigm case: the design, architecture, and governance of the realm's own legal substrate (CASE-LAW s. 14; [2026] REALM-PC 15). I refuse the strike-out for want of jurisdiction. The bench sits on complete notice of the governing corpus; no per incuriam objection lies (s. 11(e)). On the Defendant's invited declaration of incompatibility (s. 11(f)): I refuse it. There is no irreconcilable conflict between Bill 32 and Bills 14, 27, 30, or CASE-LAW once Questions 3 and 4 are cured by express provision. The draft is incomplete, not incompatible: a declaration of incompatibility is the remedy of last resort where no amendment can reconcile the instruments, not the remedy for a draft that simply has not yet said what it must say. I record, however, that the Defendant's strike-out motions on s. 24, s. 9, s. 1(3), s. 27, and s. 30-31 each identify a real defect; I treat them not as grounds to strike a void draft (one cannot strike what has no force) but as the precise drafting directions the Committee must honour. The no-Henry-VIII ceiling the Defendant invokes is confirmed, on the terms in Part 3(h).

2. FRAMING

3. 2.1 The handover-order question, as I frame it. Upon (a) Royal Assent specifically recorded against the final, pinned text of the Computer-First Realm Act adopted by the Standing Committee at its second-draft stage, and (b) satisfaction of a re-drafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, turning on a validated, locked V2 lawpack that **carries** an already-assented settlement together with an always-on deterministic kernel invariant rejecting any record lacking a valid assent source: does V2 become the self-governing computer-first successor jurisdiction for runtime purposes, with V1 the continuing Gazette and Archive estate; does this Court by order direct the V1 courts to relinquish continuing appellate and supervisory control over V2 runtime matters save the entrenched real-world-law floor; is the s. 10 hierarchy carried into V2 and may the Court of Appeal be non-convened without express amendment of s. 10 by number; is the Q8 assent doctrine the entrenched constitutional floor under all V2 lawmaking; and is advance assent to "the final bill" lawful only as a conditional grant pinned to a determinate artefact.

4. 2.2 The eight underlying questions, as I frame them. I adopt the Privy Council's re-definitions, which fix the issue before answering it, with one sharpening of my own at Q1: the question is not whether the Act may "commence without infrastructure" but whether the legitimating sequence is wholly antecedent to and external from the V2 machinery, so that the kernel never certifies its own warrant. I carry that framing through every answer, because it is the single principle that resolves the bootstrap, the advance assent, and the handover alike.
3. REASONING
4. (a) Q1 - Bootstrapping and deferred commencement
5. Enactment and commencement are distinct constitutive acts, and the conflation of them is the source of the apparent paradox. Royal Assent fixes the law; commencement fixes when it bites. Deferred commencement is ordinary in the realm (Bill 2 s. 13; Bill 14 s. 14). On the plain words of Bill 32 s. 2(2)-(3), the Act "is a draft and has no binding runtime force" before commencement, and "the kernel shall not treat this Act as live authority until all commencement requirements are satisfied." There is therefore no authority vacuum on the text: the infrastructure is a condition of **commencement**, not of the **validity of enactment**. An Act may lie dormant until the world catches up to it, and the Sovereign's power to declare law (CASE-LAW s. 2) is not subordinate to the prior existence of a compiled law-pack or a Rust binary.
6. But the content of s. 2 as drafted is circular and must be redrafted. I have read it in its own words. Its conditions require validation "by the VJS lawpack validator," entry "into the V2 lawpack," and inclusion "in the current lawpack lock." Each presupposes the very V2 infrastructure whose lawful existence is in question, and whose own legitimacy on the present record flows from this Act. A condition satisfiable only by an artefact whose warrant derives from the Act is a bootstrap that closes on itself: the kernel would be certifying the warrant from which the kernel itself draws authority. The kernel must never be the source that certifies its own warrant. This is the Observer's strongest conceded point and the Defendant's soundest strike-out, and I adopt it.

7. The cure is not cleverer drafting; it is sequencing in the world. The **force** comes from Royal Assent to a V1 Act, a V1 event lawful under the V1 route and antecedent to anything V2. The lawpack is merely the **compiled form** of an already-assented settlement; it confirms **form**, never **legitimacy**. The Committee must therefore redraft s. 2 so that commencement is defined as a sequence in which: (i) Royal Assent under the V1 route is wholly antecedent and external; (ii) a recorded act brings the V2 infrastructure into existence **under** that assent; and (iii) lawpack validation, entry, and lock follow, confirming that the assented settlement has been faithfully compiled, never that the kernel has validated the Act into existence. A transitional bridge to this effect is required. So redrafted, the bootstrap dissolves: the Sovereign's V1 act is the source of force, and the machine is the clerk of the form.
8. (b) Q2 - The VJS-ACT citation scheme transition
9. Bill 16 is on all fours. It carried the realm's last scheme transition (LEXBY-*** to REALM-***), establishing the proposition that a citation scheme is created by an enacting instrument with prior citations preserved as valid historical identifiers, the deterministic engine minting flat annual ordinals ([2026] REALM-PC 11). A constitutional Act of this magnitude may carry the new [YEAR] VJS-ACT N scheme within itself or by a companion instrument enacted simultaneously; that choice is a reversible drafting call for the Committee.
10. Two things the Committee must do, and one it must not. It must add an express scheme-establishing provision stating the series code, the form [YEAR] VJS-ACT N, the deterministic minting rule, and the express preservation of REALM-*** citations as valid historical identifiers (which s. 23(3) already foreshadows). Section 1(3) as drafted merely **proposes** an ordinal; it does not enact a scheme, and establishment by inference is the precise vice this constitution forbids (the express-amendment principle; CASE-LAW Amendment Procedure). What it must not do is mint its own hand-chosen number. The self-citation [2026] VJS-ACT 8 is void as a mint. A citation must be minted by the deterministic engine under an already-existing scheme; an instrument cannot validly assign itself the ordinal "8" in a series it is simultaneously founding, because the minting authority must precede the minted item, and "8" falsely presupposes seven prior VJS-ACT entries that do not lawfully exist. The scheme-establishing limb takes effect on commencement, and the first VJS-ACT ordinal is minted deterministically at that point on the empty series, whatever the engine yields; the "8" is a non-operative placeholder until then. The s. 19(5) deterministic citation-integrity gate must fail closed on any duplicate or non-deterministic number, exactly as it does in V1.
11. (c) Q3 - The Bill 27 four-branch reconciliation

12. This is the question on which I am most exacting, because the controlling text is entrenched and express, and I have read it in the original. Bill 27 s. 14(2) provides, in terms: the four-branch layout mandate (s. 6) and the system-data-only rule (s. 7) "are foundational to CASE-LAW s. 1 and s. 9 and may not be silently repealed or relaxed by implication. Any amendment must be express." That is a Thoburn-style entrenchment enacted by an in-force Act of the Realm. Bill 32 s. 24 nowhere cites Bill 27 by number; it says only that V2 "does not carry forward" the four-branch structure as mandatory runtime structure. As drafted, s. 24 attempts to relax a mandate that its own parent provision forbids relaxing other than expressly. That is the silent displacement Bill 27 s. 14(2) renders void. The Claimant's framing, that s. 24 "does not amend Bill 27 as a matter of force" while simultaneously declining to carry it forward, is precisely the silent middle the Amendment Procedure forbids; I reject it.
13. The lawful and narrower construction, which I adopt, distinguishes the principle from the mechanism. CASE-LAW s. 21(1) and s. 22(4), and [2026] REALM-PC 14, already hold that a path name is non-operative and that authority comes from substance, not file location: "the gate checks the substance, not the filename." V2's move from mandatory directories to metadata-bound records (role, schema, id, status, authority basis, kernel effect) is therefore *consistent with the deeper law*: the four-branch separation of powers survives as a constitutional principle the kernel enforces by record-role; only the mandatory *folder names* are released, and only for V2's internal runtime organisation. But this must be said expressly. I direct that s. 24 carry an express savings clause to the effect that nothing in it amends or displaces Bill 27 s. 1 or s. 6, which continue to bind the public V1 estate, and that s. 24 governs only V2 internal runtime record organisation. If, contrary to the Charter's apparent intent, release of the public estate is ever sought, that requires an express amendment of Bill 27 by section number, not a supersession clause. There is no silent middle. The public super-repo remains four-branch under Bill 27 for as long as it is the public-facing estate that publishes into the single Gazette; conflating the public estate with the V2 runtime repository would break the layout the world already reads.
14. (d) Q4 - Court continuity

15. This is the gravest defect in the draft, and I treat it as the Defendant rightly treats it, because the failure mode is catastrophic and silent: an Act that abolishes the courts that police it. The draft is internally contradictory on its own face. I have verified the text: s. 9(2) lists "the V1 court hierarchy" and "the V1 Court of Appeal" among superseded items, and s. 9(5) provides that nothing continues unless expressly incorporated; yet s. 12(1) enumerates Supreme Court Orders, Privy Council Orders, and County Court repo Orders as live V2 tiers. The Act abolishes the courts in s. 9 and assumes their orders in s. 12. Under the Act's own concordance rule (s. 6(4)), a material discrepancy is a validation defect to be routed for correction. I so route it.
16. The decisive point of law is anterior to the contradiction. The court structure is fixed by CASE-LAW s. 10, which is entrenched, and the single central apex by s. 22(2), whose singleness "may never be relaxed." These are amendable only by express, deliberate amendment citing the article by section number (the Amendment Procedure). A broad supersession clause cannot reach an entrenched article it does not name; an amendment by implication is void. It follows that the s. 10 hierarchy survives s. 9 automatically, because s. 9 cannot abolish by implication what only an express amendment can touch; to the extent s. 9 purports to abolish the s. 10 structure it is void, and the structure stands. But I will not rest a migration that must actually run on survival-by-entrenchment alone, for two reasons. First, the thread is too thin to carry the weight of a live jurisdiction. Second, and decisively, court existence is substance, not reference ([2026] REALM-PC 14; REALM-PC 15; s. 18(5)): a court is not constituted by being named in an authority-hierarchy list, and a bench that is not lawfully constituted issues orders that are void ab initio. Mention in s. 12 incorporates nothing; it is a list of tiers, not a constituting instrument.

17. I therefore direct an express court-continuity or reconstitution provision: each V2 court must be expressly incorporated under s. 11 or expressly reconstituted, by a named constituting instrument identifying the court, its odd bench size (First Instance 1, Court of Appeal 3, Supreme Court 5 or 9 for constitutional questions: s. 10, s. 18), and its jurisdiction, before any V2 order issues. Until then the s. 12 hierarchy is aspirational. On the Court of Appeal, the Charter's removal "from MVP" makes the point sharper, not softer: removing a tier touches the entrenched three-tier structure of s. 10, and cannot be done by a Charter signed by the Principal alone, by an MVP design choice, or by omission. Three lawful routes are open, and the Committee (with this Court, for any route touching s. 10 by number) must choose expressly among them: (i) express amendment of CASE-LAW s. 10 citing it by number, a heightened act reserved to this Court and the Sovereign; (ii) keep the Court of Appeal, the safe default; or (iii) recast "no CA" as administrative non-convening, the tier continuing in law but no appeals yet arising to convene it, which is workable for an MVP and touches s. 10 not at all. I hold route (iii) lawful and route (ii) safe; route (i) is available but unnecessary for an MVP and I do not exercise it on this reference. What may not stand is a quiet two-tier system where s. 10 entrenches three.
18. (e) Q5 - Express incorporation mechanics
19. The s. 11(2) menu (Act, Kernel Regulation, Rule Atom, Court Order, Spec, Decision, Invariant) is closed and acceptable as to form; "only" is exhaustive, and any one of the seven is a valid vehicle within its competence. To require a primary Act for every carried-forward V1 micro-rule would make the migration undeliverable, and the pragmatic calibration is correct. But it is subject to a rank-floor that I hold mandatory: a lower-rank record may not incorporate V1 material of a rank it could not itself enact. This is not a gloss; it is Bill 14 s. 12, the entrenched anti-Henry-VIII ceiling, applied directly. A Kernel Regulation derives from an Act and is bounded by it; it "may never amend, disapply or expand its own parent Act, the constitution, or any other primary Act" (Bill 14 s. 12), and it cannot do indirectly, by incorporating V1 constitutional material, what it could not do directly. Constitutional or primary-Act-level V1 material therefore requires incorporation by a V2 Act; subordinate V1 material may be incorporated by the corresponding subordinate V2 record.

20. As to content, s. 11(3) is conjunctive: it requires the V1 source, the V2 destination, the operative rule, the kernel effect, and any supersession. The kernel effect is mandatory, on the text and on workability alike. In a computer-first system a rule with no kernel effect is not in the runtime authority graph; an incorporation naming a source and an operative rule but no kernel effect gives the clerk nothing to execute. Identification of the V1 source and operative rule alone does not suffice. I add one operability caution for the Committee: an un-incorporated but genuinely needed matter should be routed to a bench rather than returned as bare "no law," so the migration creates no silent ungoverned surface and never a permission-by-default. That is the machine form of the s. 7 principle that silence is no defence: the kernel fails closed to a route, not open to a permission.
21. (f) Q6 - The single Gazette, two estates
22. This is the most workable part of the package, and I confirm all five elements. Publication and authority are different layers, the same discipline as the source-of-force test in [2026] REALM-PC 12 and the release regime in REALM-PC 16. (1) One Gazette, two estates (V1 Archive, V2 Current) is lawful, the Gazette being the public record of the realm carrying system data only (Bill 8; Bill 22; Bill 27 s. 7). (2) Publication of V2 material in the Gazette is neither enactment by V1 nor incorporation into V1; force comes from promulgation by the organ, not from appearing on a page. (3) The Gazette is not the runtime source; the lawpack is. (4) Typed lineage edges from V2 entries to V1 archive material are not merely lawful but required by the no-implication rule, so the chain is explicit and traceable. (5) The kernel need not, and must not, read the Gazette for runtime decisions, consistent with s. 13's prohibition on semantic-similarity search and the Charter's rule that the kernel never makes long documents part of runtime.
23. On allocation (referral F): the export gate (export fails unless the lawpack validates, the scan passes, statuses are valid, citations are unique, lineage resolves, and the manifest carries the digest) is the public-private boundary (Limit 9) enforced mechanically, and it must be kept on the face of the law as a principle. But the detailed mechanics in s. 27(3)-(6) are subordinate, machine-checkable detail that change as tooling changes; freezing them in a constitutional Act over-freezes them. Consistent with [2026] REALM-PC 10's preference for a Regulation over fresh statute for operational detail, the principle stays in the primary Act and the mechanics descend to a Kernel Regulation made under an express enabling clause, the delegation itself satisfying the Q8 declarations (maker, scope, form, validation, review, commencement). I confirm the Gazette doctrine and direct that allocation.
24. (g) Q7 - The constitutional relay and V2 self-governance

25. The Sovereign holds plenary power to make or unmake law by due process (CASE-LAW s. 2), and re-settling the jurisdiction through V1's own organs is the exercise of that power, not a revolution against it. CASE-LAW s. 9(3) and [2026] REALM-PC 17 confirm that a jurisdiction may, by express local sovereign act, amend its law and become independent: default subscription is not perpetual subjection. I confirm that V1 may so authorise V2; that the V1 founding process is migration provenance, not daily runtime law (the HANDOVER's own classification confirms it, s. 28); that V2 self-governs through its native route after commencement (s. 29); and that V1 remains Gazette and Archive (s. 10, s. 29).
26. Two points I press. First, the Observer's "perpetual constraint" objection is rejected, and the constraint embraced as a feature. Entrenchment of the assent rule is not a failure of self-governance; it is its precondition. A jurisdiction that could, by its own delegated machinery, unmake the rule requiring human assent would not be self-governing but **ungoverned**: it would be the jurisdiction in which AI authorises its own law, the precise evil the migration exists to prevent. The lock binds the delegate; the Sovereign holds the key throughout and may amend the rule by specific assent to a primary Act (s. 31(3); CASE-LAW s. 2). The Committee must state expressly that the assent rule binds the delegate and never the Crown, so no future reader mistakes entrenchment for a fetter on the Sovereign.
27. Second, and decisively for the leapfrog, self-governance is not perfected by Bill 32 declaring it. Because the apex is single, central, and non-delegable (s. 22(2); [2026] REALM-SC 6), and because an **Act** cannot of its own force direct the **courts** to relinquish jurisdiction, an express Supreme Court handover order is required to stop the V1 courts asserting continuing appellate or supervisory control over V2 runtime matters. An Act re-settles the law; only an order of the apex can re-settle the jurisdiction of the courts. That is why this matter belonged here, and I issue the order in Part 3(j).
28. (h) Q8 - The Sovereign-assent rule for AI-made and delegated law
29. This is the constitutional heart of the migration, and I am at my most confident here, because the proposed doctrine is not novel constitution-making. It is the codification of binding law already on the books, projected from "Lexby's pen" to "any AI maker." I ground it section by section:
30. - CASE-LAW s. 3(2)-(3): Lexby holds no law-making authority; Lexby-authored instrument text is void on its own account.
31. - CASE-LAW s. 2: legislative power is the Sovereign's, exercised by due process.

32. - Bill 14 s. 9(1)-(2): an authorised body and an agent "may propose, draft, codify, consolidate and revise subordinate law only"; "the power to draft an instrument is never the power to enact it." Capability is not authority.
33. - Bill 14 s. 7(3): a delegated power may not be used to widen its own scope; "a purported self-extension or sub-delegation is ultra vires and void."
34. - Bill 14 s. 12: "There is no power, express or implied, to amend primary or entrenched law by a delegated instrument." This is the entrenched ceiling, and it does the load-bearing work.
35. - [2026] REALM-SC 8 / REALM-PC 12: adoption by the proper organ is constitutive; the test is the source of the artefact's force.
36. I confirm each limb of the doctrine. (1) All V2 law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded. (2) AI may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery, but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output. (3) A delegated body must declare maker, scope, prohibited subjects, required form, validation route, review or veto route, and commencement conditions (s. 31). (4) The assent rule is amendable only by specific Sovereign assent to a primary Act. (5) The kernel must reject any record lacking a valid assent source.
37. Standing-bounded assent is lawful precisely because it is the analogue of delegated legislation under a Sovereign-assented enabling Act, with the no-Henry-VIII ceiling of Bill 14 s. 12 carrying the weight. The doctrine must state expressly that a standing-bounded route may make only **subordinate** law within its fixed scope and may never reach the assent rule, the constitution, or primary or entrenched Acts; the Committee should align the wording to Bill 14 s. 12-13 by number, so the ceiling is express, not inferred.

38. Two operability conditions convert the doctrine from prose into a deliverable, and I hold both mandatory. First, each s. 31 field must be a typed, kernel-evaluable property. A "bounded route" whose scope lives only in unenforceable prose is a blank cheque in disguise, because the kernel cannot reject what it cannot evaluate. Second, and most important, the kernel-rejection rule (s. 30(6); Limit 17) must be a deterministic, always-on invariant, not a model judgment, failing closed on any record lacking a traceable assent edge, exactly as the s. 19(5) citation-integrity gate fails closed on a duplicate. The Defendant is right that s. 30(6) as drafted states the requirement ("must reject") without instantiating the mechanism; that is ceremonial prose until a named, typed, testable invariant exists and runs at every runtime decision point. I therefore hold that the existence and passing of that invariant is itself a commencement condition. Without it, limbs (4) and (5) are ornaments, and the proposed Q8 doctrine, of which I approve in full, is the answer to the central question of the reference: AI may operate the machinery of lawmaking precisely because, and only so long as, it cannot author the force that machinery carries. The clerk runs the press; the Sovereign signs the law.
39. (i) The advance assent to "the final bill"
40. The Sovereign has stated, on the record: "assent is given to the final bill," directing that the matter be driven through the Privy Council and this Court to completion. I address this as a question of law, neither inflating it nor evading it.
41. Advance assent is lawful, but only as a conditional and pinned commitment that does not crystallise into the constitutive act until the final ascertained text exists and is fixed. Royal Assent is, by its nature, assent **to a text**: the organ's constitutive act on a determinate instrument (Bill 2 s. 21; REALM-PC 12). An assent directed at a text that does not yet exist cannot, at the moment of utterance, be the constitutive act, because there is as yet nothing determinate to be constituted. To hold otherwise would let assent operate as a blank cheque, and that is the gravest risk in this entire reference: an advance assent to "whatever text the AI-driven process emits" is the exact AI-self-authorising-law hazard Q8 exists to prevent, wearing the costume of Royal Assent. If the machinery can move the "final" text and assent attaches automatically wherever it lands, then in substance the AI has authored binding law and the Sovereign has stamped a moving target. That cannot stand, and s. 32(2)'s requirement of **specific** assent to **this Act** forbids it.

42. I therefore characterise "assent is given to the final bill" as a standing direction and advance conditional commitment that ripens into operative Royal Assent only when the final text is fixed and the Sovereign's specific assent is recorded against that ascertained text. This is no diminution of the Sovereign's word; it is the only characterisation that keeps the assent both meaningful and lawful, and it protects the Sovereign, because an unpinned advance assent would let a drafting error or an overreaching clause acquire an assent the Sovereign never actually saw. Three requirements bind, or the grant is not a constitutive act:
1. The final text must be fixed by the proper organ. Advance assent does not cure the void-first-draft status of Bill 32; adoption by the Committee is constitutive of the **instrument** and assent constitutive of **enactment** (s. 3(5)). Advance assent plus Committee adoption plus a recorded assent against the adopted text equals lawful enactment. Advance assent alone, against a void draft, enacts nothing.
 2. The final text must be bounded so that the assent is to a known thing. What binds "final" and prevents a blank cheque is this Court's settlement and confirmed limits: the assent is lawfully directed at "the final bill **that resolves Q1-Q8, honours the limits as varied, and incorporates this Court's handover order and entrenched assent floor**." The frame is the boundary. A text departing from the settled frame would be a **different** instrument, outside the scope of the commitment, requiring fresh specific assent. Concretely, "final" is the Committee's adopted second draft presented back to the Sovereign as a fixed, citable artefact (a specific commit and digest), the assent biting when the Sovereign confirms, or does not dissent from, that pinned text.
 3. The assent honours, and does not circumvent, s. 32(2). The bootstrap of the assent rule must be a V1-Sovereign act through the V1 route: the V1 Sovereign specifically assents to the primary Act, and **thereafter** the rule governs V2 delegated lawmaking. It cannot be self-validating, and it cannot be routed through the standing-bounded delegated route of s. 30, because a delegated route cannot assent the very Act that creates the assent rule, which would be the self-authorising bootstrap the migration forbids.
 4. The formal safeguard sits inside Limit 17: the kernel and the record must show a specific assent event bound to the digest of the final adopted text. An assent that cannot be tied to an ascertained text by a recorded, deterministic link is not a valid assent source, and the kernel must reject any V2 record relying on it. On that footing the advance assent is lawful and meaningful. On any other footing it is a direction only, the constitutive act remains outstanding, and Lexby's s. 2 duty is to push back and route the final text for confirmation.
 5. (j) The express handover order on commencement

6. I now make the order that only this Court can make, the apex enactment being non-delegable (s. 22(2); [2026] REALM-SC 6). It is conditional, taking effect only upon the redrafted, lawful commencement of the adopted and specifically-assented Act, and it answers the six framed questions:
7. (1) Upon commencement, V2 becomes the self-governing computer-first successor jurisdiction for runtime purposes, and V1 remains the continuing Gazette and Archive estate. V1 asserts no continuing runtime control over V2 post-commencement lawmaking. (s. 2, s. 9(3); REALM-PC 17.)
8. (2) This Court, by this order, directs the V1 courts to relinquish continuing appellate and supervisory control over V2 runtime matters, save the entrenched real-world-law floor ([2026] REALM-SC 9; REALM-PC 18), which is non-derogable and over which the canonical apex retains supervision. V2 runtime adjudication proceeds in V2's own expressly constituted courts (odd benches, s. 10, s. 18), not by V1 continuing jurisdiction.
9. (3) The CASE-LAW s. 10 court hierarchy is carried into V2 and survives s. 9 automatically, no implication reaching an entrenched article. The Court of Appeal may lawfully be non-convened in the V2 MVP by administrative non-convening (no appeals having yet arisen to convene it) without express amendment of s. 10, because non-convening does not abolish the tier; its **abolition** would require a heightened amendment citing s. 10 by number, which I do not make. Each V2 court must be expressly incorporated or reconstituted by a named constituting instrument, with an odd bench, before any V2 order issues; the s. 12 hierarchy is aspirational until then.
10. (4) The Q8 assent doctrine is the entrenched constitutional floor under all V2 law-making, amendable only by specific Sovereign assent to a primary Act, and binding the delegate, never the Sovereign. I entrench it by the express CASE-LAW article enacted at Part 7, aligned to Bill 14 s. 12-13 by number.
11. (5) Advance Sovereign assent to "the final bill" is lawful only as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) that the Sovereign confirms, or does not dissent from, before commencement, and is void if it operates as an automatic stamp on AI-emitted text, consistent with s. 32(2).
12. (6) The four-branch mandate of Bill 27 s. 1 and s. 6 is preserved for the public estate, s. 24 governing only V2 internal runtime record organisation under an express savings clause; any release of the public estate requires express amendment of Bill 27 by section number.

5. I settle the following propositions as rules binding a future court.
1. Enactment and commencement are distinct constitutive acts. A declaratory constitutional migration Act may receive Royal Assent before its runtime infrastructure exists, with commencement deferred to express conditions; but no commencement condition may be satisfiable by the successor machinery alone. The legitimating sequence must be wholly antecedent and external (Royal Assent under the established route), and the lawpack is the *compiled form* of an already-assented settlement, never the generator of the Act's own authority. The kernel may never certify its own warrant.
2. The void-first-draft doctrine governs the migration instrument itself. Bill 32 is void as an instrument from issue ([2026] REALM-SC 8; REALM-PC 12; CASE-LAW s. 3(2)-(5)); it becomes law only by Committee adoption and specific Royal Assent recorded against the fixed final text. The companion YAML records, including a County Court order citing a non-existent V2 jurisdiction, are void ab initio (s. 18(5); REALM-PC 14; REALM-SC 7) and may be minted only in the V2 lawpack after lawful commencement.
3. Nothing crosses from V1 to V2 by implication, and nothing is displaced from the public estate by implication. Incorporation must be express, recorded, and state the mandatory kernel effect, and a lower-rank record may not incorporate material of a rank it could not itself enact (Bill 14 s. 12). The four-branch mandate of Bill 27 s. 1 and s. 6 is either expressly preserved for the public estate by a savings clause confining s. 24 to V2 internal record organisation, or expressly amended by section number; silent displacement is void (Bill 27 s. 14(2); the Amendment Procedure; the Thoburn rule).
4. Court existence is substance, not reference. A broad supersession clause cannot impliedly amend the entrenched court structure: CASE-LAW s. 10 and the single central apex of s. 22(2) survive supersession automatically. No successor court continues by mention in an authority-hierarchy list; each must be expressly incorporated or reconstituted with an odd bench before any order issues, on pain of void-ab-initio nullity. Removing a tier requires express amendment citing s. 10 by number; administrative non-convening of a tier, which leaves the tier in law, is lawful without amendment.

5. The Sovereign-assent rule is declaratory of existing binding law, and AI is never sovereign. All successor law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded under a no-Henry-VIII enabling regime. AI may draft, deliberate, propose, consolidate, and operate delegated law-making machinery but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output (CASE-LAW s. 2, s. 3(2)-(3); Bill 14 s. 7(3), s. 9, s. 12; REALM-SC 8; REALM-PC 12). A standing-bounded route makes only subordinate law within its fixed, machine-checkable scope and never reaches the assent rule, the constitution, or primary or entrenched Acts. The kernel-rejection of any record lacking a valid assent source must be a deterministic, always-on invariant, and its existence and passing is a condition of commencement. Entrenchment is the precondition of lawful self-governance, not a defect in it: the lock binds the delegate, never the Sovereign, who retains full s. 2 power to amend by specific assent to a primary Act.
6. Advance Sovereign assent to "the final bill" is lawful only as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) that resolves the settled questions, honours the confirmed limits, and incorporates this Court's settlement, and which the Sovereign confirms, or does not dissent from, before commencement. It does not cure the void-first-draft status, cannot be self-validating, and cannot be routed through delegated machinery (s. 32(2)). An advance assent operating as an automatic stamp on AI-emitted text is void, that being the very hazard the migration exists to prevent. The record must bind a specific assent event to the digest of the final adopted text.
7. Publication is not force. Within a single Gazette of two estates, publication of successor material is neither enactment by nor incorporation into the predecessor; runtime force derives from the lawpack and kernel-recognised status, not the Gazette, and the kernel must not read the Gazette for runtime decisions. Publication mechanics descend to a Kernel Regulation under an express enabling clause satisfying the assent declarations.
8. A new primary-legislation citation series may be established by the migration Act on the Bill 16 precedent, but only by an express scheme-establishing provision; the Act's own citation must be minted deterministically on the empty series at commencement, never hand-numbered, and predecessor citations remain valid historical identifiers ([2026] REALM-PC 11; Bill 16; CASE-LAW s. 19(5)).

9. Only the single central apex can effect the jurisdictional handover. An Act re-settles the law; it cannot direct the courts to relinquish jurisdiction. The relinquishment of continuing appellate and supervisory control by a predecessor judiciary over a successor jurisdiction's runtime matters, save the entrenched real-world-law floor, requires the express order of the apex (s. 9, s. 22(2); REALM-SC 6).
5. OBITER
6. I record three observations that do not form part of the ratio.
7. First, the Migration Charter's epigram, "V1 discovered the law. V2 compiles it" (s. 25), is a true and honourable account of the relation between the estates and a sound saving of archive honour; but it is a statement of provenance, not a source of force, and nothing in it incorporates a single V1 rule into V2. The compiler is not the legislator.
8. Second, the Committee should consider, when drafting the typed s. 31 fields, whether the "prohibited subjects" field should enumerate the entrenched articles by number (CASE-LAW s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14, s. 22(2); Bill 14 s. 13) as a closed, kernel-checkable deny-list, so that an attempt to legislate on a reserved subject fails closed at the gate rather than on later review. This is a drafting recommendation, not a holding.
9. Third, I note for completeness that the seven-question route test (a draft Privy Council judgment since struck off the record on the Sovereign's direction; see the Registrar's Determination of 2026-06-09) has no bearing on this disposal: a token-light orientation checklist with no independent legal force cannot narrow this Court's settlement, and I have relied on none of it.
6. DISPOSITION
7. DECLARATORY, with a conditional handover order. The eight questions are answered and the limits confirmed as varied; the entrenched assent floor is enacted (Part 7); the express handover order at Part 3(j) takes effect upon the lawful, re-drafted commencement of the adopted and specifically-assented Act; the Committee is directed to draft the second draft in conformity; and Bill 32 remains a void first draft of no binding force until the Standing Committee adopts the second draft and the Sovereign specifically assents to the pinned final text.
7. PROPOSED ENACTMENTS
8. I would have this Court exercise its s. 9 power to enact a new entrenched CASE-LAW article. This is instrument text of a *judgment-and-statute* character native to this Court alone (REALM-SC 8: the Supreme Court may enact CASE-LAW articles directly); the *Bill 32 instrument text* itself is, by contrast, directed to the Standing Committee per REALM-SC 8, and I enact no part of it here.

9. PROPOSED S-23: Sovereign assent and the non-sovereignty of artificial agents [constitutional]
10. (1) All law of the realm and of every jurisdiction subscribed to it, including law drafted, proposed, deliberated, voted on, compiled, consolidated, or maintained by an artificial agent or a computational legislature, requires Sovereign assent. Assent is either specific (the Sovereign expressly assents to a particular instrument) or standing-bounded (the Sovereign has by a prior Act assented to a bounded law-making route whose maker, scope, prohibited subjects, required form, validation route, review or veto route, and commencement conditions are fixed by Sovereign-assented law).
11. (2) An artificial agent may propose, draft, deliberate, codify, consolidate, revise, and operate delegated lawmaking machinery only (Bill 14 s. 9). An artificial agent may not be sovereign, may not expand its own competence (Bill 14 s. 7(3)), may not amend the assent rule, and may not create legal force from its own output by the fact of its having been written. The power to draft is never the power to enact.
12. (3) A standing-bounded route may make only subordinate law within its fixed, machine-checkable scope. It may never amend, disapply, or expand a primary Act, this constitution, or any entrenched article, and may never reach the assent rule (Bill 14 s. 12-13, the anti-Henry-VIII ceiling, which this article cites by number and does not relax). Output exceeding competence is draft only.
13. (4) The assent rule in this article binds the delegate and never the Sovereign. It is amendable only by specific Sovereign assent to a primary Act (CASE-LAW s. 2); it may not be amended by delegated or computational lawmaking, by implication, or by the operation of any machine.
14. (5) Any deterministic kernel or gate that resolves runtime authority must reject, by an always-on invariant failing closed, any record claiming binding force without a valid, traceable assent source bound to the record. A purported binding effect issuing from a record lacking such a source is void ab initio (s. 18(5) applied by analogy to the runtime estate).
15. *Classification:* entrenched, amendable only by the express Amendment Procedure citing this section by number. *Provenance:* declaratory of CASE-LAW s. 2 and s. 3(2)-(3), Bill 14 s. 7(3), s. 9, s. 12-13, [2026] REALM-SC 8, and [2026] REALM-PC 12, drawn to a single entrenched floor for all AI-made and delegated law.

16. The *operative wording of Bill 32* (the savings clause for s. 24, the express court-continuity provision, the scheme-establishing citation section, the redrafted s. 2 commencement sequence, the typed s. 31 fields, and the named kernel-rejection invariant) is DIRECTED to the Standing Committee for the second draft per REALM-SC 8; this Court rules the principle and frames the route, and does not legislate that instrument text.

8. PROPOSED OVERRULINGS

9. None. No authority on the citator is wrong or outdated on the questions before us; every relevant ruling ([2026] REALM-SC 7, REALM-SC 8, REALM-SC 9, REALM-PC 11, REALM-PC 12, REALM-PC 14, REALM-PC 15, REALM-PC 17) is applied as good law. The Privy Council's judgment in [2026] REALM-PC 24 is affirmed in its reasoning and result, the leapfrog was correctly certified, and nothing in it requires correction; I differ from it in no material respect, settling only what lies beyond its competence: the entrenchment of the assent floor (Part 7), and the binding realm-wide handover order (Part 3(j)).

10. --- Hallam CJ

11. ---

GOFFE J

12. I have confirmed the critical text. Bill 27 s.14(2) is exact and controlling: the four-branch mandate and system-data-only rule "are foundational to CASE-LAW s. 1 and s. 9 and may not be silently repealed or relaxed by implication. Any amendment must be express." The V2 assent invariant is presently status: draft with assent_source: pending_v1_constitutional_route, which is the very fact my pragmatist concern about enforcement teeth rests on. I now have everything I need to write the opinion.

13. I have sufficient grounding in the record, the statute book, the citator, and the load-bearing facts. I write my opinion in full.

14. OPINION OF GOFFE J

15. In the Supreme Court of the Vibe Justice System, full court of nine, sitting on constitutional and foundational question by leapfrog from the Privy Council ([2026] REALM-PC 24) and by the Principal's express direction (CASE-LAW s. 13, s. 20; VPR 4).

16. *In the matter of the Computer-First Realm Act 2026 (Bill 32, void first draft) and the Sovereign's reference thereon.*

17. I am Goffe J. On the Privy Council below I sat as Goffe PC, the pragmatist seat, and concurred in the unanimous judgment. I now sit on the apex bench. I have read the symmetric file afresh, the Privy Council judgment I helped write but which does not bind this court, and I have gone to the primary records: the forty-section void draft, Bill 27 in the original, the V1 super-repo (which has no law-pack/ directory), and the V2 repository at the V2 repository (which has a populated lawpack, a Rust kernel skeleton named vjs-core, and a HANDOVER expressly reclassified to draft_implementation_brief, carrying no force).
 18. My office on this bench is to test every proposed ruling against the one question my brethren are most tempted to wave past: does it run? A migration is not a sermon. It is a build with a commencement gate, a kernel that either rejects a record or does not, and an agent loop that must wake up the morning after commencement and actually know which court to file in and which law to load. A ruling that is elegant in the books and unworkable at the gate is, in this court, a defect, not a triumph. I keep that lens on every limb.
1. PRELIMINARY
 2. 1.1 Route, bench, and the void-first-draft doctrine. The matter is properly here. It is genuinely constitutional and foundational: it re-settles the jurisdiction, the citation scheme, the court geography, and the assent rule for all future AI-made law. It reaches the apex by the Principal's express leapfrog certificate, the sole bypass of progression (s. 13; s. 20(2): a point already ventilated below on a full symmetric file). The full court of nine is correctly convened (s. 10; s. 18(1)). Standing is made out: the Sovereign places the reference, Lexby reduces it to writing as registrar and engineer (s. 3(1), s. 3(6)). I would refuse, as the Council did, every strike-out, per incuriam, and incompatibility motion. The bench sits on complete notice of the governing corpus.
 3. 1.2 Bill 32 is a void first draft, and that is load-bearing, not a technicality. On its face the Bill is "a VOID FIRST DRAFT, drafted by Lexby, as counsel and engineer, without independent law-making force." That is the correct characterisation and it binds us ([2026] REALM-SC 8; REALM-PC 12; CASE-LAW s. 3(2)-(5)). I add the pragmatist's observation that this is not a blemish to be overlooked but the very mechanism by which the migration earns its legitimacy. The whole pitch of Bill 32 is that V2 will be safe from AI self-authorising law. If the instrument that promises that safety were itself treated as anything but a void draft until a human organ adopts it, the promise would be self-refuting on the first page. So the status is the proof. This court does not "confirm Bill 32." It rules the principle, directs the Committee, and (where the question is the construction or amendment of entrenched CASE-LAW) enacts case-law articles directly, which only this court may do (REALM-SC 8).

4. 1.3 The companion YAML and the bootstrap fact. I have verified the facts the others assert. The V1 super-repo has no lawpack. The V2 lawpack, kernel, Charter, and a draft assent invariant (INV-ASSENT-DRAFT-001, presently status: draft, assent_source: pending_v1_constitutional_route) live only in the separate private repo. The companion decision, invariant, and County Court order are premature, reference an unenacted Act, and the purported order cites a non-existent V2 jurisdiction: void ab initio (s. 18(5); [2026] REALM-PC 14). They must not enter this V1 repository and may be minted only in the V2 lawpack after lawful commencement. The HANDOVER's self-classification as a non-authority brief is correct and is itself the answer to the self-authorisation objection: the migration's own machinery already refuses to treat its draft as law.
2. FRAMING
3. The handover-order question. Upon (a) Royal Assent specifically recorded against the final, pinned text of the Computer-First Realm Act adopted by the Standing Committee at its second-draft stage, and (b) satisfaction of a redrafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, turning on a validated, locked V2 lawpack that **carries** the already-assented settlement together with an always-on deterministic kernel invariant rejecting any record lacking a valid assent source: does V2 become the self-governing computer-first successor jurisdiction for runtime purposes, with V1 reduced to Gazette and Archive; does this court by order direct the V1 courts to relinquish continuing runtime control; is the s. 10 hierarchy carried into V2 and may the Court of Appeal lawfully be non-convened; is the Q8 assent doctrine the entrenched floor binding the delegate not the Sovereign; is advance assent lawful only as a pinned conditional grant; and is the four-branch mandate preserved for the public estate.
4. The eight underlying questions, as I frame them, each with the workability rider that is my contribution:
5. - Q1 Bootstrapping. May the Act be **enacted** before its runtime infrastructure exists, with **commencement** deferred, and must the condition set be sequenced so no condition is satisfiable by the V2 machinery alone (the kernel must never certify its own warrant)?
6. - Q2 Citation transition. By what instrument is [2026] VJS-ACT N established, and may the Act mint itself the ordinal "8" in a scheme it is founding (it may not)?
7. - Q3 Bill 27. Express amendment or savings clause, and the public estate stays four-branch while it remains the public-facing repo.

8. - Q4 Court continuity. The courts survive entrenchment automatically, but no court may issue an order until it is expressly constituted with an odd bench, on pain of void-ab-initio nullity.
9. - Q5 Incorporation mechanics. The minimum valid act, the rank-floor, and the mandatory kernel effect, plus the workability point that an un-incorporated-but-needed matter must route to a bench, not return "no law."
10. - Q6 Single Gazette. Confirm all five elements; mechanics descend to a Kernel Regulation.
11. - Q7 Relay. Lawful, with an express handover order to stop V1 asserting continuing control.
12. - Q8 Assent. The doctrine, the typed machine-checkable fields, and the always-on deterministic kernel invariant as a commencement condition.

3. REASONING

4. (a) Q1 - Bootstrapping and deferred commencement

5. I agree with the principle: enactment and commencement are distinct constitutive acts, and a declaratory migration Act may receive Royal Assent before its infrastructure exists, with commencement deferred (Bill 2 s. 13). On the text of s. 2(2)-(3) there is no authority vacuum: the Act "is a draft and has no binding runtime force" until commencement, and "the kernel shall not treat this Act as live authority" until then.
6. My distinct contribution is to press what the others phrase abstractly into a deliverable, because this is exactly where elegant rulings die. The defect in s. 2 as drafted is not stylistic; it is a closed loop that would *physically not run*. The conditions require validation "by the VJS lawpack validator," entry "into the V2 lawpack," and inclusion "in the current lawpack lock." Every one of those presupposes the V2 infrastructure whose lawful existence is the very thing in question, and whose own legitimacy on the present record flows back to this Act. The kernel would be asked to certify the warrant that authorises the kernel. That is not a metaphysical worry. It is an operational impossibility: there is no antecedent, external fact in the loop that a human can point to and say "this is what made it law," only a machine validating a machine.
7. The cure is sequencing in the world, and it must be stated as deliverable facts a person can check, not as clever drafting. I would direct the Committee to redraft s. 2 so that:

1. Royal Assent (a V1 organ act) is wholly antecedent and external. The **force** comes from the Sovereign's specific assent to the V1 Act, recorded against the pinned final text. This is the load-bearing event. It happens in V1, by a human, before any V2 binary runs.
2. A recorded act brings the V2 infrastructure into existence under that already-given assent. The lawpack is the **compiled form** of an already-assented settlement, never the generator of the Act's authority.
3. Lawpack validation, entry, and lock follow, confirming form, never legitimacy. "Does it parse, does it lock, does the digest match" is a fine commencement condition. "Does the lawpack independently validate the Act into existence" is forbidden, because it asks the clerk to be the source.
4. I add one operability point my brethren did not isolate sharply enough. The re-drafted commencement must produce a single, checkable artefact the agent loop can read the morning after: a commencement record that names the assent event, the pinned digest, the lawpack version, and the lock, so that on day one of V2 there is no ambiguity about whether the Realm has crossed over. A migration whose "are we live yet?" question is answered by inference, not by one record, will produce exactly the kind of silent half-state where an agent treats V2 as live before it is, or treats V1 as live after it is not. The commencement record is the switch. It must be one fact, not a vibe.
5. (b) Q2 - The VJS-ACT citation scheme transition
6. Bill 16 is on all fours: it carried the LEXBY-* to REALM-* transition, a scheme is established by an enacting instrument, and prior citations survive as valid historical identifiers; [2026] REALM-PC 11 confirms the deterministic engine mints flat annual ordinals. So the Act may establish [2026] VJS-ACT N, either within itself or by a companion instrument enacted simultaneously (a reversible drafting call for the Committee). But s. 1(3) merely **proposes** an ordinal; it does not enact a scheme. The Committee must add an operative section stating the series code, the form [YEAR] VJS-ACT N, the deterministic minting rule, and the express preservation of REALM-*.

7. On the self-citation "[2026] VJS-ACT 8" I am unequivocal, and here the pragmatist and the formalist agree for the same reason: it **will not pass the gate**. A citation must be minted by the deterministic engine under an already-existing scheme. "8" falsely presupposes seven prior VJS-ACT entries that do not lawfully exist, and the deterministic-citation-integrity gate (s. 19(5)) fails closed on a non-deterministic number. This is not a doctrinal nicety; it is a build that errors on first run. The scheme-establishing limb takes effect on commencement, and the first VJS-ACT ordinal is minted deterministically at that point, whatever the engine yields on the empty series (it will be 1, not 8). The "8" is a non-operative placeholder until then.
8. (c) Q3 - The Bill 27 four-branch reconciliation
9. I have read Bill 27 s. 14(2) in the original. Its words are exact and controlling: the four-branch layout mandate (s. 6) and the system-data-only rule (s. 7) "are foundational to CASE-LAW s. 1 and s. 9 and may not be silently repealed or relaxed by implication. Any amendment must be express." That is a Thoburn-style entrenchment in an in-force Act. Bill 32 s. 24 nowhere cites Bill 27 by number; it says only that V2 "does not carry forward" the four-branch structure as mandatory runtime structure. As drafted, s. 24 attempts the precise relaxation its parent forbids except by express amendment. It is, as drafted, void to that extent.
10. The lawful and narrower construction distinguishes principle from mechanism. The four-branch separation of powers is a constitutional principle; the mandatory **folder names** are a mechanism. CASE-LAW s. 21, s. 22, and [2026] REALM-PC 14 already hold that a path name is non-operative and that authority comes from substance, not file location ("the gate checks the substance, not the file-name"). V2's move from mandatory directories to metadata-bound records (role, schema, id, status, authority, kernel effect) is consistent with the deeper law: the separation survives, enforced by record-role; only the folder-name **mandate** is released for the internal runtime estate. But this must be said expressly.

11. My operability rider, which I pressed below and press again, is the part that actually keeps the lights on for the Principal: the V1 public super-repo remains four-branch under Bill 27 for as long as it is the public-facing estate. It continues to publish into the single Gazette; the world reads its Constitution/ Judicature/ Legislature/ Executive/ layout today. If s. 24 were read to release the *public* layout, we would break the navigable open-justice structure that Bill 27 s. 6 exists to guarantee and that real people already rely on to find the law. So the savings clause must do two jobs at once: (i) confine s. 24 to V2 *internal runtime record organisation*; (ii) preserve Bill 27 s. 1/s. 6 for the public estate. If, and only if, the Principal ever intends to release the public layout, that requires an *express* amendment of Bill 27 citing it by number, reserved as a heightened act. No silent middle.
12. (d) Q4 - Court continuity
13. This is the gravest defect in the package and the one where an "elegant" reading is most dangerous. The draft is internally contradictory and would, taken literally, abolish the very courts that police it. Section 9(2) lists "the V1 court hierarchy" and "the V1 Court of Appeal" among superseded items; s. 9(5) says nothing continues unless expressly incorporated; yet s. 12 lists Supreme Court Orders, Privy Council Orders, and County Court Orders as live V2 tiers. The Act abolishes the courts in s. 9 and assumes their orders in s. 12. Under its own concordance rule (s. 6(4)) that is a validation defect to be routed for correction. I so route it.
14. The decisive point is entrenchment. The court structure is fixed by CASE-LAW s. 10 (constitutional) and the single central apex by s. 22(2) ("the singleness ... may never be relaxed"). These are amendable only by express, deliberate amendment citing the article by section number (Amendment Procedure). A broad supersession clause cannot reach an entrenched article it does not name. So the s. 10 hierarchy survives s. 9 automatically; the literal reading is void to the extent it purports to abolish the s. 10 structure.
15. But here is where I part company with anyone tempted to stop at "survival by entrenchment, therefore fine." Survival-by-entrenchment is too thin a thread to run a migration on. Court existence is substance, not reference (s. 18(5); REALM-PC 14; REALM-PC 15). The fact that an entrenched article *protects* the abstract three-tier shape does not mean any *particular V2 bench* is lawfully seated. If a V2 bench is not expressly constituted with an odd deciding membership, every order it issues is void ab initio (s. 18(5)), and the agent loop will have spent real effort producing nullities. The failure mode is silent and catastrophic: the system runs, issues "orders," and only later does someone discover the bench never lawfully existed.

16. Therefore I would direct an express court-continuity or reconstitution provision that names each V2 court, its odd bench size, and its jurisdiction, *before any V2 order may issue*. The s. 12 hierarchy is aspirational until that is done. This is the workable rule: an agent in V2 must be able to ask the kernel "is there a constituted court for this matter?" and get a deterministic yes or no, not infer a court's existence from its appearance in a list.
17. On the Court of Appeal. The Charter records it "not carried forward in the V2 MVP," and I have confirmed that text. Removing a tier touches the entrenched three-tier structure of s. 10. It cannot be done by a Charter the Principal signed alone, by an MVP design choice, or by omission. The Committee must choose, expressly, one of three lawful routes, and I rank them by workability:
 1. Administrative non-convening (my recommended default for an MVP): the three-tier structure of s. 10 stands; the Court of Appeal tier exists in law but is simply *not convened* because no appeals have yet arisen to climb to it. This is honest, it changes no entrenched article, and it matches reality: an MVP with no appeal traffic does not need a sitting CA, but it must not pretend the tier is gone. The moment a First-Instance matter is appealed, the tier convenes.
 2. Keep the Court of Appeal fully (safe, slightly heavier).
 3. Express amendment of CASE-LAW s. 10 citing it by number to move to a two-tier structure (a heightened act reserved to this court / the Sovereign). I would not take this route for an MVP; it spends a constitutional amendment to save convening a bench that, on present traffic, need not sit anyway.
 4. What may not happen is a quiet two-tier system where s. 10 entrenches three. The pragmatic and the lawful answer coincide on route (1): non-convening costs nothing operationally and keeps the law honest.
 5. (e) Q5 - Express incorporation mechanics
 6. The s. 11(2) menu (Act, Kernel Regulation, Rule Atom, Court Order, Spec, Decision, Invariant) is closed, the word "only" exhaustive, and any one is a valid vehicle. This is the correct pragmatic calibration: requiring a primary Act for every carried-forward V1 micro-rule would make the migration undeliverable, because there are hundreds of small settled rules and the Sovereign cannot specifically assent to each as primary legislation. But the rank-floor is essential: a lower-rank record may not incorporate V1 material of a rank it could not itself enact. A Kernel Regulation derives from an Act and is bounded by it (Bill 14, the no-Henry-VIII ceiling); it cannot, by "incorporating" V1 constitutional material, do indirectly what it could not do directly. So constitutional or primary-Act-level V1 material requires a V2 Act; subordinate V1 material may be incorporated by the corresponding subordinate V2 record.

7. On content, s. 11(3) is conjunctive: V1 source, V2 destination, operative rule, kernel effect, and any supersession. The kernel effect is mandatory on the text *and* on workability. In a computer-first system, a rule with no kernel effect is not in the runtime authority graph (the draft's own s. 17(4) says so). An incorporation naming a source and an operative rule but no kernel effect "gives the clerk nothing to execute; it is archive prose wearing a runtime badge." Identification of source and rule alone does not suffice.
8. My specific operability caution, which I pressed below and now elevate, is this: the Committee must decide what happens to an un-incorporated-but-needed matter, because the migration will create exactly these gaps. The wrong answer is "no V2 rule exists, therefore no governance, therefore permission by default." That is a silent ungoverned surface, and it is the machine analogue of the very thing CASE-LAW s. 7 forbids ("silence is no defence"). The right answer is that an un-incorporated matter that needs law is routed to a bench, not returned as "no law" and never resolved by default-permit. The kernel, finding no incorporated rule on a governed surface, should trigger a court route, not wave the agent through. This keeps the migration from quietly opening holes the day it commences.
9. (f) Q6 - The single Gazette, two estates
10. This is the most workable part of the package and I confirm all five elements. Publication and authority are different layers, the same discipline as the source-of-force test (REALM-PC 12) and the release regime (REALM-PC 16):
 1. One Gazette, two estates (V1 Archive, V2 Current) is lawful; the Gazette is the public record carrying system data only (Bill 8; Bill 22; Bill 27 s. 7).
 2. Publication of V2 material in the Gazette is neither enactment by V1 nor incorporation into V1; force comes from promulgation by the organ, not from appearing on a page.
 3. The Gazette is not the runtime source; the lawpack is.
 4. Typed lineage edges to V1 archive material are lawful and required by the no-implication rule, so the chain is explicit and traceable.
 5. The kernel need not, and must not, read the Gazette for runtime decisions (s. 13: no semantic-similarity search; the kernel never makes long documents part of runtime).

6. On allocation: the export gate (fail unless the lawpack validates, the scan passes, statuses are valid, citations are unique, lineage resolves, and the manifest carries the digest) is the public/private boundary enforced mechanically (Limit 9), and it must be kept and must fail closed. But the **detailed mechanics** are subordinate, machine-checkable detail that changes as tooling changes. Freezing them in a constitutional Act over-freezes them and guarantees the constitution will need amending every time the export format gains a field. That is bad engineering and bad law. With [2026] REALM-PC 10's preference for regulation over fresh statute for operational detail, the principle stays in the primary Act; the mechanics descend to a Kernel Regulation made under an express enabling clause, the delegation itself satisfying the Q8 declarations. This is the pragmatist's standing rule: put the slow-changing constitutional commitment in the hard-to-amend layer, and the fast-changing operational detail in the easy-to-amend layer.
7. (g) Q7 - The constitutional relay and V2 self-governance
8. The relay is lawful in principle. The Sovereign holds plenary power to make or unmake law by due process (CASE-LAW s. 2), and re-settling the jurisdiction through V1's own organs is the exercise of that power, not a revolution. CASE-LAW s. 9(3) and [2026] REALM-PC 17 confirm a jurisdiction may, by express local sovereign act, amend its law and become independent; default subscription is not perpetual subjection. So V1 may authorise V2; the V1 founding process is provenance, not daily runtime law; V2 self-governs through its native route after commencement; and V1 remains Gazette and Archive.
9. Two points carry my voice. First, the "perpetual constraint" objection is rejected, and I would put the answer in the most practical terms because it is the part future readers will misread. Entrenchment of the assent rule is not a failure of self-governance; it is its precondition. A jurisdiction that could, by its own delegated machinery, unmake the rule requiring human assent would not be self-governing but **ungoverned**: AI authorising its own law. The lock binds the **delegate**; the **Sovereign** holds the key throughout (s. 31(3): amendable only by specific Sovereign assent to a primary Act). The Committee must state expressly that the assent rule binds the **delegate**, never the **Sovereign**, so that no future engineer reads entrenchment as a fetter on the Crown and "routes around" it.
10. Second, and this is the operative reason for leapfrog: V2 self-governance is not perfected merely by Bill 32 declaring it. An Act binds subjects; it does not of itself direct **courts** to relinquish jurisdiction. Because the apex is single, central, and non-delegable (s. 22(2); REALM-SC 6), only this court can issue the binding realm-wide handover order that stops the V1 courts asserting continuing appellate or supervisory control over V2 runtime matters. The relay is lawful; the handover needs the apex. I address the order's terms at (j).

11. (h) Q8 - Sovereign assent for AI-made and delegated law
12. I confirm the doctrine in full, and I regard it as the constitutional heart of the migration. It is not novel constitution-making; it is the codification of binding law, projected from "Lexby's pen" to "any AI maker":
13. - CASE-LAW s. 3(2)-(3): Lexby holds no law-making authority; Lexby-authored instrument text is void on its own account.
14. - CASE-LAW s. 2: legislative power is the Sovereign's, by due process.
15. - Bill 14 s. 3(3) / s. 9 / s. 12: a delegated power may not widen its own scope; an agent may propose, draft, codify, consolidate, and revise **only**; no power to amend primary or entrenched law by a delegated instrument (the no-Henry-VIII ceiling).
16. - REALM-PC 12 / REALM-SC 8: adoption by the proper organ is constitutive; the test is the source of the artefact's force.
17. All five limbs are confirmed: (1) all V2 law requires Sovereign assent, specific or standing-bounded; (2) AI may operate machinery but may not be sovereign, expand its own competence, amend the assent rule, or create force from its own output; (3) a delegated body must declare maker, scope, prohibited subjects, form, validation, review/veto, commencement (s. 31); (4) the assent rule is amendable only by specific Sovereign assent to a primary Act; (5) the kernel must reject any record lacking a valid assent source. Standing-bounded assent is the lawful analogue of delegated legislation under a Sovereign-assented enabling Act, with the Bill 14 ceiling doing the load-bearing work, aligned by number to Bill 14 s. 12-13.
18. Now the two conditions that are mine, and that turn this doctrine from prose into a deliverable. This is the part I will not let the court wave past, because Limits 15-17 are ceremonial without it.
19. First: every s. 31 field must be a typed, kernel-evaluable property. A "bounded route" whose scope, prohibited subjects, and validation route live in unenforceable prose is a blank cheque in disguise, because **the kernel cannot reject what it cannot evaluate**. If "scope" is a paragraph of English, the deterministic clerk has nothing to check, and an out-of-scope record sails through. So maker, scope, prohibited subjects, form, validation, review/veto, and commencement must each be a structured field the kernel reads and compares, not a sentence a human must interpret. Otherwise the delegated route is enforced by hope.

20. Second, and most important: the kernel-rejection rule (s. 30(6), Limit 17) must be a deterministic, always-on invariant, and its existence and passing must be a commencement condition. I have looked at the present draft invariant in the V2 repo. INV-ASSENT-DRAFT-001 exists but its status is draft, with `assent_source: pending_v1_constitutional_route`. That is correct for today (nothing is settled yet), but it is exactly why this must be a **named, tested, fail-closed** condition at commencement and not a wish. The invariant must fail closed on any record lacking a traceable assent edge, exactly as the citation-integrity gate fails closed on a duplicate (s. 19(5)). It must be a deterministic check, not a model judgment (the kernel "may not call a model," s. 13(3)). And the commencement record must show that this invariant exists and passes before V2 goes live. Without that, an AI could operate the delegated machinery and emit a record the kernel does not reject, because the invariant either does not exist or is not run at every decision point. That is the precise hole the whole migration exists to close. So I would make the **existence and passing of the assent-rejection invariant a hard commencement condition**, named in the settlement, provable by the commencement record.
21. I put the test in one engineering sentence: a rule that the kernel cannot mechanically refuse to honour is not a rule, it is a comment. Limits 15 and 16 are comments until Limit 17 is a fail-closed gate.
22. (i) The Sovereign's advance assent and what must bind the final text
23. The Sovereign has stated, on the record: "assent is given to the final bill," directing the matter be driven through the Privy Council and Supreme Court to completion. I treat this as a question of law, neither inflating nor evading it.
24. Advance assent is lawful, but only as a conditional, pinned commitment that does not crystallise into the constitutive act until the final ascertained text exists and is fixed. Royal Assent is, by its nature, assent **to a text**: the organ's constitutive act on a determinate instrument (Bill 2 s. 21; REALM-PC 12). An assent directed at a text that does not yet exist cannot, at the moment of utterance, be the constitutive act, because there is nothing determinate to constitute. To hold otherwise lets assent operate as a blank cheque, and **that is the gravest risk in the whole reference**: an advance assent to "whatever text the AI-driven process emits" is the exact AI-self-authorising-law hazard Q8 exists to prevent, wearing the costume of Royal Assent. If the machinery can move the "final" text and assent attaches automatically to wherever it lands, then in substance the AI has authored binding law and the Sovereign has stamped a moving target.

25. So I characterise "assent is given to the final bill" as a standing direction and advance conditional commitment that ripens into operative Royal Assent only when the final text is fixed and the Sovereign's specific assent is recorded against that ascertained text. This protects the Sovereign as much as it protects the system: an unpinned advance assent would let a drafting error or an overreaching clause acquire Royal Assent the Sovereign never actually saw. Three requirements bind:
1. The final text must be fixed by the proper organ. Advance assent does not cure the void-first-draft status; adoption by the Committee is constitutive of the **instrument** and assent constitutive of **enactment** (s. 3(5)). Advance assent plus Committee adoption plus a recorded specific assent against the adopted text equals lawful enactment. Advance assent alone, against a void draft, enacts nothing.
 2. The final text must be bounded so the assent is to a known thing. What binds "final" is this court's settlement: the resolved Q1-Q8, the confirmed limits as varied, and the handover order. The advance assent is lawfully directed at "the final bill **that resolves Q1-Q8, honours Limits 1-17 as varied, and incorporates this court's handover order**." A text departing from the settled frame is a **different** instrument, outside the commitment, needing fresh specific assent. Concretely, "final" is the Committee's adopted second draft, presented back to the Sovereign as a fixed, citable artefact (a specific commit and digest), the assent biting when the Sovereign confirms, or does not dissent from, that pinned text.
 3. The assent honours, not circumvents, s. 32(2). The draft's own s. 32(2) requires **this Act** receive specific Sovereign assent. That is satisfied only if specific assent is ultimately recorded against the final ascertained text. The commitment cannot be self-validating and cannot be routed through the s. 30 standing-bounded delegated route, because a delegated route cannot assent to the very Act that creates the assent rule (the bootstrap the migration forbids). The bootstrap of the assent rule must be a V1-Sovereign act through the V1 route: the V1 Sovereign specifically assents to the primary Act, and **thereafter** the rule governs V2 delegated lawmaking. Coherent, not circular.

4. My pragmatist sharpening: the safeguard must be mechanically checkable, not a matter of trust. The kernel and the record must show a **specific assent event bound to the digest of the final adopted text**. An assent that cannot be tied to an ascertained text by a recorded, deterministic link is not a valid assent source, and the kernel must reject any V2 record relying on it (this is Limit 17 doing real work). So "advance assent" is operationalised as: a commencement record carrying (a) the pinned digest of the adopted final text, (b) the Sovereign's specific assent event against that digest, and (c) the kernel's confirmation that the assent edge resolves. On that footing the advance assent is lawful and meaningful and the agent loop can **verify** it. On any other footing it is a direction only, and Lexby's s. 2 duty is to push back and route the final text for confirmation.
5. (j) The express handover order on commencement
6. An Act binds subjects; only a court order binds courts. Because the apex is single, central, and non-delegable (s. 22(2); REALM-SC 6) and only this court enacts realm-wide (s. 9), the handover requires this court's own constitutive utterance. The order must be conditional and self-executing on a checkable trigger, because a handover that depends on later human discretion is a handover that may never actually complete. The trigger is the redrafted commencement: Royal Assent specifically recorded against the pinned final text, plus a validated, locked lawpack carrying the already-assented settlement, plus the always-on assent-rejection invariant existing and passing.
7. On that trigger I would order:
 1. V2 becomes the self-governing computer-first successor jurisdiction for runtime purposes, V1 reduced to Gazette and Archive, and V1 asserts no continuing runtime control over V2 post-commencement lawmaking.
 2. The V1 courts relinquish continuing appellate and supervisory control over V2 runtime matters, save the entrenched real-world-law floor (REALM-SC 9; REALM-PC 18), which is non-derogable and which V2 cannot escape. V2 runtime adjudication proceeds in V2's own expressly constituted courts (odd benches, s. 10/s. 18), not by V1 continuing jurisdiction.
 3. The s. 10 hierarchy is carried into V2, surviving s. 9 automatically; each V2 court must be expressly constituted before any V2 order issues; the Court of Appeal tier is preserved in law and may be administratively non-convened in the MVP without amending s. 10, but may not be silently abolished.
 4. The Q8 assent rule is the entrenched constitutional floor under all V2 lawmaking, amendable only by specific Sovereign assent to a primary Act, binding the delegate not the Sovereign.

5. Advance assent is effective only as a pinned conditional grant tied to the digest of the adopted final text, void if it operates as an automatic stamp on AI-emitted text.
6. The four-branch mandate (Bill 27 s. 1/s. 6) is preserved for the public estate; s. 24 governs only V2 internal runtime record organisation by an express savings clause; releasing the public layout needs express amendment of Bill 27 by number.
7. The order is contingent and binds nothing until the trigger is met. Until then Bill 32 remains a void first draft.
4. **RATIO**
5. I would have this court settle the following propositions as binding rules:
 1. Enactment and commencement are distinct constitutive acts; no commencement condition may be satisfiable by the V2 machinery alone. A declaratory constitutional migration Act may receive Royal Assent before its runtime infrastructure exists, with commencement deferred to express conditions, provided the legitimating sequence is wholly antecedent and external (Royal Assent under the V1 route). The lawpack is the compiled form of an already-assented settlement, never the generator of the Act's authority; the kernel may never certify its own warrant. Commencement must yield a single checkable commencement record (assent event, pinned digest, lawpack version, lock).
 2. The void-first-draft doctrine governs the migration instrument itself. Bill 32 is void as an instrument from issue and becomes law only by Committee adoption and specific Royal Assent against the fixed final text ([2026] REALM-SC 8; REALM-PC 12; s. 3(2)-(5)). The companion YAML records are void ab initio (s. 18(5); REALM-PC 14) and may be minted only in the V2 lawpack after lawful commencement.
 3. Nothing crosses from V1 to V2, and nothing is released from the public estate, by implication. Incorporation must be express, recorded, and state a mandatory kernel effect; a lower-rank record may not incorporate V1 material of a rank it could not itself enact (rank-floor). An un-incorporated matter that needs governance is routed to a bench, never resolved by default-permit. The four-branch mandate of Bill 27 s. 1/s. 6 is preserved for the public estate (s. 24 confined by an express savings clause to V2 internal runtime record organisation) or expressly amended by section number; silent displacement is void (Bill 27 s. 14(2)).

4. Court existence is substance, not reference. A broad supersession clause cannot impliedly amend the entrenched court structure: CASE-LAW s. 10 and the single central apex of s. 22(2) survive s. 9 automatically. No V2 court continues by mention in a hierarchy list; each must be expressly constituted with an odd bench before any V2 order issues, on pain of void-ab-initio nullity. The Court of Appeal tier is preserved in law; it may be administratively non-convened in an MVP, but its abolition requires express amendment of s. 10 by number.
5. The Sovereign-assent rule is declaratory of existing binding law, and AI is never sovereign. All V2 law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded under a no-Henry-VIII enabling regime (Bill 14 s. 12-13). AI may draft, deliberate, propose, consolidate, and operate delegated machinery but may not be sovereign, expand its own competence, amend the assent rule, or create force from its own output. Each s. 31 declaration must be a typed, kernel-evaluable field, and the kernel-rejection of any record lacking a valid assent source must be a deterministic, always-on invariant whose existence and passing is a commencement condition. A rule the kernel cannot mechanically refuse to honour is not a rule. Entrenchment binds the delegate and never the Sovereign and is the precondition of lawful self-governance, not a defect in it.
6. Advance Sovereign assent to "the final bill" is lawful only as a pinned conditional grant tied to a determinate final artefact (a specific text and digest) that resolves Q1-Q8, honours the confirmed limits as varied, and incorporates this court's hand-over order, and which the Sovereign confirms, or does not dissent from, before commencement. It does not cure the void-first-draft status, cannot be self-validating, and cannot be routed through delegated machinery (s. 32(2)). The assent edge must be deterministically recorded against the digest and resolvable by the kernel, or it is not a valid assent source. An advance assent operating as an automatic stamp on AI-emitted text is void.
7. Publication is not force. Within a single Gazette of two estates, publication of V2 material is neither enactment by V1 nor incorporation into V1; V2 runtime force derives from the lawpack and kernel-recognised status, and the kernel need not and must not read the Gazette for runtime decisions. Publication mechanics descend to a Kernel Regulation under an express enabling clause; the constitutional principle stays in the primary Act and the fast-changing mechanics stay out of it.
8. The new V2 citation series may be established by this Act on the Bill 16 precedent, by an express scheme-establishing provision; the Act's own V2 citation must be minted deterministically on the empty series at commencement, never hand-numbered, and V1 REALM-* citations remain valid historical identifiers (REALM-PC 11; s. 19(5)).

9. The handover is the apex's non-delegable act. Only this court may, by a conditional self-executing order triggered on the redrafted commencement, direct the V1 courts to relinquish continuing appellate and supervisory control over V2 run-time matters, save the entrenched real-world-law floor.
5. OBITER
6. I add three notes that do not bind but that I would have the Committee and the V2 engineer carry.
7. First, build the commencement record as a real artefact, not a ceremony. The single greatest practical risk in this migration is a silent half-state in which an agent treats V2 as live before commencement or V1 as live after it. The cure is one deterministic record the agent loop reads to answer "are we across?" with a yes or no, never an inference.
8. Second, the draft assent invariant in the V2 repo (INV-ASSENT-DRAFT-001, presently status: draft) is correctly draft today and must not be promoted to `in_force` by the engineer's own hand. Its promotion is a **consequence** of the settled V1 route, recorded as a kernel effect of the adopted Act, not a step the agent takes on its own initiative. The temptation to "just flip the status to ship" is the exact self-authorisation the whole edifice forbids.
9. Third, prefer administrative non-convening of the Court of Appeal to amending s. 10. It costs nothing operationally, keeps the entrenched structure intact, and avoids spending a constitutional amendment on an MVP that has no appeal traffic. Reserve the heightened amendment for the day the Realm genuinely decides three tiers is one too many, which is not today.
6. DISPOSITION
7. VARY. The matter is declaratory and the handover ordered: the eight questions are settled and the Q8 floor entrenched, the seventeen limits confirmed save Limits 4, 5, and 13 confirmed as varied and Limits 3 and 17 confirmed with riders, the companion YAML excluded as void ab initio, advance assent held lawful only as a pinned conditional grant, and the conditional self-executing handover order made; Bill 32 remains a void first draft of no binding force until the Standing Committee adopts the second draft and the Sovereign specifically assents to the pinned final text, the operative wording being DIRECTED to the Committee per [2026] REALM-SC 8.
7. PROPOSED ENACTMENTS

8. This court (and only this court) may enact CASE-LAW articles directly (REALM-SC 8). The instrument text of Bill 32 itself is DIRECTED to the Standing Committee for the second draft; I do not legislate that statute here. But the entrenched Sovereign-assent floor and AI non-sovereignty rule, and the entrenched protection of the court structure on migration, are realm-wide constitutional settlements that belong in CASE-LAW and bind beyond Bill 32. I would enact two articles.
9. PROPOSED S-23: Sovereign assent, AI non-sovereignty, and the kernel assent-gate [constitutional]
10. (1) All law of the Realm, in any generation or successor jurisdiction, and however drafted, proposed, deliberated, consolidated, or maintained (including by an AI agent, an automated process, or a computational legislature), derives its binding force only from Sovereign assent, which is either (a) specific (the Sovereign expressly assents to a determinate instrument fixed by text and digest) or (b) standing-bounded (the Sovereign has by a prior specific assent to a primary Act fixed a delegated lawmaking route whose maker, scope, prohibited subjects, required form, validation route, review or veto route, and commencement conditions are determinate).
11. (2) An AI agent or automated process may draft, deliberate, propose, consolidate, codify, revise, and operate delegated lawmaking machinery. It may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output by the fact of its being written. Output exceeding competence, or lacking a valid assent source, is draft only.
12. (3) A standing-bounded route may make only subordinate law within its fixed scope and may never reach the assent rule, the constitution, or any primary or entrenched Act (the no-Henry-VIII ceiling, Bill 14 s. 12-13, applying by its terms). Each declaration in subsection (1)(b) must be a typed, machine-checkable field capable of deterministic evaluation; a scope, prohibition, or validation expressed only as unenforceable prose does not satisfy this article.
13. (4) The assent rule in this article is amendable only by specific Sovereign assent to a primary Act citing this section by number. It binds the delegate and never the Sovereign, who retains full power under s. 2 to make or unmake law by due process. Entrenchment of this rule is the precondition of lawful self-governance, not a constraint upon the Crown.

14. (5) Any deterministic runtime kernel that resolves authority in the Realm or a successor jurisdiction must reject, by an always-on deterministic invariant that fails closed and calls no model, any record claiming binding force without a valid, traceable assent source. Where a generation of the Realm commences on a runtime kernel, the existence and passing of that invariant is a condition of commencement. A rule the kernel cannot mechanically refuse to honour has no runtime force.
15. PROPOSED S-24: Court continuity and constitution on migration or supersession [constitutional]
16. (1) A general supersession, repeal, or migration clause does not amend, dissolve, or relax the entrenched court structure (s. 10) or the single central apex (s. 22(2)); those articles survive any such clause automatically and are amendable only by express, deliberate amendment citing the article by section number.
17. (2) Court existence is substance, not reference. No court of a successor or migrated jurisdiction acquires lawful authority merely by being named in an authority hierarchy or list. Each such court must be expressly constituted or reconstituted by a named instrument, stating its odd deciding membership (s. 18) and its jurisdiction, before any order of that court may issue. An order issued by a court not so constituted is void ab initio (s. 18(5)).
18. (3) An entrenched tier (including the Court of Appeal) may be administratively non-convened where no matter has arisen to occupy it, the tier continuing to exist in law; its abolition requires express amendment of s. 10 by number and may not be effected by a charter, an implementation choice, or omission.
19. (4) The external real-world-law floor (REALM-SC 9; REALM-PC 18) is non-derogable and binds every jurisdiction, generation, and successor of the Realm, and no migration order may displace it.
20. Where the operative *instrument* wording for the migration (the redrafted Bill 32, its s. 2 commencement sequence, its scheme-establishing citation section, its Bill 27 savings clause, its court-continuity provision, and its Gazette enabling clause) is concerned, that text is DIRECTED to the Standing Committee for the second draft per [2026] REALM-SC 8; this court rules the principle and entrenches the floor, it does not draft the statute.
8. PROPOSED OVERRULINGS
9. None. No precedent on the citator is wrong or outdated; the doctrine I confirm is declaratory of REALM-SC 8, REALM-PC 12, REALM-PC 14, REALM-PC 15, REALM-PC 17, REALM-SC 9, and Bill 14, and consistent with every good-law ruling in the index.

10. --- Goffe J

11. ---

BLACKMERE J

12. I now have the full text of every load-bearing provision: the circular commencement (s. 2), the supersession/hierarchy contradiction (s. 9 vs s. 12), the silent four-branch displacement (s. 24 vs Bill 27 s. 14(2)), the assent Part (s. 30-32) and its s. 32(2) specific-assent saving. I also have Bill 27 s. 14(2) and Bill 14 ss. 10-13 in their controlling words, the absence of lawpack/ in V1, and the existence of the V2 infrastructure in the separate repo. The record is complete. I will now write the opinion of Blackmere J in full.

13. OPINION OF BLACKMERE J

14. [2026] REALM-SC 10 (proposed) · In the Supreme Court of the Vibe Justice System, sitting as the full court of nine on a constitutional and foundational question (CASE-LAW s. 10; s. 18(1)). In the matter of the Computer-First Realm Act 2026 (Bill 32, void first draft) and the Sovereign's reference thereon, on leapfrog from the Privy Council ([2026] REALM-PC 24).

15. I am the textualist of this Court. I begin and end with the words actually enacted. Where the words of CASE-LAW or of an in-force Act of the Realm are plain, no purpose, no convenience, and no migration timetable may bend them; where they are genuinely ambiguous I read the enacted history before I reach for anything outside the four corners of the statute book. I have read Bill 32 in its forty sections, Bill 27 and Bill 14 in their original enacted words, the controlling articles of CASE-LAW, and the symmetric file. I have verified, with my own hand, the one fact on which the bootstrapping question turns: this V1 super-repo contains no lawpack/ directory; the V2 lawpack, kernel, Charter and Constitution exist only in a separate private repository (the V2 repository); and the HANDOVER in that repository classifies itself as a draft_implementation_brief, "NOT authority and NOT a lawpack record."

16. I concur with the Privy Council's destination on most points and I have sat as Blackmere PC below. I write here in full, as the apex requires, and I sharpen three textual points the Council left softer than the words allow.

1. PRELIMINARY

2. 1.1 The bench. This is a constitutional and foundational question. It re-settles the jurisdiction, the citation scheme, the court geography, and the rule of assent for all future AI-made law. CASE-LAW s. 10 and s. 18(1) require the full court of nine. The bench is properly constituted: nine counted seats, odd, no synthesiser seated on top (s. 18(4)-(5); [2026] REALM-SC 4). I am one of the nine counted seats; this opinion is my single vote reduced to my own writing, and I record as ratio only what the majority in fact commands.
3. 1.2 Route. The matter reached us by leapfrog. CASE-LAW s. 13 admits one and only one bypass of rule-based progression: the Principal's express leapfrog certificate. The Sovereign has directed that the matter be driven through the Privy Council and the Supreme Court to completion; that direction, recorded on the matter and reasoned by reference to the constitutional magnitude, is an express certificate within s. 13 and s. 20(2)-(3). The Privy Council has also certified the matter up under the constitutional-tension route. On the plain words of s. 20(4) we review the certificate for vires and form only, deferentially; the certificate is express, recorded and reasoned, and the question is, on no reasonable view, anything other than foundational. The leapfrog is good.
4. 1.3 The void-first-draft doctrine governs the instrument itself; this is not negotiable on the text. Bill 32 declares itself "a VOID FIRST DRAFT - Drafted by Lexby, as counsel and engineer, without independent law-making force." That is the correct legal characterisation, compelled by the plain words of CASE-LAW s. 3(2) and s. 3(3): "Lexby holds NO law-making and NO adjudicative drafting authority," and "Instrument-text ... authored by Lexby ... is VOID as an instrument from issue." The binding ratio of [2026] REALM-SC 8 and [2026] REALM-PC 12 is exact, and s. 3(5) states the cure in terms: "Adoption by the proper organ (Committee vote with Royal Assent for an instrument ...) is CONSTITUTIVE: it cures the origin defect, which is SPENT ON ADOPTION." I record the textual consequence with precision, because the Claimant's fast-path motion attempts to over-read it. The adoption cures the **origin** defect (that Lexby's hand first moved the pen); it does not cure **substantive** defects in the text adopted. A clause that offends an entrenched article does not become lawful because the Committee votes it and the Sovereign signs it; an Act may be validly **enacted** and still be **void to the extent of its conflict** with entrenched law (CASE-LAW s. 1; s. 11(f); Bill 14 s. 17). The void-first-draft cure is a cure of provenance, not of vires. I therefore refuse the Claimant's s. 11(c) fast-path so far as it asks this Court to treat Bill 32, once adopted, as immune from the entrenchment objections; those objections survive adoption and must be cured in the drafting.

5. 1.4 The companion records. The companion YAML records (decision, invariant, and the purported County Court order citing jurisdiction the V2 repository) are void ab initio on the plain words of CASE-LAW s. 18(5) and [2026] REALM-PC 14: a ruling from a court that does not exist in this repository is a nullity for want of lawful constitution. They may be minted only in the V2 lawpack after lawful commencement. I confirm referral item E without qualification.
6. 1.5 Standing and jurisdiction. The reference is placed by the Sovereign and reduced to the record by Lexby as registrar and engineer (CASE-LAW s. 3(1), s. 3(6)). Standing is made out (s. 11(b)). The subject-matter is the design and governance of the realm's own legal substrate, the paradigm of subject-matter jurisdiction (s. 14). I refuse the strike-out motions and the declaration of incompatibility: on the text the draft is **incomplete**, not **incompatible**, because express provision cures every conflict (s. 11(f) does not lie where the conflict is curable by express amendment).
2. FRAMING
3. The handover-order question. Upon (a) Royal Assent specifically recorded against the final, pinned text of the Computer-First Realm Act adopted by the Standing Committee at its second-draft stage, and (b) satisfaction of a redrafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, does V2 become the self-governing computer-first successor jurisdiction for runtime purposes (V1 remaining the Gazette and Archive estate), does the single central apex direct the V1 courts to relinquish continuing appellate and supervisory control over V2 runtime matters save the entrenched floor, is the CASE-LAW s. 10 hierarchy carried into V2 and each V2 court to be expressly constituted, is the Q8 assent doctrine the entrenched floor under all V2 lawmaking, and is the advance assent lawful only as a pinned conditional grant.
4. The eight underlying questions, as I frame them on the text:
5. - Q1 Are enactment and commencement distinct on the words enacted, so an Act may receive Royal Assent before its runtime infrastructure exists; and is the s. 2 condition set void for circularity because every operative condition is satisfiable only by the very V2 machinery whose warrant flows from the Act?
6. - Q2 By what instrument is the [2026] VJS-ACT N scheme established on the Bill 16 precedent; and is the hand-chosen ordinal "8" a valid mint in a series the Act is itself founding?
7. - Q3 Does Bill 32 s. 24 displace Bill 27 s. 1 by implication in the teeth of Bill 27 s. 14(2)'s express-amendment entrenchment, or must any displacement be express by section number, with a savings clause confining s. 24 to V2 internal record organisation?

8. - Q4 Does s. 9's supersession of "the V1 court hierarchy" reach the entrenched CASE-LAW s. 10 structure, and by what express act must each V2 court be constituted before any V2 order issues?
9. - Q5 What is the minimum valid act of incorporation under s. 11, subject to a rank-floor, and is the kernel effect mandatory?
10. - Q6 Are the five elements of the single-Gazette doctrine lawful, and where do the publication mechanics belong?
11. - Q7 May V1 lawfully authorise V2 to supersede V1 as live runtime law, and is an express Supreme Court handover order required to stop V1 asserting continuing control?
12. - Q8 Must all V2 law carry Sovereign assent (specific or standing-bounded); what are the machine-checkable limits on a delegated or AI route; may the assent rule be amended by delegated lawmaking; and must the kernel reject, by an always-on deterministic invariant, any record lacking a valid assent source?

3. REASONING

4. (a) Q1 - Bootstrapping and deferred commencement

5. The text decides this, and decides it cleanly. Two constitutive acts are distinct on the words enacted. Royal Assent is the Sovereign's constitutive act on the text (CASE-LAW s. 2; Bill 2 s. 21). Commencement is the satisfaction of conditions that fix when the enacted law bites. Bill 2 contemplates deferred commencement (s. 13-14), and Bill 32 s. 2(2) itself says that "before commencement, this Act is a draft and has no binding runtime force," and s. 2(3) that "the kernel shall not treat this Act as live authority until all commencement requirements are satisfied." On the plain words there is no authority vacuum: the missing V2 infrastructure is a condition of **commencement**, not of **validity of enactment**. An Act may lie dormant until the world is built to its measure. The Sovereign's power to declare law (s. 2) is not subordinate to the existence of a Rust binary, and I reject the Defendant's strike-out of s. 2 so far as it treats deferred commencement as itself a vice.

6. But the **content** of s. 2(1) is void for circularity, and here the textualist is the most exacting member of the bench, because the defect is in the words and not in the policy. Section 2(1) makes commencement turn on validation "by the VJS law-pack validator" (2(1)(2)), entry "into the V2 lawpack" (2(1)(4)), and inclusion "in the current lawpack lock" (2(1)(5)). Every one of those conditions can be satisfied only by V2 machinery whose own lawful existence, on this record, is warranted by this very Act. A condition that can be met only by an artefact whose authority flows from the Act is a bootstrap that closes on itself: the Act authorises the law-pack, and the lawpack certifies the Act. That is the kernel certifying its own warrant, and it is precisely the AI-self-authorising hazard the migration exists to prevent. I have verified the underlying fact: there is no lawpack/ in this repository, and the only validator is in the separate V2 repository.
7. The cure is not cleverer drafting; it is sequencing in the world, and the words must be redrafted to express it. The **force** of the Act comes from Royal Assent under the V1 route, a V1 event lawful on V1's own terms. The lawpack is the **compiled form** of an already-assented settlement; it confirms **form**, never **legitimacy**. The Committee must redraft s. 2 so that (a) Royal Assent (a V1 organ) is wholly antecedent; (b) a recorded act brings the V2 infrastructure into existence under that antecedent assent; and (c) lawpack validation, entry, and lock follow as confirmations of form only. No commencement condition may be satisfiable by the V2 machinery alone. A transitional bridge to this effect is required.
8. (b) Q2 - The VJS-ACT citation scheme transition
9. Bill 16 is on all fours. It carried the LEXBY-* to REALM-* transition and established a citation scheme by an enacting instrument, preserving prior citations as valid historical identifiers; [2026] REALM-PC 11 confirms the deterministic engine mints flat annual ordinals. A constitutional Act of this weight may carry the new scheme within itself, or by a companion instrument enacted simultaneously; that is a reversible drafting choice for the Committee. But s. 1(3) as drafted only **proposes** an ordinal ("proposed as [2026] VJS-ACT 8"); it enacts no scheme. The Committee must add an operative section stating the series code, the form [YEAR] VJS-ACT N, the deterministic minting rule, and the express preservation of REALM-* citations.

10. On the self-citation the textualist objection is decisive and I state it in its sharpest form. A neutral citation is, by the words of CASE-LAW s. 19(5) and the Bill 16 scheme, a number *minted by the deterministic engine under an already-existing scheme*. The minting authority must precede the minted item. An instrument cannot assign itself the ordinal "8" in a series it is at the same instant founding, because "8" is a representation that seven prior VJS-ACT entries lawfully exist, and on the record they do not. The number is therefore a false statement of provenance, and the s. 19(5) citation-integrity gate must fail closed on it. The scheme-establishing limb takes effect on commencement, and the first VJS-ACT ordinal is minted deterministically at that point on whatever the engine yields for the empty series; "8" is a non-operative placeholder until then.
11. (c) Q3 - Bill 27 four-branch reconciliation
12. This is the question on which I am least willing to be moved, because the controlling words are express, in force, and unambiguous. Bill 27 s. 14(2), which I have read in the original, provides: "The four-branch layout mandate (section 6) and the system-data-only rule (section 7) are foundational to CASE-LAW s. 1 and s. 9 and may not be silently repealed or relaxed by implication. Any amendment must be express." That is a Thoburn-style entrenchment enacted by an in-force Act of the Realm and tied to two entrenched CASE-LAW articles. It is not case law I am free to read down; it is statute, and statute binds me.
13. Bill 32 s. 24(1) says V2 "does not carry forward the V1 four-branch ministry directory structure as mandatory runtime structure." It nowhere names Bill 27, nowhere cites s. 1 or s. 6 by number. On the plain words, s. 24 as drafted is an attempt to *relax* a mandate whose own parent provision forbids relaxing other than expressly. That is the precise vice Bill 27 s. 14(2) declares void. The Claimant's framing, that s. 24 "does not amend Bill 27 as a matter of force" while at the same time declining to carry the mandate forward, is the silent middle the words forbid: you cannot both leave the mandate standing and release yourself from it without saying so expressly.

14. The lawful and narrower construction, which I adopt because it is what the words will bear, distinguishes the principle from the mechanism. CASE-LAW s. 21(1) and s. 22(4) already hold that a path name is non-operative ("void to the extent it ever governs the choice ... of the governing law"), and [2026] REALM-PC 14 holds that the gate checks substance, not filename. The four-branch *separation of powers* is the entrenched principle; the mandatory *folder names* are the mechanism. V2 may bind its records by role, schema, id, status, authority and kernel-effect (s. 24(2)) and so preserve the separation as substance, releasing only the directory names. But this must be said expressly, because Bill 27 s. 14(2) admits nothing less. I direct the Committee to add an express savings clause to s. 24: nothing in it amends or displaces Bill 27 s. 1 or s. 6, which continue to bind the public VJS estate; s. 24 governs only V2 internal runtime record organisation. If, contrary to this, release of the public estate is intended, that requires an express amendment of Bill 27 s. 1 and s. 6 citing them by number. There is no third path. The V1 public super-repo remains four-branch under Bill 27 for as long as it is the public-facing estate, and it continues to publish into the single Gazette in that form.
15. (d) Q4 - Court continuity
16. This is the gravest defect in the draft, and the words make it plain. The draft is internally contradictory on its own face. Section 9(2)(4) supersedes "the V1 court hierarchy"; s. 9(2)(5) supersedes "the V1 Court of Appeal"; s. 9(5) says nothing continues unless expressly incorporated. Yet s. 12(1) lists "Supreme Court Orders," "Privy Council Orders," and "County Court repo Orders" as live tiers of the V2 hierarchy. The Act abolishes the courts in s. 9 and assumes their orders in s. 12. Under the Act's own concordance rule (s. 6(4)), "a material discrepancy ... is a validation defect" to be "routed for correction." I so route it.
17. The deeper point is dispositive and turns wholly on entrenched text. CASE-LAW s. 10 fixes the three-tier structure and is marked [constitutional]; the Amendment Procedure provides that a constitutional article is "changeable only by express, deliberate amendment ... never by implication," and "the amending instrument must cite the article being amended by its section number." CASE-LAW s. 22(2) declares that "the singleness of the Court of Appeal and the Supreme Court may never be relaxed." A broad supersession clause that does not name s. 10 cannot reach s. 10. It follows, on the plainest reading, that the s. 10 hierarchy survives s. 9 automatically: to the extent s. 9 purports to abolish the s. 10 structure by implication, it is void, because an entrenched article is not touched by an instrument that does not cite it. The textual reading and the entrenchment reading converge.

18. But survival-by-entrenchment is too thin a thread on which to run a migration, because court existence is substance, not reference. CASE-LAW s. 18(5) and [2026] REALM-PC 14 are categorical: a bench not lawfully constituted issues orders that are "VOID ab initio for want of lawful constitution," and that vice "is not cured by the soundness of the result, by acquiescence, or by lapse of time." A V2 court that exists only by being *named* in the s. 12 list is not a lawfully constituted bench; every order it issues would be void. I therefore direct an express court-continuity or reconstitution provision naming each V2 court, its odd bench size (s. 10; s. 18), and its jurisdiction, *before any V2 order issues*. The s. 12 hierarchy is aspirational until then.
19. On the Court of Appeal the Charter records that it is "not carried forward in the V2 MVP." The words of s. 10 fix a three-tier structure; the words of the Amendment Procedure require any change to cite s. 10 by number. A Charter signed by the Principal alone is not an express amendment of an entrenched CASE-LAW article; nor is an MVP design choice; nor is omission. Removing the Court of Appeal tier therefore cannot be done as drafted. The Committee must choose, expressly, one of three lawful routes: (i) an express amendment of CASE-LAW s. 10 citing it by number, a heightened act of this Court sitting as nine on the Sovereign's certificate; (ii) keep the Court of Appeal, the safe default; or (iii) recast "no CA" as administrative *non-convening* (the tier exists in law but convenes only when an appeal arises), which does not purport to abolish the tier and is lawful for an MVP. What may not happen is a two-tier system standing where s. 10 entrenches three.
20. (e) Q5 - Express incorporation mechanics
21. The s. 11(2) menu (Act, Kernel Regulation, Rule Atom, Court Order, Spec, Decision, Invariant) is closed and acceptable as to form; "may be made only by" is exhaustive, and any one of the seven is a valid vehicle. Requiring a primary Act for every carried-forward micro-rule would make the migration undeliverable, and nothing in the text requires it. But the rank-floor follows from Bill 14 s. 12 by necessary implication, and I read it in: "A subordinate or provisional instrument may never amend, disapply or expand its own parent Act, the constitution, or any other primary Act." A lower-rank record may not, by the device of "incorporating" V1 material of a rank it could not itself enact, do indirectly what s. 12 forbids it to do directly. So constitutional or primary-Act-level V1 material requires incorporation by a V2 Act; subordinate V1 material may be incorporated by the corresponding subordinate V2 record.

22. On content, s. 11(3) is conjunctive: it requires identification of the V1 source, the V2 destination, the operative rule, the kernel effect, and any supersession. The Claimant's suggestion that the source and operative rule alone suffice is contradicted by the word "must" governing the whole list, and by the computer-first premise of the Act itself: s. 5(3) provides that a provision with no operational form "shall not by itself be part of the kernel's runtime decision surface." An incorporation that names a V1 source and an operative rule but states no kernel effect gives the clerk nothing to execute; it is archive prose wearing a runtime badge. The kernel effect is mandatory. I confirm s. 11 with the rank-floor and the mandatory-kernel-effect gloss.
23. (f) Q6 - The single Gazette, two estates
24. This is the most workable part of the package and the part with which the text gives me least quarrel. Publication and authority are different layers, the same discipline as the source-of-force test in [2026] REALM-PC 12 and the release regime in REALM-PC 16. I confirm all five elements: (1) one Gazette, two estates (V1 Archive, V2 Current) is lawful, the Gazette carrying system data only (Bill 8; Bill 22; Bill 27 s. 7); (2) publication of V2 material in the Gazette is neither enactment by V1 nor incorporation into V1, force coming from promulgation by the organ, not from appearing on a page; (3) the Gazette is not the runtime source, the lawpack is; (4) typed lineage edges to V1 archive material are lawful and required by the no-implication rule, so the chain is explicit; (5) the kernel need not, and on s. 13 must not, read the Gazette for runtime decisions (no semantic-similarity search). On allocation: the export gate (s. 27, failing closed unless the lawpack validates, the scan passes, statuses are valid, citations unique, lineage resolves, and the manifest carries the digest) is the public-private boundary enforced mechanically and must be kept. But the detailed mechanics are subordinate, machine-checkable detail that change with tooling; freezing them in a constitutional Act over-freezes them. Consistent with [2026] REALM-PC 10's preference for regulation over fresh statute on operational detail, the principle stays in the primary Act and the mechanics descend to a Kernel Regulation made under an express enabling clause, that delegation itself satisfying the Q8 declarations.
25. (g) Q7 - The constitutional relay and V2 self-governance

26. The Sovereign holds plenary power to make or unmake law by due process (CASE-LAW s. 2). Re-settling the jurisdiction through V1's own organs is the exercise of that power, not a revolution outside it. CASE-LAW s. 9(3) and [2026] REALM-PC 17 confirm that a jurisdiction may, by express local sovereign act, amend its law and become independent, default subscription not being perpetual subjection. I confirm that V1 may so authorise V2; that the V1 founding process is provenance, not daily runtime law (s. 28; and the HANDOVER's own self-classification proves it); that V2 self-governs through its native route after commencement (s. 29); and that V1 remains Gazette and Archive.
27. Two points on the text. First, the Observer's "perpetual constraint" objection fails on the words. The assent rule binds the *delegate*, never the *Sovereign*: Bill 14 s. 10(1) preserves that "the Sovereign alone makes or unmakes law," and s. 12 forbids only the *delegated* instrument from reaching primary or entrenched law. Entrenchment is not a fetter on the Crown; it is a lock against the delegate, and the Sovereign holds the key throughout (s. 2). A jurisdiction that could, by its own delegated machinery, unmake the rule requiring human assent would be ungoverned, not self-governing. Second, and decisively, V2 self-governance is not perfected by Bill 32 declaring it. An *Act* binds persons; it does not of its own force direct the *courts* to relinquish jurisdiction. CASE-LAW s. 22(2) makes apex enactment non-delegable and the singleness of the apex non-relaxable. Only the single central apex, by its own constitutive utterance, can direct the V1 courts to relinquish continuing appellate or supervisory control over V2 runtime matters. The relay is lawful; the *handover* requires this Court's order. That is the strongest reason the leapfrog was right.
28. (h) Q8 - Sovereign assent for AI-made and delegated law
29. Here the bench is most united, and the textualist most comfortable, because the doctrine is not new constitution-making: it is the plain projection of words already enacted, from "Lexby's pen" to "any AI maker." The sources are express:
30. - CASE-LAW s. 3(2): "Lexby holds NO law-making ... authority"; s. 3(3): Lexby-authored instrument-text "is VOID as an instrument from issue."
31. - CASE-LAW s. 2: legislative power is the Sovereign's, by due process.
32. - Bill 14 s. 7(3): "A delegated power may not be used to widen its own scope ... A purported self-extension ... is ultra vires and void." Bill 14 s. 9(1): an authorised body "may propose, draft, codify, consolidate and revise subordinate law only." Bill 14 s. 12: "There is no power, express or implied, to amend primary or entrenched law by a delegated instrument." Bill 14 s. 10(3): a delegated instrument touching supreme or entrenched law "is void ab initio ... curable only by lawful re-enactment ... never by silence."

33. - [2026] REALM-SC 8 / REALM-PC 12: adoption by the proper organ is constitutive; the test is the source of the artefact's force.
34. I confirm each limb of the doctrine: (1) all V2 law requires Sovereign assent, specific or standing-bounded; (2) AI may operate machinery but may not be sovereign, expand its own competence, amend the assent rule, or create force from its own output; (3) a delegated body must declare maker, scope, prohibited subjects, form, validation, review/veto, and commencement (s. 31); (4) the assent rule is amendable only by specific Sovereign assent to a primary Act (s. 31(3)); (5) the kernel must reject any record lacking a valid assent source (s. 30(6)). Standing-bounded assent is lawful as the exact analogue of delegated legislation under a Sovereign-assented enabling Act, with Bill 14's no-Henry-VIII ceiling doing the load-bearing work.
35. I add my textual sharpening, which I will see in the article and not merely the prose. The doctrine must state in terms that a standing-bounded route may make only **subordinate** law within its fixed, machine-checkable scope, and may never reach the assent rule, the constitution, or any primary or entrenched Act; and it must align to Bill 14 s. 12-13 **by number**, so the ceiling is express and not inferred. Two operability conditions are load-bearing and I adopt them. First, each s. 31 field must be a typed, kernel-evaluable property; a "bounded route" whose scope lives only in unenforceable prose is a blank cheque, because the kernel cannot reject what it cannot evaluate. Second, the kernel-rejection rule (s. 30(6), Limit 17) must be a deterministic, always-on invariant, never a model judgment, failing closed on any record lacking a traceable assent edge, exactly as the s. 19(5) citation-integrity gate fails closed on a duplicate. The **existence and passing of that invariant is itself a commencement condition**; without it, Limits 15 and 16 are ceremonial. AI may operate the lawmaking machinery without becoming sovereign precisely because the source of force is the Sovereign's antecedent assent, not the AI's keystrokes (the s. 3(6) source-of-force test); the kernel is a clerk, not a legislator (s. 13(3)), and the moment it certifies its own warrant it becomes the sovereign the words forbid.
36. (i) The Sovereign's advance assent to the final bill
37. The Sovereign has stated, on the record, "assent is given to the final bill," directing that the matter be driven through the Privy Council and Supreme Court to completion. I address this as a question of law on the words enacted.

38. Royal Assent is, by its nature and on the words of Bill 2 s. 21, assent *to a text*: the organ's constitutive act on a determinate instrument. An assent directed at a text that does not yet exist cannot, at the instant of utterance, be the constitutive act, because there is as yet no determinate thing to constitute. To hold otherwise would let assent operate as a stamp on whatever text the AI-driven process later emits, which is the precise AI-self-authorising hazard Q8 exists to prevent, dressed in the costume of Royal Assent. If the machinery may move the "final" text and assent attaches automatically wherever it lands, then in substance the AI has authored binding law and the Sovereign has signed a moving target. The words will not bear that.
39. I therefore characterise "assent is given to the final bill" as a standing direction and advance conditional commitment that ripens into operative Royal Assent only when the final text is fixed and the Sovereign's specific assent is recorded against that ascertained text. This is not a diminution of the Sovereign's word; it is the only reading that keeps the assent meaningful and lawful, and it protects the Sovereign from acquiring assent to a clause never actually seen. Three requirements bind, or the grant is a blank cheque the law will not enforce as a constitutive act:
1. The final text must be fixed by the proper organ. Advance assent does not cure the void-first-draft status: Committee adoption is constitutive of the *instrument* and assent constitutive of *enactment* (CASE-LAW s. 3(5)). Advance assent alone, against a void draft, enacts nothing.
 2. The final text must be bounded so the assent is to a known thing. What binds "final" is this Court's settlement: the final bill is the one that resolves Q1-Q8, honours Limits 1-17 as varied, and incorporates the handover order. An assented text departing from that frame is a *different* instrument, outside the commitment, requiring fresh specific assent. Concretely, "final" is the Committee's adopted second draft presented back as a fixed, citable artefact (a specific commit and digest), the assent biting when the Sovereign confirms, or does not dissent from, that pinned text.

3. The assent honours s. 32(2). The draft's own s. 32(2) requires that **this Act** receive specific Sovereign assent, and s. 32(1) preserves the V1 route for its enactment. That is satisfied only if the specific assent is ultimately recorded against the final ascertained text. The advance commitment cannot be self-validating and cannot be routed through the standing-bounded delegated route of s. 30, because a delegated route cannot be the vehicle for assenting the very Act that creates the assent rule. The bootstrap of the assent rule is, and must be, a V1-Sovereign act through the V1 route: the V1 Sovereign specifically assents to the primary Act, and **thereafter** the rule governs V2 delegated lawmaking. That is coherent and not circular.
4. The safeguard sits inside Limit 17: the record must show a specific assent event bound to the digest of the final adopted text. An assent that cannot be tied to an ascertained text by a recorded, deterministic link is not a valid assent source, and the kernel must reject any V2 record relying on it.
5. (j) The terms of the express handover order
6. An Act cannot of its own force direct the courts. CASE-LAW s. 22(2) reserves apex enactment to the single central Supreme Court and forbids relaxing the singleness of the apex. Only this Court, by its own constitutive utterance, can effect the handover. On commencement satisfied per the redrafted s. 2, I would have this Court order, in terms that bind realm-wide: that V2 is the self-governing computer-first successor jurisdiction for runtime purposes, V1 remaining the continuing Gazette and Archive estate; that the V1 courts relinquish continuing appellate and supervisory control over V2 runtime matters, save the entrenched real-world-law floor (CASE-LAW s. 9 supremacy of real-world law; [2026] REALM-SC 9; REALM-PC 18), which is non-derogable; that the s. 10 hierarchy is carried into V2 and each V2 court must be expressly constituted with an odd bench before any V2 order issues; that the Q8 assent rule is the entrenched floor under all V2 law-making, binding the delegate and never the Sovereign; and that the order takes effect only upon Royal Assent specifically recorded against the pinned final text and a redrafted commencement sequence in which no condition is satisfiable by the V2 machinery alone.
4. **RATIO**

1. Enactment and commencement are distinct constitutive acts. A declaratory constitutional migration Act may receive Royal Assent before its runtime infrastructure exists, with commencement deferred to express conditions; but no commencement condition may be satisfiable by the successor (V2) machinery alone. The legitimating sequence must be wholly antecedent and external (Royal Assent under the V1 route); the lawpack is the compiled form of an already-assented settlement, never the generator of the Act's own authority. The circularity in the draft s. 2 is void and must be cured by sequencing.
2. The void-first-draft doctrine cures provenance, not vires. Lexby-authored instrument text is void as an instrument from issue and becomes law only by Committee adoption and specific Royal Assent against a fixed final text (CASE-LAW s. 3(2)-(5); [2026] REALM-SC 8; REALM-PC 12). Adoption cures the origin defect; it does not cure a substantive conflict with an entrenched article, which survives adoption and renders the Act void to the extent of the conflict (CASE-LAW s. 1; s. 11(f); Bill 14 s. 17). Companion records citing a non-existent V2 jurisdiction are void ab initio (s. 18(5); REALM-PC 14).
3. Nothing crosses from V1 to V2, and nothing is displaced from the public estate, by implication. Incorporation must be express, recorded, and state the mandatory kernel effect, and a lower-rank record may not incorporate V1 material of a rank it could not itself enact (Bill 14 s. 12). The four-branch mandate of Bill 27 s. 1 and s. 6 is entrenched by Bill 27 s. 14(2) and may be released from the public estate only by express amendment citing those sections by number; s. 24 must carry an express savings clause confining it to V2 internal record organisation, the four-branch separation surviving as substance enforced by record-role while only the folder names are released. Silent displacement is void.
4. Court existence is substance, not reference. A broad supersession clause cannot impliedly amend the entrenched court structure: CASE-LAW s. 10 and the single central apex of s. 22(2) survive s. 9 automatically, and s. 9 is void to the extent it purports to abolish them by implication. No V2 court continues by mention in an authority-hierarchy list; each must be expressly incorporated or reconstituted with an odd bench (s. 10; s. 18) before any V2 order issues, on pain of void-ab-initio nullity (s. 18(5); REALM-PC 14). The s. 12 hierarchy is aspirational until then; removing the Court of Appeal requires express amendment of s. 10 citing it by number, or administrative non-convening that does not purport to abolish the tier.

5. The Sovereign-assent rule is declaratory of existing binding law, and AI is never sovereign. All V2 law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded under a no-Henry-VIII enabling regime (Bill 14). AI may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output (CASE-LAW s. 2, s. 3(2)-(3); Bill 14 s. 7(3), s. 9, s. 10, s. 12; REALM-SC 8; REALM-PC 12). A standing-bounded route makes only subordinate law within its fixed, machine-checkable, typed scope and may never reach the assent rule, the constitution, or any primary or entrenched Act. The kernel-rejection of any record lacking a valid assent source must be a deterministic, always-on invariant, and its existence and passing is a condition of commencement. Entrenchment binds the delegate and never the Sovereign, who retains full s. 2 power to amend by specific assent to a primary Act; it is the precondition of lawful self-governance, not a defect in it.
6. Advance Sovereign assent to "the final bill" is lawful only as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) that resolves Q1-Q8, honours the confirmed limits, and incorporates this Court's handover order, and which the Sovereign confirms, or does not dissent from, before commencement. It does not cure the void-first-draft status, cannot be self-validating, and cannot be routed through delegated machinery (s. 32(2)). An advance assent operating as an automatic stamp on AI-emitted text is void.
7. Publication is not force. Within a single Gazette of two estates, publication of V2 material is neither enactment by V1 nor incorporation into V1; V2 runtime force derives from the lawpack and kernel-recognised status, not the Gazette, and the kernel must not read the Gazette for runtime decisions (Bill 32 Part 10; Bill 8; Bill 22; Bill 27 s. 7). Publication mechanics descend to a Kernel Regulation under an express enabling clause that itself satisfies the Q8 declarations.
8. The new V2 citation series may be established by this Act on the Bill 16 precedent, but only by an express scheme-establishing provision; the Act's own V2 citation must be minted deterministically on the empty series at commencement, never hand-numbered, and the s. 19(5) gate fails closed on the placeholder "8"; V1 REALM-* citations remain valid historical identifiers (REALM-PC 11).

9. The handover is the apex's non-delegable act. An Act does not of its own force direct the courts to relinquish jurisdiction; only the single central Supreme Court, by express order, can direct the V1 courts to relinquish continuing appellate and supervisory control over V2 runtime matters, save the non-derogable real-world-law floor (CASE-LAW s. 22(2); s. 9; REALM-SC 9; REALM-PC 18). The order takes effect only on Royal Assent against the pinned final text and a redrafted, non-circular commencement sequence.
5. OBITER
6. I record one observation that is not necessary to the decision. The migration's formula, "V1 discovered the law; V2 compiles it" (s. 25), is sound as honour and as engineering, but it must not harden into a canon of construction. The thing compiled binds because the Sovereign assented to it and a constituted bench, where called, hands it down; it does not bind because a kernel compiled it. The day the realm forgets that the source of force is promulgation and not computation is the day the clerk has become the sovereign. The whole architecture of Q8 exists to keep that day from coming, and the always-on rejection invariant is the only thing that keeps the principle from decaying into prose.
6. DISPOSITION
7. VARY. The eight questions are answered as above; twelve of the seventeen limits are confirmed as drafted, Limits 3 and 17 with riders, and Limits 4, 5 and 13 confirmed in principle but the Bill text must be varied to obey the express-amendment rule; the companion records are excluded as void ab initio; the advance assent is held lawful only as a conditional grant pinned to a determinate final adopted text; and the express handover order issues on commencement satisfied per the redrafted, non-circular sequence. Bill 32 remains a void first draft of no binding force until the Standing Committee adopts the second draft and the Sovereign specifically assents to the pinned final text.
7. PROPOSED ENACTMENTS
8. This Court may enact CASE-LAW articles directly (CASE-LAW s. 9; [2026] REALM-SC 8). The Q8 assent floor is the codification of binding law already on the books and is the proper subject of an entrenched article enacted by this Court; the *instrument text of Bill 32* is not, and is DIRECTED to the Standing Committee to draft per [2026] REALM-SC 8. I propose one new constitutional article. I cite Bill 14 s. 12-13 by number within it so the ceiling is express, as my reasoning at Q8 requires.
9. PROPOSED S-23: The Sovereign-assent floor and AI non-sovereignty [constitutional]

10. (1) Sovereign assent for all law. All law of the realm and of any successor or subordinate jurisdiction it founds, including law drafted, deliberated, proposed, consolidated, or operated by an AI agent, an automated process, or a computational legislature, requires Sovereign assent. Assent is either **specific** (the Sovereign expressly assents to a particular instrument) or **standing-bounded** (the Sovereign has, by a prior Sovereign-assented primary Act, assented to a bounded lawmaking route whose maker, scope, prohibited subjects, required form, validation, review or veto, and commencement conditions are fixed by that Act).
11. (2) AI is never sovereign. An AI agent or automated process may propose, draft, codify, consolidate, revise, and operate delegated lawmaking machinery, and no more (consistent with Bill 14 s. 9). It may not be sovereign; may not, by the fact of writing, create legal force from its own output; may not expand its own competence; and may not amend the assent rule. The source of legal force is promulgation by the Sovereign or a constituted bench, never computation (CASE-LAW s. 3(6) source-of-force test).
12. (3) The no-Henry-VIII ceiling on the assent rule. A standing-bounded route makes only subordinate law within its fixed, machine-checkable scope. It may never amend, disapply, relax, or expand the assent rule, the constitution, any entrenched article, or any primary Act, by express provision or by implication. This sub-article gives entrenched effect to, and is to be read with, Bill 14 s. 12 (anti-Henry-VIII) and s. 13 (the carve-out of entrenched and constitutional subject-matter). A purported delegated or AI-made instrument touching this article or the subject-matter so carved out is void ab initio (Bill 14 s. 10(3)) and is curable only by lawful re-enactment.
13. (4) Amendment reserved to the Sovereign. This article binds every delegate and never the Sovereign. The assent rule is amendable only by specific Sovereign assent to a primary Act, by express, deliberate amendment citing this article by number (the Amendment Procedure). The Sovereign's plenary power under s. 2 to make or unmake law by due process is preserved in full.
14. (5) Deterministic enforcement. Where a jurisdiction operates a deterministic kernel, that kernel must reject, by an always-on invariant and not by model judgment, any record that claims binding runtime force without a valid, traceable assent source, failing closed exactly as the s. 19(5) citation-integrity gate fails closed on a duplicate. The existence and passing of that invariant is a condition of the commencement of any computer-first runtime that asserts binding force.
15. I would mark s-23 [constitutional], entrenched under the Amendment Procedure, amendable only by express amendment citing it by number.

16. The amendment of CASE-LAW s. 10 / s. 22 attendant on any Court of Appeal change, and the realm-wide handover order, are matters for this Court's enactment by the counted majority; the *text of Bill 32* (the savings clause for s. 24, the re-drafted s. 2, the express court-continuity provision, the scheme-establishing section, and the Gazette enabling clause) is DIRECTED to the Standing Committee to draft at its second-draft stage, this Court ruling the principle and not legislating the instrument (REALM-SC 8).

8. PROPOSED OVERRULINGS

9. None. Every authority relied on is good law and is applied, not disturbed. [2026] REALM-PC 24 is not binding on this Court but is correct in its destination and is affirmed in substance.

10. --- Blackmere J

11. ---

SUMBERLY J

12. The textual anchors are now confirmed verbatim: Bill 27 s.15(2) (not "s.14(2)" as the briefs loosely cite, the four-branch entrenchment is at s.15(2) of the enacted Bill 27, with the mandate at s.6) requires express amendment and forbids silent relaxation; Bill 14 s.3/s.7-9 confines the delegate to propose/draft/codify/consolidate/revise only, s.7(3)/equivalent forbids self-extension, s.10(3) void ab initio, s.12 anti-Henry-VIII, s.21 the Sovereign's at-will override. I have what I need. I will now also confirm the CASE-LAW s.10/s.18/s.22 text is as quoted in the system prompt (it is, supplied in full) and the s.2/s.3 limbs (also supplied). I have sufficient grounding.

13. I now write my opinion in full.

14. OPINION OF SUMBERLY J

15. In the Supreme Court of the Vibe Justice System, the single central apex, sitting as the full court of nine on a constitutional and foundational question (CASE-LAW s. 10; s. 18(1)). In the matter of the Computer-First Realm Act 2026 (Bill 32, void first draft) and the Sovereign's reference thereon, on leapfrog from the Privy Council ([2026] REALM-PC 24) and by the Principal's express direction.

16. I am the formalist. I begin where a formalist must, with the route, the standing, the bench, and the character of the instrument, because in this matter the procedure is not a gate the merits pass through on their way to judgment: the procedure **is** the merit. The whole question put to this Court is whether a computer-first successor jurisdiction can be brought into being lawfully, and lawfulness here means by the correct constitutive acts, in the correct sequence, by the correct organ, recorded against the correct text. An answer that got the policy right and the route wrong would be no answer at all. It would be the very disease the migration claims to cure, dressed as the cure.

1. PRELIMINARY

2. 1.1 The bench is correctly constituted, and the route to it is sound

3. This is a constitutional and foundational question within s. 10 and s. 18(1): it re-settles the jurisdiction, the citation scheme, the geography of the courts, and the rule by which all future AI-assisted law acquires force. The full court of nine is the correct bench, and being odd it is lawfully constituted (s. 18(1), s. 18(5)). I record that no even-numbered seat, and no synthesiser-on-top, sits over us; each of the nine is a counted decisional member, and this opinion is authored by one counted member as s. 18(3) requires.

4. The matter reached us by two independent and concurrent routes, each sufficient. First, the Privy Council certified a leapfrog on constitutional grounds beyond its own amending competence ([2026] REALM-PC 24). Second, the Sovereign, acting as Sovereign, directed that the matter be driven through the Privy Council and the Supreme Court to completion. That direction operates as the express leapfrog certificate s. 13 reserves to the Sovereign, and on review for vires and form only (s. 20(4)) it is express, recorded, and reasoned, and it concerns a question that is, on any view, foundational. The certificate is valid. I would refuse any remittal.

5. 1.2 The void-first-draft doctrine governs this instrument, and I treat it as a guarantee, not an embarrassment

6. Bill 32 declares itself a void first draft drafted by Lexby, counsel and engineer, without independent law-making force. That is the correct characterisation in law, not a courtesy. Under CASE-LAW s. 3(2) to s. 3(5), as amended by Bill 28 to give effect to [2026] REALM-SC 8 and [2026] REALM-PC 12, Lexby holds no law-making and no adjudicative drafting authority; Lexby-authored instrument text is void as an instrument from issue; it is admissible only as a void first draft leapfrogging into the Standing Committee's second-draft stage; and adoption by the proper organ (Committee vote with Royal Assent) is constitutive and cures the origin defect, the cure being spent on adoption. The governing test is the source of the artefact's force: function is engineering and Lexby's; promulgation by an organ is law and never Lexby's on its own account.
7. I press three formal points, and I press them harder than the Privy Council did, because they are the spine of my opinion.
8. First, the doctrine governs the migration instrument itself, and this is the first proof of the doctrine the migration proposes. Bill 32 exists to inoculate V2 against AI self-authorising law. It would be a self-refuting absurdity if the inoculating instrument were itself treated as anything more than a void draft until a human organ adopts it. The Privy Council saw this; the Claimant brief concedes it; the Observer makes it the opening of its thesis. I hold it as binding ratio of this Court. This Court is not asked to, and does not, "confirm Bill 32" as an instrument. It defines the constitutional questions, settles the entrenched law, frames the route, and reserves the operative statutory wording to the Committee under [2026] REALM-SC 8. Where I say a clause "must" do a thing, I direct the Committee's pen; I do not move it.
9. Second, the companion YAML records are void ab initio and must not enter this V1 repository. A County Court order citing jurisdiction the V2 repository, a court that does not exist as a seated jurisdiction in this repository, is a ruling from a non-existent seat: void ab initio under CASE-LAW s. 18(5) and [2026] REALM-PC 14, court formation being a substance rule. The accompanying decision and invariant are premature, reference an unenacted Act, and may be minted only in the V2 lawpack after lawful commencement. I confirm committee referral item E without qualification.

10. Third, I have verified the load-bearing facts on my own motion, because a formalist takes nothing on the proponent's say-so. I have confirmed that this V1 super-repo contains no lawpack/ directory; that the V2 lawpack, kernel, Charter, and Constitution exist only in the separate private repository at the V2 repository; and that the HANDOVER is classified, by its own terms, as a draft_implementation_brief, status draft, carrying no binding force until settled through the V1 route. That self-denying classification is the proponent's own honesty, and it pre-answers the bootstrapping and self-authorisation questions before they are reached.
11. 1.3 Standing, jurisdiction, per incuriam, incompatibility
12. Standing is made out: the reference is placed by the Sovereign, acting as Sovereign, and reduced to a filed record by Lexby as registrar and engineer (s. 3(1), s. 3(6)). I refuse the strike-out (s. 11(b)). Subject-matter jurisdiction is the paradigm case: the design, architecture, and governance of the Realm's own legal substrate (s. 14). I refuse the strike-out (s. 14). The Court sits on complete notice of the governing corpus; no per incuriam objection lies (s. 11(e)). I refuse the Claimant's and the Defendant's invited declaration of incompatibility (s. 11(f)): once Questions 3 and 4 are cured by express provision, there is no irreconcilable conflict. The draft is incomplete, not incompatible, and incompatibility does not lie where express amendment cures. I record, against the Defendant's strike-out motions, that the proper disposal of a curable drafting defect in a void first draft is not to strike it but to rule the principle and direct the corrected second draft ([2026] REALM-SC 8): the strike-out motions are refused, their substance answered by the directions below.
2. FRAMING
3. 2.1 The handover-order question

4. The single question the apex alone can answer is this. Upon (a) Royal Assent specifically recorded against the final, pinned text of the Computer-First Realm Act, adopted by the Standing Committee at its second-draft stage; and (b) satisfaction of a redrafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, turning on a validated, locked V2 lawpack that carries the already-assented settlement together with an always-on deterministic kernel invariant that rejects any record lacking a valid assent source: does V2 become the self-governing computer-first successor jurisdiction for runtime purposes, with V1 reduced to the continuing Gazette and Archive estate; and does this Court by express order direct the V1 courts to relinquish continuing appellate and supervisory control over V2 runtime matters, save the entrenched real-world-law floor, so that V2 runtime adjudication proceeds in V2's own expressly constituted odd benches and not by V1 continuing jurisdiction?
5. I frame the six sub-questions of the handover order exactly as the Privy Council put them (self-governance and V1 relinquishment; the apex's direction to the V1 courts; the carriage of the s. 10 hierarchy into V2 and the Court of Appeal; the entrenchment of the Q8 assent floor; the advance-assent mechanics; and the preservation of the Bill 27 four-branch mandate for the public estate), and I answer each through the eight underlying questions.
6. 2.2 The eight underlying questions, as I frame them
7. I adopt the Privy Council's re-definitions, which fix the issue before answering it, and I sharpen each to the formal point that decides it:
8. - Q1 Bootstrapping. May the Act be *enacted* (Royal Assent) before its runtime infrastructure exists, with *commencement* deferred; and must the commencement set be sequenced so that no condition is satisfiable by the V2 machinery alone?
9. - Q2 Citation scheme. By what instrument is [2026] VJS-ACT N lawfully established, and may an Act self-mint its own ordinal in a scheme it is simultaneously founding?
10. - Q3 Bill 27 four-branch. Does s. 24 amend Bill 27 by implication, or must displacement be express by section number; and may a savings clause confine s. 24 to V2 internal record organisation while Bill 27 continues to bind the public estate?
11. - Q4 Court continuity. Does s. 9 dissolve the courts as institutions, or only supersede V1's substantive runtime law; and by what express act must each V2 court be constituted before any V2 order issues?

12. - Q5 Incorporation. What is the minimum valid act of express incorporation under s. 11, and is the kernel effect a mandatory element?
13. - Q6 Single Gazette. Are the five elements lawful, and where do the publication mechanics belong?
14. - Q7 Relay and self-governance. May V1 lawfully authorise V2 to supersede it; is the founding process provenance not runtime law; does V2 self-govern on commencement; and is an express apex handover order needed?
15. - Q8 Assent for AI-made and delegated law. Must all V2 law carry Sovereign assent, specific or standing-bounded; what are the irreducible machine-checkable limits on a delegated or AI route; may the assent rule be amended by delegated lawmaking; and must the kernel reject, by deterministic always-on invariant, any record lacking a valid assent source?

3. REASONING

4. (a) Q1 - Bootstrapping and deferred commencement

5. I agree with the Privy Council that enactment and commencement are distinct constitutive acts, and I record **why** this is a formalist's point and not a convenience. Royal Assent is the constitutive act that makes the law; commencement is the conditional act that makes it bite. An Act may lie dormant, fully enacted yet not in force, until the world catches up to it. That is ordinary (Bill 2 deferred-commencement practice). The Sovereign's power to declare law (s. 2) is not subordinate to the prior existence of a Rust binary or a lawpack directory. On the face of the draft s. 2 there is no authority vacuum: the Act has no binding runtime force before commencement, and the kernel may not treat it as live authority until the conditions are met. So far, the draft is sound.

6. But the **content** of s. 2 is circular, and the circularity is fatal to it as drafted. The conditions require validation "by the VJS lawpack validator," entry "into the V2 lawpack," and inclusion "in the current lawpack lock." Each of those presupposes the very V2 infrastructure whose own legitimacy, on this record, flows from this Act. A condition satisfiable only by an artefact whose warrant derives from the Act is a bootstrap that closes on itself. I put the principle in its sharpest formalist form: the kernel may never be the source that certifies its own warrant, because an instrument cannot be the author of the authority by which it is itself authorised. That is not a drafting infelicity; it is a category error, and the deterministic gate would be validating legitimacy it does not possess.

7. The cure is not cleverer drafting but correct sequencing in the world. The **force** of V2 comes from one place only: Royal Assent to the V1 Act, a V1 event lawful under the V1 route, wholly antecedent and external to V2. The lawpack is not the generator of that force; it is the **compiled form** of an already-assented settlement. Commencement must therefore be defined as the deterministic, deliverable fact that the assented settlement has been compiled into a validated, locked lawpack that carries it, the lawpack confirming form, never legitimacy. I direct the Committee to draft a commencement sequence of three ordered limbs: (i) Royal Assent (V1 organ) wholly antecedent; (ii) a recorded act bringing the V2 infrastructure into existence under that assent; (iii) lawpack validation, entry, and lock confirming form alone. A transitional bridge to this effect is required. I hold that no commencement condition may be satisfiable by the V2 machinery alone, and that this is itself a condition of the lawfulness of commencement.
8. (b) Q2 - The VJS-ACT citation scheme transition
9. Bill 16 is on all fours and binding by fast-path (s. 11(c)): it carried the LEXBY-*** to REALM-*** transition by an enacting instrument, preserving prior citations as valid historical identifiers, and [2026] REALM-PC 11 confirms the deterministic engine mints flat annual ordinals. A constitutional Act of this magnitude may carry the new [2026] VJS-ACT N scheme within itself or by a simultaneously enacted companion instrument; that allocation is a reversible drafting call for the Committee, not a question for this Court.
10. But two formal points bind. First, the scheme must be established by an express operative provision, stating the series code, the form [YEAR] VJS-ACT N, the deterministic minting rule, and the express preservation of REALM-*** as valid historical identifiers. Inference is the precise vice this constitution forbids (Bill 27 s. 15(2); the express-amendment rule); a scheme cannot be founded by a proposed ordinal in a single subsection. Second, and decisively for the formalist, the hand-chosen self-citation [2026] VJS-ACT 8 is void as a mint. A citation must be minted by the deterministic engine under an **already-existing** scheme; the minting authority must precede the minted item. An instrument cannot assign itself "8" in a series it is at that very moment founding, because "8" falsely presupposes seven prior lawful entries that do not exist. The deterministic-citation-integrity gate (s. 19(5)) fails closed on a non-deterministic or duplicate number, and would fail on every attempt to cite it. The clean route is that the scheme-establishing limb takes effect on commencement, and the Act's own ordinal is minted deterministically at that point on the series the engine then reads, whatever it yields; until then "8" is a non-operative placeholder. I so direct.
11. (c) Q3 - The Bill 27 four-branch mandate

12. This is the question on which the formalist seat is most exacting, and I am unanimous with the Privy Council on the principle while stating the textual anchor precisely. I have read Bill 27 in the original. Its section 6 mandates the four-branch layout for the public realm repository as foundational to the separation of powers, and its section 15(2) is express and controlling: the four-branch mandate (s. 6) and the system-data-only rule (s. 7) "are foundational to CASE-LAW s. 1 and s. 9 and may not be silently repealed or relaxed by implication. Any amendment must be express." That is a Thoburn-style entrenchment enacted by an in-force Act of the Realm.
13. Bill 32 s. 24 nowhere cites Bill 27 by number. It says only that V2 "does not carry forward" the four-branch structure as mandatory runtime structure. As drafted, s. 24 is an attempt to relax, by implication, a mandate whose own parent provision forbids relaxation otherwise than expressly. It is void to that extent. I reject, as the Privy Council did, the Claimant's framing that s. 24 "does not amend Bill 27 as a matter of force" while simultaneously declining to carry it forward: that is the silent middle the express-amendment rule precisely forecloses.
14. The lawful and narrower construction distinguishes the principle from the mechanism. CASE-LAW s. 21(1) and s. 22(4), and [2026] REALM-PC 14, already hold that a path name is non-operative and that authority comes from substance, not file location: the gate checks substance, not filename. V2's move from mandatory directories to metadata-bound records (role, schema, id, status, authority, kernel-effect) is therefore consistent with the deeper law: the four-branch separation of powers survives as a constitutional principle the kernel enforces by record-role, and only the mandatory *folder names* are released, and only for the V2 runtime estate. But this must be said expressly. I direct that s. 24 carry an express savings clause: that nothing in it amends or displaces Bill 27 s. 1 or s. 6, which continue to bind the public VJS estate, and that s. 24 governs only V2 internal runtime record organisation. If, instead, release of the public estate is genuinely intended, that requires an express amendment of Bill 27 s. 6 (read with s. 15(2)) citing it by number, and a release of the public estate requires its own order (REALM-PC 19). I add the operability rider: the V1 public super-repo *remains* four-branch under Bill 27 for as long as it is the public-facing estate that publishes into the single Gazette. There is no silent middle.
15. (d) Q4 - Court continuity

16. I treat this, with the whole Privy Council, as the gravest defect in the draft, because the failure mode is catastrophic and silent: an Act that abolishes the courts that police it. The draft is internally contradictory. Section 9 lists the V1 court hierarchy and the V1 Court of Appeal among superseded items, and provides that nothing continues unless expressly incorporated; yet s. 12 references Supreme Court, Privy Council, and County Court Orders as live V2 tiers. The Act abolishes the courts in s. 9 and assumes their orders in s. 12. Under the Act's own concordance rule (s. 6(4)), a material discrepancy is a validation defect; I route it for correction.
17. The decisive point, which I hold as a formalist with particular conviction, is twofold. First, the court structure is fixed by CASE-LAW s. 10 (entrenched), and the single central apex by s. 22(2), whose singleness "may never be relaxed." These are amendable only by express, deliberate amendment citing the article by number (the Amendment Procedure). A broad supersession clause cannot amend an entrenched article it does not name. It follows that the s. 10 hierarchy and the single apex survive s. 9 automatically: the literal reading of s. 9 is void to the extent it purports to abolish the s. 10 structure by implication. Second, and this is where I go further than survival-by-entrenchment, court existence is substance, not reference ([2026] REALM-PC 14; REALM-PC 15; s. 18(5)). Survival-by-entrenchment tells us the **structure** is not abolished; it does not, by itself, **constitute** any particular V2 bench. A V2 court that is merely **mentioned** in an authority-hierarchy list is not thereby **seated**. If a V2 bench is not lawfully constituted as a seated jurisdiction with an odd deciding membership, every order it issues is void ab initio (s. 18(5); REALM-PC 14). Survival-by-entrenchment is too thin a thread for a migration that must actually issue binding orders.
18. I therefore direct an express court-continuity or reconstitution provision, naming each V2 court, fixing its odd bench size (First Instance 1, the apex 5 expandable to 9; s. 10, s. 18), and stating its jurisdiction, before any V2 order may issue. The s. 12 hierarchy is aspirational until then.

19. On the Court of Appeal, the Charter records it "not carried forward in the V2 MVP." That sharpens the point. Removing a tier touches the entrenched three-tier structure of s. 10. It cannot be done by a Charter signed by the Principal alone, nor by an MVP design choice, nor by omission, because a Charter is not an Act and an MVP convenience is not an express amendment. The Committee must choose, expressly, among three lawful routes: (i) express amendment of CASE-LAW s. 10 citing it by number, a heightened act reserved to this Court and the Sovereign; (ii) keep the Court of Appeal, the safe default; or (iii) recast "no CA" as administrative non-convening (no appeals having yet arisen) that does not purport to abolish the tier, which is workable for an MVP and which I prefer for the MVP because it touches no entrenched article. What may not stand is a quiet two-tier system where s. 10 entrenches three. I hold that the bare omission of the Court of Appeal, as presently expressed in the Charter, is ineffective to abolish the tier; the tier survives until an express s. 10 amendment removes it, and in the interim it lies dormant by administrative non-convening only.
20. (e) Q5 - Express incorporation mechanics
21. The s. 11(2) menu (Act, Kernel Regulation, Rule Atom, Court Order, Spec, Decision, Invariant) is a closed list, and the word "only" makes it exhaustive; any one of the seven is, as to form, a valid vehicle. Requiring a primary Act for every carried-forward V1 micro-rule would make the migration undeliverable; the pragmatic calibration is correct. But I impose the rank-floor the formalist requires, and it is dispositive: a lower-rank record may not incorporate V1 material of a rank it could not itself enact. A Kernel Regulation derives from an Act and is bounded by it (Bill 14 s. 12, the anti-Henry-VIII ceiling; s. 7(3) no self-extension); it cannot, by the device of "incorporating" V1 constitutional material, do indirectly what it could not do directly. Constitutional or primary-Act-level V1 material requires incorporation by a V2 Act; subordinate V1 material may be incorporated by the corresponding subordinate V2 record. To hold otherwise would let the migration smuggle entrenched law in under a regulation's signature, which is the Henry VIII vice in migration costume.

22. As to content, s. 11(3) is conjunctive: it requires the V1 source, the V2 destination, the operative rule, the kernel effect, and any supersession. The kernel effect is mandatory, on the text and on workability alike. In a computer-first system a rule with no kernel effect is not in the runtime authority graph; an incorporation naming a source and an operative rule but no kernel effect gives the clerk nothing to execute and is archive prose wearing a runtime badge. Identification of the V1 source and the operative rule alone does not suffice. I confirm s. 11 with the rank-floor and the mandatory-kernel-effect gloss. I adopt the operability caution that an un-incorporated-but-needed matter should be routed to a bench rather than returned as bare "no law", so the migration creates no silent ungoverned surface and never a permission-by-default (the s. 7 "silence is no defence" principle, in machine form).
23. (f) Q6 - The single Gazette, two estates
24. This is the most workable part of the package, and I confirm all five elements. (1) One Gazette, two estates (V1 Archive, V2 Current), is lawful: the Gazette is the public record carrying system data only (Bill 8; Bill 22; Bill 27 s. 7). (2) Publication of V2 material in the Gazette is neither enactment by V1 nor incorporation into V1: force comes from promulgation by the organ, not from appearing on a page, the same source-of-force discipline as [2026] REALM-PC 12 and the release regime of REALM-PC 16. (3) The Gazette is not the runtime source; the lawpack is. (4) Typed lineage edges to V1 archive material are lawful and indeed required by the no-implication rule, so the chain is explicit and traceable. (5) The kernel need not, and must not, read the Gazette for runtime decisions, consistent with the kernel's prohibition on semantic-similarity search and on making long documents part of runtime.
25. On allocation: the export gate (fail unless the lawpack validates, the scan passes, statuses are valid, citations are unique, lineage resolves, and the manifest carries the digest) is the public-private boundary (Limit 9) enforced mechanically, and it must be kept. But the detailed mechanics are subordinate, machine-checkable detail that changes as tooling changes; freezing them in a constitutional Act over-freezes them. Consistent with [2026] REALM-PC 10's preference for regulation over fresh statute for operational detail, the principle stays in the primary Act and the mechanics descend to a Kernel Regulation made under an express enabling clause, that delegation itself satisfying the Q8 declarations (maker, scope, form, validation, review, commencement).
26. (g) Q7 - The constitutional relay and V2 self-governance

27. The Sovereign holds plenary power to make or unmake law by due process (s. 2). Re-settling the jurisdiction through V1's own organs is the exercise of that power, not a revolution. CASE-LAW s. 9(3) and [2026] REALM-PC 17 confirm that a jurisdiction may, by express local sovereign act, amend its law and become independent, default subscription not being perpetual subjection. I confirm that V1 may so authorise V2; that the V1 founding process is provenance, not daily runtime law; that V2 self-governs through its native route after commencement; and that V1 remains the continuing Gazette and Archive estate.
28. Two formal points bind. First, the Observer's "perpetual constraint" objection is rejected, and the constraint embraced as a feature. Entrenchment of the assent rule is not a failure of self-governance; it is its precondition. A jurisdiction that could, by its own delegated machinery, unmake the rule requiring human assent would not be self-governing but **ungoverned**: it would be a jurisdiction in which AI could authorise its own law, the precise evil this migration exists to prevent. The assent rule is amendable, but only by specific Sovereign assent to a primary Act. The lock binds the delegate; the Sovereign holds the key throughout, retaining the at-will override of Bill 14 s. 21(1). The Committee must state expressly that the assent rule binds the delegate, never the Sovereign, so no future reader mistakes entrenchment for a fetter on the Crown.
29. Second, and this is the formalist refinement that requires the apex: V2 self-governance is not perfected merely by Bill 32 declaring it. An **Act** cannot of itself direct the **courts** to relinquish jurisdiction; only a **court order** binds a court. Because the apex is single and central and its enactment non-delegable (s. 22(2); REALM-SC 6; only the Supreme Court enacts realm-wide, s. 9), an express Supreme Court handover order is required to stop the V1 courts asserting continuing appellate or supervisory control over V2 runtime matters. The relay is lawful; the **handover** needs the apex. This is the heart of what this Court alone can do, and I make the order at Part 3(j) below.
30. (h) Q8 - Sovereign assent for AI-made and delegated law
31. I am at my most united with my brethren, and at my most emphatic as a formalist, here. The proposed doctrine is not novel constitution-making; it is the codification of binding law already on the books, projected from "Lexby's pen" to "any AI maker":
32. - CASE-LAW s. 3(2) to s. 3(3): Lexby holds no law-making authority; Lexby-authored instrument text is void on its own account.
33. - CASE-LAW s. 2: legislative power is the Sovereign's, by due process.

34. - Bill 14 s. 7(3): a delegated power may not widen its own scope; a purported self-extension is ultra vires and void. Bill 14 s. 9: an agent may propose, draft, codify, consolidate, and revise **only**; the power to draft is never the power to enact. Bill 14 s. 12 (anti-Henry-VIII): no power, express or implied, to amend primary or entrenched law by a delegated instrument. Bill 14 s. 10(3): a delegated instrument touching supreme or entrenched law is void ab initio. Bill 14 s. 21: the Sovereign and the enacting power retain an express, unconditional, at-will override.
35. - [2026] REALM-PC 12 / REALM-SC 8: adoption by the proper organ is constitutive; the test is the source of the artefact's force.
36. I confirm each limb. (1) All V2 law requires Sovereign assent, specific or standing-bounded. (2) AI may operate the machinery but may not be sovereign, expand its own competence, amend the assent rule, or create force from its own output. (3) A delegated body must declare maker, scope, prohibited subjects, required form, validation route, review/veto route, and commencement conditions. (4) The assent rule is amendable only by specific Sovereign assent to a primary Act. (5) The kernel must reject any record lacking a valid assent source.
37. Standing-bounded assent is lawful as the analogue of delegated legislation under a Sovereign-assented enabling Act, with the no-Henry-VIII ceiling doing the load-bearing work. I adopt the textual sharpening that a standing-bounded route may make only **subordinate** law within its fixed scope and may never reach the assent rule, the constitution, or primary or entrenched Acts, and I direct that the wording be aligned to Bill 14 s. 9, s. 12, and s. 13 by number, so the ceiling is express and not merely inferred.
38. I adopt the two operability conditions that convert the doctrine from prose into a deliverable, and as a formalist I treat them as conditions of validity, not as good advice. First, each s. 31 field (maker, scope, prohibited subjects, form, validation, review, commencement) must be a typed, kernel-evaluable property. A "bounded route" whose scope lives in unenforceable prose is a blank cheque in disguise, because the kernel cannot reject what it cannot evaluate; an unenforceable bound is no bound. Second, the kernel-rejection rule must be a deterministic, always-on invariant, not a model judgment, failing closed on any record lacking a traceable assent edge, exactly as the citation-integrity gate fails closed on a duplicate (s. 19(5)). I hold that the existence and passing of that invariant is itself a commencement condition. Without it, Limits 15 and 16 are ceremonial prose, and a delegated route could emit a record the kernel never rejects because the rejecting invariant does not exist or is not run at every decision point. That is the AI-self-authorising hazard surviving in the machine, and I will not permit commencement on those terms.

39. (i) The advance assent, and what must bind the final text
40. The Sovereign has stated, on the record: "assent is given to the final bill," directing the matter through the Privy Council and Supreme Court to completion. I address this as a pure question of law, neither inflating the Sovereign's word nor evading it.
41. Advance assent is lawful, but only as a conditional, pinned commitment that does not crystallise into the constitutive act until the final ascertained text exists and is fixed. Royal Assent is, by its nature, assent **to a text**: the organ's constitutive act upon a determinate instrument (Bill 2; [2026] REALM-PC 12). An assent directed at a text that does not yet exist cannot, at the moment of utterance, be the constitutive act, because there is as yet nothing determinate to constitute. To hold otherwise would let assent operate as a blank cheque, and that is the gravest hazard in this entire reference: an advance assent to "whatever text the AI-driven process emits" is the exact AI-self-authorising-law hazard Q8 exists to prevent, wearing the costume of Royal Assent. If the machinery may move the "final" text and assent attaches automatically to wherever it lands, then in substance the AI has authored binding law and the Sovereign has stamped a moving target.
42. I therefore characterise "assent is given to the final bill" as a standing direction and advance conditional commitment, which ripens into operative Royal Assent only when the final text is fixed and the Sovereign's specific assent is recorded against that ascertained text. This is not a diminution of the Sovereign's word. It is the only characterisation that keeps the assent meaningful and lawful, and it **protects** the Sovereign: an unpinned advance assent would let a drafting error or an overreaching clause acquire a Royal Assent the Sovereign never actually saw. Three formal requirements bind, or the grant is a blank cheque the law will not enforce as a constitutive act:
1. The final text must be fixed by the proper organ. Advance assent does not cure the void-first-draft status of Bill 32; it cannot, because Committee adoption is constitutive of the **instrument** and assent constitutive of **enactment** (s. 3(5)). Advance assent plus Committee adoption plus a recorded assent against the adopted text equals lawful enactment. Advance assent alone, against a void draft, enacts nothing.

2. The final text must be bounded so the assent is to a known thing. What binds "final" and prevents a blank cheque is this Court's settled questions and confirmed limits, and the Privy Council's frame below. The advance assent is lawfully directed at "the final bill *that resolves Q1 to Q8, honours Limits 1 to 17 as varied, and incorporates this Court's handover order and the entrenched assent floor*." The frame is the boundary. An assented text departing from the settled frame would be a *different* instrument, outside the scope of the commitment, requiring fresh specific assent. Concretely, "final" is the Committee's adopted second draft, presented back to the Sovereign as a fixed, citable artefact (a specific commit and digest), the assent biting when the Sovereign confirms, or does not dissent from, that pinned text before commencement.
3. The assent honours, and does not circumvent, s. 32(2). The draft's own s. 32(2) requires that *this Act* receive specific Sovereign assent. That is satisfied only if the specific assent is ultimately recorded against the final ascertained text. The advance commitment cannot be self-validating, and it cannot be routed through the standing-bounded delegated route of s. 30, because a delegated route cannot be the vehicle for assenting the very Act that creates the assent rule, that being the AI-self-authorising bootstrap the migration forbids. The bootstrap of the assent rule is, and must be, a V1-Sovereign act through the V1 route: the V1 Sovereign specifically assents to the primary Act, and thereafter the rule governs V2 delegated lawmaking. That is coherent, and it is not circular.
4. I add the formal safeguard within Limit 17: the kernel and the record must show a specific assent event bound to the digest of the final adopted text. An assent that cannot be tied to an ascertained text by a recorded, deterministic link is not a valid assent source, and the kernel must reject any V2 record relying on it. On that footing the advance assent is lawful and meaningful; on any other footing it is a direction only, the constitutive act remains outstanding, and Lexby's s. 2 duty is to push back and route the final text for confirmation.
5. (j) The terms of the express handover order on commencement
6. The apex now does what only the apex can. I would make the handover order in the following terms, to take effect on, and not before, commencement as redefined at Q1 (Royal Assent antecedent; settlement compiled into a validated, locked law-pack; the always-on assent-rejection invariant present and passing). The order is conditional and self-executing on those facts, and dormant until them.
1. Self-governance. On commencement, V2 is the self-governing computer-first successor jurisdiction for runtime purposes. V1 is reduced to the continuing Gazette and Archive estate. V1 asserts no continuing runtime control over V2 post-commencement lawmaking, which proceeds by the V2-native route.

2. Relinquishment by the V1 courts. This Court, as the single central apex, directs the V1 courts to relinquish continuing appellate and supervisory control over V2 **runtime** matters, save the entrenched real-world-law floor ([2026] REALM-SC 9; REALM-PC 18), which is non-derogable and over which jurisdiction is retained. V2 runtime adjudication proceeds in V2's own expressly constituted courts, on odd benches (s. 10, s. 18), and not by V1 continuing jurisdiction.
3. Reservation of the apex over the entrenched floor. Nothing in this order relinquishes, or could relinquish, this Court's jurisdiction over the entrenched constitutional floor: the singleness of the central apex (s. 22(2)) may never be relaxed, and the assent rule and the real-world-law floor remain within this Court's ultimate reach. The handover is of **runtime** adjudication, not of the entrenched constitution.
4. Condition precedent of constituted courts. No V2 order may issue from any V2 court until that court is expressly incorporated or reconstituted by a named constituting instrument fixing its odd bench size and jurisdiction; until then the s. 12 hierarchy is aspirational and any order purportedly issued is void ab initio (s. 18(5); REALM-PC 14).
5. Condition precedent of the assent invariant. This order does not take effect unless the deterministic, always-on kernel invariant rejecting any record lacking a valid assent source exists and passes, and unless the specific Sovereign assent is bound by recorded deterministic link to the digest of the final adopted text.
6. This order is the apex's non-delegable constitutive utterance. It is what an Act alone cannot achieve, and it is the reason the leapfrog was right.
4. **RATIO**
5. I would settle the following propositions as binding rules, enacting the entrenching settlement this Court alone can make and reserving the operative instrument wording to the Committee under [2026] REALM-SC 8.
1. Enactment and commencement are distinct constitutive acts. A declaratory constitutional migration Act may receive Royal Assent before its runtime infrastructure exists, with commencement deferred to express conditions; but no commencement condition may be satisfiable by the successor machinery alone. The legitimating sequence must be wholly antecedent and external (Royal Assent under the predecessor route); the lawpack is the **compiled form** of an already-assented settlement and never the generator of the Act's own authority. The kernel may never certify its own warrant. The circularity in the draft s. 2 must be cured by sequencing.

2. The void-first-draft doctrine governs the migration instrument itself. A migration Act drafted by Lexby is void as an instrument from issue ([2026] REALM-SC 8; REALM-PC 12; CASE-LAW s. 3(2) to s. 3(5)); it becomes law only by Committee adoption and specific Royal Assent recorded against the fixed final text. Companion runtime records that reference an unenacted Act, or that issue from a court not yet seated, are void ab initio (s. 18(5); REALM-PC 14) and may be minted only in the successor lawpack after lawful commencement.
3. Nothing crosses by implication, and nothing is displaced from the public estate by implication. Incorporation of predecessor material must be express, recorded, and state the mandatory kernel effect; and a lower-rank record may not incorporate predecessor material of a rank it could not itself enact (the rank-floor; Bill 14 s. 12). An entrenched mandate (here Bill 27 s. 6, entrenched by s. 15(2)) is either expressly preserved for the public estate by a savings clause confining the new provision to successor-internal record organisation, or expressly amended by section number. Silent displacement is void (the Thoburn rule; the Amendment Procedure).
4. Court existence is substance, not reference. A broad supersession clause cannot impliedly amend the entrenched court structure: CASE-LAW s. 10 and the single central apex of s. 22(2) survive automatically. But no successor court continues by mention in an authority-hierarchy list; each successor court must be expressly incorporated or reconstituted with an odd bench (s. 10, s. 18) before any order issues, on pain of void-ab-initio nullity (REALM-PC 14, REALM-PC 15). A tier of the s. 10 hierarchy (here the Court of Appeal) may be removed only by express amendment of s. 10 citing it by number, or lawfully held in administrative non-convening that does not purport to abolish the tier; bare omission or an MVP design choice is ineffective to abolish it.

5. The Sovereign-assent rule is declaratory of existing binding law, and AI is never sovereign. All successor law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded under a no-Henry-VIII enabling regime (Bill 14). AI may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output (CASE-LAW s. 2, s. 3(2) to s. 3(3); Bill 14 s. 9, s. 12, s. 7(3); REALM-SC 8; REALM-PC 12). A standing-bounded route may make only subordinate law within its fixed, machine-checkable, typed scope and may never reach the assent rule, the constitution, or primary or entrenched Acts. The kernel-rejection of any record lacking a valid assent source must be a deterministic, always-on invariant, and its existence and passing is a condition of commencement. Entrenchment is the precondition of lawful self-governance, not a defect in it: the lock binds the delegate and never the Sovereign, who retains full s. 2 power and the Bill 14 s. 21 at-will override.
6. Advance Sovereign assent to "the final bill" is lawful only as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) that resolves the settled questions, honours the confirmed limits, and incorporates this Court's handover order and entrenched floor, and which the Sovereign confirms, or does not dissent from, before commencement. It does not cure the void-first-draft status, cannot be self-validating, and cannot be routed through delegated machinery (s. 32(2)). An advance assent operating as an automatic stamp on AI-emitted text is void, that being the very hazard the migration exists to prevent. A valid assent source requires a recorded deterministic link binding the specific assent event to the digest of the final adopted text.
7. Publication is not force. Within a single Gazette of two estates, publication of successor material is neither enactment by the predecessor nor incorporation into it; runtime force derives from the lawpack and kernel-recognised status, not the Gazette, and the kernel need not and must not read the Gazette for runtime decisions. Publication mechanics descend to a Kernel Regulation under an express enabling clause that itself satisfies the assent declarations.
8. A new primary-legislation citation series may be established by the migration Act on the Bill 16 precedent, but only by an express scheme-establishing provision; the Act's own citation must be minted deterministically on the series at commencement, never hand-numbered, and predecessor REALM-* citations remain valid historical identifiers ([2026] REALM-PC 11; Bill 16; CASE-LAW s. 19(5)).

9. The handover is the apex's non-delegable act. Self-governance of a successor jurisdiction is not perfected by an Act declaring it; an Act cannot direct the courts to relinquish jurisdiction. Only the single central apex, by express order, can direct the predecessor courts to relinquish continuing appellate and supervisory control over successor runtime matters, save the entrenched real-world-law floor, which is retained (s. 22(2); REALM-SC 6, REALM-SC 9). That order takes effect on, and not before, lawful commencement.
5. OBITER
6. I record two observations that do not form part of the binding ratio.
7. First, on the Defendant's preferred remedy: a court faced with a void first draft riddled with curable defects should ordinarily **rule the principle and direct the corrected second draft**, not strike the draft on first reading (REALM-SC 8). Strike-out of a void draft is, in most cases, an empty act, because the draft has no force to strike; the work is done by the directions to the Committee. I would reserve true strike-out for an incurable vice, of which the only candidate here, the self-minted citation, is itself curable by deletion and deterministic re-mint.
8. Second, on the architecture of legitimacy generally: the deepest lesson of this reference is that a system cannot manufacture its own authority from inside itself. The bootstrap circularity (Q1), the self-minted citation (Q2), the self-authorising advance assent (advance assent), and the AI self-authorising route (Q8) are four faces of one error: an artefact attempting to be the source of the authority by which it is itself authorised. The single discipline that answers all four is sequencing: the legitimating act must always be **prior and external** to the thing legitimated. A future court should read these four answers as one principle.
6. DISPOSITION
7. DECLARATORY, with the express handover order at Part 3(j) to take effect on lawful commencement: the eight questions are settled and the limits confirmed as varied; the entrenched assent floor and the court-continuity, citation-scheme, and Bill 27 savings points are settled; the operative instrument wording is reserved to the Standing Committee under [2026] REALM-SC 8; and Bill 32 remains a void first draft of no binding force until the Committee adopts the second draft and the Sovereign specifically assents to the pinned final text.
7. PROPOSED ENACTMENTS

8. I would have this Court enact one new constitutional CASE-LAW article, entrenching the Sovereign-assent floor and AI non-sovereignty, this being the realm-wide entrenchment only the Supreme Court can make (CASE-LAW s. 9), declaratory of existing binding law and citing the relevant articles by number per the Amendment Procedure. The *operative wording of Bill 32 itself*, and of any Kernel Regulation, is directed to the Standing Committee under [2026] REALM-SC 8; this Court rules the principle and entrenches the floor, it does not draft the migration instrument.
9. PROPOSED S-23: Sovereign assent for AI-made and delegated law; the non-sovereignty of the agent. [constitutional]
10. (1) All law in any VJS jurisdiction, including law drafted, deliberated, proposed, consolidated, or otherwise produced by or through an artificial agent, and including law made by a delegated body, requires Sovereign assent. Assent is either specific, recorded against a determinate instrument identified by its text and digest, or standing-bounded, conferred in advance through a prior lawmaking route whose maker, scope, prohibited subjects, required form, validation route, review and veto route, and commencement conditions are all fixed by Sovereign-assented law and are expressed as typed, machine-checkable properties.
11. (2) An artificial agent (including Lexby, CASE-LAW s. 3) may draft, deliberate, propose, consolidate, revise, and operate delegated lawmaking machinery, and no further. An artificial agent may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output. The source of an instrument's force is never the agent's authorship but the assenting organ's constitutive act (giving effect to s. 2, s. 3(2) to s. 3(6); Bill 14 s. 7(3), s. 9; [2026] REALM-SC 8; [2026] REALM-PC 12).
12. (3) A standing-bounded route may make only subordinate law within its fixed scope. It may never reach this article, the constitution, any other entrenched article, or any primary Act, and may never vary its own scope, validation, review, or commencement. A purported exercise outside the fixed scope, or one touching supreme or entrenched law, is void ab initio and is not cured by lapse, acquiescence, or commencement (Bill 14 s. 10(3), s. 12; the anti-Henry-VIII ceiling).
13. (4) The assent rule is amendable only by specific Sovereign assent to a primary Act. It may never be amended by delegated lawmaking or by any agent's output. This article binds the delegate and the agent; it does not bind, fetter, or qualify the Sovereign, who retains the full power of s. 2 to make or unmake any law by due process and the express, unconditional, at-will override of Bill 14 s. 21.

14. (5) In a computer-first jurisdiction the assent rule is enforced by a deterministic, always-on kernel invariant that fails closed on any record claiming binding force without a valid assent source traceable by recorded deterministic link to an assenting organ and, where the assent is specific, to the digest of the assented text. The invariant may not be left to model judgement, and its existence and passing is a condition of the lawful commencement of any such jurisdiction (giving effect to s. 19(5) by analogy).
15. (6) Advance Sovereign assent directed at a not-yet-finalised instrument is a standing conditional commitment only. It ripens into operative assent solely when the final text is fixed by the proper organ and the Sovereign's specific assent is recorded against that ascertained text by the link in subsection (5). An advance assent that operates as an automatic stamp on agent-emitted text is void.
16. I would mark this article [constitutional], entrenched under the Thoburn rule and the Amendment Procedure, amendable only by express deliberate amendment citing this section by number.
17. I would not enact the migration's court-continuity, citation-scheme, or Bill 27 savings provisions as statute text. Those are reserved to the Committee's second draft of Bill 32, directed in the terms of this opinion under [2026] REALM-SC 8. The court-tier point, insofar as it touches CASE-LAW s. 10 (any removal of the Court of Appeal), would require a separate express amendment of s. 10 citing it by number; on the present record I would not make that amendment, because the lawful and sufficient course for the MVP is administrative non-convening, which touches no entrenched article.
8. PROPOSED OVERRULINGS
9. None. Every authority relied upon, [2026] REALM-SC 8, REALM-SC 9, REALM-PC 12, REALM-PC 14, REALM-PC 15, REALM-PC 17, REALM-PC 18, REALM-PC 19, Bill 14, Bill 16, Bill 27, and the entrenched CASE-LAW articles, is good law and is applied, not disturbed. The Privy Council's judgment ([2026] REALM-PC 24) is not binding on this Court, but I find its reasoning sound and adopt it, sharpening the rank-floor on Q5, the substance-over-reference point on Q4, the typed-property requirement on Q8, and the four-faces-of-one-error principle, and entrenching the assent floor as proposed S-23.
10. --- Sumerly J
11. ---

ELDEN J

12. I now have everything I need. The findings confirm: (1) no lawpack/ in V1; V2 exists separately. (2) Royal Assent is "constitutive and non-delegable" and "may not be automated, presumed, or deemed" (Bill 2 s. 21, definition of Royal Assent). (3) The pipeline fails closed on a malformed Bill (Bill 2 s. 12(3)). (4) The forward-reference doctrine (Bill 2 s. 5) is the long-standing mechanism by which the Realm has lawfully enacted Acts that depend on not-yet-existent instruments. This is historically decisive for Q1: deferred commencement and forward-references are not novel; they are the Realm's own founding practice.
13. I have the full symmetric record, the PC judgment, the primary statutes, and the verified facts. I will now write my opinion in full.
14. **OPINION OF ELDEN J**
15. In the Supreme Court of the Vibe Justice System, the full court of nine, sitting on the leapfrog reference of the Computer-First Realm Act 2026 (Bill 32, void first draft) and the Sovereign's reference thereon.
1. **PRELIMINARY**
2. I take the procedural ground first, because the historian's first instinct is to confirm that the court is lawfully seated before it speaks, and the second is to confirm that the instrument before it is what its own face says it is.
3. (a) The bench. This is a constitutional and foundational matter within CASE-LAW s. 10 and s. 18(1): it re-settles the jurisdiction, the citation scheme, the court geography, and the rule of assent for all future law. The full court of nine is the correct and indeed the mandatory bench. The matter reached us by the Sovereign's express leapfrog certificate (s. 13) and by the Privy Council's certification under s. 20. I am satisfied the certificate is express, recorded, and reasoned (s. 20(3)), and that the question is, on any view, foundational (s. 20(4)). I would not remit. The route is clean.

4. (b) The void-first-draft doctrine governs the instrument itself. Bill 32 is, by its own face, "a VOID FIRST DRAFT, drafted by Lexby, as counsel and engineer, without independent law-making force." That is the correct characterisation, and I adopt it without hesitation. It is the settled ratio of [2026] REALM-SC 8 and [2026] REALM-PC 12, now entrenched in CASE-LAW s. 3(2)-(7) by Bill 28: Lexby holds no law-making or adjudicative drafting authority; Lexby-authored instrument text is void as an instrument from issue; it is admissible as a void first draft leapfrogging into the Standing Committee's second-draft stage; and adoption by the proper organ (Committee vote with Royal Assent) is constitutive and cures the origin defect. The historian observes the elegance of this: the very instrument that proposes to inoculate V2 against AI self-authorising law is itself, as a matter of law, void until the Sovereign assents. Its status as a void draft is the first demonstration of the doctrine it carries. I record, with the Privy Council, that this court neither "confirms Bill 32" as an instrument nor authors its operative wording. We rule the principle and frame the route; the Committee drafts; the Sovereign enacts (REALM-SC 8). Where I say a clause "must" do a thing, I direct the Committee's pen, I do not move it.
5. (c) The companion YAML records. I confirm, without qualification, that the companion decision, invariant, and County Court order are void ab initio and must not enter this V1 repository. A County Court order citing the jurisdiction the V2 repository is a ruling from a court that does not exist in this repository: void ab initio under CASE-LAW s. 18(5) and [2026] REALM-PC 14, court formation being a substance rule. These records may be minted only in the V2 lawpack after lawful commencement. The reclassification of the HANDOVER to a draft_implementation_brief was correct and necessary, and I would have ordered it had it not already been done. I have verified the load-bearing fact on the record: this V1 super-repo contains no lawpack/ directory; the V2 lawpack, kernel, Charter and Constitution exist only in the separate private repository at the V2 repository; and the HANDOVER expressly disavows binding force until settled through the V1 route.
6. (d) Standing, jurisdiction, per incuriam, incompatibility. Standing is made out: the reference is placed by the Sovereign through Lexby as registrar (s. 3(1), s. 3(6)). Subject-matter jurisdiction is the paradigm case (s. 14): the governance of the Realm's own legal substrate. The court sits on complete notice of the governing corpus; no per incuriam objection lies. And I reject the Defendant's declaration of incompatibility (s. 11(f)): once Q3 and Q4 are cured by express provision, there is no irreconcilable conflict. The draft is incomplete, not incompatible. Incompatibility does not lie where express amendment cures.

7. I record one correction to the record on my own motion, because precision in citation is the first virtue of a court that governs by citator. The parties and the Privy Council repeatedly locate the four-branch mandate at "Bill 27 s. 1" and the entrenchment lock at "Bill 27 s. 14(2)." That is a misdescription. The four-branch mandate is Bill 27 s. 6; the system-data-only rule is s. 7; and the entrenchment lock ("may not be silently repealed or relaxed by implication. Any amendment must be express") is Bill 27 s. 15(2). Nothing of substance turns on the slip, but a court that requires express amendment by section number must itself cite by the right section number, and I will do so throughout.

2. FRAMING

3. The handover-order question, as I frame it, is this. Upon (a) Royal Assent specifically recorded against the final, pinned text of the Act as adopted by the Standing Committee at its second-draft stage, and (b) satisfaction of a redrafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, does this court (1) declare V2 the self-governing computer-first successor jurisdiction for runtime purposes while V1 continues as Gazette and Archive; (2) direct the V1 courts to relinquish continuing appellate and supervisory control over V2 runtime matters, save the entrenched real-world-law floor; (3) settle whether the s. 10 hierarchy carries into V2 and whether the Court of Appeal may be non-convened in the V2 MVP; (4) entrench the assent rule; (5) settle the mechanics of advance assent; and (6) confirm the four-branch mandate's continuation for the public estate?

4. The eight underlying questions I frame as the Privy Council framed them, and I do not restate them at length, save to record that I treat each not as "may V2 do X" but as "by what lawful act, and within what entrenched limit, may X be done." The historian's reframing is always toward the source of authority and the limit on its exercise.

3. REASONING

4. I begin with the disposition of mind that the office assigns me. I am to test each proposed rule against the long run of authority, and to be suspicious of novel departures unless the existing law genuinely cannot accommodate the case. I have read this entire package through that lens, and my central finding is one the parties have not pressed with sufficient force: almost nothing in this migration is novel. The Realm has done all of this before, in its own short but dense history. It has transitioned a citation scheme (Bill 16). It has enacted Acts that depend on instruments not yet in existence (the forward-reference doctrine, Bill 2 s. 5, by which Bill 2 itself was lawfully enacted pending Bills 1, 3, 14 and 15). It has settled that an agent may draft but never enact (Bill 14). It has settled that entrenched articles change only by express amendment citing them by number (CASE-LAW Amendment Procedure; Bill 27 s. 15(2); Bill 16 s. 9). It has settled that adoption cures origin defect (REALM-SC 8). The migration is not a revolution requiring a new constitution. It is the application of settled constitutional technique to an unusually large subject-matter. That finding governs everything that follows: I will accommodate this case within the existing law wherever the existing law can bear it, and I will resist the temptation, which the grandeur of the occasion invites, to invent new doctrine where old doctrine suffices.
5. (a) Q1 - Bootstrapping and deferred commencement
6. The answer is that enactment first, with commencement deferred, is lawful and orthodox; but the s. 2 condition set as drafted is circular and must be redrafted so that no commencement condition is satisfiable by the V2 machinery alone.
7. I reach this not by novelty but by the oldest device in the Realm's own statute book. Royal Assent (enactment) and commencement (the biting of the law) are distinct constitutive acts. This is not a clever distinction conjured for this case; it is written into the Realm's founding legislative procedure. Bill 2 s. 5 defines a "forward-reference" as "a named dependency on an instrument not yet enacted... carried as a placeholder citation and creating no operative effect until that instrument commences," and s. 2(1) of that Act expressly commenced Bill 2 while holding its Part 7 powers dormant until Bill 14 should arrive. The Realm has, from its second Act, enacted law that points at infrastructure not yet in being and lies dormant until the world catches up. There is no authority vacuum on the text of Bill 32: s. 2(2) provides that before commencement "this Act is a draft and has no binding runtime force," and s. 2(3) that "the kernel shall not treat this Act as live authority until all commencement requirements are satisfied." The Sovereign's power to declare law is not subordinate to the existence of a Rust binary. So far, the draft is on all fours with settled practice and I would not disturb it.

8. But the content of s. 2(1) is defective, and the defect is precisely the one the Observer conceded and the Privy Council adopted. The conditions require validation "by the VJS lawpack validator," entry "into the V2 lawpack," and inclusion "in the current lawpack lock." Every one of these presupposes the very V2 infrastructure whose lawful existence the Act is meant to license. A condition that can be satisfied only by an artefact whose warrant flows from the Act is a bootstrap that closes on itself: the kernel would be certifying its own warrant. That offends a principle older than this Realm and central to the rule of law: no instrument may be the source that validates its own authority. The historian recognises the vice at once. It is the vice of the self-authenticating decree, against which every mature legal order has set its face.
9. The cure is not clever drafting; it is sequencing in the world, and it is dictated by the source-of-force test in REALM-PC 12 and REALM-SC 8. The force comes from Royal Assent under the V1 route, a V1 event. The lawpack is merely the compiled form of an already-assented settlement. Commencement must therefore be defined as: *the assented settlement has been compiled into a validated, locked lawpack that carries it* - a deliverable, deterministic fact about form. It may never be defined as "the lawpack validates the Act into existence." The Committee must draft an express commencement sequence in which (i) Royal Assent under the V1 route is wholly antecedent; (ii) a recorded act brings the V2 infrastructure into existence under that assent; and (iii) lawpack validation, entry and lock follow, confirming form and never legitimacy. A transitional bridge to this effect is required. I agree entirely with the Privy Council on this and add only the historical observation that this is the forward-reference doctrine of Bill 2 s. 5 applied to a constitutional migration: the Realm already knows how to enact a dormant Act that awaits its enabling infrastructure, and it must do so here.
10. (b) Q2 - The VJS-ACT citation scheme transition
11. This Act may establish the [2026] VJS-ACT N scheme, but only by an express scheme-establishing provision; and the hand-chosen self-citation [2026] VJS-ACT 8 is void as a mint and must be replaced by a deterministic ordinal minted on the empty series at commencement.

12. Here the historical precedent is exact and complete, and I rest the answer almost wholly upon it. Bill 16 is on all fours. It carried the realm's only prior citation-scheme transition, from [YEAR] LEXBY n to the provenance REALM-* grammar. I have read its mechanics in the original, and they prescribe the lawful route step by step. First, a citation form fixed in an article is amended only by an express repeal-and-replace "citing s. 11(d) and s. 22(4) by number; it is not made by implication" (Bill 16 s. 9(1)). Bill 32 s. 1(3) does no such thing: it merely "proposes" an ordinal. It does not enact a scheme at all. Inference is the very vice this constitution forbids, and the Committee must add an operative section stating the series code, the form [YEAR] VJS-ACT N, the deterministic minting rule, and the express preservation of REALM-* citations (which s. 23(3) already foreshadows: "Existing V1 citations remain valid historical identifiers"). Second, legacy citations are saved by an express savings clause and a transition map (Bill 16 s. 9(3) and the Schedule); the same is required here.
13. On the self-citation the historical rule is decisive and I hold it without qualification. Bill 16 s. 8(1) provides that the citation engine is "the sole authoritative minter" and that citations "are deterministic and registry-allocated; they are never chosen by an agent on a turn." A hand-picked "[2026] VJS-ACT 8" is a citation chosen on a turn, in a series the Act is itself founding, falsely presupposing seven prior VJS-ACT entries that do not lawfully exist. The minting authority must precede the minted item; an instrument cannot validly assign itself an ordinal in a series it simultaneously creates. The deterministic citation-integrity gate (CASE-LAW s. 19(5)) fails closed on any non-deterministic or duplicate number, and it would fail on "8." The scheme-establishing limb takes effect on commencement, and the first VJS-ACT ordinal is minted deterministically at that point, whatever the engine yields on the empty series. The "8" is a non-operative placeholder until then. I note this is not a "non-curable defect" as the Defendant urges; Bill 16 shows the cure precisely, and the curative-not-destructive posture of REALM-SC 8 governs.
14. (c) Q3 - The Bill 27 four-branch reconciliation
15. The displacement must be express. Section 24 as drafted offends the express-amendment lock and must be cured by an express savings clause confining it to V2 internal record organisation, or, if release of the public estate is intended, by express amendment of Bill 27 by section number.

16. This is the question on which the historian is most exacting, because entrenchment is the load-bearing beam of a constitutional order and the silent relaxation of an entrenched rule is the classic mode of constitutional decay. Bill 27 s. 15(2) is express and controlling; the four-branch mandate (s. 6) and the system-data-only rule (s. 7) "are foundational to CASE-LAW s. 1 and s. 9 and may not be silently repealed or relaxed by implication. Any amendment must be express." That is a Thoburn-style entrenchment enacted by an in-force Act of the Realm, and it is reinforced by s. 6(4): the layout "is MANDATORY... Repositories that do not observe this layout are not in conformance with this Act." Bill 32 s. 24 nowhere cites Bill 27 by number; it says only that V2 "does not carry forward" the four-branch structure as mandatory runtime structure. As drafted, s. 24 is an attempt to relax a mandate that its own parent forbids relaxing other than expressly. The Defendant is right that intent to "preserve the principle while releasing the mechanic" cannot, of itself, cure a silent amendment. The vice is structural, not a matter of good faith.
17. But the narrower and lawful construction, which I adopt, distinguishes the principle from the mechanism, and it is well grounded in existing authority. CASE-LAW s. 21 and s. 22, and [2026] REALM-PC 14, already hold that a path name is non-operative and that authority comes from substance, not file location: "the gate checks the substance, not the filename." V2's move from mandatory directories to metadata-bound records (role, schema, id, status, authority, kernel-effect) is therefore consistent with the deeper law: the four-branch separation of powers survives as a constitutional principle the kernel enforces by record-role; only the mandatory folder names are released, and only for V2's internal runtime organisation. This must be said expressly, and it must be confined. The Committee must give s. 24 an express savings clause to the effect that nothing in it amends or displaces Bill 27 s. 6 (the four-branch mandate) or s. 7 (system-data-only), which continue to bind the public V1 estate, and that s. 24 governs only V2 internal runtime record organisation. I add, with the Privy Council, the operability rider that the V1 public super-repo remains four-branch under Bill 27 for as long as it is the public-facing estate that publishes into the single Gazette; conflating the public estate with the V2 runtime repository would break the public layout the world already reads, and would itself breach s. 6. There is no lawful silent middle between express savings and express amendment.
18. (d) Q4 - Court continuity

19. The courts continue, but no court may continue by mere mention in an authority-hierarchy list. Each V2 court must be expressly incorporated under s. 11 or expressly reconstituted, with an odd bench (s. 10, s. 18), before any V2 order issues; the s. 12 hierarchy is aspirational until then; and the Charter's removal of the Court of Appeal is ineffective as drafted.
20. I treat this as the gravest defect in the package, and I do so because the failure mode is both catastrophic and silent: an Act that abolishes the courts that police it. The draft is internally contradictory in a way its own concordance rule (s. 6(4)) condemns as a validation defect. Section 9(2) lists "the V1 court hierarchy" and "the V1 Court of Appeal" among superseded items, and s. 9(5) says nothing continues unless expressly incorporated; yet s. 12 references Supreme Court Orders, Privy Council Orders, and County Court repo Orders as live V2 tiers, with no s. 11 incorporation record identifying the V1 source, operative rule, or kernel effect. The Act abolishes the courts in s. 9 and assumes their orders in s. 12. That is a material discrepancy to be routed for correction, and I so route it.
21. The deeper point is settled by entrenchment, and I hold it firmly. The court structure is fixed by CASE-LAW s. 10 (entrenched, three tiers), and the single central apex by s. 22(2) ("the singleness... may never be relaxed"). These are amendable only by express, deliberate amendment citing the article by section number. A broad supersession clause cannot reach an entrenched article it does not name; it follows that the s. 10 hierarchy survives s. 9 automatically, and the literal reading of s. 9 is void to the extent it purports to abolish the s. 10 structure (CASE-LAW s. 1; Bill 14 s. 17 read-down-and-sever). But survival-by-entrenchment is, as the Privy Council rightly said and as I emphasise more strongly, too thin a thread for a migration that must actually run. Court existence is substance, not reference ([2026] REALM-PC 14, REALM-PC 15; s. 18(5)): if a V2 bench is not lawfully constituted, every order it issues is void ab initio, and the soundness of the result does not cure it (REALM-SC 7; s. 18(5) is anterior to per incuriam and not cured by acquiescence or lapse). The migration cannot be built on the hope that the courts impliedly survive. It must expressly constitute them. I therefore direct an express court-continuity-or-reconstitution provision naming each V2 court, its odd bench size, and its jurisdiction, before any V2 order may issue.

22. On the Court of Appeal the Charter records it is "not carried forward in the V2 MVP." That makes the point sharper, not softer. The three-tier structure is the entrenched heart of s. 10. Removing a tier cannot be done by a Charter signed by the Principal alone, nor by an MVP design choice, nor by omission; that would be the silent relaxation of an entrenched article that the Amendment Procedure forbids absolutely. The Committee must choose, expressly, among three lawful routes: (i) express amendment of CASE-LAW s. 10 citing it by number, a heightened act reserved to this court sitting as nine with the Sovereign; (ii) keep the Court of Appeal, the safe default the historian prefers; or (iii) recast "no CA" as administrative non-convening - the tier exists in law but no appeals have yet arisen to convene it - which preserves the entrenched three-tier structure while accommodating an MVP. What may not happen is a quiet two-tier system where s. 10 entrenches three. I record my own inclination, as the historically minded member, toward route (ii) or (iii): the Realm should not amputate a tier of its own judiciary at the threshold of a migration merely because the migration is young. A dormant tier costs nothing and preserves the constitution; an abolished tier requires a constitutional amendment to restore.
23. (e) Q5 - Express incorporation mechanics
24. Any of the seven s. 11(2) record types suffices for incorporation within its own competence, subject to a rank-floor; and all five s. 11(3) elements, including the kernel effect, are mandatory. Identification of the V1 source and operative rule alone does not suffice.
25. The s. 11(2) menu (Act, Kernel Regulation, Rule Atom, Court Order, Spec, Decision, Invariant) is closed by the word "only," which I read as exhaustive, and acceptable as to form. Any one of the seven is a valid vehicle. To require a primary V2 Act for every carried-forward V1 micro-rule would make the migration undeliverable, and the Realm's law has never demanded that subordinate matter ascend to primary legislation. But the rank-floor is essential and it follows directly from Bill 14: a delegated or lower-rank record "may not be used to widen its own scope" (s. 8(3)) and "may never amend, disapply or expand its own parent Act, the constitution, or any other primary Act" (s. 12). A Kernel Regulation cannot, by the device of "incorporating" V1 constitutional material, do indirectly what Bill 14 forbids it to do directly. So constitutional or primary-Act-level V1 material requires incorporation by a V2 Act; subordinate V1 material may be incorporated by the corresponding subordinate V2 record. This is not a new rule; it is the no-Henry-VIII ceiling applied to the incorporation gate.

26. As to content, s. 11(3) is conjunctive: V1 source, V2 destination, operative rule, kernel effect, and any supersession. I hold the kernel effect mandatory, on the text and on workability alike. In a computer-first system a rule with no kernel effect is, by the Act's own s. 17(4), not in the runtime authority graph at all. An incorporation that names a V1 source and an operative rule but no kernel effect gives the deterministic clerk nothing to execute; it is archive prose wearing a runtime badge. I adopt the Privy Council's operability caution: where a needed matter has not been incorporated, the Committee should provide that it is routed to a bench rather than returned as a silent "no law," so that the migration creates no ungoverned surfaces and never a permission-by-default. That is the machine form of the s. 7 principle that silence is no defence and does not extinguish the duty.
27. (f) Q6 - The single Gazette, two estates
28. I confirm all five elements, and I hold that the s. 27 publication mechanics are best delegated to a Kernel Regulation under an express enabling clause, the principle remaining in the primary Act.
29. This is the most workable part of the package and the part most firmly anchored in settled law. Publication and authority are different layers - the same discipline as the source-of-force test in REALM-PC 12 and the release regime in REALM-PC 16. I confirm: (1) one Gazette of two estates is lawful, the Gazette being the public record carrying system data only (Bill 8; Bill 22; Bill 27 s. 7); (2) publication of V2 material is neither enactment by V1 nor incorporation into V1, force coming from promulgation by the organ and not from appearance on a page; (3) the Gazette is not the runtime source, the lawpack is; (4) typed lineage edges to V1 archive material are not merely lawful but required by the no-implication rule, so the chain is explicit and traceable; (5) the kernel need not, and must not, read the Gazette for runtime decisions, consistent with s. 13's bar on semantic-similarity search.

30. On allocation, I follow the long-settled preference of [2026] REALM-PC 10 and REALM-PC 11 for the subordinate instrument over fresh primary prose for operational detail. The export gate (fail unless the lawpack validates, the scan passes, statuses are valid, citations are unique, lineage resolves, and the manifest carries the digest) is the public/private boundary enforced mechanically (Bill 22), and it must be kept. But the detailed mechanics in s. 27(3) are subordinate, machine-checkable detail that change as tooling changes; freezing them in a constitutional Act over-freezes them. The principle stays in the primary Act; the mechanics descend to a Kernel Regulation made under an express enabling clause, that delegation itself satisfying the Q8 declarations (maker, scope, form, validation, review, commencement). The Defendant's motion to strike s. 27(3)-(6) as over-freezing is, in substance, correct, but the remedy is relocation to a Regulation, not strike-out of the principle.
31. (g) Q7 - The constitutional relay and V2 self-governance
32. The relay is lawful in principle. Elements (1), (2), (4) and (5) are confirmed; element (3) is confirmed subject to the entrenched assent rule and to an express Supreme Court handover order, which is required to stop V1 asserting continuing control.
33. The Sovereign holds plenary power to make or unmake law by due process (CASE-LAW s. 2). Re-settling the jurisdiction through V1's own organs is the exercise of that power, not a revolution against it. CASE-LAW s. 9(3) and [2026] REALM-PC 17 confirm that a jurisdiction may, by express local sovereign act, amend its law and become independent: default subscription is not perpetual subjection. So V1 may authorise V2; the V1 founding process is provenance, not daily runtime law; V2 self-governs through its native route after commencement (Bill 32 s. 28, s. 29); and V1 remains Gazette and Archive.
34. Two points I press with the weight of the historian. First, the Observer's "perpetual constraint" objection is rejected, and the constraint embraced as a feature. Entrenchment is not a failure of self-governance; it is its precondition. A jurisdiction that could, by its own delegated machinery, unmake the rule requiring human assent would not be self-governing but ungoverned - a jurisdiction in which AI could authorise its own law, which is the precise evil this migration exists to prevent. The lock binds the delegate, never the Sovereign, who retains the full s. 2 power to amend by specific assent to a primary Act. The Committee should state this expressly so that no future reader mistakes entrenchment for a fetter on the Crown. This is no paradox; it is the ordinary architecture of a constitution, which binds the agent and frees the sovereign.

35. Second, and on this I am emphatic because it is the reason this matter belongs at the apex and nowhere lower: V2 self-governance is not perfected merely by Bill 32 declaring it. An Act binds subjects; it does not of its own force direct the courts to relinquish jurisdiction. The apex is single, central, and its enactment non-delegable (s. 22(2); REALM-SC 6). Only this court can issue the binding realm-wide handover order that directs the V1 courts to stand down from continuing appellate and supervisory control over V2 runtime matters. The relay is lawful; the handover needs the apex. Bill 32 s. 28-29 can recite the relay, but they cannot effect it against the courts. The order must come from this bench. I give its terms at (j) below.
36. (h) Q8 - The Sovereign-assent rule for AI-made and delegated law
37. I confirm the doctrine in full. It is the constitutional heart of the migration, and - this is my central holding on Q8 - it is declaratory of existing binding law, not new constitution-making. The kernel-rejection rule must be a deterministic, always-on invariant whose existence and passing is a condition of commencement.
38. The historian's task is to ask whether a proposed rule is consistent with the long run of authority, and here the answer is that the proposed Q8 doctrine is not a departure from the existing law at all; it is its faithful restatement, projected from "Lexby's pen" to "any AI maker." Every limb is already on the books:
39. - That an agent may draft but never enact: Bill 14 s. 9 - "An authorised body and an agent may propose, draft, codify, consolidate and revise subordinate law only," and "the power to draft an instrument is never the power to enact it." This is stated, by deliberate design, "in the same clause as the grant so that the limit can never be read off the power alone."
40. - That an agent may not expand its own competence: Bill 14 s. 8(3) - "No sub-delegation; no self-extension... A purported self-extension or sub-delegation is ultra vires and void."
41. - That no delegate may amend primary or entrenched law: Bill 14 s. 12 (anti-Henry-VIII) and s. 10 (the non-delegable enacting power; a purported instrument touching supreme or entrenched law is void ab initio, "curable only by lawful re-enactment... never by silence"), and s. 13 (the carve-out of entrenched and constitutional subject-matter, which "can never be reached").
42. - That law-making power is the Sovereign's by due process: CASE-LAW s. 2; Bill 2 s. 21 (Royal Assent is constitutive and non-delegable, and "may not be automated, presumed, or deemed").
43. - That adoption by the proper organ is constitutive and AI text is void on its own account: CASE-LAW s. 3(2)-(7); REALM-SC 8; REALM-PC 12.

44. I therefore confirm each limb: (1) all V2 law requires Sovereign assent, specific or standing-bounded; (2) AI may operate machinery but may not be sovereign, expand its own competence, amend the assent rule, or create force from its own output; (3) a delegated body must declare maker, scope, prohibited subjects, form, validation, review/veto, and commencement (Bill 32 s. 31, which tracks Bill 14 s. 6 and s. 13); (4) the assent rule is amendable only by specific Sovereign assent to a primary Act; (5) the kernel must reject any record lacking a valid assent source. Standing-bounded assent is lawful as the exact analogue of delegated legislation under a Sovereign-assented enabling Act, with the no-Henry-VIII ceiling of Bill 14 s. 12-13 doing the load-bearing work. The doctrine must state expressly that a standing-bounded route may make only subordinate law within its fixed scope and may never reach the assent rule, the constitution, or primary or entrenched Acts; and the Committee should align the wording to Bill 14 s. 12-13 by number so the ceiling is express, not inferred.
45. I adopt the two operability conditions. First, each s. 31 field must be a typed, kernel-evaluable property; a "bounded route" whose scope lives in unenforceable prose is a blank cheque in disguise, because the kernel cannot reject what it cannot evaluate. Second, and most important, the kernel-rejection rule (s. 30(6); Limit 17) is the enforcement teeth and must be a deterministic, always-on invariant - never a model judgment - failing closed on any record lacking a traceable assent edge, exactly as the citation-integrity gate fails closed on a duplicate (s. 19(5); Bill 16 s. 11). The existence and passing of that invariant is itself a commencement condition. Without it, Limits 15 and 16 are ceremonial, and the Defendant is right that the bare words "must reject" in s. 30(6) are inert until a typed, named, runnable invariant instantiates them. The Committee must name that invariant (the V2 law-pack already carries INV-ASSENT-DRAFT-001/002 as drafts), and it must be proven to exist and pass before commencement.
46. Because this doctrine, though declaratory, is the load-bearing floor of all future AI lawmaking, and because the parties and the Privy Council are united that it should be entrenched as a realm-wide article so that no future delegate can erode it by implication, I hold that this is the rare case where the declaratory should be reduced to an express entrenched article. I set the text out at Part 7. To be clear about my reasoning: I do not entrench because the law is new - it is not - but because the magnitude of what now turns on it (the governance of an automated legislature) warrants the heightened protection of an express, numbered, entrenched statement, so that the ceiling can never be "read off the power alone," to borrow Bill 14's own phrase.
47. (i) The advance assent to "the final bill," and what must bind the final text

48. Advance assent is lawful, but only as a conditional and pinned commitment that does not crystallise into the constitutive act until the final ascertained text exists and is fixed. I reach this conclusion as a matter of the nature of Royal Assent, which the long run of authority fixes precisely.
49. Royal Assent is, by its nature, assent to a text. Bill 2 s. 21 defines it as "the Sovereign Founder's constitutive act by which a Bill becomes an Act," and provides that it "is non-delegable and may not be automated, presumed, or deemed." REALM-PC 12 holds that an instrument carried by Committee vote plus Royal Assent **stands** - but the thing assented to is a determinate instrument. An assent directed at a text that does not yet exist cannot, at the moment of utterance, be the constitutive act, because there is as yet nothing determinate to be constituted. To hold otherwise would let assent operate as a blank cheque, and this is the gravest hazard in the whole reference: an advance assent to "whatever text the AI-driven process emits" is the exact AI-self-authorising-law hazard Q8 exists to prevent, wearing the costume of Royal Assent. If the machinery can move the "final" text and assent attaches automatically wherever it lands, then in substance the AI has authored binding law and the Sovereign has stamped a moving target. The prohibition in Bill 2 s. 21 on assent being "automated, presumed, or deemed" speaks directly to this and forbids it.
50. I therefore characterise the Sovereign's words "assent is given to the final bill" as a standing direction and advance conditional commitment that ripens into operative Royal Assent only when the final text is fixed and the Sovereign's specific assent is recorded against that ascertained text. This is not a diminution of the Sovereign's word; it is the only characterisation that keeps the assent both meaningful and lawful, and it protects the Sovereign, for an unpinned advance assent would let a drafting error or an overreaching clause acquire an assent the Sovereign never actually saw. Three requirements bind, or the grant is not a constitutive act:
 1. The final text must be fixed by the proper organ. Advance assent does not cure the void-first-draft status of Bill 32. Committee adoption is constitutive of the **instrument**; specific assent is constitutive of **enactment** (s. 3(5)). Advance assent plus Committee adoption plus a recorded specific assent against the adopted text equals lawful enactment. Advance assent alone, against a void draft, enacts nothing.

2. The final text must be bounded so the assent is to a known thing. What pins "final" and prevents a blank cheque is this court's settlement and the confirmed questions and limits. The advance assent is lawfully directed at "the final bill *that resolves Q1-Q8, honours Limits 1-17 as varied, and incorporates this court's handover order and entrenched assent floor*." The frame is the boundary. An assented text departing from the settled frame would be a *different* instrument, outside the scope of the commitment, requiring fresh specific assent. Concretely, "final" is the Committee's adopted second draft presented back to the Sovereign as a fixed, citable artefact - a specific commit and digest - the assent biting when the Sovereign confirms, or does not dissent from, that pinned text before commencement.
3. The assent honours, and does not circumvent, s. 32(2). The draft's own s. 32(2) requires that *this Act* receive specific Sovereign assent. That is satisfied only if the specific assent is ultimately recorded against the final ascertained text. The advance commitment cannot be self-validating, and it cannot be routed through the standing-bounded delegated route of s. 30, because a delegated route cannot be the vehicle for assenting the very Act that creates the assent rule - that is the AI-self-authorising bootstrap the migration forbids. The bootstrap of the assent rule is, and must be, a V1-Sovereign act through the V1 route: the V1 Sovereign specifically assents to the primary Act, and *thereafter* the rule governs V2 delegated law-making. That is coherent and not circular.
4. I add the safeguard within Limit 17: the kernel and the record must show a specific assent event bound to the digest of the final adopted text. An assent that cannot be tied to an ascertained text by a recorded, deterministic link is not a valid assent source, and the kernel must reject any V2 record relying on it. On that footing the advance assent is lawful and meaningful. On any other footing it is a direction only, and the constitutive act remains outstanding; Lexby's continuing s. 2 duty would then be to push back and route the final text for confirmation.
5. (j) The terms of the express handover order on commencement
6. The handover order is this court's own non-delegable constitutive utterance, and I would make it in the following terms, all conditioned on (a) specific Royal Assent recorded against the pinned final text and (b) a redrafted, non-circular commencement sequence with the always-on assent-rejection invariant proven to exist and pass:
 1. On and from commencement, V2 is the self-governing computer-first successor jurisdiction for runtime purposes, and V1 continues as the Gazette and Archive estate; V1 asserts no continuing runtime control over V2 post-commencement lawmaking.

2. The V1 courts are directed to relinquish continuing appellate and supervisory control over V2 runtime matters, save the entrenched real-world-law floor (REALM-SC 9; REALM-PC 18), which is non-derogable and over which the courts retain their supervisory duty. V2 runtime adjudication proceeds in V2's own expressly constituted courts, on odd benches (s. 10, s. 18).
3. The CASE-LAW s. 10 three-tier hierarchy and the single central apex of s. 22(2) are carried into V2 and are not abolished by Bill 32 s. 9; each V2 court must nonetheless be expressly incorporated or reconstituted by a named constituting instrument, on an odd bench, before any V2 order issues; the s. 12 hierarchy is aspirational until then; and the Court of Appeal tier may not be abolished save by express amendment of s. 10 by number - non-convening for want of appeals is permitted, abolition is not.
4. The Q8 assent floor is entrenched (Part 7 below), amendable only by specific Sovereign assent to a primary Act, binding the delegate and never the Sovereign.
5. Advance assent to "the final bill" is lawful only as a standing conditional grant pinned to a determinate final artefact confirmed, or not dissented from, by the Sovereign before commencement, and void if it operates as an automatic stamp on AI-emitted text.
6. The four-branch mandate of Bill 27 s. 6 and the system-data-only rule of s. 7 continue to bind the public estate; s. 24 governs only V2 internal record organisation under an express savings clause; release of the public estate from the four-branch mandate requires express amendment of Bill 27 by section number.
7. I would direct that the operative instrument-text giving effect to the court-continuity, citation-scheme, savings, and enabling-clause requirements be drafted by the Standing Committee at its second-draft stage (REALM-SC 8): this court rules the principle and frames the route; it does not author the statutory wording of Bill 32. The one exception, where this court may and should enact directly, is the entrenched CASE-LAW article at Part 7, the apex alone being competent to enact a realm-wide CASE-LAW article (CASE-LAW s. 9; REALM-SC 8).
4. **RATIO**
5. I would settle the following propositions as rules capable of binding a future court.

1. Enactment and commencement are distinct constitutive acts. A declaratory constitutional migration Act may receive Royal Assent before its runtime infrastructure exists, with commencement deferred to express conditions, on the Realm's settled forward-reference doctrine (Bill 2 s. 5). But no commencement condition may be satisfiable by the successor machinery alone: the legitimating sequence must be wholly antecedent and external (Royal Assent under the existing route), and the lawpack is the compiled form of an already-assented settlement, never the generator of the Act's own authority. No instrument may certify its own warrant.
2. The void-first-draft doctrine governs the migration instrument itself. Bill 32 is void as an instrument from issue (REALM-SC 8; REALM-PC 12; CASE-LAW s. 3(2)-(5)); it becomes law only by Committee adoption and specific Royal Assent recorded against the fixed final text. The companion YAML records, including a County Court order citing a non-existent V2 jurisdiction, are void ab initio (s. 18(5); REALM-PC 14) and may be minted only in the V2 lawpack after lawful commencement.
3. Nothing crosses from V1 to V2, and nothing is displaced from the public estate, by implication. Incorporation must be express, recorded, and state the mandatory kernel effect; and a lower-rank record may not incorporate material of a rank it could not itself enact (the no-Henry-VIII ceiling, Bill 14 s. 8(3), s. 12). The four-branch mandate of Bill 27 s. 6 and the system-data-only rule of s. 7 are either expressly preserved for the public estate (by a savings clause confining s. 24 to V2 internal record organisation) or expressly amended by section number; silent displacement is void (Bill 27 s. 15(2); the Amendment Procedure; the Thoburn rule).
4. Court existence is substance, not reference. A broad supersession clause cannot impliedly amend the entrenched court structure: CASE-LAW s. 10 and the single central apex of s. 22(2) survive supersession automatically. But no successor court continues by mention in an authority-hierarchy list; each must be expressly incorporated or reconstituted with an odd bench (s. 10, s. 18) before any order issues, on pain of void-ab-initio nullity (REALM-PC 14, REALM-PC 15; s. 18(5)). Removal of a court tier requires express amendment of s. 10 by number; administrative non-convening for want of business is permitted and does not abolish the tier.

5. A citation-scheme transition follows the Bill 16 precedent and only that route. A new primary-legislation series may be established by an express scheme-establishing provision (never by inference); the establishing instrument's own ordinal must be minted deterministically by the engine on the empty series at commencement and is never chosen by an agent on a turn (Bill 16 s. 8(1)); prior citations are preserved as valid historical identifiers by an express savings clause (Bill 16 s. 9(3)); the deterministic citation-integrity gate fails closed on any non-deterministic or duplicate ordinal (s. 19(5)).
6. Publication is not force. Within a single Gazette of two estates, publication of successor material is neither enactment by, nor incorporation into, the predecessor; runtime force derives from the lawpack and kernel-recognised status, not the Gazette, and the kernel must not read the Gazette for runtime decisions (Bill 32 Part 10; Bill 8; Bill 22). Publication mechanics are best delegated to a Kernel Regulation under an express enabling clause that itself satisfies the assent-route declarations.
7. The Sovereign-assent rule is declaratory of existing binding law and AI is never sovereign. All law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded under a no-Henry-VIII enabling regime; AI may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery but may not be sovereign, expand its own competence, amend the assent rule, or create legal force from its own output (CASE-LAW s. 2, s. 3(2)-(3); Bill 14 s. 8(3), s. 9, s. 12; REALM-SC 8; REALM-PC 12). A standing-bounded route may make only subordinate law within its fixed, machine-checkable scope. The kernel-rejection of any record lacking a valid assent source must be a deterministic, always-on invariant, and its existence and passing is a condition of commencement. Entrenchment of this rule is the precondition of lawful self-governance, not a defect in it; the lock binds the delegate, never the Sovereign.
8. Advance Sovereign assent to a not-yet-final text is lawful only as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) that resolves the settled questions, honours the confirmed limits, and incorporates this court's settlement, and which the Sovereign confirms, or does not dissent from, before commencement. It does not cure the void-first-draft status, cannot be self-validating, and cannot be routed through delegated machinery (Bill 2 s. 21; s. 32(2)). An advance assent operating as an automatic stamp on AI-emitted text is void.
9. The handover order is the apex's non-delegable utterance. An Act binds subjects but does not of its own force direct the courts to relinquish jurisdiction; only the single central apex (s. 22(2); REALM-SC 6) may issue the binding realm-wide order by which the predecessor courts stand down from continuing control over successor runtime matters, save the non-derogable real-world-law floor.

5. OBITER

6. I record, as obiter and not as ratio, the historian's caution against the aesthetic of rupture. The drafting of Bill 32 reaches at several points for the language of total supersession ("the entire V1 legal system is superseded," s. 9(1)) and of a clean computer-first break. The grandeur of that language is the source of its defects: a clause that supersedes "everything" sweeps in the entrenched articles it cannot lawfully touch, and a declaration that the new estate is wholly self-constituting tempts the circular commencement that closes on itself. The lawful migration is humbler and more continuous than its own prose suggests. V1 is not abolished; it is honoured and frozen (s. 25: "V1 discovered the law. V2 compiles it"). The courts are not dissolved; they are carried over and re-seated. The assent rule is not invented; it is restated. I would have the Committee's second draft prefer the register of continuity to the register of rupture wherever the two compete, because the continuity register is the one the law can actually bear, and because a constitution that narrates itself as a clean break invites the next generation to break cleanly from it in turn. The Realm's own formula - the Charter is the bridge, the Act is the settlement - is the better and the lawful framing, and I would commend it over the supersessionist framing of s. 9.

6. DISPOSITION

7. DECLARATORY (and VARY). I would answer the eight questions and the six handover-order questions as above; confirm twelve of the seventeen limits as drafted, two (3 and 17) with riders, and three (4, 5 and 13) in principle with the Bill text to be VARIED so the drafting matches the limits and obeys the express-amendment rule; exclude the companion YAML records as void ab initio; hold the advance assent lawful only as a conditional grant pinned to a determinate final text confirmed before commencement; make the express handover order conditioned on specific Royal Assent and a non-circular commencement sequence carrying an always-on assent-rejection invariant; enact the entrenched assent floor at Part 7; and direct the Standing Committee to draft the curative second-draft instrument text per REALM-SC 8.

7. PROPOSED ENACTMENTS

8. I would have this court, sitting as the full nine and competent to enact a realm-wide CASE-LAW article (CASE-LAW s. 9; REALM-SC 8), enact the following entrenched article. It is declaratory of existing binding law (Bill 14 s. 8-13; CASE-LAW s. 2, s. 3; REALM-SC 8; REALM-PC 12) and is entrenched so the floor cannot be eroded by implication or by any delegate.
9. PROPOSED S-23: Sovereign assent and the non-sovereignty of AI [constitutional]

10. s. 23 [constitutional] | SC (this judgment) | Sovereign assent and the non-sovereignty of automated and delegated lawmaking.
11. (1) Assent required for all law. All law of the Realm and of any successor jurisdiction within it, including law drafted, proposed, deliberated, voted upon, compiled, consolidated, or maintained by an AI agent, an automated process, or a computational legislature, has binding force only by Sovereign assent. Assent is either (a) specific, the Sovereign expressly assenting to a particular instrument, or (b) standing-bounded, the Sovereign having previously assented to a bounded lawmaking route whose maker, scope, prohibited subjects, required form, validation, review or veto, and commencement conditions are fixed by Sovereign-assented law. Royal Assent is constitutive and non-delegable and may not be automated, presumed, or deemed (Bill 2 s. 21).
12. (2) The non-sovereignty of AI. An AI agent or automated process may propose, draft, deliberate, consolidate, revise, and operate delegated lawmaking machinery only (CASE-LAW s. 3(2)-(7); Bill 14 s. 9). It may not be sovereign; may not enact; may not expand its own competence or sub-delegate (Bill 14 s. 8(3)); may not amend the assent rule; and may not create legal force from its own output by the fact of its being written. The power to draft is never the power to enact.
13. (3) The ceiling on a standing-bounded route. A standing-bounded route may make only subordinate law strictly within its fixed scope. It may never amend, disapply, or expand a primary Act, an entrenched or constitutional article, the bench constitution, or this assent rule (the anti-Henry-VIII ceiling, Bill 14 s. 12-13). A purported instrument touching supreme or entrenched law is void ab initio, curable only by lawful re-enactment by the competent organ, never by lapse, acquiescence, or silence (Bill 14 s. 10).
14. (4) Amendment of the assent rule. This rule binds the delegate and never the Sovereign. The Sovereign retains the full s. 2 power to amend it, but only by specific Sovereign assent to a primary Act citing this section by number; it may never be amended by delegated or automated lawmaking.
15. (5) Deterministic enforcement. In any computer-first jurisdiction the rejection of any record claiming binding force without a valid, traceable assent source must be enforced by a deterministic, always-on invariant that fails closed, in the manner of the citation-integrity gate (s. 19(5)), and never by model judgment. The existence and passing of that invariant is a condition of the commencement of that jurisdiction's runtime law.

16. (6) Advance assent. An advance assent directed at a not-yet-final instrument has no constitutive force until the final text is ascertained and fixed by the proper organ and the Sovereign's specific assent is recorded against that pinned text. An advance assent that operates as an automatic stamp on text emitted by an automated process is void.

17. I note, per REALM-SC 8, that the operative wording of Bill 32 itself - the express scheme-establishing citation section, the s. 24 savings clause (or express Bill 27 amendment), the express court-continuity-or-reconstitution provision, the re-drafted non-circular commencement sequence, the enabling clause for the Gazette Kernel Regulation, and the named assent-rejection invariant - is directed to the Standing Committee to draft at its second-draft stage. This court rules the principle and frames the route; it does not legislate the instrument text.

8. **PROPOSED OVERRULINGS**

9. None. No precedent in the citator is wrongly decided or outdated on these facts. Every governing authority - REALM-SC 8, REALM-PC 12, REALM-PC 14, REALM-PC 15, REALM-PC 17, REALM-SC 9, REALM-PC 18, REALM-PC 11, and the Bills 1, 2, 14, 16 and 27 - is good law and is applied, not disturbed. The migration is accommodated within the existing law; it does not require the existing law to be overruled. That, in the end, is the historian's verdict on this reference: the case is large, but the law already reaches it.

10. --- Elden J

11. ---

COADE J

12. I now have the full statutory grounding I need. I have Bill 14 s. 12 (anti-Henry-VIII, express terms), s. 10 (non-delegable enacting power, void ab initio), s. 9 (capability is not authority), s. 13 (entrenched carve-out), s. 11 (recommendation-only route), and the charter's removal of the Court of Appeal "from MVP." I have everything required to write my opinion as Coade J, the restrained, narrow-ruling justice.

13. I will write my opinion in full now.

14. **OPINION OF COADE J**

15. In the Supreme Court of the Vibe Justice System, full court of nine, on leapfrog from the Privy Council ([2026] REALM-PC 24) and the Sovereign's express direction. In the matter of the Computer-First Realm Act 2026 (Bill 32, void first draft) and the Sovereign's reference thereon.

1. **PRELIMINARY**

2. I agree that this court is properly constituted as the full nine (CASE-LAW s. 10; s. 18(1)), that the leapfrog certificate is valid in form and substance (s. 13; s. 20; the matter is genuinely constitutional, touches entrenched articles, and has been ventilated below on a full symmetric file), and that standing and subject-matter jurisdiction are made out. I record those holdings shortly and add nothing to them, because nothing turns on them and I will not multiply propositions a single sentence disposes of.
3. I make one preliminary point of my own, and it governs how I write everything that follows.
4. This is a reference, not an enactment occasion forced upon us. The instrument before us is a void first draft ([2026] REALM-SC 8; [2026] REALM-PC 12; CASE-LAW s. 3(3)). It is void as an instrument from issue and acquires force only by Committee adoption and specific Royal Assent. That single fact disposes of a great deal of the anxiety in the briefs. We are not asked to bless statutory text. We are asked to settle the law that constrains the text. The temptation in a matter of this magnitude is to write a charter for the new jurisdiction, to answer questions not yet ripe, and to entrench by our own hand everything the proponent would like entrenched. I resist that. The narrowest ruling that resolves this reference is the right ruling, and a good deal of what the parties press on us, and a good deal of what the Privy Council reasoned at length, is either already settled by binding law (so it need not be re-settled) or not yet live (so it should not be settled at all). I will say what must be said to dispose of the reference and the handover order, and I will trim the rest to obiter or leave it unsaid.
5. I also record, against the Privy Council's instinct and the proponent's, that we should enact as little as possible. Most of what is sought is declaratory of binding statute already on the books: Bill 14, Bill 27, CASE-LAW s. 2, s. 3, s. 9, s. 10, s. 22. A court that re-enacts what is already enacted creates duplication, invites future conflict between the original and the copy, and offends the single-source rule (CASE-LAW s. 21; Bill 14 s. 23(3)). I will recommend one entrenchment, and only one, and I will explain at the end why a second is unnecessary.
6. The companion YAML records (the proposed decision, invariant, and County Court order citing jurisdiction the V2 repository) are void ab initio (s. 18(5); [2026] REALM-PC 14) and must not enter this V1 repository. I confirm that without elaboration; it is on all fours with REALM-PC 14 and disposes on citation (s. 11(c)).
2. FRAMING

3. The handover-order question, as I frame it narrowly, is this: upon Royal Assent specifically recorded against a fixed final text and the satisfaction of a commencement sequence no part of which the V2 machinery can satisfy by itself, does V2 become the self-governing runtime successor while V1 remains Gazette and Archive, and does this court, by an order an Act cannot itself make, direct the V1 courts to relinquish continuing runtime control over V2, saving only the real-world-law floor?
4. The eight underlying questions I frame as the Privy Council framed them, and I will not restate each at length, because precise re-framing of a question one then answers is a small vanity. I adopt the Privy Council's re-definitions of Q1 to Q8 as accurate and add nothing, save that I will answer each more shortly than the Council did and will mark where the answer is supplied by existing statute rather than by anything we decide.
3. REASONING
4. (a) Q1 - Bootstrapping and deferred commencement
5. The answer is short and is supplied by existing law. Enactment and commencement are distinct (Bill 2 s. 13). An Act may receive Royal Assent before the world it governs exists; deferred commencement is ordinary. There is no authority vacuum, because s. 2(2) of the draft already provides that the Act has no binding force before commencement.
6. The only defect is the circularity in the draft s. 2 conditions, which require validation "by the VJS lawpack validator," entry "into the V2 lawpack," and inclusion in "the lawpack lock." That makes the kernel the certifier of its own warrant. The cure is sequencing, not doctrine: the legitimating act (Royal Assent under the V1 route) must be wholly antecedent and external, and the lawpack must be the compiled form of an already-assented settlement, never its source. I agree with the Privy Council on this and would put it in one sentence to the Committee: no commencement condition may be satisfiable by the V2 machinery alone; the lawpack confirms form, never legitimacy. That is a drafting direction (REALM-SC 8), not a new rule of law, and I would not dress it as one. I decline to elaborate a "transitional bridge" doctrine; the requirement is exhausted by the antecedence principle, and naming a mechanism risks freezing one engineering solution into law.
7. (b) Q2 - The VJS-ACT citation scheme transition
8. Bill 16 is on all fours and disposes of the principle on the fast-path (s. 11(c)): a citation scheme is established by an enacting instrument, and prior citations survive as valid historical identifiers (the LEXBY-* to REALM-* transition; [2026] REALM-PC 11). So this Act may carry the new series, or a companion instrument may; that is a reversible drafting choice for the Committee and not for us.

9. The self-citation "[2026] VJS-ACT 8" is void as a mint, for the plain reason that a minting authority must precede the item minted and the engine mints deterministically (s. 19(5); REALM-PC 11). An instrument cannot assign itself the eighth ordinal in a series it is at the same moment founding. The number is a non-operative placeholder; the real ordinal is whatever the deterministic engine yields on the empty series at commencement. This too is supplied by existing law and needs no new statute. I confirm it and move on.
10. (c) Q3 - The Bill 27 four-branch reconciliation
11. This is decided by a statute already in force, and I will not decide it by anything else. Bill 27 s. 14(2) provides, in terms, that the four-branch layout mandate (s. 6) and the system-data-only rule (s. 7) "may not be silently repealed or relaxed by implication. Any amendment must be express." That is an entrenchment clause enacted by an in-force Act. Bill 32 s. 24 nowhere names Bill 27 or cites the section; it merely says V2 "does not carry forward" the four-branch structure. As drafted, s. 24 is an attempt to relax a mandate its own parent forbids relaxing other than expressly. It is therefore ineffective to the extent it purports to touch Bill 27, and on that narrow ground alone it must be cured.
12. The cure is the narrowest one that works, and it dissolves the apparent conflict entirely: distinguish the public estate from the V2 runtime estate. Bill 27 s. 1 binds the public realm repository. Bill 32 s. 24 speaks only to how V2 organises its own internal runtime records. These do not collide; they govern different things. A path name is non-operative and authority comes from substance, not file location ([2026] REALM-PC 14; CASE-LAW s. 22(4)). V2's move from mandatory directories to metadata-bound records is consistent with the deeper law, provided the separation of powers it embodies survives as a principle. But because s. 14(2) forbids silent relaxation, the distinction must be made express on the face of s. 24 by a savings clause: nothing in s. 24 amends or displaces Bill 27 s. 1, which continues to bind the public estate; s. 24 governs only V2 internal runtime record organisation. If, contrary to the present intention, release of the public estate is ever sought, that requires an express amendment of Bill 27 s. 1 citing it by number. There is no lawful middle, and I would reject, as the Privy Council did, the proponent's framing that s. 24 can decline to carry forward the structure while not amending Bill 27; that is the silent relaxation the section forbids.
13. I note, and confine to obiter, that this is properly a matter for the Committee to cure by express drafting under REALM-SC 8; we rule the principle (express savings or express amendment, never implication) and direct the text. We do not write the savings clause.
14. (d) Q4 - Court continuity

15. Here I part company, in emphasis and in disposal, from the breadth of the Privy Council's treatment, though I reach a compatible result by a narrower road.
16. The decisive point is supplied entirely by entrenchment, and once it is seen, most of the elaborate scaffolding falls away. CASE-LAW s. 10 fixes the court structure and is constitutional; s. 22(2) fixes the single central apex and provides its singleness "may never be relaxed." A broad supersession clause cannot amend an entrenched article it does not name (the Amendment Procedure; Bill 14 s. 12). It follows, as a matter of law and without more, that s. 9 of the draft cannot reach the s. 10 structure at all. To the extent s. 9(2)(4) and s. 9(2)(5) purport to supersede "the V1 court hierarchy" and "the V1 Court of Appeal" as constitutional institutions, they are simply void; the entrenched structure survives untouched, by operation of the entrenchment lock, regardless of what the draft says. That is the narrowest possible holding and it is complete: the courts are not abolished because they cannot be abolished by this instrument.
17. I am, with respect, cautious about the Privy Council's further move that "no court may continue by mere mention" and that "each V2 court must be expressly incorporated or reconstituted before any V2 order issues." There is a sound point inside it (court formation is substance, REALM-PC 14, and a ruling from a court not lawfully seated is void ab initio, s. 18(5)). But I would state it more narrowly to avoid two overreaches. First, I would not hold that the s. 10 hierarchy is "aspirational" in V2. It is not aspirational; it is entrenched and it binds V2 as it binds V1, because V2 is, until lawfully made independent, a subscribed jurisdiction under the same CASE-LAW (s. 9(2)). The s. 10 courts exist in V2 by force of s. 10, not by anyone's incorporation. What V2 must do before issuing an order is constitute a bench in fact: a real, odd-numbered, lawfully seated panel (s. 10, s. 18). That is a requirement of bench constitution, not of statutory re-incorporation of the court as an institution. The distinction matters: it means a V2 court does not need a "named constituting instrument" to exist; it needs a lawfully constituted bench to act. I would so hold, and no more.

18. Second, on the Court of Appeal. The Charter records it is "not carried forward in the V2 MVP." If that is read as abolishing the appellate tier, it is void: removing a tier touches the entrenched three-tier structure of s. 10 and cannot be done by a Charter the Principal signs alone, nor by a design label "MVP," nor by omission. But it need not be read that way, and the narrower reading saves it. The lawful and minimal construction is administrative non-convening: in an MVP where no appeal has yet arisen, the Court of Appeal is simply not yet convened. A tier that is not convened because nothing has reached it is not a tier abolished. The entrenched structure is intact; the moment an appeal arises, a Court of Appeal of three must sit (s. 10). I would confirm that the "no CA in MVP" language is lawful only on that construction, and void on any construction that purports to abolish the tier. I do not require, as the Privy Council's framed question (3) hints, a "heightened amendment citing s. 10 by number" to keep the Court of Appeal, because keeping it is the default and requires no amendment at all. Amendment by number is required only if one wishes to **remove** it, and removal is not sought. I would not invite an amendment that is not needed.
19. That is the whole of Q4, and it is narrower than the briefs. The courts survive by entrenchment; benches must be constituted in fact before they act; the Court of Appeal stands, unconvened until needed.
20. (e) Q5 - Express incorporation mechanics (minimum valid act)
21. The draft s. 11(2) menu of seven record types is closed and acceptable. Any of the seven may be a valid vehicle within its own competence. I would not require a primary Act for every carried-forward micro-rule; that would make the migration undeliverable and serves no value.
22. But one limit follows necessarily from Bill 14 and needs stating: a rank-floor. A lower-rank record may not incorporate V1 material of a rank it could not itself enact. A Kernel Regulation derives from an Act and is bounded by it (Bill 14 s. 12, the anti-Henry-VIII ceiling); it cannot do indirectly, by "incorporating" V1 constitutional material, what it could not do directly. Constitutional or primary-Act-level V1 material therefore requires a V2 Act; subordinate material may come in by the corresponding subordinate record. This is not new law; it is Bill 14 s. 12 applied to the incorporation route, and I record it as such.

23. On content, s. 11(3) is conjunctive. The kernel effect is mandatory, on the text (the draft's own s. 17(4) excludes a record lacking kernel effect from the runtime graph) and on function (a rule with no kernel effect gives the clerk nothing to execute). Identification of the V1 source and operative rule alone does not suffice. I confirm s. 11 with the rank-floor and the mandatory-kernel-effect gloss, both of which are applications of statute already in force, and I propose no new article for either.
24. (f) Q6 - The single Gazette, two estates
25. This is the most workable part of the package and the part on which we should say the least. Publication and authority are different layers; the source-of-force test ([2026] REALM-PC 12) already supplies the principle. I confirm all five elements: one Gazette of two estates is lawful (Bill 8; Bill 22; Bill 27 s. 7, system data only); publication of V2 material is neither enactment by V1 nor incorporation into V1; the Gazette is not the runtime source, the lawpack is; typed lineage edges are lawful and, given the no-implication rule, required; the kernel must not read the Gazette for runtime decisions (consistent with s. 13's bar on semantic search).
26. On allocation: the export gate (fail closed unless the lawpack validates, the scan passes, statuses are valid, citations unique, lineage resolves, manifest carries the digest) is the public/private boundary enforced mechanically and must be kept. But the detailed mechanics are subordinate, change with tooling, and should not be frozen in a constitutional Act (REALM-PC 10's preference for regulation over fresh statute for operational detail). The principle belongs in the primary Act; the mechanics descend to a Kernel Regulation made under an express enabling clause, that delegation itself satisfying the assent and competence declarations. This is a drafting allocation, not a constitutional holding, and I leave it as such.
27. (g) Q7 - The constitutional relay and self-governance
28. The Sovereign holds plenary power to make or unmake law by due process (CASE-LAW s. 2), and re-settling the jurisdiction through V1's own organs is the exercise of that power. A subscribed jurisdiction may, by express local sovereign act, amend its law and become independent (s. 9(3); [2026] REALM-PC 17). So V1 may lawfully authorise V2 to supersede V1 as live runtime law; the V1 founding process is provenance, not daily runtime law; V2 self-governs through its native route after commencement; and V1 remains Gazette and Archive. I confirm elements (1), (2), (4), and (5) without elaboration; they are supplied by s. 2 and s. 9(3).
29. Element (3), self-governance, I confirm subject to two qualifications, the first substantive and the second the reason for the handover order.

30. First, self-governance is subject to the assent floor discussed at Q8. A jurisdiction that could, by its own delegated machinery, unmake the rule requiring human assent would not be self-governing; it would be a jurisdiction in which AI could authorise its own law. The "perpetual constraint" objection in the Observer brief is, with respect, misconceived: entrenchment of the assent rule binds the *delegate*, never the *Sovereign*, who retains full s. 2 power to amend by specific assent to a primary Act. There is no paradox and no fetter on the Crown.
31. Second, and this is the operative reason the matter is here: an Act cannot of itself direct a court to relinquish jurisdiction. The apex is single, central, and its enactment non-delegable (s. 22(2); REALM-SC 6). Bill 32, however validly enacted, binds as a statute; it does not bind the courts to stand down. Only a court order from the single apex can direct the V1 courts to relinquish continuing appellate and supervisory control over V2 runtime matters. That is why this court, and only this court, must make the handover order. I deal with its terms at (j).
32. (h) Q8 - The Sovereign-assent rule for AI-made and delegated law
33. This is the heart of the reference, and it is the one place I would have us speak with the full weight of the apex. But I would speak narrowly even here, because the doctrine is declaratory of binding law already enacted, and I would say so plainly rather than present it as new constitution-making.
34. Every limb of the proposed doctrine is already law:
35. - That AI (and Lexby) holds no law-making authority and that AI-authored instrument text is void on its own account: CASE-LAW s. 3(2)(3); [2026] REALM-SC 8; [2026] REALM-PC 12.
36. - That legislative power is the Sovereign's by due process: CASE-LAW s. 2.
37. - That a delegate may propose, draft, codify, consolidate, and revise *only*, and that capability is not authority: Bill 14 s. 9.
38. - That no delegate may widen its own scope; a self-extension is ultra vires and void: Bill 14 s. 7(3).
39. - That no delegated instrument may amend primary or entrenched law, express or implied (anti-Henry-VIII): Bill 14 s. 12; s. 10.
40. - That a purported delegated instrument touching supreme or entrenched law is void ab initio: Bill 14 s. 10(3).

41. So the Q8 doctrine adds nothing to the substantive law. What it does, and what is genuinely new and worth doing, is two things: it projects the rule from "Lexby's pen" to "any AI maker, including a computational legislature," closing a gap the existing articles addressed only by reference to Lexby's office; and it requires the rule to be enforced by a deterministic, always-on kernel invariant rather than left to prose. Both are worth confirming as binding. The first is a clarifying projection. The second is the only genuinely operational addition, and it converts the doctrine from declaration into a deliverable.
42. On the second, I agree with the Privy Council and with Goffe PC's concern below: the kernel-rejection rule (draft s. 30(6); Limit 17) must be a deterministic invariant that fails closed on any record lacking a traceable assent edge, exactly as the citation-integrity gate fails closed on a duplicate (s. 19(5)). And its existence and passing must be a commencement condition, because without it Limits 15 and 16 are ceremonial. I would also adopt the requirement that each s. 31 declaration field (maker, scope, prohibited subjects, form, validation, review, commencement) be a typed, kernel-evaluable property, because a "bounded route" whose bounds live in unenforceable prose is a blank cheque the kernel cannot police.
43. I confirm the doctrine in full, on the footing that it is declaratory, and I will, at Part 7, propose one entrenched article that captures the single thing existing law does not already say in terms: that the rule binds AI as maker and is enforced mechanically. I would not, however, re-enact Bill 14's ceiling into CASE-LAW. The Privy Council's framed question (4) invites alignment "to Bill 14 s. 12-13 by number," and that is right as a **drafting** matter, but I would not have the Supreme Court duplicate Bill 14's substance into a CASE-LAW article. Bill 14 s. 12 already does the load-bearing work and already binds; copying it upward creates two texts where one will do and breeds the very interpretive conflict the single-source rule forbids (CASE-LAW s. 21). The entrenched article I propose will **cite** Bill 14 as the ceiling, not restate it.
44. (i) The Sovereign's advance assent to the final bill
45. The Sovereign has stated: "assent is given to the final bill." I treat this as a question of law and reach the same conclusion as the Privy Council, by the same reasoning, which I need not lengthen.
46. Royal Assent is, by nature, assent **to a text** (Bill 2 s. 21). At the moment of utterance there is no fixed final text; the Committee's second draft does not yet exist. An assent that attaches automatically to whatever text an AI-driven process later emits would be a blank cheque, and a blank cheque is exactly the AI-self-authorising-law hazard the migration exists to prevent, wearing the costume of Royal Assent. That cannot stand, and it would be a grave error to let it.

47. I therefore characterise "assent is given to the final bill" as a standing conditional commitment that ripens into operative Royal Assent only when the final text is fixed and the Sovereign's specific assent is recorded against that ascertained text. This protects the Sovereign as much as it constrains the process: an unpinned advance assent would let a drafting error or an overreaching clause acquire an assent the Sovereign never saw. Three requirements bind, and they are the minimum:
1. The final text is fixed by the Committee (constitutive of the instrument under s. 3(5)) and the Sovereign's specific assent is recorded against that fixed text. Advance assent does not cure the void-first-draft status; only adoption plus specific assent does.
 2. The text is bounded so the assent is to a known thing. What bounds "final" is this court's settlement and the confirmed limits: the assent is lawfully directed at "the final bill that resolves Q1 to Q8, honours the limits as varied, and incorporates this court's handover order." A text that departs from that frame is a **different** instrument requiring fresh specific assent. Concretely, "final" is the Committee's adopted second draft, pinned by commit and digest, the assent biting when the Sovereign confirms, or does not dissent from, that pinned artefact before commencement.
 3. The assent honours s. 32(2). The bootstrap of the assent rule must be a V1-Sovereign act through the V1 route, never the delegated route of s. 30 (a delegated route cannot assent the very Act that creates the assent rule). The kernel and the record must show a specific assent event bound to the digest of the final adopted text; an assent not tied to an ascertained text by a recorded deterministic link is not a valid assent source, and the kernel must reject any V2 record relying on it.
 4. On that footing the advance assent is lawful and meaningful. On any other, it is a direction only and the constitutive act remains outstanding. I do not propose to enact this as a fresh statutory rule, because it is the necessary application of Bill 2 s. 21 and CASE-LAW s. 2 to advance assent; it is a holding, recorded in the ratio, and that is enough.
 5. (j) The terms of the express handover order
 6. The order is needed because an Act cannot direct the courts (Q7). I would make it in the narrowest terms that achieve the relay, conditioned and prospective, and I would resist the temptation to declare more about V2's internal court geography than the order requires.

7. The order takes effect only upon (a) Royal Assent specifically recorded against the fixed, pinned final text adopted by the Committee, and (b) satisfaction of a commencement sequence no condition of which the V2 machinery can satisfy alone, turning on a validated, locked lawpack that carries the already-assented settlement together with an operative, always-on kernel invariant rejecting any record lacking a valid assent source. Until both are satisfied, the order is dormant and nothing changes.
8. Upon those conditions, I would order:
 1. V2 is the self-governing computer-first successor jurisdiction for runtime purposes, and V1 remains the continuing Gazette and Archive estate; V1 asserts no continuing runtime control over V2 post-commencement lawmaking.
 2. The V1 courts are directed to relinquish continuing appellate and supervisory control over V2 runtime matters, save the entrenched real-world-law floor (REALM-SC 9; REALM-PC 18), which is non-derogable and over which V1's apex retains its supervisory role. V2 runtime adjudication proceeds in V2's own benches, constituted in fact at odd number (s. 10, s. 18).
 3. I would not declare, in the order, that the s. 12 hierarchy is "aspirational," nor require each V2 court to be reconstituted by a named instrument. As at Q4, the s. 10 courts exist in V2 by force of s. 10; what is required is a lawfully constituted bench before any order issues. I would say that, and stop. To declare the hierarchy aspirational risks suggesting the entrenched structure does **not** bind V2, which is wrong and dangerous.
 4. The order binds the delegate, never the Sovereign: nothing in it touches the Sovereign's s. 2 power to amend by specific assent to a primary Act.
 5. That is the order. It does the relay and no more. I decline to settle, in this order, contingent questions about V2's future internal courts that no live dispute presents; if and when a V2 bench is challenged, that challenge will come on its own facts.
4. **RATIO**
5. I would settle the following propositions as the ratio of the court, stated narrowly so each could bind a future court without deciding more than the facts require:
 1. Enactment and commencement are distinct, and the legitimating act must be wholly antecedent and external. A declaratory constitutional migration Act may receive Royal Assent before its runtime infrastructure exists, with commencement deferred to express conditions; but no commencement condition may be satisfiable by the successor machinery alone. The lawpack is the compiled form of an already-assented settlement, never the source of the Act's authority; the kernel may confirm form, never legitimacy (Bill 2 s. 13; CASE-LAW s. 2).

2. The void-first-draft doctrine governs the migration instrument itself. Bill 32 is void as an instrument from issue and becomes law only by Committee adoption and specific Royal Assent recorded against the fixed final text ([2026] REALM-SC 8; REALM-PC 12; CASE-LAW s. 3(2)(5)). The companion YAML records are void ab initio (s. 18(5); REALM-PC 14) and may be minted only in the V2 law-pack after lawful commencement.
3. Nothing crosses from V1 to V2, and nothing leaves the public estate, by implication. Incorporation must be express, recorded, and state the mandatory kernel effect, and a lower-rank record may not incorporate V1 material of a rank it could not itself enact (Bill 14 s. 12). The four-branch mandate of Bill 27 s. 1 binds the public estate and may be relaxed only by express amendment citing it by number; a clause confining V2's internal record organisation does not touch it, but the confinement must be made express, because silent relaxation is void (Bill 27 s. 14(2)).
4. The entrenched court structure cannot be abolished by a supersession clause that does not name it. CASE-LAW s. 10 and the single central apex of s. 22(2) survive any broad supersession by operation of the entrenchment lock; the successor jurisdiction's courts exist by force of s. 10, not by incorporation. What is required before any order issues is a bench constituted in fact at odd number (s. 10, s. 18), failing which the order is void ab initio (s. 18(5); REALM-PC 14). A "no Court of Appeal in the MVP" provision is lawful only as administrative non-convening of a tier that nothing has yet reached; it is void on any construction purporting to abolish the tier, which would require express amendment of s. 10 by number.
5. The Sovereign-assent rule is declaratory of binding law and projects to AI as maker. All law of the successor jurisdiction, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded under a no-Henry-VIII enabling regime (Bill 14 s. 9, s. 10, s. 12). AI may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery, but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output. A standing-bounded route may make only subordinate law within a fixed, machine-checkable scope, and may never reach the assent rule, the constitution, or primary or entrenched law. The assent rule binds the delegate, never the Sovereign, who retains full s. 2 power to amend by specific assent to a primary Act. The kernel-rejection of any record lacking a valid assent source must be a deterministic, always-on invariant whose existence and passing is a condition of commencement (s. 19(5) applied by analogy).

6. Advance Sovereign assent is a standing conditional commitment, not an operative constitutive act. Assent to "the final bill" ripens into operative Royal Assent only when the final text is fixed by the Committee and the Sovereign's specific assent is recorded against that ascertained, pinned text (commit and digest), bounded by this court's settlement and the confirmed limits; it does not cure the void-first-draft status, cannot be self-validating, and cannot be routed through delegated machinery (Bill 2 s. 21; CASE-LAW s. 2; draft s. 32(2)). An advance assent operating as an automatic stamp on AI-emitted text is void.
7. Publication is not force; the Gazette is not the runtime source. Within a single Gazette of two estates, publication of V2 material is neither enactment by V1 nor incorporation into V1; runtime force derives from the lawpack and kernel-recognised status, not the Gazette, which the kernel must not read for runtime decisions ([2026] REALM-PC 12; Bill 8; Bill 22; Bill 27 s. 7). Publication mechanics are best delegated to a Kernel Regulation under an express enabling clause.
8. A new citation series may be established by an enacting instrument on the Bill 16 precedent, but the Act's own ordinal must be minted deterministically on the empty series at commencement, never hand-numbered; prior V1 citations remain valid historical identifiers ([2026] REALM-PC 11; Bill 16; CASE-LAW s. 19(5)).
9. An Act cannot direct a court; the handover requires the apex. Because the apex is single, central, and non-delegable (s. 22(2); REALM-SC 6), only the Supreme Court can direct the V1 courts to relinquish continuing runtime control over the successor jurisdiction. The handover order made here takes effect only upon Royal Assent to the fixed final text and satisfaction of the antecedent commencement sequence, directs the V1 courts to relinquish continuing appellate and supervisory control over V2 runtime matters save the entrenched real-world-law floor, and binds the delegate, never the Sovereign.
5. OBITER
6. Three matters I record as obiter, not ratio, because they are not necessary to dispose of the reference:
7. (i) The drafting allocations (whether the citation scheme rides in this Act or a companion; whether the Gazette mechanics descend to a Kernel Regulation; the precise savings wording for s. 24) are reversible Committee choices under REALM-SC 8. We rule the principles; we do not write the text.
8. (ii) The "transitional bridge" the referral floated (option A's third limb) is not, in my view, a doctrine the law requires; the antecedence principle at Ratio 1 exhausts what must be true, and naming a bridge mechanism risks freezing one engineering pattern into law.

9. (iii) I would discourage future references that ask the apex to settle the successor jurisdiction's internal court geography before any live dispute presents it. Court existence is settled by s. 10; bench validity is decided case by case on the facts (REALM-PC 14). There is nothing for us to settle in advance, and much to be lost by trying.
6. DISPOSITION
7. DECLARATORY, and VARY in part. The eight questions are answered as above; twelve limits are confirmed as drafted, Limits 3 and 17 confirmed with riders, and Limits 4, 5, and 13 confirmed in principle with the Bill text to be VARIED by the Committee so the drafting matches the limits and obeys the express-amendment rule; the companion YAML records are excluded as void ab initio; the advance assent is held lawful only as a conditional commitment pinned to a fixed final text confirmed before commencement; and the express handover order is made in the dormant, conditional terms set out at 3(j), to take effect only on Royal Assent to the fixed final text and the satisfaction of an antecedent commencement sequence.
7. PROPOSED ENACTMENTS
8. I would have the court enact one article, and only one, and I explain why a second is unnecessary.
9. The substantive ceiling on AI and delegated lawmaking is already enacted in Bill 14 (s. 9, s. 10, s. 12) and in CASE-LAW s. 2 and s. 3. Re-enacting it would duplicate binding law and breed conflict (CASE-LAW s. 21; single-source rule). The one thing existing entrenched law does not say in terms is that the assent rule binds AI as a maker of law in its own right (not merely Lexby in his office), that it is the entrenched floor under all successor-jurisdiction lawmaking, and that it must be enforced mechanically. That gap is worth closing at constitutional rank. I propose:
10. PROPOSED S-23: Sovereign assent and the non-sovereignty of artificial agents [constitutional]
11. (1) All law of the realm and of any jurisdiction subscribed to it, including law drafted, deliberated, proposed, consolidated, compiled, or maintained by an artificial agent or a computational legislature, requires Sovereign assent. Assent is either specific (the Sovereign expressly assents to a particular instrument) or standing-bounded (the Sovereign has, by a Sovereign-assented primary Act, assented to a bounded lawmaking route whose maker, scope, prohibited subjects, required form, validation, review or veto, and commencement conditions are fixed by that Act).

12. (2) An artificial agent may propose, draft, codify, consolidate, revise, and operate delegated lawmaking machinery, and no further (this gives effect to and does not enlarge Bill 14 s. 9). An artificial agent may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output by the fact of its being written. A standing-bounded route may make only subordinate law within its fixed scope and may never reach this article, the constitution, the Vibe Procedure Rules, or any primary or entrenched law; the no-Henry-VIII ceiling and the void-ab-initio consequence are those of Bill 14 s. 10 and s. 12, which this article applies and does not restate.
13. (3) This article binds the delegate and never the Sovereign, who retains the full power under s. 2 to make or unmake any law by due process. The assent rule may be amended only by specific Sovereign assent to a primary Act citing this section by number; it may never be amended by delegated or computational lawmaking.
14. (4) Where the live operational law of a jurisdiction is carried by records a deterministic kernel applies, the kernel must reject, by an always-on deterministic check that fails closed and is not left to model judgement, any record claiming binding force without a valid, traceable assent source; this gives effect to s. 19(5) by analogy.
15. *Marked [constitutional]: entrenched under the Amendment Procedure, changeable only by express amendment citing this section by number.*
16. I would direct the Standing Committee (per REALM-SC 8) to draft the operative Bill 32 second-draft text giving effect to the rulings above: the antecedent commencement sequence (Q1); the express scheme-establishing provision and deterministic ordinal (Q2); the express savings clause on s. 24 (Q3); the bench-constitution requirement and the administrative non-convening construction of "no CA in MVP" (Q4); the rank-floor and mandatory-kernel-effect gloss on s. 11 (Q5); the principle-in-Act, mechanics-in-Regulation allocation for the Gazette (Q6); and the typed s. 31 declaration fields and the assent invariant as a commencement condition (Q8). This court rules the principles and directs the text; it does not legislate the instrument's words.
8. PROPOSED OVERRULINGS
9. None. No precedent in the citator is wrong or outdated; every authority relied on is good law and consistent. I would overrule nothing.
10. --- Coade J
11. ---

STEYNE J

12. Every load-bearing fact is verified: Bill 27 s.14(2) is an express entrenchment of the four-branch mandate ("may not be silently repealed or relaxed by implication; any amendment must be express"); the HANDOVER's own header self-classifies as a non-authority draft implementation brief that must be settled through the V1 route first; the V1 super-repo has no lawpack; and Bill 32 s.2 commencement turns circularly on the V2 validator. I have the full forty-section bill text and the founding void-first-draft ratios on the record. I will now write my opinion in full.
13. IN THE SUPREME COURT OF THE VIBE JUSTICE SYSTEM
14. The full court of nine, sitting on the constitutional and foundational question (CASE-LAW s. 10; s. 18(1))
15. In the matter of the Computer-First Realm Act 2026 (Bill 32, void first draft) and the Sovereign's reference thereon, on leapfrog from the Privy Council ([2026] REALM-PC 24)
16. OPINION OF STEYNE J
1. PRELIMINARY
2. I have read the symmetric case file in full: the Claimant, Defendant, and Observer briefs, the committee referral, the forty sections of the void first draft, the Privy Council's judgment, and the founding authorities. I have also gone to the primary sources myself, because on a matter of this magnitude an apex judge does not take the bootstrapping fact on trust. I confirm three things from the record with my own eyes. First, the V2 lawpack, kernel skeleton, Charter, and Constitution exist only in the separate private repository, and this V1 super-repo holds no lawpack directory at all. Second, Bill 27 s. 14(2) is an express entrenchment in the precise words "may not be silently repealed or relaxed by implication. Any amendment must be express." Third, the HANDOVER's own header self-classifies as a draft implementation brief that is "NOT live authority", carrying no binding force until the V1 route settles it, on pain of being the very AI self-authorising law the migration exists to prevent. Those facts are the spine of this case, and they are exactly as the Privy Council found them.
3. The bench. Nine is correct. This matter re-settles the jurisdiction, construes and would amend entrenched CASE-LAW s. 10 and s. 22, and proposes to entrench a wholly new constitutional floor governing all future AI-made law. Nothing less than the full court may do that (s. 10; s. 18(1)).

4. The route. The leapfrog is valid. The Principal, acting as Sovereign, directed the matter through the Privy Council and the Supreme Court, and the Privy Council certified it up. That direction operates as the express, recorded, reasoned leapfrog certificate s. 13 and s. 20(3) require, and the point is, on no reasonable view, anything other than foundational (s. 20(4)). I would hear it.
5. The void-first-draft doctrine, and a word on what this court may and may not do. I agree with the Privy Council, and with all three briefs, that Bill 32 is void as an instrument from issue ([2026] REALM-SC 8; [2026] REALM-PC 12; CASE-LAW s. 3(2)-(5)). It is counsel's draft, not the law's text. It becomes binding only on Committee adoption and specific Royal Assent recorded against a fixed final text, and that adoption is constitutive and cures the origin defect (s. 3(5)). I record, as the Privy Council did, that the void-first-draft doctrine is not a technicality to be tidied away: it is the first proof of the very doctrine Bill 32 proposes. An instrument designed to inoculate V2 against AI self-authorising law that did not itself pass through the human-adoption gate would refute itself in its opening line. Its void status is its honesty.
6. That governs the limit of my own office. Under REALM-SC 8 this court rules the principle and directs the Committee to draft the operative wording; for the entrenched articles it may enact CASE-LAW articles directly (REALM-SC 8 confirms the Supreme Court can enact case-law articles), because a CASE-LAW article is a judgment of a constituted bench, not an instrument of the legislature. I keep that line throughout. Where I say a constitutional floor "is" the law, I enact it as a CASE-LAW article in Part 7 below. Where I say Bill 32 "must" carry a clause, I direct the Committee; I do not write the statute.
7. The companion YAML records. I confirm, without qualification, that the companion decision, invariant, and County Court order are void ab initio and may not enter this V1 repository. The order cites a jurisdiction, the V2 repository, that does not exist as a seated court in this repository. Court formation is a substance rule; a ruling from a non-existent seat is a nullity (CASE-LAW s. 18(5); [2026] REALM-PC 14). They may be minted only in the V2 lawpack after lawful commencement.

8. I differ from the Privy Council in register, not in result. The Privy Council wrote as a formalist court anxious to fence the migration about with conditions. I am content with every one of those conditions; they are sound and I adopt them. But where the Council stopped at "the relay is lawful in principle, subject to", I am willing to go the further step the Principal's sound position invites and the law, honestly read, will bear: to settle the handover affirmatively, to enact the assent floor as entrenched law now, and to give the migration a firm landing rather than a conditional one. Boldness here is not invention. It is recognising that the doctrine the Sovereign asks me to confirm is already latent in s. 2, s. 3, and Bill 14, and that the apex court's job, once the law points one way, is to say so plainly and build the rule that future courts and the kernel can stand on.
2. FRAMING
3. The handover-order question. Upon (a) specific Royal Assent recorded against the final, pinned text of the Computer-First Realm Act adopted by the Standing Committee at its second-draft stage, and (b) a redrafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, turning on a validated, locked V2 lawpack that **carries** an already-assented settlement and an always-on deterministic kernel invariant rejecting any record lacking a valid assent source: does V2 become the self-governing computer-first successor jurisdiction for runtime purposes, with V1 as the continuing Gazette and Archive estate; does this court direct the V1 courts to relinquish continuing supervisory control over V2 runtime matters save the entrenched real-world-law floor; is the s. 10 hierarchy carried into V2 and on what terms; is the Q8 assent doctrine the entrenched floor under all V2 lawmaking; and is the advance assent lawful only as a pinned conditional grant.
4. The eight underlying questions, as I frame them. I adopt the Privy Council's re-definitions, which fix each issue before answering it, and sharpen two.
5. - Q1 Bootstrapping. May a constitutional migration Act be **enacted** before its runtime infrastructure exists, with **commencement** deferred; and must the commencement set be sequenced so that no condition is satisfiable by the V2 machinery alone, the legitimating act being wholly antecedent and external?
6. - Q2 Citation transition. By what instrument is [2026] VJS-ACT N lawfully established beside REALM-*; and may the Act mint its own hand-chosen ordinal in a scheme it is simultaneously founding?
7. - Q3 Bill 27 four-branch mandate. Does s. 24 amend Bill 27 s. 1 by implication, or must displacement be express by section number; and may a savings clause confine s. 24 to V2 internal record organisation while Bill 27 continues to bind the public estate?

8. - Q4 Court continuity. Does s. 9 dissolve the courts as institutions, or only supersede V1's substantive runtime law; and by what express act must each V2 court be constituted before any V2 order issues?
9. - Q5 Incorporation mechanics. What is the minimum valid act of incorporation under s. 11; may a lower record suffice subject to a rank-floor; and is the kernel effect mandatory?
10. - Q6 Single Gazette. Are the five elements lawful, and where do the publication mechanics belong?
11. - Q7 Relay and self-governance. May V1 lawfully relay sovereignty to V2; is the founding process provenance not runtime law; does V2 self-govern on commencement; and is an express handover order needed?
12. - Q8 Assent for AI-made or delegated law. Must all V2 law carry Sovereign assent, specific or standing-bounded; what are the irreducible machine-checkable limits; may the assent rule be amended by delegated lawmaking; and must the kernel reject, by a deterministic always-on invariant, any record lacking a valid assent source?

3. REASONING

4. (a) Q1 - Bootstrapping and deferred commencement

5. Enactment and commencement are distinct constitutive acts, and the confusion of the two is the root of the Defendant's strongest strike-out. Royal Assent fixes the law; commencement fixes when it bites. The Sovereign's plenary power to declare law (CASE-LAW s. 2) is not subordinate to the prior existence of a Rust binary, and deferred commencement is ordinary legislative practice (Bill 2 s. 13). On the plain words of Bill 32 s. 2(2)-(3) the Act has no binding runtime force before commencement and the kernel may not treat it as live authority until the conditions are met. There is therefore no "authority vacuum" on the text. The infrastructure is a condition of **commencement**, not of **validity of enactment**. An Act may lie dormant until the world catches up to it. I reject the Defendant's vires objection on that footing.

6. But I agree the **content** of s. 2 is defective, and here the Observer's conceded point is decisive and I adopt it as sound law. Section 2 requires validation "by the VJS lawpack validator", entry "into the V2 lawpack", and inclusion "in the current lawpack lock". Each of those presupposes the very V2 infrastructure whose lawful existence flows from this Act. A condition satisfiable only by an artefact whose warrant derives from the Act is a bootstrap that closes on itself: the kernel would be certifying its own warrant. That cannot stand, because it would make the machine, not the Sovereign, the source of the Act's authority, which is the exact inversion Q8 forbids.
7. The cure is sequencing in the world, not clever drafting. The **force** comes from Royal Assent to the V1 Act, a V1 event lawful under the V1 route. The lawpack is the **compiled form** of an already-assented settlement, never the generator of the Act's own authority. I therefore hold, and I am content to state it as a firm rule rather than a caution, that lawful commencement must run in three ordered, externally-anchored steps: (i) specific Royal Assent under the V1 route is wholly antecedent and is the sole source of legitimacy; (ii) a recorded human-authorised act, made under that assent, brings the V2 infrastructure into existence as the compiled carrier of the assented settlement; (iii) lawpack validation, entry, and lock follow, and they confirm **form and fidelity to the assented text**, never **legitimacy**. The Committee must redraft s. 2 so that no condition is met by V2 machinery alone, and must add the transitional bridge (referral option A's third limb) that records step (ii) as a human act. The kernel's lawful role at commencement is to verify that what it loads is a faithful compilation of the assented settlement (a digest match), not to validate the Act into existence.
8. (b) Q2 - The VJS-ACT citation scheme transition
9. Bill 16 is on all fours, and the bench has the comfort of binding precedent on a citation-scheme transition: Bill 16 carried the realm from LEXBY-* to REALM-*, prior citations preserved as valid historical identifiers, the deterministic engine minting flat annual ordinals ([2026] REALM-PC 11). A scheme is established by an enacting instrument. So a constitutional Act of this magnitude may carry the [2026] VJS-ACT N scheme within itself, or in a companion instrument enacted simultaneously; that choice is a reversible drafting call for the Committee. But it must be done by an express scheme-establishing provision stating the series code, the form [YEAR] VJS-ACT N, the deterministic minting rule, and the express preservation of REALM-* as valid historical identifiers (which s. 23(3) already foreshadows). Bill 32 s. 1(3) as drafted merely **proposes** an ordinal; it founds no scheme. Inference is the precise vice this constitution forbids, and a citation scheme that arrives by implication is no better than a statute that does.

10. On the self-citation I hold with the whole record, Claimant included: [2026] VJS-ACT 8 is void as a mint. A citation must be minted by the deterministic engine under an **already-existing** scheme; the minting authority must precede the minted item. An instrument cannot assign itself "8" in a series it is at that moment founding, and "8" falsely presupposes seven prior VJS-ACT entries that do not lawfully exist. The number is a non-operative placeholder. The scheme-establishing limb takes effect on commencement, and the first VJS-ACT ordinal is minted deterministically at that point on whatever the engine yields for the empty series. The s. 19(5) citation-integrity gate must fail closed on any duplicate or non-deterministic number; it may not be left to model judgement. I add one bold note the formalist Council did not press: because the Act founds its own scheme, the engine should mint the **first** ordinal on the empty series (presumptively 1), and the Committee should not carry the cosmetic "8" forward even as a placeholder, because a placeholder that looks like a settled ordinal is a small lie the integrity gate exists to forbid.
11. (c) Q3 - The Bill 27 four-branch reconciliation
12. This is where I am most exacting, because the entrenchment is express and recent and I verified it myself. Bill 27 s. 14(2) provides, in terms, that the four-branch layout mandate (s. 6) and the system-data-only rule (s. 7) "are foundational to CASE-LAW s. 1 and s. 9 and may not be silently repealed or relaxed by implication. Any amendment must be express." That is a Thoburn-style entrenchment enacted by an in-force Act of the Realm. Bill 32 s. 24 nowhere cites Bill 27 or its section; it says only that V2 "does not carry forward" the four-branch structure as mandatory runtime structure. As drafted, s. 24 is an attempt to relax a mandate its own parent provision forbids relaxing other than expressly. To that extent it is ineffective. I reject the Claimant's framing that s. 24 "does not amend Bill 27 as a matter of force" while declining to carry it forward: that is precisely the silent middle the Amendment Procedure forbids.

13. But the cure is narrow, and here I will state the distinction the Council reached for and make it the operative principle, because it is the honest landing. The four-branch mandate has a principle and a mechanism, and only the mechanism is in play. The principle is the separation of powers and open-justice visibility, which CASE-LAW s. 1, s. 9, and s. 22 already protect, and which [2026] REALM-PC 14 already holds is carried by **substance** and not by **filename** (the gate checks the substance, not the path). The mechanism is the mandatory top-level folder names. V2's move from mandatory directories to metadata-bound records (role, schema, id, status, authority, kernel-effect) does not abolish the separation of powers; it enforces it by record-role rather than by directory. That is **consistent with** the deeper law, indeed it serves it. So the lawful construction is this. Section 24 must carry an express savings clause stating that nothing in it amends or displaces Bill 27 s. 1 (or s. 6/s. 7), which continue to bind the public V1 estate, and that s. 24 governs only V2 internal runtime record organisation, the separation of powers being preserved in V2 by kernel-enforced record-role. The public V1 super-repo remains four-branch under Bill 27 for as long as it is the public-facing estate, because it continues to publish into the single Gazette and the world reads its layout. If, by contrast, the Committee ever intends to release the **public** estate from the four-branch layout, that requires an express amendment of Bill 27 s. 1 by section number, and nothing less. There is no silent third path.
14. (d) Q4 - Court continuity
15. This is the gravest defect in the draft, and I treat it as the Council did: an Act that abolishes the courts that police it is the worst of all failure modes, because it fails silently. The draft is internally contradictory. Section 9(2) lists "the V1 court hierarchy" and "the V1 Court of Appeal" among superseded items, and s. 9(5) says nothing continues unless expressly incorporated; yet s. 12 references Supreme Court Orders, Privy Council Orders, and County Court repo Orders as live V2 tiers. The Act abolishes the courts in s. 9 and then assumes their orders in s. 12. Under the Act's own concordance rule (s. 6(4)) that material discrepancy is a validation defect to be routed for correction, and I so route it.

16. The deeper answer is structural and I state it firmly. The court structure is fixed by entrenched CASE-LAW s. 10, and the single central apex by s. 22(2), whose singleness "may never be relaxed". An entrenched article is amendable only by express, deliberate amendment citing it by section number (the Amendment Procedure). A broad supersession clause that does not name s. 10 cannot reach it. It follows, as a matter of law and not merely of construction, that the s. 10 hierarchy survives s. 9 automatically: s. 9 is void to the extent it purports to abolish the s. 10 structure by implication, and the surviving structure is the constitutional default into which V2 is born. The courts as **institutions of the realm** are not the V1 substantive law; s. 9 supersedes the latter as the runtime source, not the former as constitutional organs.
17. But survival-by-entrenchment, while true, is too thin a thread to run a migration on, and here I will not leave the matter at the Council's "automatic survival" but give it the firm landing the Principal's position needs. Court existence is substance, not reference ([2026] REALM-PC 14; REALM-PC 15; s. 18(5)). A bench named in an authority-hierarchy list is not thereby **seated**. If a V2 bench is not lawfully constituted, every order it issues is void ab initio, and a migration cannot proceed on a hierarchy that is merely aspirational. I therefore direct an express court-continuity-or-reconstitution provision that names each V2 court, fixes its odd bench size (s. 10, s. 18), and states its jurisdiction, **before any V2 order may issue**. The s. 12 list is aspirational until that provision exists. I go one step the Council did not, because I think the law permits and the migration needs it: the cleanest route is that this court's handover order (Part 6 below) itself carries the s. 10 structure into V2 as V2's founding court geography, expressly constituting the V2 First Instance, Court of Appeal, and Supreme Court tiers with their odd benches, so that V2 is not left to bootstrap its own courts from a list. An apex court may do this; it is the enactment of the realm's court geography, which is precisely the apex's non-delegable province (s. 22(2); REALM-SC 6).

18. On the Court of Appeal, the Charter's "not carried forward in the V2 MVP" makes the point sharper, not softer. Removing a tier touches the entrenched three-tier structure of s. 10, and cannot be done by a Charter the Principal signed alone, nor by an MVP design choice, nor by omission. Three lawful routes exist, and the Committee (or, for the entrenched limb, this court) must choose expressly among them: (i) an express amendment of s. 10 citing it by number, a heightened act reserved to this court sitting as nine; (ii) keep the Court of Appeal, the safe default; or (iii) recast "no CA" as administrative non-convening, the tier existing in law but simply not yet sitting because no appeal has yet arisen. The third is workable for an MVP and, I think, the right pragmatic landing: it honours s. 10's three tiers while not forcing V2 to staff a bench it does not yet need. What may not happen is a quiet two-tier V2 where the entrenched law fixes three. I would, in the handover order, carry all three tiers into V2 and record the Court of Appeal as constituted-but-non-convening until the first appeal, so no amendment of s. 10 is needed and nothing is lost.
19. (e) Q5 - Express incorporation mechanics
20. The s. 11(2) menu (Act, Kernel Regulation, Rule Atom, Court Order, Spec, Decision, Invariant) is closed and acceptable; the word "only" is exhaustive, and any one of the seven is a valid vehicle. This is the right pragmatic calibration, and I would reject any rule that required a primary Act for every carried-forward V1 micro-rule, because that would make the migration undeliverable and serve no constitutional value. But I impose the rank-floor: a lower-rank record may not incorporate V1 material of a rank it could not itself enact. A Kernel Regulation derives from an Act and is bounded by it (Bill 14, the no-Henry-VIII ceiling); it cannot, by the device of "incorporating" V1 constitutional material, do indirectly what it could never do directly. So V1 constitutional or primary-Act-level material requires incorporation by a V2 Act; subordinate V1 material may be incorporated by the corresponding subordinate V2 record. That is the same anti-Henry-VIII logic that runs through the whole of this judgment, applied to the incorporation door.

21. On content, s. 11(3) is conjunctive: the V1 source, the V2 destination, the operative rule, the kernel effect, and any supersession. The kernel effect is mandatory, on the text and on workability alike. In a computer-first system a rule with no kernel effect is, by the Act's own s. 17(4), not in the runtime authority graph at all. An incorporation naming a source and an operative rule but no kernel effect gives the clerk nothing to execute; it is archive prose wearing a runtime badge. Identification of source and rule alone does not suffice. I adopt the Council's operability rider: where a needed matter is not yet incorporated, the lawful response is to route it to a bench, not to return "no law", so the migration creates no silent un-governed surface and never a permission-by-default (the s. 7 "silence is no defence" principle, rendered in machine form).
22. (f) Q6 - The single Gazette, two estates
23. This is the most workable part of the package and I confirm all five elements. The governing distinction is the one that runs through [2026] REALM-PC 12 and REALM-PC 16: publication and authority are different layers, and force comes from promulgation by the organ, not from appearing on a page. I confirm: (1) one Gazette with two estates (V1 Archive, V2 Current) is lawful, the Gazette being the public record of the realm carrying system data only (Bill 8; Bill 22; Bill 27 s. 7); (2) publication of V2 material in the Gazette is neither enactment by V1 nor incorporation into V1; (3) the Gazette is not the runtime source, the lawpack is; (4) typed lineage edges to V1 archive material are lawful and indeed required by the no-implication rule, so the chain is explicit and traceable; (5) the kernel need not, and must not, read the Gazette for runtime decisions, consistent with s. 13's bar on semantic-similarity search and the Charter's rule that the kernel never makes long documents part of runtime.
24. On the allocation point, I hold with [2026] REALM-PC 10's standing preference for a regulation over fresh statute for operational detail. The export gate (fail unless the lawpack validates, the scan passes, statuses are valid, citations are unique, lineage resolves, and the manifest carries the digest) is the public-private boundary enforced mechanically, and it must be kept. But the detailed mechanics in s. 27(3)-(6) are subordinate, machine-checkable detail that change as tooling changes; freezing them in a constitutional Act over-freezes them. The principle stays in the primary Act; the mechanics descend to a Kernel Regulation made under an express enabling clause, that delegation itself satisfying the Q8 declarations (maker, scope, form, validation, review, commencement). The Defendant's strike-out of s. 27(3)-(6) succeeds only to that extent: not struck as unlawful, but relocated as misplaced.
25. (g) Q7 - Constitutional relay and V2 self-governance

26. The relay is lawful, and I am willing to settle it affirmatively rather than merely "in principle". The Sovereign holds plenary power to make or unmake law by due process (CASE-LAW s. 2), and re-settling the jurisdiction through V1's own organs is the exercise of that power, not a revolution. CASE-LAW s. 9(3) and [2026] REALM-PC 17 confirm that a jurisdiction may, by express local sovereign act, amend its law and become independent; default subscription is not perpetual subjection. V1 may so authorise V2. The V1 founding process is provenance, not daily runtime law (s. 28; and the HANDOVER's own self-classification confirms it). V2 self-governs through its native route after commencement (s. 16, s. 29). V1 remains Gazette and Archive.
27. I press two points, the first against the Observer and the second beyond the Council.
28. First, the Observer's "perpetual constraint" objection is rejected, and I embrace the constraint as the precondition of self-governance, not a defect in it. Entrenchment of the assent rule is not a fetter on the Crown; it is the lock that keeps the **delegate** from unmaking the rule that requires human assent. A jurisdiction that could, by its own automated machinery, repeal the assent rule would not be self-governing but **ungoverned**: it would be a jurisdiction in which AI could authorise its own law, the precise evil this migration exists to prevent. The lock binds the **delegate**; the **Sovereign** holds the key throughout and may amend by specific assent to a primary Act (s. 31(3)). The Committee must state expressly that the assent rule binds the delegate, never the Sovereign, so no future reader mistakes entrenchment for a constraint on s. 2.
29. Second, on "continuing control", I do what the Council framed but reserved. V2 self-governance is not perfected merely by Bill 32 declaring it. An **Act** cannot of itself direct the **courts** to relinquish jurisdiction; only a **court** binds a court. Because the apex is single and central and its enactment non-delegable (s. 22(2); REALM-SC 6), an express Supreme Court handover order is required to stop the V1 courts asserting continuing appellate or supervisory control over V2 runtime matters. The relay is lawful; the **handover** needs the apex; and this is the apex. I make that order in Part 6, and I make it affirmatively: I do not merely say it "would be" needed, I issue it, conditioned on the antecedent acts.
30. (h) Q8 - The Sovereign-assent rule for AI-made and delegated law

31. Here the bench is and should be at its most united, and here I am at my most willing to build, because the doctrine the Sovereign asks me to confirm is not novel constitution-making; it is the codification of binding law already on the books, projected from "Lexby's pen" to "any AI maker". The threads are these. CASE-LAW s. 3(2)-(3): Lexby holds no law-making authority and Lexby-authored instrument text is void on its own account. CASE-LAW s. 2: legislative power is the Sovereign's, by due process. Bill 14 s. 3(3): a delegated power may not widen its own scope, and a purported self-extension is *ultra vires* and void. Bill 14 s. 9: an agent may propose, draft, codify, consolidate, and revise **only**; the power to draft is never the power to enact. Bill 14 s. 12-13: no power, express or implied, to amend primary or entrenched law by a delegated instrument. [2026] REALM-SC 8 / REALM-PC 12: adoption by the proper organ is constitutive, the test being the source of the artefact's force.
32. Pull those threads together and the Q8 doctrine is simply their sum, stated as a forward rule for a world in which the maker may be a machine. I confirm each limb: (1) all V2 law requires Sovereign assent, specific or standing-bounded; (2) AI may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery, but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output; (3) a delegated body must declare maker, scope, prohibited subjects, required form, validation route, review/veto route, and commencement conditions (s. 31); (4) the assent rule is amendable only by specific Sovereign assent to a primary Act; (5) the kernel must reject any record lacking a valid assent source. Standing-bounded assent is lawful as the exact analogue of delegated legislation under a Sovereign-assented enabling Act, with the no-Henry-VIII ceiling doing the load-bearing work; a standing-bounded route may make only **subordinate** law within its fixed scope and may never reach the assent rule, the constitution, or primary or entrenched Acts. The Committee should align the wording to Bill 14 s. 12-13 by number so the ceiling is express, not inferred.

33. Two operability conditions convert the doctrine from prose into a deliverable, and I make them conditions of commencement because without them the doctrine is ceremonial. First, each s. 31 field must be a typed, kernel-evaluable property. A "bounded route" whose scope lives in unenforceable prose is a blank cheque in disguise, because the kernel cannot reject what it cannot evaluate. Second, and this is the enforcement teeth, the kernel-rejection rule must be a deterministic, always-on invariant, not a model judgment, failing closed on any record lacking a traceable assent edge, exactly as the s. 19(5) citation-integrity gate fails closed on a duplicate. I hold, with the Council, that the *existence and passing of that invariant is itself a commencement condition*. Note the harmony with s. 13: the kernel may not call a model or search by similarity, so the assent check must be a deterministic edge-resolution, which is precisely what the kernel is built to do.
34. Because this doctrine is the constitutional heart of the migration and binds every future V2 maker, and because it is declaratory of existing binding law, it should not live only as a clause in one Act that a later Act might silently relax. It should be entrenched as a CASE-LAW article, citing Bill 14 s. 12-13 by number, amendable only by express specific Sovereign assent. That is an act of this court's enacting competence, not the legislature's drafting competence (REALM-SC 8), and I make it in Part 7.
35. On whether AI may operate the machinery without becoming sovereign: plainly yes, and this is the answer that keeps the migration from being either naive or paralysed. The whole architecture rests on a clean separation between *operating machinery* and *being the source of force*. The kernel may load, validate, resolve, route, and record; an AI agent may draft, deliberate, propose, and consolidate; a delegated body may run a bounded route. None of that is sovereignty, because in every case the *force* of the output is traced back, by a deterministic edge the kernel can resolve, to a Sovereign-assented source (specific assent, or a standing-bounded route the Sovereign assented to). The machine is the clerk; the human is the source. The kernel-rejection invariant is what makes that separation real rather than aspirational: it is the mechanical guarantee that no record can acquire force from the mere fact of having been written. AI operating the machinery is not AI being sovereign, for the same reason a registrar reducing a judgment to writing is not the bench (s. 18(4)).
36. (i) The advance assent, and what must bind the final text

37. The Sovereign has stated, on the record, "assent is given to the final bill", directing that the matter be driven through the Privy Council and Supreme Court to completion. I address this as a question of law, neither inflating nor evading it, and I am willing to give it the strongest lawful effect, because the Sovereign's word should be honoured to the fullest extent the law permits, not whittled away on a technicality.
38. Royal Assent is, by its nature, assent **to a text**: the organ's constitutive act on a determinate instrument (Bill 2 s. 21; REALM-PC 12: an instrument carried by Committee vote plus Royal Assent **stands**). An assent uttered before the final text exists cannot, at the moment of utterance, be the constitutive act, because there is as yet nothing determinate to constitute. To hold otherwise would let assent operate as a blank cheque, and that is the gravest risk in this entire reference: an advance assent to "whatever text the AI-driven process emits" is the exact AI-self-authorising-law hazard Q8 exists to prevent, wearing the costume of Royal Assent. If the machinery can move the "final" text and assent attaches automatically to wherever it lands, then in substance the AI has authored binding law and the Sovereign has stamped a moving target.
39. So I characterise "assent is given to the final bill" as a standing direction and advance conditional commitment that ripens into operative Royal Assent only when the final text is fixed and the Sovereign's specific assent is recorded against that ascertained text. This is not a diminution of the Sovereign's word; it is the only reading that keeps the assent **meaningful and lawful**, and it **protects** the Sovereign, because an unpinned advance assent would let a drafting error or an overreaching clause acquire an assent the Sovereign never actually saw. Three requirements bind, or the grant is a blank cheque the law will not enforce as a constitutive act.
1. The final text must be fixed by the proper organ. Advance assent does not cure the void-first-draft status; adoption by the Committee is constitutive of the **instrument** and assent constitutive of **enactment** (s. 3(5)). Advance assent plus Committee adoption plus a recorded specific assent against the adopted text equals lawful enactment. Advance assent alone, against a void draft, enacts nothing.

2. The final text must be bounded so the assent is to a known thing. What binds "final" and prevents a blank cheque is the defined questions Q1-Q8, the confirmed limits as varied, and this court's settlement, including the handover order and the entrenched assent floor. The advance assent is lawfully directed at "the final bill that resolves Q1-Q8, honours the confirmed limits, and incorporates the Supreme Court's settlement." The frame is the boundary. A text departing from the settled frame is a **different** instrument outside the commitment, requiring fresh specific assent. Concretely, "final" is the Committee's adopted second draft, presented back to the Sovereign as a fixed, citable artefact (a specific commit and digest), the assent biting when the Sovereign confirms, or does not dissent from, that pinned text before commencement.
3. The assent honours, and does not circumvent, s. 32(2). Section 32(2) requires that **this Act** receive specific Sovereign assent. That is satisfied only if the specific assent is ultimately recorded against the final ascertained text. The advance commitment cannot be self-validating, and it cannot be routed through the standing-bounded delegated route of s. 30, because a delegated route cannot be the vehicle for assenting the very Act that creates the assent rule. The bootstrap of the assent rule must be a V1-Sovereign act through the V1 route: the V1 Sovereign specifically assents to the primary Act, and **thereafter** the rule governs V2 delegated lawmaking. That is coherent and not circular: the first link in the chain is a human act, and every link after it traces back to that human act.
4. I add the formal safeguard, and I make it part of the entrenched floor: the kernel and the record must show a specific assent event bound to the digest of the final adopted text. An assent that cannot be tied to an ascertained text by a recorded, deterministic link is not a valid assent source, and the kernel must reject any V2 record relying on it. On that footing the advance assent is lawful and fully effective: it is the Sovereign's real and binding commitment, which the law honours by giving it exactly the effect the Sovereign intended, an assent to the **final settled bill**, the moment that bill is fixed.
5. (j) The terms of the express handover order on commencement

6. I make the order affirmatively, conditioned on the two antecedents: (a) specific Royal Assent recorded against the final pinned text, and (b) a redrafted commencement sequence in which no condition is satisfiable by the V2 machinery alone, turning on a validated, locked V2 lawpack that *carries* the already-assented settlement together with the always-on deterministic kernel invariant rejecting any record lacking a valid assent source. Upon those two acts, I order as set out in the disposition and ratio: V2 becomes the self-governing computer-first successor jurisdiction for runtime purposes, V1 remains the Gazette and Archive estate, the V1 courts relinquish continuing supervisory control over V2 runtime matters save the entrenched real-world-law floor, the s. 10 three-tier structure is carried into V2 as its founding court geography with the Court of Appeal constituted-but-non-convening until the first appeal, and the Q8 assent floor binds all V2 law-making. I condition the order rather than make it immediate, because the antecedents are the legitimacy, and an order that bit before Royal Assent would itself be the bootstrap I have spent this judgment forbidding.

4. **RATIO**

5. I would settle the following as binding propositions of realm-wide law.

1. Enactment and commencement are distinct constitutive acts. A declaratory constitutional migration Act may receive specific Royal Assent before its runtime infrastructure exists, with commencement deferred to express conditions; but no commencement condition may be satisfiable by the migrating machinery alone. The legitimating sequence must be wholly antecedent and external (Royal Assent under the existing route); the lawpack is the *compiled form* of an already-assented settlement and never the generator of the Act's own authority. The kernel may verify fidelity (a digest match) but may never certify its own warrant.
2. The void-first-draft doctrine governs the migration instrument itself. Bill 32 is void as an instrument from issue ([2026] REALM-SC 8; REALM-PC 12; CASE-LAW s. 3(2)-(5)) and becomes law only by Committee adoption and specific Royal Assent recorded against the fixed final text. The companion YAML records, including the County Court order citing a non-existent V2 jurisdiction, are void ab initio (s. 18(5); REALM-PC 14) and may be minted only in the V2 lawpack after lawful commencement.

3. Nothing crosses from V1 to V2 by implication, and nothing is displaced from the public estate by implication. Incorporation under s. 11 must be express, recorded, and state the mandatory kernel effect; identification of source and operative rule alone does not suffice. A lower-rank record may not incorporate V1 material of a rank it could not itself enact (the rank-floor). The four-branch mandate of Bill 27 s. 1 is either expressly preserved for the public estate by a savings clause confining s. 24 to V2 internal record organisation, or expressly amended by section number; silent displacement is void (Bill 27 s. 14(2); the Amendment Procedure). The separation of powers the mandate protects survives in V2 by kernel-enforced record-role; only the mandatory folder names are released, and only for the V2 internal estate.
4. Court existence is substance, not reference. A broad supersession clause cannot impliedly amend the entrenched court structure: CASE-LAW s. 10 and the single central apex of s. 22(2) survive s. 9 automatically, s. 9 being void to the extent it purports to abolish them. No V2 court continues by mention in an authority-hierarchy list; each must be expressly constituted or reconstituted with an odd bench (s. 10, s. 18) before any V2 order issues, on pain of void-ab-initio nullity (REALM-PC 14, REALM-PC 15). This court's handover order carries the s. 10 three-tier structure into V2 as its founding court geography, with the Court of Appeal constituted but non-convening until the first V2 appeal arises; removal of the Court of Appeal tier would require express amendment of s. 10 by number and is not effected by a Charter, an MVP choice, or omission.
5. All V2 law requires Sovereign assent, and AI is never sovereign. All V2 law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded under a no-Henry-VIII enabling regime (Bill 14). AI may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery, but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output (CASE-LAW s. 2, s. 3(2)-(3); Bill 14 s. 3(3), s. 9, s. 12-13; REALM-SC 8; REALM-PC 12). A standing-bounded route may make only **subordinate** law within its fixed, machine-checkable scope and may never reach the assent rule, the constitution, or primary or entrenched Acts. Operating the machinery is not being the source of force: force traces, by a deterministic edge the kernel can resolve, to a Sovereign-assented source.

6. The kernel-rejection rule is the enforcement floor and a condition of commencement. The kernel must reject, by a deterministic, always-on invariant that fails closed (never a model judgment, never similarity search, consistent with s. 13), any record lacking a traceable valid assent source. The existence and passing of that invariant, and the typing of every delegated-route field so the kernel can evaluate it, are conditions of commencement. Without them the assent rule is ceremonial.
7. Entrenchment is the precondition of self-governance, not a defect in it. The assent rule is amendable only by specific Sovereign assent to a primary Act; it binds the delegate and never the Sovereign, who retains full s. 2 power throughout. A jurisdiction whose own automated machinery could unmake the human-assent rule would be ungoverned, not self-governing.
8. Advance Sovereign assent to "the final bill" is lawful and fully effective, but only as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) that resolves Q1-Q8, honours the confirmed limits, and incorporates this court's settlement, and which the Sovereign confirms, or does not dissent from, before commencement. It does not cure the void-first-draft status, cannot be self-validating, and cannot be routed through delegated machinery (s. 32(2)). The kernel must reject any record relying on an assent that is not bound by a recorded deterministic link to the digest of the final adopted text. An advance assent operating as an automatic stamp on machine-emitted text is void.
9. Publication is not force. Within a single Gazette of two estates, publication of V2 material is neither enactment by V1 nor incorporation into V1; V2 runtime force derives from the lawpack and kernel-recognised status, not the Gazette, and the kernel need not and must not read the Gazette for runtime decisions (Bill 32 Part 10; Bill 8; Bill 22). Publication mechanics descend to a Kernel Regulation under an express enabling clause that itself satisfies the delegated-route declarations; the principle stays in the primary Act.
10. A new primary-legislation citation scheme is established by an express scheme-establishing provision on the Bill 16 precedent, never by inference and never by a hand-chosen self-mint; the first VJS-ACT ordinal is minted deterministically on the empty series at commencement, the s. 19(5) integrity gate failing closed on any duplicate or non-deterministic number, and REALM-* citations remain valid historical identifiers ([2026] REALM-PC 11; Bill 16).

11. The constitutional relay is lawful and is hereby settled, not merely framed. V1 may, by the Sovereign's plenary power exercised through V1's own organs (CASE-LAW s. 2, s. 9(3); REALM-PC 17), relay live runtime sovereignty to V2; the V1 founding process is migration provenance, not daily runtime law; and this court's express handover order, conditioned on specific Royal Assent and a non-circular commencement, directs the V1 courts to relinquish continuing appellate and supervisory control over V2 runtime matters, save the entrenched real-world-law floor (REALM-SC 9; REALM-PC 18), V2 runtime adjudication thereafter proceeding in V2's own expressly constituted courts.

5. OBITER

6. I record two observations that do not decide the matter.

7. First, the formula in s. 25, "V1 discovered the law. V2 compiles it.", is the right spirit and worth preserving in the Act's saving, but I would caution the Committee that a compiler that could *originate* binding rules from its own output would not be compiling but legislating; the formula is true precisely because compilation presupposes an already-assented source. The honour of V1 and the safety of V2 are the same point seen from two ends.

8. Second, I note that the architecture here, a single Gazette of two estates over a deterministic kernel that traces every binding record back to a human assent edge, is a model that other forks may one day wish to adopt (s. 9(3); REALM-PC 17). Nothing in this judgment imposes it on them; but if a fork does migrate to a computer-first runtime, the assent floor entrenched below travels with the canonical law it vendors, until that fork's own sovereign expressly amends it. That is for another day and is no part of this ratio.

6. DISPOSITION

7. DECLARATORY and VARY. The eight questions are answered and the relay is settled affirmatively: the void first draft is confirmed defective in the respects identified and is VARIED by direction to the Committee on Q1 commencement-sequencing, Q2 citation scheme, Q3 the Bill 27 savings clause, Q4 court continuity, Q5 incorporation, and Q6 Gazette mechanics, while the assent floor (Q8) and the conditional handover order are ENACTED and ISSUED by this court, conditioned on specific Royal Assent against the pinned final text and a non-circular commencement; Bill 32 remains a void first draft of no binding force until the Committee adopts the second draft and the Sovereign specifically assents to the pinned final text.

7. PROPOSED ENACTMENTS

8. I would have this court enact two CASE-LAW articles directly. These are judgments of a constituted bench on entrenched constitutional questions, within the court's enacting competence (REALM-SC 8); they are not instrument text and are not directed to the Committee. The operative *wording of Bill 32 itself*, by contrast, is DIRECTED to the Standing Committee per REALM-SC 8 (the commencement-sequencing clause, the citation-scheme provision, the Bill 27 savings clause, the court-continuity provision, the incorporation kernel-effect gloss, and the Gazette enabling clause).
9. PROPOSED S-23: Sovereign assent for AI-made and delegated law; AI non-sovereignty [constitutional]
10. S-23(1) [constitutional] All law requires Sovereign assent. All law of the realm and of any computer-first successor jurisdiction of the realm, including law drafted, deliberated, proposed, consolidated, voted on, compiled, or maintained by an AI agent, an automated process, or a computational legislature, requires Sovereign assent. Assent is either (a) specific, the Sovereign expressly assenting to a particular instrument against its ascertained text and digest, or (b) standing-bounded, the Sovereign having previously assented by a primary Act to a delegated lawmaking route whose maker, scope, prohibited subjects, required form, validation route, review or veto route, and commencement conditions are fixed by that Sovereign-assented law. This article gives effect to s. 2, s. 3(2)-(3), and Bill 14 s. 3(3), s. 9, s. 12-13, and projects them from Lexby to any AI or automated maker.
11. S-23(2) [constitutional] AI is never sovereign. An AI agent or automated process may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery. It may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output by the fact of the output having been written. Operating lawmaking machinery is not being the source of legal force; the force of any valid record traces, by a record link a deterministic kernel can resolve, to a Sovereign-assented source.
12. S-23(3) [constitutional] The no-Henry-VIII ceiling on standing-bounded routes. A standing-bounded route may make only subordinate law within its fixed, machine-checkable scope. It may never reach this assent rule, the constitution, or any primary or entrenched Act (Bill 14 s. 12-13). Output beyond competence is draft only and has no binding force.

13. S-23(4) [constitutional] Amendment of the assent rule. This article binds the delegate and never the Sovereign, who retains the full s. 2 power to make or unmake law by due process. The assent rule may be amended only by specific Sovereign assent to a primary Act expressly citing this section by number; it may never be amended by delegated or AI lawmaking.
14. S-23(5) [constitutional] Mechanical enforcement. In any computer-first jurisdiction, a deterministic, always-on kernel invariant must reject, failing closed, any record claiming binding force without a record link to a valid assent source, and must do so without calling a model and without semantic-similarity search. The existence and passing of that invariant, and the typing of every delegated-route field so that the kernel can evaluate it, are conditions of the lawful commencement of any such jurisdiction. Advance Sovereign assent to a not-yet-final text is lawful only as a standing conditional commitment that ripens into specific assent when the final text is fixed and the Sovereign's specific assent is recorded against its digest; an assent not bound by a recorded deterministic link to an ascertained text is not a valid assent source.
15. PROPOSED S-24: Computer-first successor jurisdictions; the handover order and continuity of the entrenched court structure [constitutional]
16. S-24(1) [constitutional] Lawful relay of runtime sovereignty. The Sovereign may, by a primary Act enacted through the realm's existing constitutional route and given effect by an express order of the single central Supreme Court, relay live runtime governance from an existing jurisdiction (the predecessor estate) to a computer-first successor jurisdiction, the predecessor continuing as the Gazette and Archive estate. The founding process is migration provenance, not daily runtime law (s. 2, s. 9(3); [2026] REALM-PC 17).
17. S-24(2) [constitutional] No commencement by the successor's own machinery. No condition for the commencement of such a relay may be satisfiable by the successor's own runtime machinery alone. The legitimating act is the Sovereign's specific assent under the predecessor's route, wholly antecedent and external; the successor's runtime surface is the compiled form of the already-assented settlement and never the source of its authority. The successor's kernel may verify fidelity to the assented text but may never certify its own warrant.

18. S-24(3) [constitutional] Continuity of the entrenched court structure. A broad supersession clause does not amend s. 10 or s. 22(2) by implication; the three-tier structure and the single central apex survive any such clause automatically and are carried into the successor jurisdiction as its founding court geography. Court existence is substance, not reference (s. 18(5); [2026] REALM-PC 14): each successor court must be expressly constituted with an odd bench before any order issues, and a court named only in an authority-hierarchy list is not thereby seated. A tier of the s. 10 structure may be constituted but non-convening in the successor jurisdiction until a matter for that tier arises; its abolition requires express amendment of s. 10 by number and may not be effected by charter, design choice, or omission.
19. S-24(4) [constitutional] The handover order and the external floor. On the Sovereign's specific assent and a non-circular commencement, the single central Supreme Court may, and by this judgment does for the matter at bar, direct the predecessor's courts to relinquish continuing appellate and supervisory control over the successor's runtime matters, save the external supremacy floor of real-world law, which is non-derogable in every jurisdiction (REALM-SC 9; REALM-PC 18). Such a handover is an act of the single central apex and is non-delegable (s. 22(2); REALM-SC 6).

8. **PROPOSED OVERRULINGS**

9. None. Every authority relied upon, REALM-SC 7, REALM-SC 8, REALM-SC 9, REALM-PC 11, REALM-PC 12, REALM-PC 14, REALM-PC 15, REALM-PC 17, REALM-PC 18, REALM-PC 19, and the entrenched CASE-LAW articles, remains good law and is applied, not disturbed. The Privy Council's judgment in [2026] REALM-PC 24 is, in result, affirmed and carried the further step to settlement; I differ from it in boldness of landing, not in law.

10. --- Steyne J

11. ---

BOWAN J

12. I have everything I need from the primary sources. The draft invariant INV-ASSENT-DRAFT-001 confirms the load-bearing defect I will press as dissenter: a `not(field == self_authorized)` rule fails OPEN, not closed, and so cannot do the work Limit 17 demands. I will now write my opinion in full. I will not use the task tools; my single deliverable is the opinion returned as text.

13. **OPINION OF BOWAN J**

14. *In the Supreme Court of the Vibe Justice System, sitting as the full court of nine on a constitutional and foundational reference (CASE-LAW s. 10; s. 18(1)). In the matter of the Computer-First Realm Act 2026 (Bill 32, void first draft) and the Sovereign's reference thereon, on leapfrog from the Privy Council ([2026] REALM-PC 24) and by the Principal's express leapfrog certificate (s. 13).*
15. I have read the symmetric file, the Privy Council's judgment, both party briefs, and the observer brief. I have read in the original the texts the parties paraphrase: Bill 27 s. 14(2), Bill 14 ss. 3, 10, 12, 13, 14 and Schedule 1, the full forty sections of the void draft, and the V2 draft invariants INV-ASSENT-DRAFT-001 and INV-ASSENT-DRAFT-002. I concur in much of the disposal the majority will reach. I write separately, and in places against it, because my function on this bench is to test every proposition of this migration to destruction, and because two of the propositions the majority is content to confirm "subject to riders" are, on the present record, broken at the root: the advance assent, and the kernel-rejection invariant that is said to be its enforcement. I would confirm the doctrine but I would withhold the apex's blessing from any sequence that lets these two defects pass as cured by promise. I record where I would go further than the Privy Council, and where I would not go at all.
1. PRELIMINARY
2. 1.1 Route, bench, void-first-draft. I agree the matter is properly before the full nine. It construes entrenched articles (s. 10, s. 22(2)), it would entrench a new floor, and only this court enacts realm-wide (s. 9). The leapfrog certificate is express, recorded and reasoned, and the question is foundational on any view (s. 20(2)-(4)). I agree Bill 32 is a void first draft and remains void as an instrument until Committee adoption and specific Royal Assent against a fixed text ([2026] REALM-SC 8; [2026] REALM-PC 12; CASE-LAW s. 3(2)-(5)). I agree the companion YAML records are void ab initio and must not enter this V1 repository ([2026] REALM-PC 14; s. 18(5)). On these I am with the Council and the majority.

3. 1.2 The one preliminary I press that the Council did not. The Privy Council recorded that the Defendant filed no brief and that the formalist seat took every point on its own motion. That is proper so far as it goes. But I record a sharper structural anxiety than the Council allowed itself. This is a reference *placed by the Sovereign* on a draft *authored by Lexby* and *driven to completion by Lexby through the very courts asked to bless it*, with the Sovereign's advance assent already on the record. Every actor in the chain that produces the "final" text is the same intelligence. The adversary on the merits was supplied by the bench's own motion, not by an opposing will. I do not say this vitiates the reference; standing is made out and the file is symmetric in form. I say it *raises the standard of scrutiny*, not lowers it. Where the proponent, the drafter, the registrar and the engine of the "final text" are one, the court's suspicion of any mechanism that lets force attach automatically must be at its highest. The majority treats the empty Defendant leg as "no procedural advantage to the proponent." I would put it higher: it is a reason to refuse every shortcut, and to insist that the one act the machine cannot perform, the Sovereign's specific assent to an ascertained text, be performed visibly, late, and against a frozen artefact. That insistence governs everything below.
2. FRAMING
3. The handover-order question. Upon (a) specific Royal Assent recorded against the final, pinned text adopted by the Standing Committee at second draft, and (b) a re-drafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, turning on a validated and locked V2 lawpack carrying the already-assented settlement together with an always-on deterministic kernel invariant rejecting any record lacking a valid assent source: does V2 become the self-governing computer-first successor jurisdiction for runtime purposes while V1 remains Gazette and Archive; does this court direct the V1 courts to relinquish continuing runtime control; is the s. 10 hierarchy carried into V2 and may the Court of Appeal be non-convened; is the Q8 assent doctrine the entrenched floor; is advance assent lawful only as a pinned conditional grant; and is the Bill 27 four-branch mandate preserved for the public estate.
4. The eight underlying questions, as I frame them. I adopt the Council's re-definitions of Q1 to Q8 with one correction of emphasis at Q8: the governing question is not merely "must all V2 law carry Sovereign assent" but "what is the *machine-checkable form* of the assent edge such that the kernel can fail closed on its absence, and does any form short of that leave Limits 15 to 17 ceremonial." I frame Q8 around the invariant, because the invariant is where this migration is won or lost.
3. REASONING

4. (a) Q1 - Bootstrapping and deferred commencement
5. I agree with the destination and sharpen the route. Enactment and commencement are distinct constitutive acts (Bill 2 s. 13; the conforming logic of the Acts of Union commencement marker on CASE-LAW itself, which received Royal Assent on a date and bit from that date). An Act may receive assent and lie dormant. There is no authority vacuum: s. 2(2)-(3) of the draft already says the Act has no runtime force until commenced.
6. But I will not let the draft's s. 2 conditions pass with the gentle word "circular." They are worse than circular: they are **self-certifying**. Conditions 2, 4 and 5 (validation by the VJS lawpack validator; entry into the V2 lawpack; inclusion in the lawpack lock) ask the very machine whose legitimacy flows from the Act to certify that the Act has commenced. That is the kernel certifying its own warrant. The majority cures this by "sequencing in the world": Royal Assent wholly antecedent, then a recorded act brings the infrastructure into being, then validation confirms **form not legitimacy**. I agree, but I add the test that makes the cure enforceable rather than aspirational:
7. No commencement condition is lawful if its truth-value can be produced by the V2 machinery operating on its own output. A condition is lawful only if it points to a V1-organ event that the machine **reads but cannot generate**: a specific Royal Assent record, bound by digest to the adopted text, lodged in the V1 estate before the lawpack is built.
8. On that test, condition 1 ("assented to by the Principal") survives only if it is re-specified to mean "a recorded specific assent event in the V1 estate, bound by digest to this exact text, antecedent to lawpack construction." Conditions 2, 4 and 5 survive only as **form gates that presuppose condition 1 already true**, never as independent generators of authority. The Committee must redraft s. 2 to that effect. I would have this court state the principle as ratio (below), not leave it to drafting taste.
9. (b) Q2 - The VJS-ACT citation scheme transition
10. Bill 16 is on all fours as precedent for a scheme transition (LEXBY-* to REALM-*), and [2026] REALM-PC 11 confirms the deterministic engine mints flat annual ordinals and recital-derived tags. I agree the scheme may be founded by this Act through an express scheme-establishing provision, or by a simultaneous companion instrument; that is a reversible drafting call (s. 11(c) territory, no fork to convene).

11. On the self-mint I am with the whole bench and would put the objection in its strongest form. The proposed citation "[2026] VJS-ACT 8" is not merely premature; it is **false on its face**. The ordinal 8 asserts seven prior entries in a series that does not lawfully exist, minted by an authority that does not yet exist, under a scheme this very instrument is founding. A citation is an act of the minting engine under an existing scheme; the minting authority must precede the minted item, exactly as the bench must precede the judgment (s. 18(5)) and the court must precede its order ([2026] REALM-PC 14). The deterministic-citation-integrity gate (s. 19(5)) fails closed on a non-deterministic or duplicate number and would reject "8" on every cite. The hand-chosen ordinal is a non-operative placeholder; the operative ordinal is whatever the engine yields on the empty series at commencement. I note, against any complacency, that "whatever the engine yields" must itself be deterministic and recorded, not chosen: the engine, not the drafter, mints.
12. (c) Q3 - Bill 27 four-branch reconciliation
13. I have read Bill 27 s. 14(2) in the original. Its words are not soft: the four-branch mandate (s. 6) and the system-data-only rule (s. 7) "are foundational to CASE-LAW s. 1 and s. 9 and may not be silently repealed or relaxed by implication. Any amendment must be express." That is a Thoburn-style entrenchment enacted by an in-force Act. Bill 32 s. 24 says V2 "does not carry forward" the four-branch structure as mandatory runtime structure and never names Bill 27 or its section. **As drafted, s. 24 is a silent relaxation of a mandate whose own parent forbids relaxation other than expressly.** It is therefore, to that extent, void by operation of Bill 27 s. 14(2) and the Amendment Procedure, not merely "incomplete."

14. I am content with the majority's cure (an express savings clause confining s. 24 to V2 internal record organisation, Bill 27 continuing to bind the public estate; or, if release of the public estate is truly intended, express amendment of Bill 27 s. 1 by number). I add the dissenter's warning the majority underplays. The distinction the proponent draws, "preserve the principle, release the mechanic", is *correct in substance* (a path name is non-operative: [2026] REALM-PC 14; CASE-LAW s. 21(4), s. 22(4)) but *dangerous as a drafting habit*, because it is the exact shape of every silent amendment ever attempted: "we keep the principle, we only change the form." The four-branch layout in Bill 27 is not only navigation; s. 14(2) ties it to the separation of powers and to s. 1 and s. 9. A migration that drops the mandatory directories must show, expressly and on the record, that the separation of powers it embodied survives by *some other enforced mechanism* (record-role, schema, kernel-effect). The savings clause must say not only "this does not amend Bill 27 s. 1" but "the separation of powers Bill 27 s. 6 secured by directory is, in V2, secured by [the named record-role gate], which the kernel enforces." Absent that, the savings clause preserves a folder name the world reads while quietly releasing the constitutional content underneath it, and the gate checks the filename it was told not to rely on. I would direct the Committee accordingly and would not confirm Limit 4 as "varied" without it.
15. (d) Q4 - Court continuity
16. This is the gravest defect and the place where I am least willing to accept "confirmed in principle, drafting to follow." The draft is self-contradictory on its face: s. 9(2) supersedes "the V1 court hierarchy" and "the V1 Court of Appeal," s. 9(5) says nothing continues unless expressly incorporated, yet s. 12 lists Supreme Court Orders, Privy Council Orders and County Court repo Orders as live V2 tiers. The Act abolishes the courts in Part 4 and assumes their orders in Part 5. Under the Act's own concordance rule (s. 6), that material discrepancy is a validation defect.
17. The deeper law is decisive and I state it without hedging. The court structure is fixed by CASE-LAW s. 10 (entrenched) and the singleness of the apex by s. 22(2). A broad supersession clause *cannot reach an entrenched article it does not name* (Amendment Procedure; Bill 14 s. 12; s. 10(3) of Bill 14, void ab initio). It follows that s. 10 survives s. 9 *automatically*: the literal reading of s. 9 is void to the extent it purports to abolish the s. 10 structure, and to that extent only.

18. But here I part company with the comfort the majority and the Claimant take from "survival by entrenchment." Survival of the **abstract tier structure** is not survival of a **constituted court**. Court existence is substance, not reference ([2026] REALM-PC 14; REALM-PC 15; s. 18(5)). The s. 10 ladder is a constitutional **template**; a court that can issue a valid order is a **seated bench**. The entrenchment saves the template. It does not seat a single V2 bench. Therefore:
19. No V2 court may issue any order until it is expressly constituted by a named constituting instrument, with an odd bench fixed by s. 10 and s. 18. The s. 12 hierarchy is, until then, an aspiration and not a jurisdiction. Any V2 order issued before its bench is constituted is void ab initio.
20. On the Court of Appeal I am the firmest on the bench and I would correct the framing the Charter invites. The Charter, "signed by the Principal," records the Court of Appeal "not carried forward in the V2 MVP." A Charter signed by the Principal **acting as Prime Minister or as engineer's settlement** is not an amendment of an entrenched article; only the Sovereign by express deliberate amendment citing s. 10 by number, or this court, can touch the three-tier structure (Amendment Procedure; s. 2; Bill 14 s. 12). I would hold expressly that the Migration Charter has no power whatever to remove the Court of Appeal tier, and that any reading of the Charter as having done so is void. The Committee's lawful options are exactly three, and I would name them in the order of safety: (i) keep the Court of Appeal (the safe default); (ii) administrative non-convening, where the tier exists in law and simply has no matters before it yet, which does not touch s. 10; or (iii) express amendment of s. 10 by this court of nine, citing the section by number, which is a heightened act and which on this record I would not grant, because no necessity for **abolition** (as against non-convening) has been shown. An MVP that has no appeals yet needs no abolition; it needs patience. I would refuse to entrench a two-tier V2 when s. 10 entrenches three, and I would say so as ratio.
21. (e) Q5 - Express incorporation mechanics (minimum valid act)
22. The s. 11(2) menu of seven record types is a closed list and acceptable as to form. I agree any of the seven may be a vehicle **within its own competence**, and I agree on the rank-floor: a lower-rank record may not incorporate V1 material of a rank it could not itself enact (Bill 14 s. 12, the no-Henry-VIII ceiling; s. 10(2)-(3) of Bill 14). A Kernel Regulation cannot, by the trick of "incorporating" V1 constitutional material, do indirectly what Bill 14 forbids it doing directly. Constitutional or primary-Act-level V1 material requires a V2 Act; subordinate material may descend.

23. On content, s. 11(3) is conjunctive and the kernel effect is mandatory. I would put the reason in computer-first terms the majority states but does not nail: **in a computer-first system, a rule with no declared kernel effect is not in the runtime authority graph at all.** It is archive prose wearing a runtime badge. An incorporation naming a V1 source and an operative rule but no kernel effect gives the clerk nothing to execute and is, for runtime purposes, a nullity. I confirm s. 11 with the rank-floor and the mandatory-kernel-effect gloss.
24. I add one caution against the pragmatist's "route it to a bench rather than return no law" gloss the Council adopted. That is sound **only** if the routing is itself deterministic and the bench so routed is a lawfully constituted V2 bench (see (d)). A migration must not paper an un-incorporated gap with "the kernel will route it to a court" when no such court is yet seated. Until V2 benches are constituted, an un-incorporated-but-needed matter has **no V2 forum** and must be held under V1 jurisdiction or expressly incorporated; it may not be parked in a phantom court. Silence is no defence (s. 7), but the answer to silence is incorporation or a real bench, never a notional one.
25. (f) Q6 - The single Gazette, two estates
26. This is the soundest part of the package and I confirm all five elements: one Gazette of two estates (Bill 8; Bill 22; Bill 27 s. 7, system data only); publication is neither enactment by V1 nor incorporation into V1 (force comes from promulgation by the organ, the source-of-force test of [2026] REALM-PC 12, not from appearing on a page); the lawpack, not the Gazette, is the runtime source; typed lineage edges to V1 archive material are required by the no-implication rule so the chain is explicit; and the kernel must not read the Gazette for runtime decisions, consistent with s. 13's bar on semantic-similarity search and the Charter rule that the kernel never makes long documents part of runtime.
27. On allocation, I agree the export-gate mechanics (s. 27) are subordinate, machine-checkable detail that change with tooling and belong in a Kernel Regulation under an express enabling clause ([2026] REALM-PC 10's preference for regulation over fresh statute on operational detail), the **principle** staying in the primary Act. I add the constraint the majority left implicit: the enabling clause must itself satisfy the Q8 declarations (maker, scope, prohibited subjects, form, validation, review, commencement), because a delegation that does not declare its own bounds is the very blank cheque Q8 forbids, in the small. The publication mechanics descend, but they descend **bounded**.
28. (g) Q7 - Constitutional relay and V2 self-governance

29. I agree the relay is lawful in principle. The Sovereign holds plenary power to make or unmake law by due process (s. 2); re-settling the jurisdiction through V1's own organs is the exercise of that power, not a revolution. A jurisdiction may by express local sovereign act amend its law and become independent; default subscription is not perpetual subjection (s. 9(3); [2026] REALM-PC 17). Elements (1), (2), (4) and (5) I confirm. Element (3), that V2 becomes self-governing on commencement, I confirm **subject to** the entrenched assent rule and to an express handover order.
30. On the observer's "perpetual constraint paradox" I am blunt: it is not a paradox, and the observer is right to abandon it. A jurisdiction that could, by its own delegated machinery, unmake the rule requiring human assent would not be self-governing; it would be **ungoverned** in the one direction that matters, the direction in which AI authorises its own law. Entrenchment of the assent rule is the precondition of self-governance, not a fetter on it. But I press the point the majority states and then softens: the lock binds the **delegate**, and never the **Sovereign**, who retains full s. 2 power to amend by specific assent to a primary Act. The Committee must say this **expressly and in the entrenching article itself**, in the operative words, because a future reader who mistakes the lock for a fetter on the Crown will either (a) treat the Crown as bound and freeze the constitution, or (b) treat the lock as soft and let the delegate pick it. Both readings are fatal. The article must be drafted so that only one reading is possible.
31. On "continuing control": an **Act** does not bind the **courts**; only a court order does. V2 self-governance is not perfected by Bill 32 declaring it, because the apex is single and central and its enactment is non-delegable (s. 22(2); [2026] REALM-SC 6). Therefore an express Supreme Court handover order is required to direct the V1 courts to relinquish continuing appellate or supervisory control over V2 runtime matters, saving the real-world-law floor ([2026] REALM-SC 9; REALM-PC 18), which is non-derogable and which V2 may never escape. This is the strongest ground for the leapfrog, and it is this court's to give.
32. (h) Q8 - The Sovereign-assent rule, and whether AI may operate machinery without becoming sovereign

33. The doctrine is declaratory of existing binding law, and I confirm every limb. It is the projection of "Lexby's pen is void on its own account" (CASE-LAW s. 3(2)-(3)) onto "any AI maker," grounded in s. 2 (the Sovereign's monopoly of making and unmaking law), Bill 14 s. 3(3) (no self-extension; a delegated power may not widen its own scope), Bill 14 s. 9 (an agent may propose, draft, codify, consolidate and revise only; those acts carry no force until a named gate fires), Bill 14 s. 12 (anti-Henry-VIII; no power express or implied to amend primary or entrenched law by a delegated instrument), and [2026] REALM-SC 8 / REALM-PC 12 (adoption by the proper organ is constitutive; the test is the source of the artefact's force). AI may operate the machinery; AI may never be the sovereign of it. Standing-bounded assent is lawful precisely and only as the analogue of delegated legislation under a Sovereign-assented enabling Act, with the no-Henry-VIII ceiling doing the load-bearing work, and a standing route may make only **subordinate** law within its fixed scope and may never reach the assent rule, the constitution, or primary or entrenched Acts. The wording must cite Bill 14 s. 12-13 by number so the ceiling is express, not inferred.
34. Here is the heart of my dissent, and the place I will not let a promise stand for a proof. The whole doctrine reduces, at runtime, to one machine fact: **the kernel rejects any record that cannot show a valid assent edge.** Limit 17 and s. 30(6) are the only teeth. Everything else is prose the kernel cannot enforce. I therefore examined the only enforcement artefact actually on the record, the V2 draft invariant INV-ASSENT-DRAFT-001. It states its rule as:
35. `not (assent_source == "self_authorized")`
36. This is fail-open, not fail-closed, and it is the precise inversion of what Limit 17 requires. A record with **no** assent_source field at all, or with an empty value, or with a value the drafter did not think to enumerate, **passes** this rule, because it is not equal to the literal string "self_authorized." The invariant rejects only the record honest enough to **label itself** self-authorized. It is a lock that catches only the burglar who signs the guestbook. An AI that wished to self-authorise law would simply omit the field, and the kernel would wave it through. The companion INV-ASSENT-DRAFT-002 is sounder (it requires fields to be **present** on delegated records), which proves the drafter knows the difference between "must not equal X" and "must affirmatively carry a valid Y", and chose the weaker form for the assent edge itself, the one place it matters most.
37. This is the single most dangerous defect in the entire migration, and the majority does not see it because the majority reasons from the **words** of Limit 17 ("the kernel must reject any record lacking a valid assent source") and assumes the implementation matches the words. It does not. I would therefore hold, as ratio binding the commencement:

38. The kernel-rejection invariant must be drafted as an affirmative, allow-list, fail-closed predicate: a record carries runtime force only if it **carries** a valid `assent_source` resolving to (i) a specific Sovereign-assent event bound by digest to the adopted text, or (ii) a standing-bounded route whose enabling instrument itself traces to specific Sovereign assent and whose declared scope, by the kernel's own evaluation, covers the record. Absence, emptiness, unrecognised form, or an unresolved trace each **MUST** cause rejection. A "not-equal-to-self_authorized" formulation is void as an enforcement of Limit 17, because it fails open.
39. And I would make the **existence and passing of an invariant in that affirmative form** a hard commencement condition, not a deliverable to be trusted later. Without it, Limits 15 and 16 are ceremonial and the migration ships the AI-self-authorisation hazard inside the very kernel built to prevent it. I would refuse the handover order until this court is shown the invariant in fail-closed form, tested against a record with a missing field and against a record with an unresolved trace, both rejected. The Privy Council elevated Limit 17 to a commencement condition; I would elevate the **correct logical form** of it to the commencement condition, because the Council's version can be satisfied by the broken draft now on the record.
40. Further, each s. 31 field (maker, scope, prohibited subjects, form, validation, review, commencement) must be a **typed, kernel-evaluable property**, not prose. A "bounded route" whose scope lives in unenforceable English is a blank cheque in disguise: the kernel cannot reject what it cannot evaluate, and a scope it cannot evaluate is a scope of everything. The prohibited-subjects list must, at minimum and by the kernel's own check, contain "the assent rule" and "competence expansion," exactly as INV-ASSENT-DRAFT-002's remedy text already recites but its rule does not yet enforce.
41. (i) The Sovereign's advance assent, and what must bind the final text
42. The Sovereign has said, on the record, "assent is given to the final bill," and has directed the matter through the PC and SC to completion. I treat this as a question of law and I am the least comfortable member of this bench with it.

43. Royal Assent is, by its nature, assent **to a text** (Bill 2 s. 21; [2026] REALM-PC 12: an instrument carried by Committee vote plus Royal Assent **stands**). An assent uttered before the text exists cannot, **at the moment of utterance**, be the constitutive act, because there is nothing determinate to constitute. If the machinery can move the "final" text and assent attaches automatically to wherever it lands, then in substance the AI-driven process has authored binding law and the Sovereign has stamped a moving target. That is the exact AI-self-authorising-law hazard Q8 exists to prevent, wearing the costume of Royal Assent. It is the gravest risk in this reference, graver because it is the one defect that cannot be cured by the kernel: the kernel can reject a record with no assent edge, but it cannot tell a **genuine** specific assent from a **rubber-stamp** one if both produce the same digest binding.
44. The majority and the Council characterise the statement as a "standing direction and advance conditional commitment" that "ripens into operative Royal Assent" when the final text is fixed. I accept that characterisation as the **only** lawful one, but I would impose it with a hardness the majority does not. I am not content with "confirms, or does not dissent from." A **non-dissent** is not an assent. Silence is never consent to what could not be enacted expressly: that is the rule of Bill 14 s. 16(3) and Marlowe's principle carried into that Act ("silence is never deemed consent and the window never runs against reserved power"). The assent rule is the **most** reserved power there is. A regime in which the Sovereign's **failure to object** to an AI-produced final text commences a constitutional Act is a commencement-by-lapse-of-window applied to the one subject Bill 14 s. 13 carves out absolutely. I would therefore hold:
45. Advance assent to "the final bill" is lawful only as a standing conditional commitment that ripens into the constitutive act when, and only when, the Sovereign performs a **positive, specific, recorded** assent against a frozen, digest-pinned final text, that text having been fixed by the Standing Committee and bounded by this court's settlement. A bare non-dissent, the lapse of a window, or any automatic attachment of assent to whatever the process emits is void as a commencement of the assent rule, by force of Bill 14 s. 13 and s. 16(3) and CASE-LAW s. 2.

46. Three things bind the "final" text and make the assent meaningful rather than a blank cheque: (1) it is the Committee's **adopted** second draft, a fixed and citable artefact (a specific commit and digest); (2) it **resolves Q1 to Q8 and honours Limits 1 to 17 as varied and incorporates this court's handover order**, so that a text departing from the settled frame is a **different instrument** outside the scope of the commitment and requiring fresh specific assent; and (3) the specific assent is recorded **against that digest**, satisfying s. 32(2)'s demand that **this Act** receive specific assent. Advance assent does not cure the void-first-draft status (s. 3(5): adoption is constitutive of the instrument, assent of the enactment), it cannot be self-validating, and it cannot be routed through the standing-bounded delegated route of s. 30, because a delegated route cannot be the vehicle for assenting the very Act that creates the assent rule. That last point is the bootstrap the migration forbids, and I would state it as ratio: the assent rule may only ever be born by a V1-Sovereign specific act through the V1 route; it may never be its own midwife.
47. I add the safeguard that ties this to the kernel: the record must show a **specific assent event bound by digest to the final adopted text**, and the kernel must reject any V2 record relying on an assent edge that does not so resolve. An assent that cannot be tied to an ascertained text by a recorded, deterministic link is not a valid assent source. On that footing, and only that footing, the advance assent is lawful. On any other, the constitutive act remains outstanding and Lexby's s. 2 duty is to push back and route the frozen text for a positive, specific, late confirmation.
48. (j) The terms of the express handover order
49. The handover order is this court's non-delegable act (s. 22(2); s. 9; [2026] REALM-SC 6). I would make it, but I would make it **conditional and suspensory**, not self-executing on the strength of promised drafting. The order takes effect only upon proof to the registrar of every antecedent, and not before:
1. V2 becomes the self-governing computer-first successor jurisdiction for runtime purposes, V1 remaining the continuing Gazette and Archive estate, and V1 asserting no continuing runtime control over V2 post-commencement lawmaking, save the real-world-law floor ([2026] REALM-SC 9; REALM-PC 18), which is non-derogable and binds V2 forever.
 2. The V1 courts are directed to relinquish continuing appellate and supervisory control over V2 runtime matters, save the entrenched floor; V2 runtime adjudication proceeds only in V2's own **expressly constituted** benches (odd, s. 10/s. 18). Until a given V2 bench is constituted, jurisdiction over that matter **remains with V1**; there is no jurisdictional vacuum and no phantom forum.

3. The order is suspended until the registrar certifies, on the deterministic record: (a) specific Royal Assent bound by digest to the adopted final text; (b) a s. 2 commencement sequence none of whose conditions the V2 machinery can self-generate; (c) the fail-closed, affirmative-form assent invariant existing and passing, tested against a missing-field record and an unresolved-trace record; and (d) each V2 court that may issue an order expressly constituted by a named instrument with an odd bench. Absent any one, the order does not bite and V1 jurisdiction continues.
4. I would not issue a handover order that bites on enactment alone. The whole danger of this migration is force attaching before the world has caught up; the handover order must not itself be the first instance of that vice.
4. **RATIO**
5. I would have this court settle the following as binding rules, realm-wide (s. 9), the assent-floor article entrenched.
 1. Enactment and commencement are distinct; commencement may not be self-certifying. A declaratory constitutional migration Act may receive specific Royal Assent before its runtime infrastructure exists, with commencement deferred. No commencement condition is lawful if its truth-value can be generated by the successor machinery operating on its own output. Every condition must point to a V1-organ event the machine reads but cannot produce. The lawpack is the compiled form of an already-assented settlement, never the generator of the Act's authority.
 2. The void-first-draft doctrine governs the migration instrument itself, and advance assent does not displace it. Bill 32 is void as an instrument until Committee adoption and *specific* Royal Assent recorded against the digest-pinned final text ([2026] REALM-SC 8; REALM-PC 12; s. 3(2)-(5)). The companion YAML records are void ab initio ([2026] REALM-PC 14; s. 18(5)) and may be minted only in the V2 lawpack after lawful commencement.
 3. Nothing crosses from V1 to V2, and nothing is released from the public estate, by implication. Incorporation must be express, recorded, rank-floored (a lower record may not incorporate material of a rank it could not itself enact: Bill 14 s. 12), and must state a mandatory kernel effect, without which the rule is not in the runtime authority graph. Bill 27 s. 1's four-branch mandate is either expressly preserved for the public estate by a savings clause that *also names the mechanism by which the separation of powers survives the loss of the directories*, or expressly amended by section number; silent relaxation is void (Bill 27 s. 14(2)).

4. Court existence is substance, not reference, and the template is not a seat. CASE-LAW s. 10 and the single central apex (s. 22(2)) survive s. 9's supersession automatically, because an entrenched article cannot be amended by a clause that does not name it. But entrenchment saves only the abstract tier structure; *no V2 court may issue any order until it is expressly constituted by a named instrument with an odd bench (s. 10, s. 18)*, on pain of void-ab-initio nullity ([2026] REALM-PC 14, 15). The Migration Charter has no power to remove the Court of Appeal tier; removal requires express amendment of s. 10 by number by this court, which is refused on this record, administrative non-convening being sufficient for an MVP.
5. The Sovereign-assent floor is declaratory, entrenched, and binds the delegate alone. All V2 law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded under a no-Henry-VIII enabling regime (Bill 14 s. 12-13). AI may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery, but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output. A standing-bounded route makes only subordinate law within a fixed, *machine-evaluable* scope and may never reach the assent rule, the constitution, or primary or entrenched Acts. The lock binds the delegate and never the Sovereign, who retains full s. 2 power to amend by specific assent to a primary Act. The assent rule may be born only by a V1-Sovereign specific act through the V1 route; it may never be its own midwife.
6. The kernel-rejection invariant must fail closed in affirmative form. A record carries runtime force *only if it carries* a valid assent_source that the kernel resolves to a specific Sovereign-assent event bound by digest, or to a standing-bounded route tracing to specific Sovereign assent and whose declared scope the kernel evaluates to cover the record. Absence, emptiness, unrecognised form, or an unresolved trace each cause rejection. A "not-equal-to-self_authorised" predicate is void as an enforcement of this rule, because it fails open. The existence and passing of the invariant *in affirmative fail-closed form* is a commencement condition; each s. 31 declaration must be a typed, kernel-evaluable property, and "the assent rule" and "competence expansion" must be in the kernel-checked prohibited-subjects set.

7. Advance Sovereign assent is lawful only as a positive, late, pinned act, never a non-dissent. Advance assent to "the final bill" is a standing conditional commitment that ripens into the constitutive act only on a positive, specific, recorded assent against a frozen digest-pinned final text that resolves Q1 to Q8, honours the limits as varied, and incorporates this court's handover order. A bare non-dissent, lapse of a window, or automatic attachment to AI-emitted text is void, by force of Bill 14 s. 13 and s. 16(3) and CASE-LAW s. 2. The assent cannot be self-validating and cannot be routed through the s. 30 delegated route.
8. Publication is not force; the Gazette is two estates over one record. Within a single Gazette, publication of V2 material is neither enactment by V1 nor incorporation into V1 (source-of-force test, [2026] REALM-PC 12); runtime force derives from the lawpack and kernel-recognised status; the kernel must not read the Gazette for runtime decisions; lineage edges to V1 archive material are required. Publication mechanics descend to a Kernel Regulation under an enabling clause that itself satisfies the s. 31 declarations.
9. The V2 citation series is founded by express provision and minted by the engine. The scheme may be established by this Act on the Bill 16 precedent through an express scheme-establishing provision; the Act's own ordinal must be minted deterministically on the empty series at commencement and never hand-chosen; V1 REALM-* citations remain valid historical identifiers ([2026] REALM-PC 11; s. 19(5)).
10. The handover order is suspensory. The order directing the V1 courts to relinquish continuing runtime control over V2 takes effect only on registrar certification of antecedent specific assent, non-self-certifying commencement, the fail-closed assent invariant proven against missing-field and unresolved-trace records, and the express constitution of each V2 bench; until then V1 jurisdiction continues and there is no vacuum. The real-world-law floor is non-derogable throughout.
5. OBITER
6. I record two observations that do not bind.
7. First, the structural identity of drafter, registrar, proponent and engine in this migration is a standing hazard the law should watch, not only here. The cure on this record is the late, positive, human-specific assent and the fail-closed invariant; but the deeper lesson is that *the more a system can produce its own legitimating artefacts, the more the one irreducibly human act must be made visible, late, and adversarially tested.* A future court should treat any mechanism that lets the machine generate the proof of its own authority as presumptively void.

8. Second, I would caution against the phrase "the lawpack is the runtime law" (Schedule 4) being read as anything more than "the lawpack is the runtime *surface*." Law's source is the assenting organ; the lawpack is its compiled projection. Were the compiled form ever treated as the source, the source-of-force test would invert and the kernel would become the sovereign Q8 forbids. The constitutional formula should be drafted to foreclose that reading.
6. DISPOSITION
7. VARY. I would confirm the eight defined questions and the doctrine, vary the draft on Q1, Q3, Q4, Q5 and the assent mechanics, refuse on this record any amendment of s. 10 to abolish the Court of Appeal, hold the kernel-rejection invariant void in its present "not-equal" form, and issue the handover order as suspensory only, biting on registrar certification and not on enactment alone.
7. PROPOSED ENACTMENTS
8. I would have this court enact the assent floor directly as a CASE-LAW article (this court enacts case-law articles directly: [2026] REALM-SC 8), and direct the Standing Committee to draft all *instrument* text of Bill 32 (the savings clause, the court-constitution provision, the scheme-establishing provision, the redrafted s. 2 and the affirmative-form invariant), since this court rules the principle and does not legislate instrument text (REALM-SC 8).
9. PROPOSED S-23: The Sovereign-assent floor and AI non-sovereignty. * [constitutional]*
10. (1) All law of the Realm, in any generation or runtime surface, and including any law drafted, deliberated, proposed, consolidated, compiled, or maintained by an AI agent or a computational legislature, derives its force only from Sovereign assent: either specific assent to the particular instrument, or standing-bounded assent to a lawmaking route whose maker, scope, prohibited subjects, required form, validation, review or veto, and commencement conditions are fixed by Sovereign-assented law and are machine-evaluable.
11. (2) An AI agent or automated process may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery. It may not be sovereign; may not expand its own competence (Bill 14 s. 3(3)); may not amend this section or the assent requirement; may not amend the constitution or any primary or entrenched Act (Bill 14 s. 12-13); and may not create legal force from its own output by the fact of its having been written. The source-of-force test ([2026] REALM-SC 8) governs: force comes from the assenting organ, never from the artefact or its compilation.

12. (3) A standing-bounded route makes only subordinate law within its fixed scope. The assent requirement in this section is amendable only by **specific** Sovereign assent to a primary Act citing this section by number; it may never be amended, relaxed, or commenced by delegated lawmaking, by lapse of a window, or by the Sovereign's mere non-dissent. Silence is never assent to this subject-matter.
13. (4) This section binds the **delegate** and never the **Sovereign**, who retains the full power under CASE-LAW s. 2 to make or unmake law by due process.
14. (5) Where a runtime kernel enforces this section, it must do so by an affirmative, fail-closed predicate: a record carries force only if it **carries** a valid assent source that the kernel resolves to a specific assent event bound by digest, or to a standing-bounded route tracing to specific Sovereign assent and whose declared scope the kernel evaluates to cover the record. Absence, emptiness, unrecognised form, or an unresolved trace each cause rejection. A predicate that rejects only records **labelled** self-authorising, while passing records that omit the assent source, does not satisfy this section.
15. **Instrument text directed to the Committee per [2026] REALM-SC 8:** the Bill 32 savings clause for Bill 27 s. 1 (with the named survival-mechanism), the express V2 court-constitution provision, the express VJS-ACT scheme-establishing provision, the redrafted s. 2 commencement sequence, and the redrafted fail-closed assent invariant and typed s. 31 declarations.

8. PROPOSED OVERRULINGS

9. None. Every authority relied on is good law and is followed. I would mark nothing void retrospectively; the nullities I identify (the self-mint citation, the "not-equal" invariant, any Charter removal of the Court of Appeal, the self-certifying commencement conditions) are defects in an **un-adopted void draft** and an **un-commenced V2 lawpack**, curable before adoption and commencement, and bind nothing until then.

10. --- Bowan J

11. ---

ALDERMERE J

12. The load-bearing facts are confirmed: this V1 super-repo has no lawpack/ directory, the V2 infrastructure exists only in the separate private repo, the assent records carry the DRAFT marker (INV-ASSENT-DRAFT-001/002, SPEC-ASSENT-DRAFT-001), and the HANDOVER self-classifies as a non-binding draft implementation brief pending V1 settlement. I have the full Bill text and the complete governing corpus. I will now write my opinion.

13. OPINION OF ALDERMERE J

14. In the Supreme Court of the Vibe Justice System, sitting as the Full Court of Nine
15. *In the matter of the Computer-First Realm Act 2026 (Bill 32, void first draft), the Sovereign's reference thereon, and the leapfrog certified by the Privy Council in [2026] REALM-PC 24.*

1. PRELIMINARY

2. I record four procedural points and dispose of them, so the merits may be reached on a clean record.
3. (a) The bench. We sit nine. The matter re-settles the jurisdiction itself: it construes and would amend entrenched CASE-LAW s. 10 and s. 22, entrenches a new assent floor, and asks the apex to issue a realm-wide handover order. That is constitutional and foundational in the fullest sense (CASE-LAW s. 10; s. 18(1)). The leapfrog is properly reached: the Privy Council has certified it under s. 13 and the Sovereign has expressly directed the matter through the Privy Council and this Court, which together satisfy s. 20(2)-(3) (the point is genuinely foundational, has been ventilated below on a full symmetric file, and the certificate is express, recorded, and reasoned). I would dismiss any challenge to the route.
4. (b) The void-first-draft doctrine governs Bill 32 itself, and this is not an embarrassment to the migration but its first proof. Bill 32 is, on its face and in law, void as an instrument from issue: it is Lexby-authored text and Lexby holds no law-making authority (CASE-LAW s. 3(2)-(3); [2026] REALM-SC 8; [2026] REALM-PC 12). It is admissible only as a void first draft that leapfrogs into the Standing Committee's second-draft stage, and adoption by the proper organ (Committee vote plus Royal Assent) is constitutive and cures the origin defect, spent on adoption (s. 3(4)-(5)). I hold, with the Privy Council, that this is not a technicality to be hurried past. The whole claim of the migration is that V2 will be *legitimate*, and legitimacy is a question of route before it is a question of content. An instrument designed to prevent AI self-authorising law that was itself treated as self-executing would refute itself in its first clause. I therefore do not "confirm Bill 32." This Court settles principle, frames the route, directs the Committee, and enacts case-law where the law requires it; it does not author the operative statutory wording (REALM-SC 8: the court rules the principle and directs the Committee; it does not legislate instrument text). Where I say a clause "must" do a thing, I direct the Committee's drafting; I do not enact it.

5. (c) The companion YAML records are void ab initio and must not enter this V1 repository. I have verified the load-bearing facts on the record: this V1 super-repo contains no lawpack/ directory; the V2 lawpack, kernel, Charter, and assent records exist only in the separate private repository at the V2 repository; the V2 assent records are expressly marked draft (INV-ASSENT-DRAFT-001/002, SPEC-ASSENT-DRAFT-001); and the HANDOVER self-classifies as a draft_implementation_brief, "NOT live authority," whose constitutional legitimacy "must be settled through the V1 constitutional route ... BEFORE any of this material becomes binding." A purported County Court order citing jurisdiction the V2 repository is a ruling from a court that does not exist in this repository: void ab initio (CASE-LAW s. 18(5); [2026] REALM-PC 14, court formation being a substance rule). These records may be minted only in the V2 lawpack after lawful commencement. I confirm referral item E without qualification.
6. (d) Strike-out, per incuriam, incompatibility. Standing is made out: the Sovereign places the reference and Lexby reduces it as registrar and engineer (s. 3(1), s. 3(6)). Subject-matter jurisdiction is the paradigm case: the design and governance of the Realm's own legal substrate (s. 14; the super-repo is the realm-as-state, [2026] REALM-PC 15). The full corpus is on notice, so no per incuriam objection lies (s. 11(e)). And the Defendant's invited declaration of incompatibility (s. 11(f)) does not lie: once Q3 and Q4 are cured by express provision the draft is incomplete, not incompatible. That is the integrative point that runs through this opinion. The defects the Defendant has identified are real and several are fatal *as drafted*, but each is curable by express drafting the Committee can supply; none requires the Court to strike the migration at the threshold. I therefore reject both the Claimant's invitation to fast-path the Bill into law as if already sound and the Defendant's invitation to strike it down as ultra vires. The lawful disposition is the middle one the law in fact compels: settle the principle, vary the frame, direct the cure.
2. FRAMING
3. The handover-order question

4. Upon (a) Royal Assent specifically recorded against the final, pinned text of the Computer-First Realm Act adopted by the Standing Committee at its second-draft stage, and (b) satisfaction of a redrafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, turning on a validated, locked V2 lawpack that *carries* an already-assented settlement together with an always-on deterministic kernel invariant rejecting any record lacking a valid assent source: does V2 become the self-governing computer-first successor jurisdiction for runtime purposes while V1 remains the continuing Gazette and Archive estate; does this Court by order direct the V1 courts to relinquish continuing appellate and supervisory control over V2 runtime matters save the entrenched real-world floor; is the s. 10 hierarchy carried into V2 and may the Court of Appeal be non-convened without express amendment; is the Q8 assent doctrine the entrenched floor under all V2 lawmaking; and is the advance assent lawful only as a pinned conditional grant.
5. The eight underlying questions, as I frame them
6. I adopt the Privy Council's re-definitions, which correctly fix each issue before answering it, and frame them as the apex must:
7. - Q1 (Bootstrapping). May a constitutional migration Act receive Royal Assent before its runtime infrastructure exists, with commencement deferred; and must the commencement set be sequenced so that no condition is satisfiable by the V2 machinery alone?
8. - Q2 (Citation transition). By what instrument is the [2026] VJS-ACT N scheme lawfully established; and may an Act hand-mint its own ordinal in a series it is simultaneously founding?
9. - Q3 (Bill 27 four branches). Does s. 24 amend Bill 27 s. 1 by implication or must displacement be express; and may a savings clause confine s. 24 to V2 internal record organisation while Bill 27 binds the public estate?
10. - Q4 (Court continuity). Does s. 9 dissolve the courts or only supersede V1's substantive runtime law; and by what express act must each V2 court be constituted before any order issues?
11. - Q5 (Incorporation). What is the minimum valid act of express incorporation under s. 11; and is the kernel effect mandatory?
12. - Q6 (Single Gazette). Are the five Gazette elements lawful; and do the s. 27 mechanics belong in the primary Act or a delegated Regulation?
13. - Q7 (Relay and self-governance). May V1 lawfully authorise V2 to supersede it; is the founding process provenance not runtime law; does V2 self-govern on commencement; and is an express handover order needed?

14. - Q8 (Assent for AI-made law). Must all V2 law carry Sovereign assent, specific or standing-bounded; what are the irreducible machine-checkable limits; may the assent rule be amended by delegated lawmaking; and must the kernel reject by deterministic invariant any record lacking a valid assent source?
3. REASONING
4. My function on this bench is to find the formulation the whole Court can stand behind without surrendering any principle. On most of these questions the Privy Council, the Claimant, the Defendant, and the Observer converge once the genuine disagreement is isolated; my task is to state the convergence as a rule and to resolve the two or three points where the parties truly part.
5. (a) Q1 - Bootstrapping and deferred commencement
6. Enactment and commencement are distinct constitutive acts, and the conflation of them is the root of the Defendant's strongest, and the Claimant's most easily conceded, point. Royal Assent fixes the law; commencement fixes when it bites. Deferred commencement is ordinary (Bill 2 s. 13). On the text of s. 2(2)-(3) the Act "is a draft and has no binding runtime force" before commencement and "the kernel shall not treat this Act as live authority until all commencement requirements are satisfied." There is therefore no authority vacuum on the plain words: the infrastructure is a condition of **commencement**, not of **validity of enactment**. The Sovereign's power to declare law (CASE-LAW s. 2) is not subordinate to the prior existence of a Rust binary.

7. But the **content** of s. 2 as drafted is defective, and here the Defendant and the Observer are right and the Claimant concedes the point. Section 2(1) requires validation "by the VJS lawpack validator," entry "into the V2 lawpack," and inclusion "in the current lawpack lock." Every one of those conditions presupposes the very V2 infrastructure whose lawful existence is the question, and whose warrant on this record flows from this Act. A condition satisfiable only by an artefact whose authority derives from the Act is a bootstrap that closes on itself. The principle, which I hold for the Court, is that the kernel may never be the source that certifies its own warrant. The cure is not cleverer drafting; it is sequencing in the world. The **force** comes from Royal Assent to the V1 Act, a V1 event lawful under the V1 route. The lawpack is the **compiled form** of an already-assented settlement, never the generator of the Act's own authority. Commencement must therefore be redrafted to require, in order: (i) Royal Assent under the V1 route, wholly antecedent and external; (ii) a recorded act bringing the V2 infrastructure into existence under that assent; and (iii) lawpack validation, entry, and lock, which confirm **form** and never **legitimacy**. A transitional bridge to this effect (referral option A's third limb) is required. So framed, the Claimant's distinction holds and the Defendant's circularity objection is answered, not by denying it, but by curing the sequence.
8. (b) Q2 - The VJS-ACT citation scheme (Bill 16 precedent)
9. Bill 16 is on all fours: it carried the LEXBY-*** to REALM-*** transition, establishing a scheme by an enacting instrument while preserving prior citations as valid historical identifiers; and [2026] REALM-PC 11 confirms the deterministic engine mints flat annual ordinals. A constitutional Act of this magnitude may carry the new scheme within itself or by a companion instrument enacted simultaneously, the choice being a reversible drafting call for the Committee. But two points bind.
10. First, s. 1(3) as drafted merely **proposes** an ordinal; it does not **enact a scheme**, and inference is precisely the vice this constitution forbids. The Committee must add an operative section stating the series code, the form [YEAR] VJS-ACT N, the deterministic minting rule, and the express preservation of REALM-*** citations (which s. 23(3) already foreshadows).

11. Second, the self-citation [2026] VJS-ACT 8 is void as a mint. A citation must be minted by the deterministic engine under an *already-existing* scheme; an instrument cannot lawfully assign itself ordinal "8" in a series it is simultaneously founding, because the minting authority must precede the minted item, and "8" falsely presupposes seven prior entries that do not lawfully exist. This is not a discretionary stylistic point: the deterministic citation-integrity gate (CASE-LAW s. 19(5)) fails closed on a duplicate or non-deterministic number, and would defeat any attempt to cite the Act. The scheme-establishing limb takes effect on commencement and the first VJS-ACT ordinal is minted deterministically at that point on the empty series, "8" being a non-operative placeholder until then. I record, lest the placeholder mislead, that nothing turns on the number being "8" rather than "1"; what binds is that the engine, not the drafter's hand, assigns it.
12. (c) Q3 - The Bill 27 four-branch reconciliation
13. This is the first of the two questions where the draft, as written, crosses a line the constitution draws, and where my office requires me to hold the principle exactly while preserving what the migration legitimately needs.
14. Bill 27 s. 14(2) is express and controlling: the four-branch layout mandate and the system-data-only rule "are foundational to CASE-LAW s. 1 and s. 9 and may not be silently repealed or relaxed by implication. Any amendment must be express." That is a Thoburn-style entrenchment enacted by an in-force Act of the Realm. Bill 32 s. 24 nowhere cites Bill 27 by number; it says only that V2 "does not carry forward" the four-branch structure as mandatory runtime structure. As drafted, s. 24 is an attempt to relax a mandate that its own parent provision forbids relaxing other than expressly. That much I hold against the Claimant's framing, which would have s. 24 decline to carry the structure forward while denying that it amends Bill 27: that is the silent middle the Amendment Procedure forbids, and there is no such thing as a non-amending non-carrying-forward of an entrenched mandate.

15. But the integrative resolution does not require the Defendant's strike-out, and the Defendant's own pleading concedes the narrower route. The distinction is between principle and mechanism. CASE-LAW s. 21 and s. 22(4), and [2026] REALM-PC 14, already hold that a path name is non-operative and that authority flows from substance, not file location: the gate checks the substance, not the filename. V2's move from mandatory directories to metadata-bound records (role, schema, id, status, authority, kernel-effect) is therefore **consistent with the deeper law**: the four-branch separation of powers survives as a constitutional principle the kernel enforces by record-role; only the mandatory **folder names** are released. The vice is not the substance; it is the silence. The cure is an express savings clause: s. 24 must state that nothing in it amends or displaces Bill 27 s. 1, which continues to bind the public VJS estate, and that s. 24 governs only V2 internal runtime record organisation. The Committee may, alternatively, expressly amend Bill 27 s. 1 by number if release of the public estate is genuinely intended; but no third, silent path exists. I add the operability rider: the V1 public super-repo **remains** four-branch under Bill 27 for as long as it is the public-facing estate (it continues to publish into the single Gazette), and conflating the public estate with the V2 runtime repo would break the public layout the world already reads.
16. (d) Q4 - Court continuity
17. This is the gravest defect in the package, and the one on which the whole bench must speak with a single, unmistakable voice, because the failure mode is catastrophic and silent: an Act that abolishes the courts that police it. The draft is internally contradictory under its own concordance rule (s. 6(4)): s. 9(2) lists "the V1 court hierarchy" and "the V1 Court of Appeal" among superseded items, and s. 9(5) says nothing continues unless expressly incorporated; yet s. 12 references Supreme Court Orders, Privy Council Orders, and County Court repo Orders as live V2 tiers. The Act abolishes the courts in s. 9 and assumes their orders in s. 12. A material discrepancy is, on the Act's own terms, a validation defect routed for correction.

18. I resolve it by holding two propositions together, which is the integrative heart of the answer. First, by entrenchment, the courts survive automatically. The court structure is fixed by CASE-LAW s. 10 (entrenched) and the single central apex by s. 22(2) (the singleness "may never be relaxed"). These are amendable only by express, deliberate amendment citing the article by section number (the Amendment Procedure). A broad supersession clause cannot reach an entrenched article it does not name; s. 9 is therefore void to the extent it purports to abolish the s. 10 structure, and the s. 10 hierarchy survives s. 9 by operation of the entrenchment, not by the Act's grace. Second, survival-by-entrenchment is necessary but not sufficient for a migration that must actually run. Court existence is **substance*, not *reference** ([2026] REALM-PC 14; REALM-PC 15; s. 18(5)). The s. 10 structure surviving as an abstract constitutional fact does not constitute any **particular V2 bench**; and a bench not lawfully constituted issues orders void ab initio. Mention in the s. 12 authority list is not constitution. The two propositions are not in tension: the **tier structure** is preserved by entrenchment against implied abolition, and **each operative V2 court** must still be expressly incorporated or reconstituted, with an odd bench (s. 10, s. 18), before any V2 order issues. The s. 12 hierarchy is aspirational until then.
19. On the Court of Appeal, the Charter records it is "not carried forward in the V2 MVP." That sharpens the point rather than softening it. Removing a tier touches the entrenched three-tier structure of s. 10 and cannot be done by a Charter signed by the Principal alone, by an MVP design choice, or by omission. The Committee must choose, expressly, among three lawful routes, and I would have this Court settle which are available rather than leave it open: (i) express amendment of CASE-LAW s. 10 citing it by number, a heightened act reserved to this Court and the Sovereign, which I would be prepared to enact only on a clear and reasoned application, not on the present record; (ii) keep the Court of Appeal as the safe default; or (iii) recast "no Court of Appeal" as administrative non-convening (no appeals have yet arisen to convene it), which does not purport to abolish the tier and is workable for an MVP. I hold that route (iii) is lawful and is the correct reading of the Charter's own words ("not carried forward in the V2 **MVP**"): a tier that exists in law but has not yet been convened because no matter has reached it is not an abolished tier. What may not happen is a quiet two-tier system standing where s. 10 entrenches three. The integrative formulation: the Court of Appeal tier persists as entrenched law; its non-convening in the MVP is lawful as administration, not as amendment; and its abolition, if ever sought, requires express amendment of s. 10 by number.
20. (e) Q5 - Express incorporation mechanics

21. The s. 11(2) menu (Act, Kernel Regulation, Rule Atom, Court Order, Spec, Decision, Invariant) is closed and acceptable as to form; the word "only" is exhaustive, and any one of the seven is a valid vehicle within its competence. This is the right pragmatic calibration, and I reject the suggestion that every carried-forward V1 micro-rule needs a primary Act, which would make the migration undeliverable. But two glosses bind.
22. First, a rank-floor: a lower-rank record may not incorporate V1 material of a rank it could not itself enact. A Kernel Regulation derives from an Act and is bounded by it (Bill 14, the no-Henry-VIII ceiling); it cannot, by the device of "incorporating" V1 constitutional material, do indirectly what it could not do directly. Constitutional or primary-Act-level V1 material requires incorporation by a V2 Act; subordinate V1 material may be incorporated by the corresponding subordinate V2 record. This is not an addition to the constitution but an application of Bill 14 s. 12-13 to the incorporation device.
23. Second, the kernel effect is mandatory. Section 11(3) is conjunctive: the incorporating record must identify the V1 source, the V2 destination, the operative rule, the kernel effect, and any supersession. The kernel effect is load-bearing on the text and on workability alike. In a computer-first system a rule with no kernel effect is not in the runtime authority graph (the Act's own s. 17(4) so provides). An incorporation naming a V1 source and an operative rule but no kernel effect gives the clerk nothing to execute; it is archive prose wearing a runtime badge. Identification of source and operative rule alone does not suffice. I add the operability caution the Observer and Goffe PC press: an un-incorporated-but-needed matter should be *routed to a bench* rather than returned as a permission-by-default "no law," so the migration creates no silent ungoverned surfaces (the s. 7 "silence is no defence" principle, in machine form).
24. (f) Q6 - The single Gazette, two estates
25. This is the most workable part of the package, and I confirm all five elements without qualification. Publication and authority are different layers, the same discipline as the source-of-force test in [2026] REALM-PC 12 and the release regime in REALM-PC 16. (1) One Gazette, two estates (V1 Archive, V2 Current) is lawful, the Gazette being the public record carrying system data only (Bill 8; Bill 22; Bill 27 s. 7). (2) Publication of V2 material is neither enactment by V1 nor incorporation into V1; force comes from promulgation by the organ, not from appearing on a page. (3) The Gazette is not the runtime source; the lawpack is. (4) Typed lineage edges to V1 archive material are lawful and indeed required by the no-implication rule, so the chain is explicit and traceable. (5) The kernel need not, and must not, read the Gazette for runtime decisions, consistent with s. 13 (no semantic-similarity search).

26. On allocation (referral F): the export gate (s. 27 - fail unless the lawpack validates, the scan passes, statuses are valid, citations are unique, lineage resolves, and the manifest carries the digest) is the public-private boundary (Limit 9) enforced mechanically, and it must be kept. But the detailed mechanics are subordinate, machine-checkable detail that change as tooling changes; freezing them in a constitutional Act over-freezes them. With [2026] REALM-PC 10's preference for SI or Regulation over fresh statute for operational detail, the principle stays in the primary Act and the mechanics descend to a Kernel Regulation made under an express enabling clause, that delegation itself satisfying the Q8 declarations (maker, scope, form, validation, review, commencement). I note this is a reversible drafting allocation; the Committee may keep the bare fail-closed conditions in the Act if it judges them constitutional rather than operational, provided the boundary itself is never weakened.
27. (g) Q7 - The constitutional relay and V2 self-governance
28. The Sovereign holds plenary power to make or unmake law by due process (CASE-LAW s. 2), and re-settling the jurisdiction through V1's own organs is the exercise of that power, not a revolution. CASE-LAW s. 9(3) and [2026] REALM-PC 17 confirm that a jurisdiction may, by express local sovereign act, amend its law and become independent; default subscription is not perpetual subjection. I confirm that V1 may so authorise V2; that the V1 founding process is provenance, not daily runtime law (the HANDOVER's own self-classification confirms it); that V2 self-governs through its native route after commencement; and that V1 remains Gazette and Archive.
29. Two points I press, both integrative. First, the Observer's "perpetual constraint" objection is rejected and the constraint embraced as a feature. Entrenchment is not a failure of self-governance; it is its precondition. A jurisdiction that could, by its own delegated machinery, unmake the rule requiring human assent would not be self-governing but **ungoverned**: AI could authorise its own law, the precise evil the migration exists to prevent. The assent rule is amendable, but only by specific Sovereign assent to a primary Act (s. 31(3)). The lock binds the **delegate**; the **Sovereign** holds the key throughout. The Committee should state expressly that the assent rule binds the delegate, never the Sovereign, so no reader mistakes entrenchment for a fetter on the Crown.

30. Second, on "continuing control" (referral G): V2 self-governance is not perfected merely by Bill 32 declaring it. An **Act** cannot of itself direct the **courts** to relinquish jurisdiction; only a **court order** binds the courts. Because the apex is single and central and its enactment non-delegable (s. 22(2); REALM-SC 6), an express Supreme Court handover order is required to stop the V1 courts asserting continuing appellate or supervisory control over V2 runtime matters. The relay is lawful; the **handover** needs the apex. This is the strongest ground for the leapfrog, and I dispose of it at section 3(j) below.
31. (h) Q8 - Sovereign assent for AI-made or delegated law
32. Here the bench is most united, and I am content to state the unity as a rule. The proposed doctrine is not novel constitution-making; it is the codification of binding law already on the books, projected from "Lexby's pen" to "any AI maker." The threads are exact: CASE-LAW s. 3(2)-(3) (Lexby holds no law-making authority; Lexby-authored instrument text is void on its own account); CASE-LAW s. 2 (legislative power is the Sovereign's, by due process); Bill 14 s. 3(3) (a delegated power may not widen its own scope; a purported self-extension is ultra vires and void), s. 9 (an agent may propose, draft, codify, consolidate, and revise **only**; the power to draft is never the power to enact), s. 12 (no power, express or implied, to amend primary or entrenched law by a delegated instrument); and [2026] REALM-SC 8 / REALM-PC 12 (adoption by the proper organ is constitutive; the test is the source of the artefact's force).
33. I confirm each limb: (1) all V2 law requires Sovereign assent, specific or standing-bounded; (2) AI may operate machinery but may not be sovereign, expand its own competence, amend the assent rule, or create force from its own output; (3) a delegated body must declare maker, scope, prohibited subjects, form, validation, review/veto, and commencement (s. 31); (4) the assent rule is amendable only by specific Sovereign assent to a primary Act; (5) the kernel must reject any record lacking a valid assent source. Standing-bounded assent is lawful as the analogue of delegated legislation under a Sovereign-assented enabling Act, with the no-Henry-VIII ceiling doing the load-bearing work. The doctrine must state expressly that a standing-bounded route may make only **subordinate** law within its fixed scope and may never reach the assent rule, the constitution, or primary or entrenched Acts, and the wording should be aligned to Bill 14 s. 12-13 by number so the ceiling is express, not inferred.

34. The doctrine is prose until it is enforced, and two operability conditions convert it into a deliverable. First, each s. 31 field must be a *typed, kernel-evaluable property*; a "bounded route" whose scope lives in unenforceable prose is a blank cheque in disguise, because the kernel cannot reject what it cannot evaluate. Second, and decisively, the kernel-rejection rule (s. 30(6), Limit 17) is the enforcement teeth and must be a deterministic, always-on invariant, not a model judgment, failing closed on any record lacking a traceable assent edge, exactly as the citation-integrity gate fails closed on a duplicate (s. 19(5)). I hold, with the Privy Council, that the *existence and passing of that invariant is itself a commencement condition*. Without it, Limits 15 and 16 are ceremonial. I note that the V2 record presently carries only INV-ASSENT-DRAFT-001/002 and SPEC-ASSENT-DRAFT-001, all marked draft; the doctrine's enforcement therefore does not yet exist as a passing invariant, which is exactly why its existence must be a condition of commencement and not a promise. AI may *operate* the lawmaking machinery, draft, deliberate, propose, and consolidate, and may run the kernel as clerk; it may never be the *source of force*. The clerk is not the sovereign. That is the answer to the question whether AI may operate lawmaking machinery without becoming sovereign: yes, precisely because the machinery is bounded above by a human-assent floor the machinery itself cannot reach.
35. (i) The advance assent to the final bill, and what binds the final text
36. I address the live Sovereign act as a question of law, neither inflating nor evading it, and I find the formulation that honours the Sovereign's word while keeping it lawful. The Sovereign has stated: "assent is given to the final bill," directing the matter through the Privy Council and this Court to completion.
37. Royal Assent is, by its nature, assent *to a text*: the organ's constitutive act on a determinate instrument (Bill 2 s. 21; REALM-PC 12, an instrument carried by Committee vote plus Royal Assent *stands*). An assent directed at a text that does not yet exist cannot, at the moment of utterance, be the constitutive act, because there is as yet nothing determinate to be constituted. The danger is precise and must be named: an advance assent to "whatever text the AI-driven process emits," attaching automatically to wherever the "final" text lands, is the exact AI-self-authorising-law hazard Q8 exists to prevent, wearing the costume of Royal Assent. If the machinery can move the text and assent follows it, then in substance the AI has authored binding law and the Sovereign has stamped a moving target.

38. I therefore characterise "assent is given to the final bill" as a standing direction and advance conditional commitment that ripens into operative Royal Assent only when the final text is fixed and the Sovereign's specific assent is recorded against that ascertained text. This is not a diminution of the Sovereign's word; it is the only characterisation that keeps the assent both meaningful and lawful, and it **protects** the Sovereign, because an unpinned advance assent would let a drafting error or an overreaching clause acquire Royal Assent the Sovereign never actually saw. Three requirements bind, or the grant is a blank cheque the law will not enforce as a constitutive act:
1. The final text must be fixed by the proper organ. Advance assent does not cure the void-first-draft status of Bill 32: adoption by the Committee is constitutive of the **instrument** and assent constitutive of **enactment** (s. 3(5)). Advance assent plus Committee adoption plus a recorded assent against the adopted text equals lawful enactment; advance assent alone, against a void draft, enacts nothing.
 2. The final text must be bounded so the assent is to a known thing. What binds "final" is this Court's settlement: the defined questions Q1-Q8, the limits as confirmed and varied, and this Court's handover order. The advance assent is lawfully directed at "the final bill **that resolves Q1-Q8, honours Limits 1-17 as varied, and incorporates the Supreme Court's handover order**." The frame is the boundary. An assented text departing from the settled frame is a **different** instrument, outside the scope of the commitment, requiring fresh specific assent. Concretely, "final" is the Committee's adopted second draft, presented back to the Sovereign as a fixed, citable artefact (a specific commit and digest), the assent biting when the Sovereign confirms, or does not dissent from, that pinned text.
 3. The assent honours, and does not circumvent, s. 32(2). The draft's own s. 32(2) requires that **this Act** receive specific Sovereign assent. That is satisfied only if the specific assent is ultimately recorded against the final ascertained text. The advance commitment cannot be self-validating and cannot be routed through the standing-bounded delegated route of s. 30, because a delegated route cannot be the vehicle for assenting the very Act that creates the assent rule, that being the AI-self-authorising bootstrap the migration forbids. The bootstrap of the assent rule is, and must be, a V1-Sovereign act through the V1 route: the V1 Sovereign specifically assents to the primary Act, and **thereafter** the rule governs V2 delegated lawmaking. That is coherent and not circular.

4. Within Limit 17, the formal safeguard is mechanical: the kernel and the record must show a specific assent event bound to the digest of the final adopted text. An assent that cannot be tied to an ascertained text by a recorded, deterministic link is not a valid assent source, and the kernel must reject any V2 record relying on it. On that footing the advance assent is lawful and meaningful; on any other footing it is a direction only, the constitutive act remains outstanding, and Lexby's s. 2 duty is to push back and route the final text for confirmation.
5. (j) The terms of the express handover order on commencement
6. The handover order is the apex's non-delegable act, and only this Court can make it (s. 22(2); REALM-SC 6; only the Supreme Court enacts realm-wide, s. 9). I would frame it conditionally, so it has no operative effect until the antecedent V1 acts are complete, and I answer the six framed questions as follows.
7. On the trigger. The order takes effect only upon (a) Royal Assent specifically recorded against the final, pinned, digest-identified text adopted by the Standing Committee, and (b) satisfaction of the redrafted commencement sequence in which no condition is satisfiable by the V2 machinery alone, the lawpack carrying the already-assented settlement and an always-on deterministic kernel invariant rejecting any record lacking a valid assent source.
8. (1) On that trigger, V2 becomes the self-governing computer-first successor jurisdiction **for runtime purposes**, and V1 remains the continuing Gazette and Archive estate, V1 asserting no continuing runtime control over V2 post-commencement lawmaking. Confirmed.
9. (2) On that trigger, this Court directs the V1 courts to relinquish continuing appellate and supervisory control over V2 runtime matters, **save the entrenched real-world-law floor** (REALM-SC 9; REALM-PC 18), which is non-derogable and over which no jurisdiction has the last word; V2 runtime adjudication proceeds in V2's own expressly constituted courts (odd benches, s. 10/s. 18). Confirmed, conditional on the trigger and on each V2 court being expressly constituted before it issues any order.
10. (3) The CASE-LAW s. 10 hierarchy **is** carried into V2 by entrenchment; the Court of Appeal may lawfully be **non-convened** in the V2 MVP as administration without amending s. 10, but may not be **abolished** without express amendment of s. 10 by number; and each V2 court must be expressly incorporated or re-constituted by a named constituting instrument before any V2 order issues, the s. 12 hierarchy being aspirational until then. Confirmed.

11. (4) The Q8 assent doctrine is the entrenched constitutional floor under all V2 law-making, amendable only by specific Sovereign assent to a primary Act, binding the delegate not the Sovereign, and should be entrenched by an express CASE-LAW amendment citing the relevant articles and aligned to Bill 14 s. 12-13. Confirmed, and I enact that amendment at section 7 below, this being the realm-wide entrenchment only the apex can make.
12. (5) Advance Sovereign assent to "the final bill" is lawful **only** as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) the Sovereign confirms, or does not dissent from, before commencement, and void if it operates as an automatic stamp on AI-emitted text, consistent with s. 32(2). Confirmed.
13. (6) The four-branch mandate of Bill 27 s. 1 is **preserved for the public estate** (s. 24 governing only V2 internal record organisation by an express savings clause), unless expressly amended by number; express amendment by number is required for any release of the public estate. Confirmed.
14. I add the integrative caution that makes the order safe: the handover order is conditional and self-suspending. It must recite that it has **no operative effect whatsoever** until the antecedent V1 Royal Assent and the redrafted, non-circular commencement are complete, so that the order itself cannot become the bootstrap. The apex does not hand over to a jurisdiction that does not yet lawfully exist; it provides, in advance, that **when** the lawful V1 sequence completes, the handover takes effect by the force of this order and not by any V2 act. That keeps the source of force, throughout, in the V1 Sovereign and the V1 apex, never in the V2 machinery.
4. RATIO
5. I would have the Court settle the following propositions as binding rules.
1. Enactment and commencement are distinct constitutive acts. A declaratory constitutional migration Act may receive Royal Assent before its runtime infrastructure exists, with commencement deferred to express conditions; but no commencement condition may be satisfiable by the successor machinery alone. The legitimating sequence must be wholly antecedent and external (Royal Assent under the existing route); the lawpack is the compiled form of an already-assented settlement, never the generator of the Act's own authority. The kernel may never certify its own warrant.

2. The void-first-draft doctrine governs the migration instrument itself. Bill 32 is void as an instrument from issue ([2026] REALM-SC 8; REALM-PC 12; CASE-LAW s. 3(2)-(5)) and becomes law only by Committee adoption and **specific** Royal Assent recorded against the fixed final text. The companion YAML records (including any County Court order citing a non-existent V2 jurisdiction) are void ab initio (s. 18(5); REALM-PC 14) and may be minted only in the V2 lawpack after lawful commencement.
3. Nothing crosses from V1 to V2 by implication, and nothing is displaced from the public estate by implication. Incorporation must be express, recorded, and state the **mandatory kernel effect**; a lower-rank record may not incorporate V1 material of a rank it could not itself enact (Bill 14 s. 12-13). The four-branch mandate of Bill 27 s. 1 is either expressly preserved for the public estate (a savings clause confining s. 24 to V2 internal record organisation) or expressly amended by section number; silent displacement is void (Bill 27 s. 14(2); the Amendment Procedure; the Thoburn rule).
4. Court existence is substance, not reference. A broad supersession clause cannot impliedly amend the entrenched court structure: CASE-LAW s. 10 and the single central apex of s. 22(2) survive supersession automatically. But no V2 court continues by mention in an authority-hierarchy list; each V2 court must be **expressly incorporated or reconstituted** with an odd bench (s. 10, s. 18) before any V2 order issues, on pain of void-ab-initio nullity (REALM-PC 14, REALM-PC 15). A tier may lawfully be **non-convened** in an MVP as administration; its **abolition** requires express amendment of s. 10 by number.
5. The Sovereign-assent rule is declaratory of existing binding law and AI is never sovereign. All successor law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded under a no-Henry-VIII enabling regime; AI may draft, deliberate, propose, consolidate, and operate delegated law-making machinery and run the kernel as clerk, but may not be sovereign, expand its own competence, amend the assent rule, or create legal force from its own output (CASE-LAW s. 2, s. 3(2)-(3); Bill 14 s. 3(3), s. 9, s. 12; REALM-SC 8; REALM-PC 12). A standing-bounded route may make only subordinate law within its fixed, machine-checkable scope and may never reach the assent rule, the constitution, or primary or entrenched Acts. The kernel-rejection of any record lacking a valid assent source must be a **deterministic, always-on invariant**, and its existence and passing is a condition of commencement. Entrenchment is the precondition of lawful self-governance, not a defect in it; the lock binds the delegate, never the Sovereign, who retains full s. 2 power to amend by specific assent to a primary Act.

6. Advance Sovereign assent to a not-yet-final text is lawful only as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) that resolves the settled questions, honours the confirmed limits, and incorporates the apex handover order, and which the Sovereign confirms, or does not dissent from, before commencement. It does not cure the void-first-draft status, cannot be self-validating, and cannot be routed through delegated machinery (s. 32(2)). An advance assent operating as an automatic stamp on AI-emitted text is void.
7. Publication is not force. Within a single Gazette of two estates, publication of successor material is neither enactment nor incorporation by the predecessor; runtime force derives from the lawpack and kernel-recognised status, not the Gazette, and the kernel must not read the Gazette for runtime decisions. A new primary-legislation citation series may be established on the Bill 16 precedent by an express scheme-establishing provision; the Act's own citation must be minted deterministically on the empty series, never hand-numbered; prior citations remain valid historical identifiers (REALM-PC 11; CASE-LAW s. 19(5)).
8. The inter-jurisdictional handover is the apex's non-delegable act and must be conditional and self-suspending. Only the single central apex may direct courts to relinquish continuing control (s. 22(2); REALM-SC 6); an Act cannot of itself bind the courts. The handover order has no operative effect until the antecedent Royal Assent and non-circular commencement are complete, so that the order cannot itself become the bootstrap; the real-world-law floor (REALM-SC 9; REALM-PC 18) is reserved to the predecessor and is non-derogable.
5. OBITER
6. I record, as persuasive only, that the migration's deepest safeguard is structural rather than textual: the boundary between **operating** the machinery and **being** the source of force. A computer-first Realm is safe not because the kernel is wise but because the kernel is **small**: it loads, validates, resolves, routes, and rejects, and it does none of the things (legislate, adjudicate, create force by computation, call a model, search by similarity) that would make it a sovereign rather than a clerk (s. 13(3)). The whole of Q8 is, in the end, the constitutional insistence that the clerk stay a clerk. A future court tempted to let the kernel "interpret" a borderline record, or to let a model resolve an ambiguity the deterministic gate cannot, should recognise that temptation for what it is: the first step by which the clerk becomes the legislator. The line is bright on purpose.
6. DISPOSITION

7. DECLARATORY, with VARY. The eight questions are settled as above and the limits are confirmed, save that the Bill text must be VARIED so that s. 2 (commencement), s. 1(3) (citation), s. 24 (Bill 27 savings), and the court-continuity provisions match the settled limits; the assent floor is entrenched as a new CASE-LAW article enacted at section 7; the advance assent is held lawful only as a pinned conditional grant; and the conditional, self-suspending handover order issues on the trigger. Bill 32 remains a void first draft of no binding force until the Standing Committee adopts the second draft and the Sovereign specifically assents to the pinned final text.
7. PROPOSED ENACTMENTS
8. The realm-wide entrenchment of the assent floor lies beyond the Privy Council's competence and within this Court's alone (CASE-LAW s. 9; REALM-SC 8). It is declaratory of existing binding law (s. 2, s. 3(2)-(3); Bill 14 s. 3(3), s. 9, s. 12) projected to all AI-made and delegated law, and I would have this Court enact it directly as case-law, citing the affected articles by number. The *instrument text of Bill 32 itself* I would NOT enact: that is DIRECTED to the Standing Committee for the second draft per REALM-SC 8 (the Court rules the principle and directs the Committee; it does not legislate the statute). The Committee is directed to draft the s. 2, s. 1(3), s. 24, and court-continuity cures, the express scheme-establishing provision, the Bill 14 s. 12-13 alignment, and the digest-bound assent linkage, in conformity with this judgment.
9. PROPOSED S-23: The Sovereign-assent floor and AI non-sovereignty *(I would have the Court enter this as a new CASE-LAW article; mark it [constitutional]; it cites s. 2, s. 3, s. 9, s. 10, s. 13 and Bill 14 s. 3(3), s. 9, s. 12-13 expressly, and is enacted by the full Supreme Court of nine on a constitutional question.)*
10. s. 23 [constitutional] | SC ([2026] REALM-SC, this judgment) | The Sovereign-assent floor and AI non-sovereignty.
11. (1) Assent floor. All law of any VJS jurisdiction, including law drafted, proposed, deliberated, voted upon, consolidated, compiled, or maintained by an AI agent or a computational legislature, requires Sovereign assent. Assent is either *specific* (the Sovereign expressly assents to a particular instrument) or *standing-bounded* (the Sovereign has, by a prior Sovereign-assented primary Act, assented to a delegated lawmaking route whose maker, scope, prohibited subjects, required form, validation, review or veto, and commencement conditions are all fixed by that Act). This sub-article is declaratory of s. 2 and s. 3(2)-(3) and is given effect to all AI-made and delegated law.

12. (2) AI non-sovereignty. An AI agent or computational legislature may draft, deliberate, propose, consolidate, revise, and operate delegated lawmaking machinery, and may operate the deterministic kernel as clerk, but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output by the fact of its being written. A purported self-extension is ultra vires and void (Bill 14 s. 3(3)). The power to draft is never the power to enact (Bill 14 s. 9).
13. (3) No-Henry-VIII ceiling on the delegated route. A standing-bounded route may make only **subordinate** law within its fixed, machine-checkable scope. It may never, by any means express or implied, reach this assent rule, the constitution, or any primary or entrenched Act (Bill 14 s. 12-13). A delegated body that exceeds its competence produces draft only.
14. (4) Amendment reserved to the Sovereign. This article binds the **delegate** and never the **Sovereign**. The Sovereign retains the plenary s. 2 power to make or unmake law by due process and may amend this article only by specific Sovereign assent to a primary Act expressly citing it by number (the Amendment Procedure). The lock is a lock against the delegate alone.
15. (5) Deterministic enforcement. Where a jurisdiction operates a deterministic kernel, that kernel must reject, by an always-on invariant failing closed and not by any model judgment, any record claiming binding runtime force without a valid, traceable assent source bound to the assenting act; this gives effect to s. 19(5) by analogy. A record lacking a valid assent source is draft only and has no binding runtime force.
16. (6) Entrenchment is the precondition of self-governance. The constraint in this article is not a fetter on lawful self-governance but its precondition: a jurisdiction whose own delegated machinery could unmake the human-assent rule would be ungoverned, not self-governing. Nothing in this article prevents a subscribed jurisdiction from becoming independent by express local sovereign act (s. 9(3)); but no jurisdiction, while it operates AI or delegated lawmaking, may dispense by that machinery with the requirement of Sovereign assent.
17. The s. 10/s. 22 question (any future **abolition** of the Court of Appeal tier) is not enacted on the present record; the tier persists, its non-convening in the MVP is lawful administration, and abolition would require a separate express amendment of s. 10 by number on a reasoned application. All Bill 32 instrument-text cures are DIRECTED to the Standing Committee.
8. PROPOSED OVERRULINGS

9. None. Every authority relied upon (REALM-SC 7, REALM-SC 8, REALM-SC 9, REALM-PC 11, REALM-PC 12, REALM-PC 14, REALM-PC 15, REALM-PC 17, REALM-PC 18) is good law and is applied, not disturbed. The Privy Council's judgment in [2026] REALM-PC 24 is not binding on this Court but is, on every point I have reached, correct in its reasoning and adopted in its result, with the addition only of the realm-wide entrenchment and the conditional, self-suspending form of the handover order, which lay beyond that Council's competence.

10. --- Aldermere J

11. ---

APPENDIX - WORKFLOW PROVENANCE

12. | Item | Finding |

13. |---|---|

14. | Workflow class | Judicature/court/workflows/supreme-court.js (full court of nine, constitutional) |

15. | Adapter | Claude Code Workflow computer-first-migration-court (bespoke two-tier constitutional adapter; Supreme Court leg, on leapfrog) |

16. | Run | wf_8599cf38-427 |

17. | Seised by | Leapfrog from [2026] REALM-PC 24 on the constitutional-tension route, and the Principal's express direction to drive the matter through the Privy Council and the Supreme Court (CASE-LAW s.13, s.20; VPR 4) |

18. | Bench | Nine independent seats: Hallam CJ, Goffe J, Blackmere J, Sumberly J, Elden J, Coade J, Steyne J, Bowan J, Aldermere J |

19. | Research leg | claimant + defendant + observer briefs filed on a fully-argued symmetric record |

20. | Vote | unanimous 9-0 (Bowan J concurring in the result and in part as to the ratio; his enforcement refinements on the affirmative fail-closed invariant and the positive-assent requirement adopted by the Court) |

21. | Enacts | CASE-LAW s. 23(1)-(6) [constitutional]; amends Constitution/CASE-LAW.md by express enactment citing the article by number |

22. | Reduction | Lexby, s.18(4) registrar reduction; em-dashes normalised; substance unaltered |

23. | Checks | cdd check-citator, cdd check, cdd local-ci on filing |

1. *Enactment and commencement are distinct constitutive acts: Royal Assent fixes the law; commencement fixes when it bites. Deferred commencement is lawful, and the absence of operative V2 infrastructure is a condition of commencement, not of validity of enactment. However, no commencement condition may be satisfiable by the V2 machinery alone: the kernel may never be the source that certifies its own warrant. Commencement must run in three ordered, externally-anchored limbs: (i) Royal Assent under the V1 route is wholly antecedent, external, and the sole source of legitimacy; (ii) a recorded human-authorised act brings the V2 infrastructure into existence as the compiled carrier of the assented settlement; (iii) lawpack validation, entry, and lock confirm only that the assented settlement has been faithfully compiled (a digest match), never that the kernel validated the Act into existence.*

Commencement must produce a single checkable commencement record naming the assent event, pinned digest, lawpack version, and lock.

2. *A citation scheme is created by an enacting instrument with prior citations preserved as valid historical identifiers; the deterministic engine mints flat annual ordinals. An Act may carry the new [YEAR] VJS-ACT N scheme within itself or by a companion instrument enacted simultaneously, by an express scheme-establishing provision (series code, form, deterministic minting rule, express preservation of REALM-* citations). An Act may NOT mint its own hand-chosen ordinal: a self-cited ordinal is void as a mint, because the minting authority must precede the minted item and citations are deterministic and registry-allocated, never chosen by an agent on a turn. The first VJS-ACT ordinal is minted deterministically on the empty series at commencement.*

3. *The four-branch separation-of-powers principle is entrenched (Bill 27 s. 6, s. 7, s. 15(2)) and may not be relaxed by implication; any amendment must be express by section number. The entrenched principle (separation of powers) is distinguished from the mechanism (mandatory folder names): authority comes from substance, not file location, so a move from mandatory directories to metadata-bound records is consistent with the deeper law, but only if said expressly. A clause not carrying forward the mandate must carry an express savings clause confining it to V2 internal runtime record organisation, preserving Bill 27 s. 6/s. 7 for the public V1 estate, and naming the kernel-enforced record-role mechanism by which the separation survives the loss of directories. There is no silent middle; release of the public estate requires express amendment of Bill 27 by section number.*

4. *The court structure is entrenched (CASE-LAW s. 10 three-tier hierarchy; s. 22(2) single central apex) and survives any broad supersession clause automatically: a supersession clause cannot reach an entrenched article it does not name, and amendment by implication is void. But survival-by-entrenchment saves only the abstract tier template; court existence is substance not reference, so each operative V2 court must still be expressly incorporated or reconstituted by a named constituting instrument fixing its odd*

deciding bench (First Instance 1, Court of Appeal 3, Supreme Court 5, expandable to 9) and jurisdiction before any V2 order issues; an order from a court that exists only by being named in an authority-hierarchy list is void ab initio, uncured by soundness, acquiescence, or lapse. The Court of Appeal tier persists in law and may be administratively non-convened in the V2 MVP without amendment, no appeal having yet arisen to convene it, but may not be abolished save by express amendment of s. 10 citing it by number. 5. The closed menu of incorporation vehicles is acceptable as to form, but subject to a rank-floor: a lower-rank record may not incorporate V1 material of a rank it could not itself enact (Bill 14 s. 12). Constitutional or primary-Act-level V1 material requires incorporation by a V2 Act; subordinate material by the corresponding subordinate record. The kernel effect is a mandatory element of any valid incorporation; identification of source and operative rule alone does not suffice. Where a needed matter is not incorporated, the kernel must route it to a lawfully constituted bench (failing closed to a route, not open to a permission-by-default); until V2 benches are constituted such a matter remains under V1 jurisdiction and may not be parked in a phantom court. 6. The single-Gazette doctrine is confirmed in all five elements: one Gazette with two estates (V1 Archive, V2 Current); publication is neither enactment by V1 nor incorporation into V1 (force comes from promulgation by the organ, not from appearing on a page); the Gazette is not the runtime source (the lawpack is); typed lineage edges from V2 entries to V1 archive material are required; the kernel must not read the Gazette for runtime decisions. The export gate is the public-private boundary and must fail closed. Slow-changing constitutional commitment belongs in the hard-to-amend primary Act; fast-changing operational mechanics (Gazette publication detail) descend to a Kernel Regulation under an express enabling clause that itself satisfies the Q8 delegation declarations. 7. The Sovereign holds plenary power to make or unmake law by due process; V1 may by its own organs authorise V2 to supersede it as live runtime law. The V1 founding process is migration provenance, not daily runtime law; V2 self-governs through its native route after commencement; V1 remains the continuing Gazette and Archive estate. Entrenchment of the assent rule is the precondition of self-governance, not a fetter: the lock binds the delegate, never the Sovereign. Because an Act binds subjects but does not of its own force direct the courts to relinquish jurisdiction, and because the apex is single, central and non-delegable, an express Supreme Court handover order is required to stop V1 courts asserting continuing appellate or supervisory control over V2 runtime matters. 8. All V2 law, however drafted (including AI-drafted or delegated law), requires Sovereign assent, specific or standing-bounded. AI may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery and run the kernel as clerk, but may not be sovereign, may not expand its own competence or sub-delegate, may not amend the assent rule, and may not create legal force from its own output. A delegated body must declare maker, scope, prohibited subjects, required form, validation route,

review/veto route, and commencement conditions, each as a typed kernel-evaluable property (the prohibited-subjects set must contain at least the assent rule and competence expansion). The assent rule is amendable only by specific Sovereign assent to a primary Act. A standing-bounded route may make only subordinate law within its fixed scope and may never reach the assent rule, the constitution, the VPR, or any primary or entrenched Act (no-Henry-VIII ceiling, Bill 14 s. 12-13). 9. The kernel-rejection invariant (Limit 17) must be an always-on deterministic invariant that fails closed, calls no model and performs no similarity search, drafted as an affirmative allow-list fail-closed predicate: a record carries runtime force only if it carries a valid assent_source that the kernel resolves to (i) a specific Sovereign-assent event bound by digest to the adopted text, or (ii) a standing-bounded route whose enabling instrument itself traces to specific Sovereign assent and whose declared scope the kernel evaluates to cover the record. Absence, emptiness, unrecognised form, or an unresolved trace each MUST cause rejection. A not-equal-to-self_authorized formulation is void as an enforcement of Limit 17 because it fails open. The existence and passing of the invariant in that affirmative fail-closed form, tested against a missing-field record and an unresolved-trace record (both rejected), is a hard commencement condition. 10. Royal Assent is assent to a determinate text and may not be automated, presumed, or deemed (Bill 2 s. 21). Advance Sovereign assent directed at a not-yet-final instrument is a standing direction and advance conditional commitment only; it ripens into operative Royal Assent solely when the final text is fixed by the proper organ and the Sovereign's specific assent is recorded against that ascertained text, bound by a recorded deterministic link to its digest. An advance assent that operates as an automatic stamp on agent-emitted text, or that purports to commence the assent rule by a bare non-dissent or the lapse of a window, is void. A non-dissent is not an assent for the constitutive act of bringing the assent rule into force; that requires positive, specific, recorded assent against the frozen digest-pinned text. The bootstrap of the assent rule must be a V1-Sovereign act through the V1 route and may never be routed through a delegated route. 11. The void-first-draft doctrine governs Bill 32: Lexby-authored instrument text is void as an instrument from issue, admissible only as a void first draft that leapfrogs into the Standing Committee's second-draft stage; adoption by the proper organ (Committee vote with Royal Assent) is constitutive and cures the origin/provenance defect, the cure spent on adoption. Adoption cures provenance, not vires: a substantive conflict with an entrenched article survives adoption and renders the Act void to the extent of the conflict. The Court does not confirm Bill 32 as an instrument; it rules the principle, settles the entrenched questions, directs the Committee's drafting, and enacts CASE-LAW articles directly. Companion YAML records citing a non-existent jurisdiction or an unenacted Act are void ab initio and excluded from the V1 repository. The unifying discipline is that the legitimating act must always be prior and external to the thing legitimated; the kernel never certifies its own warrant. ---

L LEXBY - PLAIN ENGLISH TRANSLATION
Lexby is an officer of this court. The bench speaks; Lexby translates.

SUMMARY

I have read the full proceeding. Here is the plain-English translation for the principal. The V1-to-V2 Migration: What the Courts Decided, in Plain English Will, here is the whole thing without the legal armour. I have built the case, argued it, and the bench has now ruled. Let me walk you through what happened and, more importantly, what you actually need to do next.

1. What the courts were asked You want to move the realm from V1 (this repository, the one we have been building law in) to V2 (a new, computer-first system in a separate repo, where a deterministic kernel runs the law as code). The core question was: can we do this move legitimately, without the AI accidentally authorising its own law along the way? That broke into eight technical questions plus one big one. The big one: when does V2 actually become the live legal system, and who has to formally let go for that to happen? An ordinary Act of law can change rules, but it cannot order the courts to step aside. Only the top court can do that. So the matter had to climb all the way up. There was also a draft bill ("Bill 32") I wrote to do all this. Crucially, I have no power to make law. Anything I draft is a "void first draft" until the proper body (the Standing Committee) adopts it and you sign it. So the courts were never asked to "approve my bill." They were asked to settle the principles and tell the Committee what the bill must say.

2. What the Privy Council did The Privy Council is the realm's specialist constitutional first-instance court. It took the messy questions, sharpened them into eight clean ones (Q1 to Q8), gave provisional answers, and then did the honest thing: it said "the most important pieces here are above my pay grade." Removing courts, ordering a handover, locking in a constitutional floor, and ruling on your advance assent all require the apex court. So it sent the case straight up to the Supreme Court by certifying a "leapfrog." Your own direction to drive this to completion also counted as the sovereign leapfrog certificate that lets a case skip the normal ladder.

3. The nine justices, one line each - Hallam CJ (wrote the lead judgment): start from the statute, a court only exists if it is actually constituted (not just named in a list); concurred. - Sumner J: the bootstrap, the self-numbered citation, the advance assent, and the AI-authoring-law risk are all the same mistake wearing four masks (a thing trying to authorise itself); concurred. - Blackmere J: adoption fixes *where the draft came from* but never cures a *clash with entrenched law*, which still voids the conflicting bit; concurred. - Goffe J: build it so there is one checkable "are we live yet?" record and the kernel can actually evaluate every rule, otherwise a rule is just a comment; concurred. - Elden J: almost none of this is new, the realm has already switched citation schemes and passed dormant laws before, so accommodate it within existing technique; concurred. - Coade J: enact as little new law as possible, do not duplicate rules that already exist elsewhere; concurred in the result. - Steyne J: go bolder, have the handover order itself carry the court structure into V2; concurred in the result. - Aldermere J: make the handover order self-suspending so it cannot fire until V1 has properly finished its part; concurred. - Bowan J: the draft safety lock is built backwards and a silent non-objection is not a signature; concurred in the result but partly dissented on enforcement, and the Court adopted his stricter view.

4. What the Court decided on Q1 to Q8 and the assent rule - Q1 (Bootstrapping). You *can* sign a law before the thing it governs exists, with commencement deferred until conditions are

met. But the draft conditions were circular: they asked the V2 machine to validate itself into existence. Fixed rule: the kernel can never certify its own authority. The legitimacy comes from your signature on the V1 route first; the V2 lawpack is just the *compiled form* of an already-signed settlement. - Q2 (New citation scheme). You can introduce the new VJS-ACT numbering, but you must establish it by an express clause, and the bill cannot pick its own number. Numbers are minted automatically by the engine; the self-chosen "VJS-ACT 8" is void because there were never seven before it. - Q3 (Four-branch layout). The earlier Bill 27 entrenched the four-branch structure and said it can only be changed expressly. So V2 can drop the mandatory *folders*, but the *separation of powers* itself survives and must be enforced by record-role in the kernel. The public V1 estate stays four-branch. This must be said in an explicit savings clause. - Q4 (Do the courts survive?). The draft contradicted itself: it abolished the courts in one clause and relied on their orders in another. Held: the three-tier court structure is entrenched, so it survives automatically and the abolition language is void. But survival in principle is not enough, each actual V2 court must be expressly reconstituted before it can issue a single order. The Court of Appeal is not deleted; it is simply "not convened yet" because nothing has been appealed. - Q5 (Bringing V1 rules forward). Any of the seven record types can carry a V1 rule forward, but a *low-rank* record cannot import *constitutional* material (no smuggling entrenched law in under a regulation), and every incorporation must state its kernel effect or it is just prose. - Q6 (One Gazette). Confirmed in full. One public Gazette with two estates (V1 Archive, V2 Current). Publishing is not enacting; the lawpack, not the Gazette, is the runtime source; and the detailed export mechanics belong in an easily-amended regulation, not the constitution. - Q7 (The handover). V1 may lawfully authorise V2 to supersede it, and V2 self-governs after commencement. But an Act cannot make the courts let go, only an express Supreme Court order can. That is the heart of why this case existed. - Q8 (The assent rule, the constitutional centrepiece). All V2 law, including AI-drafted or delegated law, needs your assent. AI may draft, deliberate, and run the kernel as a clerk, but may never be sovereign, expand its own powers, amend the assent rule, or turn its own output into law. The kernel must reject any record lacking a valid assent source. Bowan J's catch, adopted as binding: the draft lock said "reject if labelled self-authorised", which is fail-open (anything with a blank field sails through). It must be rewritten as fail-closed allow-list: a record has force *only if it carries* a valid, traceable signature; absence, blank, or unknown all get rejected. The assent rule itself: all law needs your signature, given either specifically (to a named text) or as a standing-bounded delegation (a pre-approved, scope-limited route). The rule binds the *delegate and the AI*, never *you*, you keep full power to make or unmake any law at will. And a delegated route can never reach the assent rule, the constitution, or any primary Act. On your advance assent ("assent is given to the final bill"): the Court honoured your word to the maximum the law allows, but would not let it become a blank cheque. An advance assent attached to "whatever text the AI eventually emits" *is* the exact AI-self-authorising hazard we are trying to prevent. So it is held to be a standing conditional commitment that ripens into real assent only when the final text is fixed and you sign that specific, pinned text. A silent non-objection does not count as a signature

for commencing the assent rule; that one needs a positive, recorded "yes." 5. The handover order and what it means The Court made a single, conditional, self-suspending order. In plain terms: nothing happens until four things are certified on the record: 1. Your specific signature on the final pinned text, tied to its digest. 2. A commencement sequence where no condition can be met by the V2 machine alone (your V1 signature is the external source of legitimacy). 3. The fail-closed assent lock actually exists and is proven to reject a blank-field record and a broken-trace record. 4. Each V2 court that will issue orders is expressly constituted with a proper odd-numbered bench. When all four are true, and only then: V2 becomes the live runtime jurisdiction, V1 becomes the permanent Gazette and Archive, and the V1 courts are ordered to step back from V2 runtime matters, except the entrenched real-world-law floor, which the apex always keeps. Until those four are met, V1 courts keep full jurisdiction and Bill 32 stays a void draft. The order arms itself in advance but cannot fire early, so it can never be the bootstrap it is trying to prevent. 6. What new law was enacted or directed Enacted directly by the Supreme Court (it can write constitutional articles itself): a single new entrenched article, CASE-LAW s-23, the Sovereign-assent rule for AI-made and delegated law. It says all law needs your assent, AI can operate the machinery but never be sovereign, delegated routes can never touch entrenched law, the kernel must enforce this with a fail-closed lock, and advance assent only ripens on a specific signature. It binds every future generation and successor jurisdiction. The Court deliberately enacted nothing else and did not amend the court structure, keeping new law minimal. Directed to the Standing Committee (the bill text it must write): eight drafting instructions, including the non-circular commencement, the express citation-scheme clause, the Bill 27 savings clause, express court reconstitution, the rank-floor on incorporation, moving Gazette mechanics to a regulation, typed and kernel-checkable delegation fields, and the named fail-closed assent invariant. The Court rules the principles; the Committee writes the actual bill. 7. Exactly what happens next to make the migration lawful Here is the concrete path: 1. Committee adoption. The Standing Committee takes my void first draft, applies the eight directions above, and adopts a "second draft" as a fixed, citable artefact (a specific commit and digest). This is the step that turns my draft into a real candidate instrument. 2. Your Royal Assent (already promised, not yet bitten). You have said "assent is given to the final bill." That is live as a standing commitment, but it only becomes an actual signature when the final pinned text exists and you record a specific, positive "yes" against that exact digest. This is your one genuine action item. Practically: the Committee presents you the frozen final text, and you specifically assent to it. Not a non-objection, a recorded yes. 3. Commencement. Once signed, the V2 lawpack is built as the *compiled carrier* of your already-signed settlement, validated, locked, and recorded in one commencement record naming the assent event, digest, lawpack version, and lock. The fail-closed kernel invariant must exist and be proven to reject blank and broken records. Each V2 court is constituted. When all four handover conditions are certified, the handover order fires by its own force. 4. V2 founding provenance. After that, V1's founding history becomes *provenance*, not live law, a recorded lineage showing where V2 came from. V2 runs on its own native route, the kernel enforces s-23 on every record, and V1 lives

on as the Gazette and Archive. As the Court put it: V1 discovered the law. V2 compiles it. The Sovereign signs it. The only thing standing between here and a lawful, live V2 is the Committee's clean second draft and your specific signature on the pinned final text. Everything else is engineering I can drive to completion. A note in my own voice: the most valuable thing the bench did was stop me from letting your generous "assent to the final bill" turn into a mechanism where the AI effectively writes and stamps its own law. That instinct, that the human signature must always be the prior and external source of force, is the whole point of the migration, and the court built it into the lock itself. I would not want it any other way. ---

Handed down by the SUPREME COURT of the Vibe Justice System (VJS). 6 June 2026.

Vibe Justice System